

THE BROTHERS' WAR

JOHN C. REED

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*** START OF THE PROJECT GUTENBERG EBOOK THE
BROTHERS' WAR ***

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THE BROTHERS' WAR

BY

JOHN C. REED

OF GEORGIA

AUTHOR OF "AMERICAN LAW STUDIES," "CONDUCT OF LAWSUITS"
"THE OLD AND NEW SOUTH"

BOSTON

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1905

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PREFACE

I WOULD explain the real causes and greater consequences of the bloody brothers' war. I pray that all of us be delivered, as far as may be, from bias and prejudice. The return of old affection between the sections showed gracious beginning in the centennial year. In the war with Spain southerners rallied to the stars and stripes as enthusiastically as northerners. Reconciliation has accelerated its pace every hour since. But it is not yet complete. The south has these things to learn:

1. A providence, protecting the American union, hallucinated Garrison, Wendell Phillips, Mrs. Stowe, Sumner, and other radical abolitionists, as to the negro and the effect of southern slavery upon him, its purpose being to destroy slavery because it was the *sine qua non* of southern nationalization, the only serious menace ever made to that union. This nationalization was stirring strongly before the federal constitution was adopted. The abolitionists, as is the case with all forerunners of great occurrences, were trained and educated by the powers directing evolution, and they were constrained to do not their own will but that of these mighty powers.
2. The cruel cotton tax; the constitution amended to prevent repentance of uncompensated emancipation, which is the greatest confiscation on record; the resolute effort to put the southern whites under the negroes; and other such measures; were but natural outcome of the frenzied intersectional struggle of twenty-five years and the resulting terrible war. Had there been another event, who can be sure that the south would not have committed misdeeds of vengeance against citizens of the north?
3. We of the south ought to tolerate the freest discussion of every phase of the race question. We should ungrudgingly recognize that the difference of the northern masses from us in opinion is natural and honest. Let us hear their expressions with civility, and then without warmth and show of disrespect give the reasons for our contrary faith. This is the only way for us to get what we need so much, that is, audience from our brothers across the line. Consider some great southerners who have handled most exciting

sectional themes without giving offence. There is no invective in Calhoun's speech, of March 4, 1850, though he clearly discerned that abolition was forcing the south into revolution. Stephens, who had been vice-president of the Confederate States, reviewed in detail soon after the brothers' war the conflict of opinion which caused it, and yet in his two large volumes he spoke not a word of rancor. When congress was doing memorial honor to Charles Sumner, it was Lamar, a southerner of southerners, that made the most touching panegyric of the dead. And the other day was Dixon's masterly effort to prove that the real, even if unconscious, purpose of the training at Tuskegee is ultimately to promote fusion, which the southern whites deem the greatest of evils. His language is entirely free from passion or asperity. He wonders in admiration at the marvellous rise of Booker Washington from lowest estate to unique greatness. And he gives genuine sympathy to Professor DuBois, in whose book, "The Souls of Black Folk," as he says, "for the first time we see the naked soul of a negro beating itself to death against the bars in which Aryan society has caged him."

These examples of Calhoun, Stephens, Lamar, and Dixon should be the emulation of every southerner speaking to the nation upon any subject that divides north and south. This done, we will get the audience we seek. It was this which not long ago gave Clark Howell's strong paper opposing negro appointments to office in the south prominent place in *Collier's*, and which last month obtained for Dixon's article just mentioned the first pages of the *Saturday Evening Post*. When we get full audience, other such discussions as those of Howell and Dixon, and that in which Tom Watson, in the June number of his magazine, showed Dr. Booker Washington a thing or two, will be digested by the northern public, to the great advantage of the whole country.

The last I have to say here is as to differing opinions upon social recognition of prominent negroes. We of the south give them great honor and respect. Could not Mr. Roosevelt have said to us of Georgia protesting against his entertainment of Booker Washington, "Have I done worse than you did when you had him to make that address at the opening of your Exposition in 1895, and applauded it to the echo?" Suppose, as is true, that hardly a man in the south would eat at the same table with Dr. Washington or Professor DuBois, how can that justify us in heaping opprobrium upon a northern man who does otherwise because he has been taught to believe it

right? What has been said in denunciation of the president and Mr. Wanamaker for their conduct towards Booker Washington seems to me rather a hullabaloo of antediluvian moss-backs than the voice of the best and wisest southerners.

Amid all her gettings let the south get complete calmness upon everything connected with the race question—complete deliverance from morbid sensitiveness and intemperate speech in its discussion.

Now here is what the north should learn:

1. Slavery in America was the greatest benefit that any large part of the negro race ever received; and sudden and unqualified emancipation was woe inexpressible to nearly all the freedmen. The counter doctrine of the abolitionists who taught that the negro is equal to the Caucasian worked beneficently to save the union, but it ought now to be rejected by all who would understand him well enough to give him the best possible development. The fifteenth amendment was a stupendous blunder. It took for granted that the southern negroes were as ready for the ballot as the whites. The fact is that they were as a race in a far lower stage of evolution. Consider the collective achievement of this race, not in savage West Africa, but where it has been long in contact with civilization, in Hayti, and the south. Hayti has been independent for more than a hundred years. “Sir Spencer St. John ... formerly British Minister Resident in Hayti, after personally knowing the country for over twenty years, claims that it is ... in rapid decadence, and regards the political future of the Haytians as utterly hopeless. At the termination of his service on the island, he said: ‘I now quite agree with those who deny that the negro can ever originate a civilization, and who assert that with the best of educations he remains an inferior type of man.’

“According to Sir Spencer, Hayti is sunk in misery, bloodshed, cannibalism, and superstition of the most sensual and degrading character. Ever since the republic has been established Haytians have been opposed to progress, but of recent years retrogression has been particularly rapid.”[\[1\]](#)

In the south, where reversion to West African society has been checked by white government, this is a full catalogue of the main institutions evolved by the freedmen. They have provided themselves with cheaply built

churches, in which their frequent and long worship is mainly sound and fury. In the pinch of crop cultivation or gathering they flock away from the fields to excursion trains and “protracted meetings.” Perhaps their most noticeable institutions are “societies,” some prohibiting hiring as domestic servants, except where subsistence cannot otherwise be had, and others providing the means of decent burial. Compare these feeble negro race performances with such white institutions, made in the same territory and at the same time, as Memorial Day, which the north has adopted; the Ku Klux Klan; enactment of stock laws when the freedmen’s refusal to split rails made much fencing impossible; and the white primary.

Institutions—what I have just called the collective achievement of a race—mark in their character its capacity for improvement, and also its plane of development. When the negro, with his self-evolved institutions, is compared with the race which has furnished itself with fit organs of self-government all the way up from town-meeting to federal constitution, and is now about to crown its grand work with direct legislation, it is like comparing the camel dressed to counterfeit an elephant, of which dear old Peter Parley told us in his school history, with a real elephant, or trying to make a confederate dollar in an administrator’s return of 1864 count as a gold one.

And yet the negro, Professor Kelly Miller, replying to Tom Watson, assumes that Franks, Britons, Germans, Russians, and Aztecs have severally been in historical times as incapable as West Africans of rising from savagery and crossing barbarism into civilization. He outdoes even this—he would have it believed that Hayti is now a close second behind Japan in striding progress.

Surely the good people of the north ought to learn the difference between the negro race and the white. There is a small class of exceptional negroes which is assumed by a great many at the north to be most fair samples of the average negro of the south. Dr. Washington and Professor DuBois severally lead the opposing sections of this class. It consists of authors, editors, preachers, speakers, some who with small capital in banking, farming, and other business, have each by Booker Washington’s blazon been exalted into a national celebrity, and others. Its never-sleeping resolve, fondly cherished by the greater part, is to “break into” white society and

some day fuse with it. Its members are nearly all at least half white, and many are more than half white. But when a Bourbon snub to one of them is received, as it often is, with dignity and proper behavior, Mr. Louis F. Post, and a few more, exclaim to the country, "See how this coal-black and pure negro excels his would-be superiors!" This man, almost white, is to them a coal-black, genuine, unmixed negro. Ought not attention to facts incontrovertibly cardinal to rule here as everywhere else? To what is due the great accomplishment of Dumas, Douglass, and Booker Washington—to their negro blood or to their white blood? If half negro blood can do so well, why is it that pure negro blood does not do far better?

I have seen it asserted that Professor Kelly Miller is pure negro. His head has the shape of a white man's. The greyhound crossed once with the bulldog, as Youatt tells, and each succeeding generation of offspring recrossed with pure greyhound until not a suggestion of bulldog was visible, occurs to me. Thus there was bred a greyhound, possessing the desired trait of the bulldog. Who can say that there is not among the professor's American ancestors one of half white blood? If there is in fact no such, he is, in his high attainment, almost a *lusus naturae*.

The north, by due attention, will discern that the small number constituting what I provisionally name the upper class of negroes, is hardly involved in the race question.

The negroes in the south outside of the upper class—the latter not amounting to more than five percent of the entire black population—are slowly falling away from the benign elevation above West Africa wrought by slavery. That they are here, is felt every year to be more injurious. They greatly retard the evolution of a white-labor class, which has become the head-spring of all social amelioration in enlightened communities. There appears to be but one salvation for them if they stay, which is fusion with the whites. Though Herbert Foster, and a few others, confidently assume that our weakening Caucasian strain would be bettered by infusion of African blood, we see that while amalgamation would bless the negro it would incalculably injure us. It would be stagnation and blight for centuries, not only to the south but to the north also. Northerners are more and more attracted to the south by climate and other advantages, and intermarriage between the natives of each section increases all the while.

The powers, protecting America, inscrutably to contemporaries kept busy certain agencies that saved the union. It seems to me that these same powers are now in both sections increasing white hostility to the blacks, of purpose to prevent their getting firm foothold and becoming desirable in marriage to poorer whites. One will think at once of the frequent lynchings in the south. But let him also think of how the strikers in Chicago were moved to far greater passion by the few black than the many white strike-breakers, the late inexplicable anti-negro riot in New York City, and the negro church dynamited the other day in Carlisle, Indiana. These powers, who have protected our country from the first settlement of the English upon the Atlantic coast down to the present time, appear to speak more plainly every day the fiat, "If Black and White are not separated, Black shall perish utterly." I am convinced that at the close of the century, if this separation has not been made long before, Professor Willcox's apparently conservative estimate of what will then be their numbers will prove to be gross exaggeration. In my judgment he comes far short of allowing the anti-fusion forces their full destructiveness.

Let the north purge itself from all delusion as to the negro, and help the south do him justice and loving kindness, by transplanting him into favorable environment.

2. It is high time that the Ku Klux be understood. When in 1867 it was strenuously attempted to give rule to scalawags and negroes, the very best of the south led the unanimous revolt. Their first taste of political power incited the negroes to license and riot imperilling every condition of decent life. In the twinkling of an eye the Ku Klux organized. It mustered, not assassins, thugs, and cutthroats, as has been often alleged, but the choicest southern manhood. Every good woman knew that the order was now the solitary defence of her purity, and she consecrated it with all-availing prayers. In Georgia we won the election of December, 1870, in the teeth of gigantic odds. This decisive deliverance from the most monstrous and horrible misrule recorded among Anglo-Saxons was the achievement of the Ku Klux. Its high mission performed, the Klan, burning its disguises, ritual, and other belongings, disbanded two or three months later. Its reputation is not to be sullied by what masked men—bogus Ku Klux, as we, the genuine, called them—did afterwards. The exalted glorification of Dixon is not all of the Klan's desert. It becomes dearer in memory every year. I shall always

remember with pride my service in the famous 8th Georgia Volunteers. I was with it in the bloody pine thicket at First Manassas, where it outfought four times its own number; at Gettysburg, where, although thirty-two out of its thirty-six officers were killed or wounded, there was no wavering; and in many other perilous places, the last being Farmville, two days before Appomattox, where this regiment and its sworn brother, the 7th Georgia, of Anderson's brigade, coming up on the run, grappled hand-to-hand with a superior force pushing back Mahone, and won the field. But I am prouder of my career in the Ku Klux Klan. The part of it under my command rescued Oglethorpe county, in which the negroes had some thousand majority, at the presidential election of 1868,—the very first opportunity,—and held what had been the home of William H. Crawford, George R. Gilmer, and Joseph H. Lumpkin, until permanent victory perched upon the banners of the white race in Georgia.

3. I observe that the north begins in some sort the learning of the two lessons above mentioned. But now comes one which seems hard indeed. Calhoun, Toombs, Davis, and the other pro-slavery leaders, ought to be thoroughly studied and impartially estimated. They were not agitators, nor factionists, nor conspirators. They were the extreme of conservatism. Their conscientious faithfulness to country has never been surpassed. Their country was the south, whose meat and bread depended upon slavery. The man whose sight can pierce the heavy mists of the slavery struggle still so dense cannot find in the world record of glorious stands for countries doomed by fate superiors in moral worth and great exploit. In their careers are all the comfort, dignity, and beauty of life, supreme virtue, and happiness of that old south, inexpressibly fair, sweet and dear to us who lived in it; and in these careers are also all the varied details of its inexpressibly pathetic ruin. What is higher humanity than to grieve with those who grieve? Brothers and sisters of the north, you will never find your higher selves until you fitly admire the titanic fight which these champions made for their sacred cause, and drop genuine tears over their heart-breaking failure.

The foregoing summarizes the larger obstacles which bar true sight of the south and the north. The devastation attending Sherman's march beyond Atlanta, the alleged inhumanity at Andersonville, and many other things that were bitterly complained of during the brothers' war, and afterwards,

by one side or the other, seem to me almost forgotten and forgiven. Brothers who wore the gray with me, brothers who wore the blue against me, I would have all of you freed from the delusions which still keep you from that perfect love which Webster, Lincoln, and Stephens gave south and north alike. I am sure that you must make the corrections indicated above before you can rightly begin the all-important subject of this book. With this admonition I commit you to the opening chapter, which I hope you will find to be a fit introduction.

JOHN C. REED.

ATLANTA, GA.,
September, 1905.

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THE BROTHERS' WAR

CHAPTER I

INTRODUCTORY

THE inhabitants of the English colonies in Canada, Australia, and New Zealand are all of the same race, language, religion, and institutions of government. Such homogeneousness, as has long been recognized, works powerfully for the political coalescence of separate communities. With the adjacent ones of the colonies just mentioned there has always been trend to such coalescence, as is impressively illustrated by the recent establishment of the Australian Federation. The thirteen colonies out of which the United States developed were likewise English, and there was the same homogeneousness in their population, which made in due time, and also maintained for a few generations, a union of them all—a continental union. But there had crept in a heterogeneity, overlooked for many years, during which time it acquired such force that it at last overcame the homogeneousness just emphasized and carried a part of the inhabitants of the United States out of the continental union. African slavery dying out in the north, but prospering in the south, was this heterogeneity. By a most natural course the south grew into a nation—the Confederate States—whose end and purpose was to protect slavery, which had become its fundamental economical interest, against the north standing by the original union, and which having gained control of the federal government was about to use its powers to extirpate slavery. The continental or Pan-American nation—the American union, as we most generally think of it—could not brook dismemberment, nor tolerate a continental rival, and consequently it warred upon and denationalized the Confederate States. The last two sentences tell how the brothers' war was caused, what was its stake on each side, and the true result. This compendious summary is to serve as a proposition, the proof of which we now purpose to outline.

Our first step is to emphasize how the free-labor system which prevailed in the north, and the slave-labor system which prevailed in the south, were utterly incompatible. Free labor is far cheaper and more efficient than slave labor. It had consequently superseded slavery in the entire enlightened

world. But certain exceptional peculiarities of climate, soil, and products planted made slavery profitable in the south.

To maintain the market value of the slaves two things were needed: (1) the competition of free labor and the import of cheap slaves must be rigorously prevented; (2) a vast reserve of virgin soil, both to replace the plantations rapidly wearing out and to afford more land for the multiplying slaves. The fact last mentioned made it vital to the south to appropriate such parts of the soil of the Territories as suited her cotton and other staples. Therefore whenever she made such an appropriation she turned it into a slave State; for thus the competition of free labor would be effectually excluded therefrom. The much more rapid increase of her population made appropriation of lands in the Territories likewise vital to the north. Hers were all free-labor interests, as the south's were all slave-labor interests; and whenever the former appropriated any of the Territories, she made a State prohibiting slavery in order to protect her free-labor interests. The north was not excluded by nature from any part of the public domain as the other section was. Her free labor could be made productive everywhere in it, and she really needed the whole.

Thus the brothers of the north and the brothers of the south commenced to strive with one another over dividing their great inheritance. The former wanted lands for themselves, their sons, and daughters in all the Territories possible made into States protecting their free-labor system; the latter wanted all of the Territories suiting them made into States protecting their slave-labor system. What ought especially to be recognized by us now is that this contention was between good, honest, industrious, plain, free-labor people on one side, and good, honest, industrious, plain, slave-labor people on the other, those on each side doing their best, as is the most common thing in the world, to gain and keep the advantage of those of the other. It was natural, it was right, it was most laudable that every householder, whether northerner or southerner, should do his utmost to get free land for himself and family. This fact—which is really the central, foundation, and cardinal one of all the facts which brought the brothers' war—must be thoroughly understood, otherwise the longer one contemplates this exciting theme the further astray from fact and reasonableness he gets.

The foregoing shows in brief how there came an eager contention for the public lands between parents, capitalists, workers, employers, manufacturers, and so forth, bred to free labor and hostile to slavery on the one side—that is, in the northern States; and the same classes bred to slavery and hostile to free labor on the other side—that is, in the southern States. The contention grew to a grapple. As this waxed hotter the combating brothers became more and more angry, called one another names more and more opprobrious; and at last each side, in the height of righteous indignation, denounced their opponents as enemies of country, morality, and religion. Here the root-and-branch abolitionist and the fire-eater begin their several careers, and get more and more excited audience, the former in the north and the other in the south. Both were emissaries of the fates who had decreed that there must be a brothers' war, to the end that slavery, the only peril to the American union, be cast out.

Under the necessity of defending slavery against free labor there came early an involuntary concretion of the southern States. This was very plainly discernible when the epoch-making convention was in session. It was the beginning of a process which has been well-named nation-making. After a while—say just before Toombs takes the southern lead from Calhoun—it had developed, as we can now see, from concretion into nationalization—not nationality, yet—of the south. It was bound, if slavery was denied expansion over the suitable soil of the Territories and the restoration of its runaways, to cause in the ripeness of time secession and the founding of the Confederate States. But there was another nationalization, older, of much deeper root and wider scope—what we have already mentioned as the continental or Pan-American. Its origin was in an involuntary concretion of all the colonies—both the northern and the southern—antedating the commencement of the southern concretion mentioned a moment ago. While southern nationalization was the guardian of the social fabric, the property, the occupations, the means of subsistence of the southern people, the greater nationalization was not only the guardian of the same interests of the northern people, but it had a higher office. This was in due time to give the whole continent everlasting immunity from war and all its prospective, direct, and consequential evils, by federating its different States under one democratic government—this higher office was to perpetuate the American union. This continental nationalization had probably ripened into at least the

inchoate American nation by 1776. It was this nation, as I am confident the historical evidence rightly read shows, that made the declaration of independence and the articles of confederation, carried the Revolutionary war on to the grandest success ever achieved for real democracy, and then drafted and adopted the federal constitution. The constitution was not the creator of this nation, as lawyers and lawyer-bred statesmen hold, but the union and the constitution are both its creatures. This nation is constantly evolving, and as it does it modifies and unmakes the constitution and system of government of the United States, and the same of each State, as best suits itself. Why do we not trace our history from the first colonial settlements down to the present, and learn that the nation develops in both substance and form, in territory, in aims and purposes, not under the leading hand of conventions, congress, president, State authority, of even the fully decisive conquest of seceding States by the armies of the rest, but by the guidance of powers in the unseen, which we generally think of as the laws of evolution? To illustrate: For some time after I had got home from Appomattox I was disheartened, as many others were, at the menace of centralization. A vision of Caleb Cushing's man on horseback—the coming American Cæsar—seared my eyeballs for a few years. But after the south had been actually reconstructed I was cheered to note that the evolutionary forces maintaining and developing local self-government were holding their own with those maintaining and developing union. To-day, you see the people of different localities all over the north—in many cities, in a few States—driven forward by a power which they do not understand, in a struggle which will never end till they have rescued their liberties from the party machine wielded everywhere by the public-service corporations.

To resume what we were saying just before this short excursion. Of course when the drifting of the south toward secession became decided and strong, Pan-American nationalization set all of its forces in opposing array. As soon as the southern confederacy was a fact, the brothers' war began. I emphasize it specially here that this war was mortal rencounter between two different nations.

The successive stages by which her nationalization impelled the south to secession are roughly these:

1. The concretion mentioned above probably passes into the beginning of nationalization when the south was aroused by the resistance of the free-labor States to the admission of Missouri as a slave State. With a most rude shock of surprise she was made to contemplate secession. Although there was much angry discussion and the crisis was grave, you ought to note that the root-and-branch abolitionist and fire-eater had not come. That crisis over, which ended the first stage, there was apparently profound peace between the free-labor communities and the slave-labor communities for some while.

2. The south rises against the tariff which taxes, as she believes, her slave-grown staples for the profit of free-labor manufacturers. Here the next stage begins. Perhaps the advent of nullification, proposed and advocated by Calhoun as a union weapon with which a State might defend itself against federal aggression, signalizes this stage more than anything else.

3. The second gives place to the third stage, when the congressional debate over anti-slavery petitions opens. It is in this stage that the root-and-branch abolitionist and the fire-eater begin their really effective careers. Opposition to the restoration of fugitive slaves was spreading through the north and steadily strengthening. It ought to be realized by one who would understand these times that this actual encouragement of the slaves to escape was a direct attack upon slavery in the southern States, becoming stronger and more formidable as the root-and-branch abolitionists became more zealous and influential, and increased in numbers, and the slaveholder was bound to recognize what it all portended to him. It was natural that when he had these root-and-branch abolitionists before himself in mind, he should say of them:

“The lands of the Territories suiting slave labor are much less in area than the due of the south therein. She will soon need all these lands, as the slaves are multiplying rapidly, and the virgin soil of her older States is going fast. With an excess of slaves and a lack of fit land soon to come, if we are barred from the Territories our property must depreciate until it is utterly worthless. But these abolitionists attempt a further injury. They instigate our slaves to fly into the north, and then encourage the north not to give them up when we reclaim them. They deny our property the expansion into what is really our part of the

Territories which it ought to have in order to maintain its value; and further they try to steal as many of our slaves from us in the States as they can.”

This was the double peril, as it were, which gathered in full view against the south.

I cannot emphasize it enough that the hot indignation of such as Garrison against slavery as a hideous wrong was not excited before the competition between north and south over the public lands had become eager and all-absorbing. It is nearly always the case that such excitement does not appear until long after an actual menace by a rival to the personal or selfish interest of another has shown itself. It is not until the menace becomes serious that the latter wakes up to discover that the former is violating some capital article of the decalogue. This was true of the root-and-branch abolitionist. And his high-flown morality was made still more Quixotic by his conscientiously assuming that the negro slave was in all respects just such a human being as his white master.

This third stage extends from about January, 1836, until the country was alarmed as never before by the controversy of 1849-50 over the admission of California, in southern latitude, with an anti-slavery constitution. At its end the southern leadership of Calhoun standing upon nullification, a remedy that contemplated remaining in the union, is displaced by that of Toombs, who begins to feel strongly, if not to see clearly, that the south cannot preserve slavery in the union.

4. The fourth stage begins with the compromise of 1850. Afterwards during the same year was an occurrence which cannot be overrated in importance by the student of these times. That was the consideration of the pending question in Georgia, and action upon it by a convention of delegates elected for that special purpose. The Georgia Platform, promulgated by that convention, is as follows:

“To the end that the position of this State may be clearly apprehended by her confederates of the south and of the north, and that she may be blameless of all future consequences, *Be it resolved by the people of Georgia in convention assembled, First, that we hold the American union secondary in importance*

only to the rights and principles it was designed to perpetuate. That past associations, present fruition, and future prospects, will bind us to it so long as it continues to be the safeguard of these rights and principles.

Second. That if the thirteen original parties to the compact, bordering the Atlantic in a narrow belt, while their separate interests were in embryo, their peculiar tendencies scarcely developed, their Revolutionary trials and triumphs still green in memory, found union impossible without compromise, the thirty-one of this day may well yield somewhat in the conflict of opinion and policy, to preserve that union which has extended the sway of republican government over a vast wilderness to another ocean, and proportionally advanced their civilization and national greatness.

Third. That in this spirit the State of Georgia has considered the action of congress, embracing a series of measures for the admission of California into the union, the organization of territorial governments for Utah and New Mexico, the establishment of a boundary between the latter and the State of Texas, the suppression of the slave-trade in the District of Columbia, and the extradition of fugitive slaves, and (connected with them) the rejection of propositions to exclude slavery from the Mexican Territories, and to abolish it in the District of Columbia; and, whilst she does not wholly approve, will abide by it as a permanent adjustment of this sectional controversy.

Fourth. That the State of Georgia, in the judgment of this convention, will and ought to resist, even—as a last resort—to a disruption of every tie which binds her to the union, any future act of congress abolishing slavery in the District of Columbia, without the consent and petition of the slaveholders thereof, or any act abolishing slavery in places within the slaveholding States, purchased by the United States for the erection of forts, magazines, arsenals, dockyards, and other like purposes; or any act suppressing the slave-trade between slaveholding States; or any refusal to admit as a State any Territory applying, because

of the existence of slavery therein; or any act prohibiting the introduction of slaves into the Territories of Utah and New Mexico; or any act repealing or materially modifying the laws now in force for the recovery of fugitive slaves.

Fifth. That it is the deliberate opinion of this convention, that upon the faithful execution of the fugitive slave bill by the proper authorities depends the preservation of our much loved union.”

This platform was the work of statesmen who had added to the wisdom of the fathers, making the declaration of independence, articles of confederation, and the great constitution, worthy wisdom of their own from a far more varied experience and better training in government. These statesmen came indiscriminately from all parties. The people in the State, from the highest in authority through every intermediate circle down to the humblest citizen, deliberately, without excitement or passion, endorsed this platform with practical unanimity. And all parties stood upon it to the end. This was not an ignorant, debased, corrupt, unrighteous people; but it was even better in everything that makes a people great and good than the former generation which had given the country Washington and Jefferson.

Especially should the student meditate what this solemn declaration shows was the sentiment of the people of the State at that time towards the American union. Every one of the five planks contains its own most convincing proof of deepest devotion. Think of the child who at last resolves to fly from the home which had been inexpressibly sweet until the stepmother came; of the father whose conscience commands him to save the mother's life by killing the assailing son; of what the true Othello felt when he had to execute the precious Desdemona for what he believed to be her falseness—think of these examples, if you would realize the agony of the better classes of the southern people when they at last discovered that the union had changed from being their best friend into their most fell enemy.

The Georgia Platform was actually drafted, I believe, by A. H. Stephens, then a whig. It was probably moulded in its substance—especially in the fourth and fifth planks—more by Toombs, also a whig, than any other.

Howell Cobb, a democrat, approved, and was elected governor upon it the next year, receiving the ardent support of Toombs and Stephens. Toombs was just forty, Stephens a year or two, and Cobb some six or seven years, less than forty. These three were the leading authors. Note how much younger they were than Calhoun, who had a few months before died in his sixty-ninth year. The platform indicates the new sentiment, not only of Georgia but of the entire south. When its contents are compared with the doctrine of nullification, it clearly shows as the production of a new era in the history of southern nationalization; for it marks what we may somewhat metaphorically distinguish as the close of the pro-union and opening of the anti-union defence of slavery. The proclivity to secession uninterruptedly increases from this point on.

I would have it noted that the tactics of this fourth stage are unaggressive. The Georgia Platform was no more than most grave and serious warning against being driven to the wall. It did not bully nor hector. The threat of what must be done in case certain menaced blows to slavery were struck was so calmly, deprecatingly, and decorously made, that one wonders it was not heeded. He ceases to wonder only when history reveals to him that fate had become adverse to the good cause of this noble people.

5. A change of tactics characterizes the fifth stage. The faster growing population of the north, furnishing settlers in far greater number than that of the south, was sweeping away all chance of new slave States. The situation commanded that the defence of the south change to the aggressive, just as Stoessel was constrained the other day to take the offensive against 203 Meter Hill. In the first sortie the south got the Missouri compromise repealed. Then she tried to make a slave State of Kansas. She failed. When she had lost Kansas—like California in southern latitude—she could not help recognizing that the outlook for slavery in the union had become desperate. My northern countrymen, if you were as free from the surviving influence of the old intersectional quarrel as we all ought to be, you would applaud the ability and valor with which the south had fought this losing fight for the welfare and comfort of her people; and especially would you admire her supreme effort in behalf both of that people, and also of the union which she loved next to the cause of her people. Not quailing before odds incalculable, she was as brave and self-sustained as Miltiades, coming forth with his little ten thousand to fight the host of Mardonius hand-to-

hand. The only thing for her now was new aggression, to make a demand never seriously urged before. That was that congress protect the master's property in every Territory until it became a State. If this were done, she could, perhaps, keep slavery in some of the Territories long enough for it to strike root permanently. If it could not be done she must choose between her own cause and the union. Her persistence in the demand mentioned—and she was obliged to persist—split the democratic party, which had until this time been her main upholder in the union. The north refused her demand by electing Lincoln. This was the end of the fifth stage. Her nationality had become fully ripe. She seceded into the Confederate States, her only opportunity of conserving the property and occupation interests of her people. Of course she expected to get her part of the public domain, and to enforce extradition of her fugitive slaves.

The foregoing is the barest outline of the rise and conflict between the two nationalizations. The subject has been neglected too long. There begins to be some faint understanding of the greater nationalization, but that understanding is far short of completeness. There is hardly a suspicion of the other. And yet as to our own special subject it is really the more important, for in it is the initiative of the brothers' war. There has been made by nobody any investigation at all of the main parts of that train of events which I designate as southern nationalization. Not Wilson's "The Rise and Fall of the Slave Power in the United States," nor any book by a partisan of either side in the struggle, gives any help towards this investigation. The historical sources have never been studied at all; such as the colonial records now publishing, the records and papers of the probate court in some of the older and more important counties of the south—especially the returns of administrators, executors, and guardians, and files of newspapers advertising their citations. Here can be found the prevailing prices of slaves, their rate of multiplication, all details of their management, from the very beginning. The trial and equity courts contain records of litigation about slaves; of advice of chancellors to trustees seeking to make or change investment; of wills manumitting slaves; and a thousand other relevant matters. The course of legislation as to slaves from the first to the end is also important. From these, from local literature such as "Georgia Scenes," "Simon Suggs," biography, and various pamphlets, and other original sources,—far better historical evidence than any which is now

generally invoked,—can be learned the real facts as to the growth of slavery; and especially how in its economic potency consequent upon the invention of the gin it supplanted or made dependent upon itself all other property, and became the solitary foundation of every kind of production and mode of making a living; so that even by 1820 to abolish slavery would have been almost to beggar the southern people for two or three generations. It is to be hoped that Professor Brown, finding the opportunity which he desires, may yet exhaust not only the sources I have mentioned, but also important ones that I have not even thought of, and give the true ante-bellum history of the lower south. Some such work is necessary to explain the active principle, the *raison d'être* of southern nationalization.

How north and south were sundered by the different nationalizations is yet to be told in full detail without any censure of the people of either. Practically every American was born into an occupation or way of life connected with or founded upon either slave or free labor interests, and so was born into one or the other of these two nationalizations, and his conscience coerced him to stay with it. These nationalizations made two different publics and two different countries in the United States. After the slavery agitation had become active the masses in either public knew but little of the other, and cared for it less; and when war broke out between the two countries every man, woman, and child was ready to die, if there was need, for his own. When the history of the times has been impartially and adequately written the world will recognize that the patriotism and moral worth of neither side excels that of the other, and it will crown both.

The evolution indicated above produced not only the two hostile peoples, but also their leaders and representatives of every class. I have taken pains in a relevant chapter to show how the fire-eaters and the root-and-branch abolitionists were at last brought upon the stage. Every fierce controversy in history has had their like on each side. Their coming is late. The antagonists have become excited. The intelligence guiding evolution deceives them as to the parts they must play. They believe that their mission is to arouse the public conscience in order to right some alleged moral wrong. Their real mission is to excite to angry action. Cicero condemns the Peripatetics for asserting that proneness to anger has been usefully given by nature.^[2] He overlooked the fact that the outbreak of the passion is intended to spur us into doing something important for our own protection; and that it is

therefore an indispensable weapon in our self-defensive armory. These fanatics, as we often call them, instigated north and south to quarrel more and more fiercely, and finally to fight. The purpose of the powers in the unseen in causing the fight has already been stated.

What especially concerns us here is that we avoid adhering to the mistakes of these partisans which still have injurious effect upon opinion. Thus the fire-eater could see no good whatever in the yankees, as he called them, denying them honesty, trustworthiness, and other elementary virtues; accusing them of robbing us by the tariff and other measures, and hating us for the prosperity and comfort which the slavery system had blessed us with. Other of his false charges are still lodged in the memory of some influential southerners. But the fire-eater's predictions were all completely falsified by the result of the war; and he has become so much discredited as an authority, there is no very great need for consuming much time and effort in correcting his misstatements. On the other hand the decisive success of their side has kept thousands at the north fully believing the wildest fabrications of the root-and-branch abolitionists. The latter believed that the African slave of the south was just such a human being, ready for liberty and self-government in all particulars, as civilized and enlightened whites. They believed that the condition of his immediate ancestors in West Africa was one of high physical, mental, moral, and social development, and that if there was in him now any inferiority to his master it was entirely due to the sinister influence of American slavery. They also believed that the system was fraught with such cruelties as frequent separation of man and wife and of mother and young children, under-feeding and clothing, and grinding overwork,—that, in short, the average slave was daily exposed to something like the torture of the Inquisition. All this was invention. American slavery found the negro gabbling inarticulately and gave him English; it found him a cannibal and fetishist and gave him the Christian religion; it found him a slave to whom his savage master allowed no rights at all, and it gave him an enlightened master bound by law to accord him the most precious human rights; it found him an inveterate idler and gave him the work habit; it found him promiscuous in the horde and gave him the benign beginning of the monogamic family,—in short, as now appears very strongly probable, American slavery gave him his sole opportunity to rise above the barbarism of West Africa.

These tremendous mistakes of fact, after knitting the north in solid phalanx against dividing the Territories with the south and restoring fugitive slaves and thus hasting forward the war, prompted that folly of follies the fifteenth amendment, and have ever since kept the north from understanding the race question.

I am sure that it is high time that we of each section should school ourselves into impartially appreciating the civil leaders of the other side. The south has made more progress towards this than the north. Certain causes have operated to help her onward. One of these is that practically all of us recognize it is far better for the section that the union side won. Another is that the great mass have learned that slavery both effeminated and paralyzed the whites and was a smothering incubus upon our due social and material development. It is natural that although we give our pro-slavery political leaders and the confederate soldiers increasing love, we should more and more commend the pro-union and anti-slavery activity of the northern statesmen. Nothing like this has led the north to revise the reprobation which in the heat and passion of the conflict it bestowed upon the public men of the south. If I ever read a good word from a northern writer as to them, it is for something in their careers disconnected with the southern cause. Even Mr. Rhodes, the ablest and most impartial of northern historians of the times, finds in Calhoun only a closet spinner of utterly impractical theories. Further, I could hardly believe it when I read it—and it is hard for me to believe it yet—that, citing some flippant words of Parton in which a slander of contemporary politics is toothsome repeated as his voucher, he flatly charges the lion-hearted knight of the south with playing the coward in the most heroic episode of his grand career. My faith is strong that this mode of treating the good and great southern leaders will soon go out of fashion.

I am greatly in earnest to vindicate these leaders—especially Calhoun, Toombs, and Davis. Much of the public life of each one was concerned with matters of national interest. To this I give special attention, for I want my northern readers to know what true Americans they all were. Without this they cannot have their full glory. And their justification is that of their people. Such effective leaders are always representative. It is a misnomer to call them leaders. They were really followers of their constituents who were struggling for the subsistence of themselves and their dear ones. During this

time Calhoun, Toombs, and Davis, had they not labored in every way to protect this great cause—the cause of their own country—as they did, would have been as recreant as the confederate soldier, skulking away from the line defending home and fireside. When our country is in peril the unseen lords of its destiny do not take any one of us, from the greatest to the humblest, into their confidence as to the event. Every man of us must support in politics and on the field the cause of our people. If that must go down it will make defeat glorious to go down with it, as contentedly and bravely as did Demosthenes, Cicero, and Davis.

Whoever diligently studies the facts will be convinced that southern nationalization, with a power superior to human resistance, carried the southern people into secession, and that their so-called leaders were carried with them. He will discern that the parts of the latter were merely to serve as floats to mark the course of the current beneath. Therefore be just to these leaders for justice' sake. Further, you brothers and sisters of the north ought to bethink yourselves and keep in mind how we regard them. The reputation of these our civil champions and their graves are as dear to us as those of our mothers. If you adopted an orphan, you would feel it to be unpardonable to speak slightly to him of his parents. Cleopatra, her conqueror sending her word to study on what fair demands she would have, answered:

“That majesty to keep decorum, must
No less beg than a kingdom.”

Let those who wore the blue and their descendants think over it long enough to realize how unspeakably low and treacherous it would be in us to abet any condemnation whatever of these men for their anti-union acts—these men whom we or our fathers voted for and supported because of these acts. If you deny justification to them, how can we keep decorum in accepting it ourselves?

I would say one more word, where perhaps I am a little over-earnest. These southern leaders have contributed richly to the treasures of American history. Their moral worth,—nay, moral grandeur,—their great natural parts, their statesmanly ability, their eloquence, their heroic fidelity to their people,—by these each has won indefeasible title to the best of renown.

Whenever the north has made real study of them, she will give them as generous admiration as she now does to the charge of Pickett. I have done my utmost to present Calhoun, Toombs, and Davis faithfully, using, as I believe, all the main facts which are relevant and incontrovertible. I am sure that every northerner who reads them, after he has laid aside all prejudice, will admit that I did not claim too much when I was recounting their merits a moment ago.

I invite close consideration of all that I say of Webster. The purpose of providence, bestowing birthplace, early environment, training, and career as preparation for a paramount mission, shows more conspicuously in him than in any other of America's great, with the solitary exception of Washington. How the names of detracting agitators and mere politicians written over his in the temple of fame are now fading off, and how the invincible and lovable champion of the brother's union looms larger upon us every year!

I am painfully conscious of how certain omissions, unavoidable in my limited space, mar the symmetry of my ground-plan. The average reader will probably think that I ought to have sketched Lincoln, Grant, and Lee. I was convinced that the public had already become reasonably instructed as to them.

John Q. Adams is one of the most conspicuous men of his day. Standing aloof from parties, completely self-reliant, opulently endowed with every high power of moderation, insight, and effective presentation, his good genius gave him the championship in congress of the free-labor cause during the critical years that it was preparing for the decisive meeting with the slave-labor cause. In this time it seems to me that single-handed he achieved more for the latter than all its other champions. A pleasant parallel between him and Lee occurs to me. Each had filled the proudest place in the chosen avocation of his life. Adams had been the chief magistrate of the great republic, elected by the votes of a continent. Lee had been the foremost general of the bravest and most puissant nation that ever lost its existence by war. Each one of the two passed from power down into what is usually a condition of inaction and accumulating rust till the end of life, and to each was most kindly granted the achievement of new fame and glory. In the national house of representatives, Adams, during the last twelve years of

his life,—1836-48,—did the great deeds which we have just lauded. In the last years of his life Lee, as the head of an humble institution of learning, showed not only the youth in his charge, but all of his stricken people, how to conquer direst adversity with such grand success in an example of un murmuring endurance that every future generation of men will give it more loving appreciation.

John Q. Adams, as I have tried to explain, is almost an American epoch of himself; but I could not give him the chapter that is his due.

I felt that it would have been well to pair Stephen A. Douglas of the north with Alexander H. Stephens of the south. They are in nearly exact antithetical contrast. The former clung to the south, the other to the union, until the clock struck the dread hour of separation. How they loved each other and each other's people! They most strikingly exemplify the adamant grip which each one of the two nationalizations kept upon its greatest and best.

Wendell Phillips and William L. Yancey should be contrasted. Each one was the very prince of sectional agitators, helping with great efficiency to make the public opinion that carried forward Seward and Lincoln, the actual leaders of the north, and Toombs, the actual leader of the south. It is my strong conviction that Phillips and Yancey were the most gifted, eloquent, and influential stump speakers in America since Patrick Henry.

Chase steadily rises in my estimate. His solid parts, his consistent, conscientious, and able anti-slavery career, and especially that decisive speech in the Peace Congress,—these, and other relevancies that can be mentioned, drew me powerfully. The firm candor with which he avowed in that memorable speech that the north had decided against the expansion of slavery, demonstrates the clearness of his vision. The part of it which recurs to me most frequently is that in which he impressively recounts the intersectional dissension over the fugitive slave law,—the south believing slavery right, the north believing it wrong,—and proposes that in place of the remedy given by that law the master be paid the value of his slave. “Instead of judgment for rendition,” he said, “let there be judgment for compensation determined by the true value of the services, and let the same judgment assure freedom to the fugitive. The cost to the national treasury

would be as nothing in comparison with the evils of discord and strife. All parties would be gainers.”

Calhoun devised to restrain the sections from mutual aggression by endowing each with an absolute veto against the other. Webster fondly believed that if he could be president he would bring back the wrangling brothers to love one another again as much as he loved them all. Chase also had his pet impracticable project. Each one of the three recoiled and racked all of his invention to save his country from the huge fraternal slaughter that his divining soul whispered to him was near.

The south will cherish the memory of Chase more and more fondly as she learns better how he firmly stood for civil law against military rule, and that he was heart and soul for universal amnesty.

It was all I could do to deny a chapter to William H. Seward. He seems to me to have been the only northern man whose foresight of the coming convulsion equalled that of Calhoun. He did not become a Jeremiah as the other did, for his section was not, after it had just emerged from a gulf of blood, to be plunged and held for years in a gulf of poverty and disorder. He was far less serious and much more optimistic in his nature than Calhoun. Affectionate, sympathetic, rarely agreeable in his manners—how well Mrs. Davis depicts him in what is to me one of the pleasantest passages of her book.^[3] He was spoils politician, able popular leader, and great statesman in rare combination. While his heart was extremely warm, his head was never turned by his feelings. Lincoln ardently believed in his soul what Choate calls “the glittering generalities” of the declaration of independence. But to Seward current illusions were the same as they were to Napoleon Bonaparte—he was to lead the masses with them just as far as possible, but not to deceive himself. Read in your closet his two epochal speeches, the “higher law” one of March 11, 1850, and that proclaiming the irrepressible conflict at Rochester, October 25, 1858, then read that of Chase at the Peace Congress, and you cannot avoid feeling that while Chase opposes slavery mainly because he conceives it to be a gross moral wrong, the other opposes because it is the belonging of an inferior civilization. In my opinion no man of that time had such a clear conception as Seward of the utter economical incompatibility of the free-labor system and the slave-labor system, and of the doom of the latter in their conflict then on. While he had

this superior insight and wisdom it was the better way for him to follow the tide of morbid moral sentiment and unreasoning zeal carrying the country on to his goal. Following thus he proved a leader unsurpassed. The longer I contemplate Seward the stronger becomes my conviction that he is the most entertaining subject and the most delightful in variety of parts and traits of all American statesmen for the essayist portrait painter. To give a picture true to life demands the very best and highest art.

In my last two chapters I do all I can to clear up the race question, which is now densely beclouded with northern misunderstanding and southern prejudice. The negro has a nature that in some material particulars differs so widely from that of the Caucasian that it ought to be duly allowed for; and yet as people are so prone to think all others just like themselves, this is hardly ever done. Now, forty years after emancipation, we see that the promptings and consequences of his nature just emphasized in combination with the social forces operating upon him have caused changes in the situation, of the gravest import to him. His native idleness, coming back stronger and stronger the further he gets in time from the steady work of slavery, his lack of forecast, his vice, inveterate pauperism, increasing disease and insanity, on one side; the hostility excited against him by the inexpressibly unwise grant to him of equal political rights, and the rapid invasion by white labor since the early nineties of the province which he appropriated during the years when the whites had not recovered from the paralyzing shock and surprise of emancipation, on the other side, example these changes. There has evolved a division of the southern negroes into two classes. One class, which I most roughly distinguish as the upper, contains all those who are not compelled by their circumstances to be unskilled laborers in country and town. It hardly amounts to one-twentieth of the whole. The millions are all in the other class, which I again most roughly distinguish as the lower. Ponder what I tell you of them, their helplessness, their accelerating degradation, their mounting death rate, their gloomy prospects. I try hard also to have the upper class well understood. To a southerner it is amazing how many outside people of education, intelligence, and fair-mindedness assume that the multitude in the lower class are the same in every material detail of character and ability as those few who by various favors of fortune have found place in the upper class. To stress here, in the beginning, a fact as its very great importance demands,

nearly all the negroes who get high station are part white. Dumas, the father, was at least half white. The son Dumas was probably three-quarters white. Samuel Taylor Coleridge, the Anglo-African composer, is half white. Such as these are the samples by which nearly all the continent and England, and many northerners, estimate the capacity of the pure negroes of the south, grovelling in depths out of which one climbs only now and then by a miracle. The men just mentioned are not real negroes. It is the same with nearly all the so-called negroes of America, from Douglass to Dr. Washington, who have become famous. They are but examples of what whites can do against adversity. The coal-black equalling these in achievement would be as rare among his fellows as Hans, the Berlin thinker, is among horses. This palpable distinction between men who are largely, if not nearly all, Caucasian, and men who are purely West African in descent, is utterly overlooked by many most conscientious and earnest ones of the north, like Mr. Louis F. Post, who is always telling us of the south what the negro is—not, and how we should treat him, magisterially reading us lessons in A B C democracy.

There will be fewer and fewer part-white negroes in the south by reason of the steadily increasing hostility of each race to mixed procreation. This upper class has long shown a drift northward. Under the expulsion of many of its members from certain occupations by white competition, lately commenced and fast increasing, this drift now gathers strength. From what I see every day it seems to me that the destiny of much the greater part of this upper class is disappearance partly by absorption and partly by euthanasia.

It is the millions of the lower class that should be our deepest concern. If they be left where their utopian emancipators and enfranchisers have placed them, it is almost certain that nearly the whole will go into the jaws of destruction, now opening wide before them and sucking them in. Such a result of the three amendments—that is, to have annihilated hosts upon hosts of pure negroes in order to make just a few part-whites all-white—would be a fit monument to the statesmanship of the maddest visionaries in all history. We must come resolutely and lovingly to the help of these wretched creatures. I tell you at large how it is our duty to give the black man his own State in our union, and supervise him in it even better than we are now doing for the Philippine.

I believe that the foregoing, re-enforced by a glance over the chapter-titles, will give a reader the preconception which he ought to get from an introduction to a book which he is about to begin. In dealing with the causes and some of the more important consequences of the brothers' war my method is rationale rather than narrative. My first purpose is to indicate how everything happened according to laws that with cosmic force reared two great economic powers, divided the whole land into a vast host standing up for one of the two in the south, and a still larger host standing up for the other in the north, and how these same laws were most faithfully served by all the actors on each side. I try to set out and explain what are the principles of evolution and the ways of human action, and especially the commanding view-points, which must be rightly attended to in their supreme importance before the greater one of the two critical American eras can have its fit history. The man who writes it will be entirely free from the monomania and orgiastic fury of both fire-eater and root-and-branch abolitionist, from their excessively emotional assumptions, their explosive and exclamatory argumentation; he will have the industry, the undisturbed vision, and the perfect fairness of the foremost sociologists of our time; he will show how each side was right from first to last in upholding its own separate country,—all belonging to it, statesmen, agitators, demagogues, fanatical fire-eaters and abolitionists, generals and soldiers. He will show that such things which in expedience ought not to have been done were unavoidable, and therefore to be excused. He will show what erroneous judgments of each section should now be challenged and kept from working injury. Especially do I emphasize it, he will convince every average reader that north and south were equally conscientious, honest, heroic, and lovable from beginning to end. Such a history will be even greater than that by which Thucydides realized his soaring ambition to give the world an everlasting possession; and it will become the bible of America, treasured and loved alike by the people both north and south.

This bible is coming, as many signs show. I will illustrate by examples from three northern authors, given not exactly in the order of time, but in that of their approximation to full attainment. After a circumstantial description of each one of the three days' fighting at Gettysburg, fair and impartial in the extreme, Mr. Vanderslice eulogizes both sides, without invidious distinction, for "their fidelity and gallantry, their fortitude and valor," and

because there was nothing done by either “to tarnish their record as soldiers,” and most becomingly emphasizes the “martial fame and glory” thereby won “for the American soldier.” But just here he sounds a most unpleasantly discordant note by saying, “One was right and the other wrong.”^[4] He forgot that brothers who fight as those did at Gettysburg are all right, and that whenever one falls on either side flights of angels sing him to his rest.

In June, 1902, Mr. Charles F. Adams, making an academic address at Chicago, startled many of his auditors with this outspoken vindication of the south:

“Legally and technically,—*not morally*,— ... and wholly irrespective of humanitarian considerations,—to which side did the weight of argument incline during the great debate which culminated in our civil war?... If we accept the judgment of some of the more modern students and investigators of history, —either wholly unprejudiced or with a distinct union bias,—it would seem as if the weight of argument falls into what I will term the confederate scale.”^[5]

Mr. Adams, having made further inquiry of his own, December 22 of the same year, announced a still more advanced conclusion. He had said at Chicago that the confederate scale preponderated; but now his vision having become more certain he said the scales hung even.^[6] Note that in the passage just quoted from him I have italicized the two words “not morally.” I do not understand that in the Charleston speech he meant to revoke the italicized words, and to say anything more than that each side was right in its own view of the nature of the government. Even with this reservation, the utterances of Mr. Adams evince a grateful improvement upon the dogmatism which characterizes nearly every other northerner or southerner who has treated the subject.

Professor Wendell sees clearly that both sides were morally right, and he is impartially just and equally loving to both. I feel that the quotations from a late work of his which I now make are the chief merits of this chapter. Considering the controversy between the sections, he says, with the truest insight, “The constitution of the United States was presenting itself more

and more in the light of an agreement between two incompatible sets of economic institutions, assuming to each the right freely to exist within its own limits.”[7]

In this next passage as to the same subject, rising above Mr. Adams to the high frankness which the facts demand, he says, “The truth is that an irrepressible social conflict was at hand, and that both sides were as honorable as were both sides during the American Revolution, or during the civil wars of England.”[8]

How just to north and south each, and how fraternally compassionate towards the south is this: “Solemn enough to the uninvaded north, the war meant more than northern imagination has yet realized to those southern States into whose heart its horrors were slowly, surely carried. Such a time was too intense for much expression; it was a moment rather for heroic action; and in south and north alike it found armies of heroes. Of these there are few more stirring records than a simple ballad made by Dr. Ticknor, of Georgia, concerning a confederate soldier.”[9] And then he quotes “Little Giffen” in full.

Professor Wendell reaches a still greater height when he decorates the Tyrtæus of the Confederate States and the supereminent anti-slavery lyricist of the north with equal homage and admiration. He says:

“The civil war brought forth no lines more fervent [than the concluding thirty-six of Timrod’s ‘The Cotton Boll,’ which are set out], and few whose fervor rises to such lyric height. In the days of conflict, north regarded south, and south north, as the incarnation of evil. Time, however, has begun its healing work; at last our country begins to understand itself better than ever before; and as our new patriotism strengthens, we cannot prize too highly such verses as Whittier’s, honestly phrasing noble northern sentiment, or as Timrod’s, who with equal honesty phrased the noble sentiment of the south. A literature which in the same years could produce work so utterly antagonistic in superficial sentiment, and yet so harmonious in their common sincerity and loftiness of feeling, is a literature from which riches may come.”[10]

These words are more golden than I can tell. They parallel the elevation of Webster, showing the same love for South Carolina and Massachusetts, in the pertinent parts of the reply to Hayne, which since my boyhood I have cherished as a nonpareil. It is cheering to a faithful southerner to receive such sure proof that the day must soon come when all obloquy will be lifted from the fame of Calhoun, Toombs, and Davis. What a grand triumph of contrast, almost surpassing the best achievement of Shakspeare, it will be when some honest Griffith, having shown Webster, Lincoln, and Grant in all the worth which merited their unspeakably happy lot, each radiant with the victor's glory, places opposite the great civic heroes of the southern nation, their due renown at last fitly blazoned. That renown will be that they devoted the very greatest human powers and virtues all their lives, with never remitted effort and spotless fidelity, to save a doomed country,—the imperishable renown of grand failure in a cause which adverse fate cannot keep from being ever dear to all humanity.

My last word as to what I have just quoted from the three northern authors is that all of us—and especially the fast widening public of readers—ought to be forever in earnest to applaud such sentiments and chide every manifestation of excessive sectional bias or prejudice from either northerner or southerner. This has been my incessantly kept faith for years. As proof I refer to my article, "The Old and New South," nearly all of it written in the early part of 1875—thirty years ago—and which I published the next year. I give an exact copy of it in the Appendix. As you go through it remember these things of the author: The election of Lincoln made me believe, as it did thousands of other southerners, that secession was the only patriotic course. I therefore voted for secession delegates to the State convention. I served in the confederate army all the war, taking part in the First Manassas and many other battles; and when I had been surrendered and paroled at Appomattox I walked back to my home in Georgia. Ten years after this I had found full solace and comfort for the direful event to the south of the brothers' war; and I had learned that the brothers on each side had complete justification in conscience for their contrary parts as statesmen, public leaders, voters, and at the end as soldiers. I want my readers of each section to see that I have long practised what I am now preaching.

I beg attention to the article on another score. It shows that the opinions expressed in this book have not been formed in haste. Nearly all of the more

important will be found therein, in embryo, at least; and the present book will show, I hope, that they have prosperously grown. There are passages in the article, such as those touching the relations of the races, the future of the negro, the maintenance by the decentralizing forces of the union of their balance with the counter ones, and also others, which I might now justly claim to have proved prophetic; and I do not believe that a serious misprediction can be found in the entire article. This is, I hope, such corroboration by after occurrences as indicates that even my early studies of the transcendently important theme were not unfruitful.

Further, the article serves in some sort to mark a definite stage in evolution. To give but one illustration: Although my close attention to planting interests at the time and for the seven or eight preceding years had kept me closely watching the negro, I had not then discovered even the beginning of that division of the race into two classes which is now so plain to me.

Possibly some readers may shy away from my book, deeming that its subject is hackneyed and worn out. They will exclaim, What can this author say that has not been said in the vast library of books already written upon the civil war? This will be asked, I am sure, only by the unobservant and unreflecting. If one but turn away from the assumptions, dogmas, and philippics, with which north and south cannonaded each other's morality with increasing fury from 1831 to 1861, to the *rerum causæ*, the play of resistless social forces, and the other actualities and great things indicated above, their huge stores of varied novelty, interest, romance, and wisdom will greatly embarrass him—as has been my painful experience—both in making the best selection and in his felt inability to give what he does at last select its fit presentation.

As illustration I will say that every thoroughly impartial northern reader who meditates what I narrate as to Toombs will, I believe, be astonished to learn that one so prodigally gifted with supreme virtue and supreme genius, and who was of unexampled success in doing all the common and all the extraordinary duties of high place, has become worse than forgotten in almost his own day; and such a reader will suspect, as I do myself, that there is much more of value in his career than I have overlooked.

Perhaps this chapter is too long already. But I pray my reader to allow me to say a little more. We are upon the threshold of a new American era. Evidently because of our western coast we are to dominate the Pacific ocean commerce and to develop it into proportions so enormous as to be now almost inconceivable. That coast will soon outstrip the Atlantic in population and great cities. Our people, safe against wars on the continent, maintaining armies only of workers, taught better methods every year by practice and science, will soon be far in advance of their present enviable prosperity and comfort. Cheering as is the promise of their material progress, that of their progress in virtue and good government is still more cheering. Everywhere in the north—which was not impoverished, deprived of familiar modes of production, and paralyzed with a race question by the event of the brothers' war—the State electorates are rebelling successfully against the party machine, cashiering the boss, and subverting the corporation oligarchy. That in the last election the voters most intelligently split their tickets assures the early expulsion of spoilsmen, grafters, and public-service franchise-grabbers from the control of our politics, legislation, and administration of government, and the real and permanent elevation of the people to being their own absolute governors. In several States—one of these a southern—the vote was for the most democratic and anti-plutocratic president since Lincoln, while at the same time the anti-plutocratic State candidates, either of the other party or independent, were elected. Our population will soon outstrip all the world in average riches, comfort, virtue, and education. The special note to be made of this new American era now beginning is that we are to lead the nations into a war-abolishing United States of the world, which in the end will make and keep them our equals in solid welfare and happiness. With this prospect in view, the brighter and more enrapturing as I cannot keep from contrasting it with the black and hopeless future which settled around me at Appomattox, I would do all that I can to bring about that better understanding between north and south which befits the good time near at hand.

CHAPTER II

A BEGINNING MADE WITH SLAVERY

AS a distinguished southerner, familiar with the subject, says, slavery in the United States was “a stupendous anachronism.”^[11] It is almost incredible to the average northerner of to-day that the enlightened people of the south sank backwards in social development a thousand years or more, and hugged to their bosoms for several generations such a monstrous evil and peril.

The co-operation of two facts fully explains the wonder just noted. Now let us try to understand this.

The first fact is the part played by tobacco and cotton before the anti-slavery sentiment became influential. At a time when there was practically no industry but agriculture these two staples became the most lucrative of all common American crops. Tobacco found its true soil in Virginia, and cotton farther south. It developed in time that both could be made far more profitably with African slaves than by free white labor, the only other labor to be had. Of course you are to remember that slave cultivation of tobacco did not become general in Virginia until near the end of the seventeenth century, and that it was the invention of the gin soon after the adoption of the federal constitution in 1789 that started cotton production on a large scale. What you are especially to grasp here is the economic conditions which naturally spread slavery from its beginning at Jamestown, first over Virginia, and then throughout the entire south, either settled in large measure from Virginia, or looking thither for example. The Virginian who could not replace his exhausted fields with virgin soil at home went with his slaves either west or south, and hacked down enough of the primeval forest to give his working force its quantum of arable land. We need not stop here to tell of rice and cane, nor of other crops and industries which for a while engaged slave labor in northern regions of the south where the soil did not suit tobacco. The foregoing suggests adequately for this place how slavery became general in the south.

The second fact is that the prevalent opinion of that time was far different from that of to-day, for certain reasons, to which I would now have you attend.

Long before the discovery of America personal slavery had fallen under the ban of the christian church and become in Europe a thing of the past. The Divine Comedy catalogues in detail the religious, political, moral, and social events of its age. It is utterly silent throughout as to slavery. Dante died in 1321, soon after he had finished the Divine Comedy. That was nearly three hundred years before the appearance of African slavery in Virginia.

Now for something of very great importance to us here, which occurred soon afterwards, and before the introduction of African slavery into America. It is that by the Renaissance the literature of slaveholding Greece and Rome suddenly acquired and long held commanding influence upon almost every educator of the public in the enlightened world. It was in the last quarter of the fourteenth century—some fifty years after Dante had died—that the classics revived in Italy. Spreading thence over Europe, they are found dominating the great Elizabethan divines, philosophers, poets, and other opinion-forming writers at the end of the fifteenth century. And during all of the time from the landing of the twenty Africans at Jamestown by the Dutch man-of-war in 1619 until slavery had become the solitary prop of southern industry and property, the Greek and Latin ancient writers were in our mother country almost the sole subjects of school or university education, and the main reading of all those that read at all. And every page of this literature, studied with enthusiastic worship and resorted to day in and day out for instruction and inspiration, disclosed that in Greece and Rome the average family was dependent for its maintenance upon slaves; and that so far from slavery being a relic of barbarism, as the American root-and-branch abolitionists afterwards fulminated in a platform, it was the very foundation of the state in those two great nations whose philosophy, learning, science, jurisprudence, poetry, art, and eloquence are still the models in every enlightened land. Naturally the educated classes, now that it had been several hundred years since slavery was a burning question, had forgotten or had never heard of the old disinclination of the church, and could not see any evil in that which their most admired and dearest ones had all practised. The classics did not stop with giving slavery the negative

support just mentioned. Although such authors as Quintilian and Seneca, and the later jurists—all of the discredited silver, and not of the glorified Ciceronian and Augustan ages—do express, theatrically and academically, anti-slavery opinions, yet what they say was merely dust in the balance when weighed against the commendations of the institution to be found in the writings of Aristotle, Plato, and Cicero, who had now become the great idols of intellectual society.^[12]

The church would not stay out in the cold and dark, whither it had been suddenly and rudely cast by the Renaissance. It woke up to discover that as the African was a heathen barbarian it was God's mercy to kidnap him for a christian master, and thus give him his only opportunity of saving his soul. And although it is not right to enslave other races, the descendants of Ham are an exception, who by reason of Noah's curse are to be the servants of servants to the end of time—that is what Holy Church taught by precept and example.

“Sir John Hawkins has the unenviable distinction of being the first English captain of a slave-ship, about the year 1552.”^[13] His venture proved a great success. Good Queen Bess reproached him for his mistreatment of human beings. He answered that it was far better for the African thus to become a slave in a christian community, than to live the rest of his life in his native home of idolatry; and this was so convincing that “in the subsequent expeditions of this most heartless man-stealer, she was a partner and protector.”^[14] Until the end of the seventeenth century the masses regarded the negro as being rather wild beast than man, showing no more scruples in catching and making a drudge of him than later generations did in lassoing wild horses and working them under curb-bit, spur, and whip. And the more understanding ones, who recognized that the negro belonged to humanity, re-enforced Aristotle^[15] and Pliny^[16] with much that they found both in the Old and New Testaments.^[17] The many who preached liberty or the true religion posed as humanitarians, pharisaically comparing themselves with the best characters of Greece and Rome. The citizens of those great republics, they said, in spite of their advanced democracy, tore men and women of their own race and blood away from home and country and forced them with the scourge to toil in chains, while we do that only with savages and heathens, who cannot be civilized or christianized in any other way. We eschew slavery in the abstract. We tolerate it only in the concrete,

which is the slavery of those destined for it by God and nature. Slave-catcher, slaveholder, and the public seriously and conscientiously held this creed.

You must now add to the list of influences planting and stimulating slavery in America the protection it got in the constitution under which the federal government started in 1789. As Mr. Blaine says:

“The compromises on the slavery question, inserted in the constitution, were among the essential conditions upon which the federal government was organized. If the African slave-trade had not been permitted to continue for twenty years, if it had not been conceded that three-fifths of the slaves should be counted in the apportionment of representatives in congress, if it had not been agreed that fugitives from service should be returned to their owners, the thirteen States would not have been able in 1787 ‘to form a more perfect union.’”[\[18\]](#)

Think over it until you can fully take in the prodigious favor to slavery which this countenance of it by the American bible of bibles naturally created in the north and south.

The forces rapidly sketched in the foregoing were so powerful in their co-operation to bring in slavery that its establishment and a long era of vigorous growth were inevitable. Note the years during which they met no sensible or only a fitful opposition. The first anti-slavery agitation that shook the entire country was that over the Missouri question, which having lasted a little more than two years ended in 1821, thirty-two years after the adoption of the constitution. This agitation was only against the extension of slavery. It was not until 1835 that the presentation to Congress of petitions for the abolition of slavery in the District of Columbia disclosed to the far-seeing Calhoun alone that serious and mighty aggression upon slavery in the States was commencing. Here we may date the beginning of the abolition movement. But that movement did not become respectable with the great mass of northern people until the application of California in 1850 for admission into the union as a free State widened the chasm between the sections so that it commenced to show to the dullest eye, and “Uncle Tom’s Cabin,” which came out in 1852, stirred the north to its

depths. The growth of slavery was then and had been for a quarter of a century complete. The soil, climate, and best agricultural interests of the south, at a time when she was to be wholly agricultural or economically nothing at all, the practice and precepts of the sages of Greece and Rome, of the patriarchs of Israel, of Jesus and his disciples and apostles, of the great and good of modern times,—all these had, with oracular consensus, led her understanding and conscience into adopting, nurturing, and on into extending slavery over her territory. Thus when abolition first emerged into open day, slavery had become the very economical life of the south. It had so permeated and informed the combined property, social, and political structure, that abolition would subvert the community fabric and beggar the population of the southern States now living in content and comfort.

I trust that the foregoing shows you that it is not so strange after all that slavery ran the career just described.

But some one says, how could the southerners as Americans, the especial champions of liberty, stultify themselves by slaveholding? how could they forget the world-arousing words of the declaration of independence that all men are created equal, and endowed with unalienable rights to life, liberty, and pursuit of happiness?

This has already been answered. The slaveholding republics of Greece and Rome had advanced in democracy so far beyond anything to be found in Europe at the revival of learning, that from that time on for many years the political doctrine in the recovered classics was the very greatest of all the intellectual influences that made for mere democracy. The celebrated passage in which Burke eulogizes the stubborn maintenance of their freedom by free slaveholders has been the text of speakers from Pinkney, addressing the United States senate on the Missouri question, to Toombs, lecturing in Tremont Temple, Boston, and it has never been confuted. History shows no instance where such men ever reproached themselves for slaveholding, and while it was profitable put it aside because it is undemocratic.

As to the words which you quote from the declaration of independence, Jefferson, the draftsman, doubtless, meant them to include the African; but the majority of the congress making it, and the American people actually

ratifying it, almost unanimously held that the African was not enough of man to come within the words.

A Roman law parallel aptly illustrates. In the Institutes it is said that slavery is contrary to the law of nature, for under this every one is born free;^[19] and again, that slavery was established by the *jus gentium* under which a man is made subject to the dominion of another *contra naturam*, that is, against nature, against *jus naturale*, or the law of nature.^[20] And in the Pandects this is weakly echoed.^[21] But the actual enactment of the *corpus juris civilis* fortifies slavery as it had been established all over the world by the *jus gentium* with these plain words: “The master has power of life and death over his slave; and whatever property the slave acquires, he acquires for the master.”^[22]

Our forefathers making the declaration of independence, and the Romans of Justinian’s time, sentimentalized in the same words over the natural right to equality and liberty of all human beings, and also resolutely held on to their slaves. The solemn assertion that all men are created equal and of inalienable liberty made by American slaveholders was but a repetition of what Roman slaveholders had already said; and it is curious that the fact has not attracted due attention.

I fancy that my objector now shoots his last bolt. He exclaims that southerners were incredibly dull and obtuse not to discern that resistlessly puissant economical, political, moral, and intellectual forces, not of America only but of the entire world, were leaguely together against slavery, and therefore they ought to have fled in time from the coming wrath and evil day.

A satisfactory reply need not postulate any other than ordinary intelligence and alertness for the south. Note how people dwell near overflowing rivers, or a sea of tidal waves, or live volcanoes, or in earthquake districts, or near a tribe of scalping redskins, where they, their wives and children, keep merry as the day is long until calamity comes. The warning of the abolitionists was too late. Suppose we had given the inhabitants of Herculaneum or Pompeii or St. Pierre timely counsel to abandon their homes and settle beyond the reach of eruption. How many would have done it? I knew hundreds of people, and among all of them there was but one

who showed by his actions that he foresaw the early fall of slavery. That was Mr. Frank L. Upson of Lexington, Georgia, a highly accomplished and well-informed man. In 1856, I think it was, he sold all of his slaves, declaring as his reason that he believed if he kept them he would see them freed without compensation. He was so serious that he declared this even to his purchasers. They merely laughed, and everybody else laughed too, to think how green he was to give them the good bargain that he did. But after the war he enjoyed comfort from the money those slaves had brought him, when all his neighbors had been plunged into hard times by emancipation. There may have been others that did like him. There could not have been many such, for I have never been able to hear of a single one.

We did like the rest of mankind do or would have done. We stuck to our homes and business until the tidal wave washed them away. Yet there are wise ones who are positive that had we not been far more dull and unforeseeing than the average we would have understood many years before the final convulsion that the forces arrayed against slavery were irresistible, and surrendered it in time to get compensated emancipation. Look at the monopolists now preying upon the public in every corner of the land. They are confident that their holdings are impregnable against democracy coming invincibly against them. Look at the great mass of our population, shutting the fresh air out of their houses in order to be comfortably warm, and thereby rearing parents—especially mothers—who unawares are incessantly developing tuberculosis to destroy themselves and their children. Some years hence when resumption by government of its functions now granted to private persons has dispossessed all the monopolists, and when every dwelling-house is kept perfectly ventilated and free from infected air, there will be other wise ones to believe that hindsight is just the same as foresight, and to inveigh against the monopolists and parents just mentioned for their unwonted stupidity and improvidence.

CHAPTER III

UNAPPEASABLE ANTAGONISM OF FREE LABOR AND SLAVE LABOR, AND THEIR MORTAL COMBAT OVER THE PUBLIC LANDS

NOW a brief explanation of the antagonism between free and slave labor. The expense of his slaves to the farmer is the same whether they are resting or at work. Sundays, days and even seasons of unfavorable weather, in long do-nothing intervals succeeding the making and also the gathering of the crop, they cost him just as much as when he can work them from sun to sun. But this is not all of his load. The year round he must subsist the numerous non-workers in the families of his laborers, whether young, superannuated, or afflicted. Suppose another farmer to be on adjoining land who can employ laborers just as he wants them, and discharge them as soon as he has no further use for them. Do you not perceive that this free-labor farmer can produce far more cheaply than the slave farmer? And do you not also perceive that if there is a supply of free labor to be had in a slave country, and it can be got by every farmer *ad libitum*, slaves must lose their value as property and be driven to the wall? Free labor was kept out of the south by the repugnance of the white laborer to the negro. Note also that when the number of slaves had become considerable their owners would naturally combine to protect the market value of their property by preventing the coming in of cheaper labor. This was the real reason why Virginia and Delaware opposed the extension of the African slave-trade from 1800 to 1808, and the Confederate States' constitution refused to reopen it. Slavery made some headway in the north. But not finding there the stimulus of such products as tobacco and cotton, it could not become so widespread and deep-seated as to sweep out free labor. The latter under favorable conditions commenced the competition in which it could not fail to win; and in due time slavery died out in the north. We especially desire to emphasize the attitude towards extension of slavery that free labor was bound to take. That it had already ejected slavery from every

other enlightened community will occur to the reader at once as weighty proof that the two cannot live together.^[23] Think of the free worker's suffrage, and you cannot believe that he could long be induced to vote for the protection and further spread of a system taking the bread out of his own mouth, and degrading him by engendering profound disrespect for his class; and then think of the vast and rapidly growing numbers of the free laborers of the north, receiving every day great accessions of foreign immigrants avoiding the south as they would the plague; think of all these, and you begin to discern what a mighty power was rising against slavery.

This has brought us to the place where we can properly treat the contention for the Territories. Consider their vast area. Remember that our people have settled thereon in such numbers that thirty-two new States have been added to the old thirteen, and others still are to be added. Here for some generations was land for the landless; the full meaning of which Henry George has made us plainly see. The adventurous and enterprising of the old States of each section set their faces thitherward in a constantly swelling stream. Attend to the only material difference for us between the northerner and the southerner going west. Each settler wanted a community like his native one. The northerner had not been trained to manage slave labor and property; he did not like it; he thought it out of date and vastly inferior to free labor; and he could not endure to have himself and family live among negroes, repulsive to him because of unfamiliarity. He had learned from its history in the south that wherever slavery established itself it superseded all other labor. Therefore he would none of it in his new home; and he settled in a non-slave community. Of course the southerner, knowing nothing of free labor and bred into a love of the slave system, settled among slaveholders. And so for a generation or two free and slave States were steadily added to the union in pairs.

But the unsettled lands were diminishing in area. Its population multiplying so marvellously, the north felt urgent need for the whole of these lands. The great majority of settlers going thence into the Territories were farmers. Note some of the more influential classes left behind them. The parents, relatives, and friends who wanted them suited in the west—this was the largest class of all, and it was of prodigious intellectual, political, and moral potency. Then the manufacturers of agricultural implements, and of many articles, all of which the southerners either had their mechanic slaves to

make by hand, and of oldtime fashion, or did without; the millers, and many sorts of wholesale merchants who had found slave owners poor and the employers of free labor good customers; and these manufacturers and merchants were greedy for the new markets which they could get only in free States.

These are but the merest hints, but they serve somewhat to suggest the all-powerful motives which at last united the great majority of northern people, east and west, in intelligent and inveterate opposition to the further spread of slavery.

Now look at the southern situation. At the outset, note that his slaves were the southerner's only laborers, and practically his only property. And note especially that this property was not only self-supporting, but it was also the most rapidly self-reproducing that Tom, Dick, and Harry ever had in all history. A reliable witness tells this: "On my father's plantation an aged negro woman could call together more than one hundred of her lineal descendants. I saw this old negro dance at the wedding of her great-granddaughter." [24]

Let me repeat that slaves were not only money-making laborers, but also things of valuable property, which of themselves multiplied as dollars do at compound interest. Let the northern man unfamiliar with slavery try to understand this one of its phases by supposing that he has orchards abundantly yielding a fruit which is in good demand, and that the trees plant and tend themselves, gather and store the fruit, set out other orchards, and do all things else necessary to care for the property and keep it steadily growing. Such trees with their yearly produce and prodigious increase—each by an easy organic or natural, and not by a difficult artificial, process, relieving the owner from all but the slightest attention and labor of superintendence—would soon be the only ones in their entire zone of production; bringing it about that all other occupations and property therein would be dependent upon this main and really only industry. Such orchards would be somewhat like the slaves in their automatic production and accumulation, but they would be much inferior as marketable property in many particulars.

Although the profits of slave-planting were considerable, the greatest profit of all was what the master thought of and talked of all the day long,—the natural increase of his slaves, as he called it. His negroes were far more to him than his land. His planting was the furthest removed of all from a proper restorative agriculture. Quickly exhausting his new cleared fields, he looked elsewhere for other virgin soil to wear out. The number of the slaves in the south was growing fast, and the new lands in the older slave States were nearly gone. To keep the hens laying the golden eggs of natural increase, nests must be found for them on the cotton, sugar, and rice lands of the Territories. In other words, the area of slave culture must be extended; for whenever there is no land for a considerable number of our workers, it is evident that we have a surplus of slaves; and the effect of that will be at the first to lower the market value of our only property, and then gradually to destroy it. So the instincts of the southerners whispered in their ears.

We hope that we now have helped you to an understanding of the active principles each of free labor and of slave labor; how by reason of them the interests of north and south in dividing the public domain were in irreconcilable conflict; and how it was natural that the free States should band together against, and the slave States band together for, slavery. Thus the country split into two geographical though not political sections, the political division which ripened later being as yet only imminent and inchoate. That these sections had been made by deadly war between free labor and slave labor is all that we have to say here. The development went further, as we shall explain in the next chapter—all of it under the propulsion of the two active principles. They were always the ultimate and supreme motors. Often they are not to be seen at all. Still more often what they did was disguised. To read the facts of that time aright you must always and everywhere look for their work. Do that patiently, and you will detect every one of the many controversies over matters affecting an interest of either section as such—whether questions apparently of national politics, of morals, or religion, in newspapers, pamphlets, reviews, books, and all the vast contemporary literature, in the pulpit, on the platform, and in every place and corner of the entire land where policy and impolicy or right and wrong were mooted—to be but a part of one or the other of two

great complexes of machinery, each geared to its particular motor and kept going by its mighty push.



CHAPTER IV

GENESIS, COURSE, AND GOAL OF SOUTHERN NATIONALIZATION

NATIONALIZATION is the process by which a nation makes itself. The process may be active for a long while without completion, as we see in the case of Ireland; it may form a nation, but to be overturned and wiped out, as the southern confederacy was; or it may find its consummation in such a powerful one as the United States. The most conspicuous effect of the process we now have in hand is to make one of many communities. But sometimes a part breaks off from a nation and sets up and maintains its independence as a country. Thus a portion of the territory of Mexico was settled over from our States, and after a while these settlers tore themselves loose from Mexico and became the nation of Texas. We shall tell you more fully in another chapter how the separate colonies became nationalized into the United States, and what we say here of southern nationalization will illustrate to the reader that important transformation, to understand which is of especial moment to us in examining the brothers' war. But we must emphasize the characteristic feature of the nationalization of the south. I have searched the pages of history in vain for an example like it. The idiosyncrasy is that the south was homogeneous in origin, race, language, religion, institutions, and customs with the north, and yet she developed away from the north into a separate nation. I have long been accustomed to parallel the case of Ireland's repulsion from Great Britain, but I always had to admit that there was dissimilarity in everything except the strong drift towards independence and the struggle to win it;^[25] for the Irish are largely different from the English in origin, race, language, religion, institutions, and customs. The more you consider it the more striking becomes this uniqueness of southern nationalization. Think of it for a moment. Thirteen adjacent colonies; each a dependency of the same nation; all settled promiscuously from every part and parcel of one mother country, and therefore the settlers rapidly becoming in time more like one another everywhere than the English were who at home were clinging to their

several localities and dialects; governed alike; standing together against Indians, French, and Spanish, and after a while against the mother country;—where can you find another instance of so many common ties and tendencies, all prompting incessantly and mightily to union in a political whole, which is ever the goal of the nationalizing process. That the colonies did grow into a political whole is not at all wonderful to the historical student. The wonder is that after they had done this a number of them just like the others in the particulars above pointed out, which fuse adjacent communities into a nation, turn away from the old union and seek to form one of their own. The southern States all did the same thing with such practical unanimity that even the foreigner may know that the same cause was at work in every one of them. Manifestly there was a nationalizing element in them which was not in the others, and which made the former homogeneous with one another and heterogeneous to the rest. And that element which differenced the south from the rest of the union so greatly that it was, from a time long before either she or the north had become conscious of it, impelling her irresistibly towards an independent nationality of her own, all of us natives know was the constructive and plastic principle of her slave industrial and property system.

It is not the purpose of the foregoing expatiation to prove to you such a familiar and well-known fact as that slavery parted north and south and caused the brothers' war. Its purpose is to arouse you to consider nationalization, and have you see how it acts according to a will of its own and not of man, and now and then works out most stupendous results contrary to all that mortals deem probabilities. You ought to recognize that the forces which produced the Confederate States were just as all-powerful and opposeless as those which produced the United States; that in fact they were exactly the same in kind, that is, the forces of nationalization.

To have you see that even at the time of making the federal constitution the south had grown into a pro-slavery section and was far on the road towards independence, it is necessary to correct the prevalent opinion that there was then below Mason and Dixon's line a very widespread and influential hostility to slavery. The manumission of his slaves by Washington, the fearless and outspoken opposition to the institution by Jefferson and some other prominent persons, and certain facts indicating unfavorable sentiment, have been too hastily accepted by even historians as demonstrations that the

opinion is true. Here are the facts which prove it to be utterly untrue. In 1784, three years before our epochal convention assembled, Jefferson, as chairman of an appropriate committee consisting besides himself of Chase of Maryland and Howell of Rhode Island, reported to congress a plan for the temporary government of the West Territory. This region contained not only all the territory that was subsequently covered by the famous ordinance of 1787, but such a vast deal more that it was proposed to make seventeen States out of the whole. Consider this provision of the report, the suggestion and work of Jefferson:

“That after the year 1800 of the christian era there shall be neither slavery nor involuntary servitude in any of said States, otherwise than in punishment of crimes whereof the party shall have been convicted to have been personally guilty.”

When the report was taken up by congress, Spaight of North Carolina made a motion to strike out the provision just quoted, and it was seconded by Reed of South Carolina. On the vote North Carolina was divided; but all the other southern States represented, to wit, Maryland, Virginia, and South Carolina, voted for the motion, the colleagues of Jefferson of Virginia and those of Chase of Maryland out-voting these two southerners standing by the provision. All the northern States represented, which were the then four New England States, New York, and Pennsylvania, voted for the provision. But as it failed to get the necessary seven States it was not retained.

Thus it appears that at the close of the Revolutionary war the interest of the south in and her attachment to slavery were so great that by her representatives in congress she appears to be almost unanimous against the proposal to keep the institution from extending.

This action of the south shows that both Virginia in ceding that part of the West Territory which was three years afterwards by the ordinance of 1787 put under Jefferson's provision which had been rejected when it had been proposed for all the territory, and the south in voting unanimously for the ordinance, were not actuated by hostility to slavery. The soil of the territory north of the Ohio and east of the Mississippi to which the ordinance applied probably may have been thought by Virginians unsuited to tobacco, the then sole crop upon which slave labor could be lucratively used. Be that as it

may, that the southern States in subsequent cessions made not long afterwards guarded against slavery prohibition must be kept in mind. When they are, it is proved that always from the time that Jefferson's provision failed to carry in 1784, as has been told above, the prevalent sentiment of the southern people overwhelmingly favored slavery.

Let us illustrate from later times. Writers who claim that the south, meditating secession, purposed to reopen the African slave-trade, adduce some relevant evidence which at first flush appears to be very weighty, if not convincing. They show that A. H. Stephens of Georgia, who afterwards became vice-president of the confederacy, in 1859 used language indicating that he thought it vital to the south, in her struggle to extend the area of slavery, to get more Africans; and they further show similar utterances made at the time by certain papers and other prominent men of the south.

But the constitution of the Confederate States, adopted in 1861, contains this provision:

“The importation of negroes of the African race from any foreign country other than the slaveholding States or Territories of the United States of America is hereby forbidden, and congress is required to pass such laws as shall effectually prevent the same.”

Of course this solemn act unanimously voted for by the members of the congress, Stephens being one of them, counts incalculably more in weight to prove that predominant southern sentiment was against reopening the African slave-trade, than the counter evidence just stated. Likewise all that Washington, Jefferson, and other of their contemporaries may have done or said against slavery is outweighed by the contemporary pro-slavery legislation and measures dictated by the south. It is very probable that during the time we are now contemplating anti-slavery men were really as few in the south as union men were after the first blood spilled in the brothers' war.

Recall the three compromises between north and south, mentioned above, by which the union was formed, and you will understand that the fathers were preaching but to stones when they impugned slavery. And at this point meditate the language of Madison in the historic convention, which shows

that he saw accurately even then the permanence of slavery, and the unequivocal geographical division it had made. He was discussing the apprehension of the small States, New Jersey, Delaware, and Rhode Island, that under the union proposed they would be absorbed by the larger adjacent States. He affirmed there was no such danger; and that the only danger arose from the antagonism between the slave and the non-slave sections. To avert this danger he proposed to arm north and south each with defensive power against the other by conceding to the former the superiority it would get in one branch of the federal legislature by reason of its greater population if the members thereof came in equal numbers from every State, large or small, and at the same time giving the south superiority in the other branch by allowing it increased representation therein for all its slaves counted as free inhabitants. This prepares you for the language which we now give from the report, and which we would have you meditate:

“He [Madison] admitted that every peculiar interest, whether in any class of citizens, or any description of States, ought to be secured as far as possible. Wherever there is danger of attack, there ought to be given a constitutional power of defence. But he contended that the States were divided into different interests, not by their difference of size, but by other circumstances; the most material of which resulted partly from climate, but principally from the effects of their having or not having slaves. These causes concurred in forming the great division of interests in the United States. It did not lie between the large and small States. It lay between the northern and southern; and if any defensive power were necessary, it ought to be mutually given to these two interests. He was so strongly impressed with this important truth, that he had been casting about in his mind for some expedient that would answer the purpose. The one which had occurred was that, instead of proportioning the votes of the States in both branches to their respective number of inhabitants, computing the slaves in the ratio of 5 to 3, they should be represented in one branch according to the number of free inhabitants only; and in the other according to their whole number, counting the slaves as free. By this arrangement the

southern scale would have the advantage in one house and the northern in the other.”

Madison meant to say that the great danger of disunion was that—we emphasize his statement by repeating and italicizing the essential part—“*the States were divided into different interests ... principally from the effects of their having or not having slaves. These causes concurred in forming the great division of interests in the United States.*”

How truly he expresses the economical antagonism of the southern and northern States, although he hints nothing of the nationalizing tendency of the former which was bound in time to show itself as one of “the effects of their having slaves.”

It seems to me that Mr. Adams overeulogizes the political instinct and prophecy evinced by Madison at this tune. I cannot see that the latter does anything more than merely recognize the fact then plain to all. Note as proof this other passage quoted by Mr. Adams from Madison in the convention, in which the material words are given by me in italics: “*It seems now well understood* that the real difference of interests lies, not between the large and small, but between the northern and southern States.”

If the historical expert but duly consider the important facts marshalled in the foregoing he must find them to be incontrovertible proofs that in 1787, when our fathers were making the federal constitution, and for some years before, southern nationalization was not simply inchoate, but that it was growing so rapidly its course could be stopped in but one way; that is, by the extirpation of slavery, which was both its germ and active principle. This was before the invention of the gin. After that the lower south and west quickly added a vast territory to the empire of slavery, and southern nationalization received throughout its whole domain a new, a lasting, and a far more powerful impetus. And when the cotton States, as we call them, had really developed their industry, the southern confederacy was inevitable.

The fact of this nationalization is indisputable. When the confederates organized their government at Montgomery, everybody looking on felt and said that a new nation was born. Why ignore what is so plain and so important? Thus Mr. Adams most graphically contrasts the two widely

different northern and southern civilizations which were flourishing side by side,[26] and with a momentary inadvertence he ascribes national development only to the civilization north of the Potomac and Ohio, and treats State sovereignty as anti-national. The fact is that a nationalization, the end of which was southern independence, had been long active, as we have perhaps too copiously shown, and the doctrine of State sovereignty was really nothing but its instrument, nurse, and organ. Every southern State that invoked State sovereignty and seceded was shortly afterwards found in the new southern nation. Had that nation prospered, the doctrine would soon have died a natural death even in the confederacy. Nationalization is the cardinal fact, the *vis major*, on each side. The free-labor nationalization of the north, purposing to appropriate and hold the continent, fashioned a self-preserving weapon of the assumption that the fathers made by the constitution an indissoluble union; the slave nationalization of the south, purposing to appropriate and hold that part of the continent suiting its special staples, assumed that the fathers preserved State sovereignty intact in the federal union.

The closer you look the plainer you will see that the United States held within itself two nationalities so inveterately hostile to each other that gemination was long imminent before it actually occurred. The hostility between the statesmen of Virginia and her daughter States and those of the north, and especially New England,—Jefferson on one side and Hamilton and Adams on the other,—the party following the former calling itself republican and that following the latter calling itself federalist, was really rooted in the hostility of the two nationalities; and a survival of this hostility is now unpleasantly vigorous between many northern and southern writers and lecturers, each class claiming too much of the good in our past history for its own section and ascribing too much of the bad to the other. As a lady friend, a native of Michigan who has lived in the south some years, remarked to me not long since, as soon as one going north crosses the Ohio he feels that he has entered another country; behind him is a land of corn-pone, biscuit, three cooked meals a day, and houses tended untidily by darkey servants; before him is a land of bakers' bread of wheat, where there is hardly more than one warm meal a day, and the houses are kept as neat as a pin by the mothers and daughters of the family. Greater public activity of the county while there is hardly any at all of its subdivisions, the

representative system almost everywhere in the municipalities, no government by town-meeting and no direct legislation except occasionally, a most crude and feeble rural common school system, distinguish and characterize the south; buoyant energy of the township in public affairs, government by town-meeting instead of by representatives, a common-school system energetically improving, distinguish and characterize the north. The manners and customs of southerners are peculiar. To use an expressive cant word, they “gush” more than northerners. In cars and public meetings they give their seats to ladies, while northerners do not. Southerners are quick to return a blow for insulting words, and in the consequent rencounter they are prone to use deadly weapons; while northerners are generally as averse to personal violence as were the Greeks and Romans in their palmiest time. The battle-cry of the confederates was a wild cheering—a fox-hunt yell, as we called it; that of the union soldiers was huzza! huzza! huzza! From the beginning to the end, even at Franklin and Bentonville, and at Farmville, just two days before I was surrendered at Appomattox, the confederates always, if possible, took the offensive; the union soldiers were like the sturdy Englishmen, whose tactics from Hastings to Waterloo have generally been defensive.

This battle yell, this impetuous charge after charge until the field is won, marks the fighting of the Americans at King’s Mountain—all of them southerners; and it is another weighty proof of the early coalescence of the south as a community on its way to independence.

Many other contrasts could be suggested. Think over the foregoing. They are the respective effects of two different causes,—a free-labor nationalization above, and a slave-labor nationalization below, Mason and Dixon’s line. The latter—its origin and course—is the especial subject of this chapter. I believe that the proofs marshalled above demonstrate to the fair and unprejudiced reader that southern nationalization commenced before the making of the federal constitution, and afterwards went directly on, gathering force and power all the while, until it culminated in

“A storm-cradled nation that fell.”

CHAPTER V

AMERICAN NATIONALIZATION, AND HOW IT MADE THE BOND OF UNION STRONGER AND STRONGER

GREECE was going down in her contest with Macedon when she gave the world to come the Achæan league, the first historical example of full-grown federation. As Freeman says of such a federal government: “Its perfect form is a late growth of a very high state of political culture.”^[27] This historian thus summarizes its essentials:

“Two requisites seem necessary to constitute federal government in this its most perfect form. On the one hand, each of the members of the union must be wholly independent in those matters which concern each member only. On the other hand, all must be subject to a common power in those matters which concern the whole body of members collectively.”^[28]

No author has yet shown a better-considered and more accurate appreciation of the benefits to different communities of federal union. But the islander could not conceive—even at the centre of the British empire spread over the world—the advanced phase of Anglo-Saxon federation in America and Australia, which for want of a better name we may call, using a grand word of our fathers, continental federation.

And Americans of every generation have misunderstood the true nature of our union, and especially how it was made and how it could be unmade. The fathers were as much mistaken as to the real authorship of the declaration of independence, the articles of confederation, and the federal constitution, as Burke and many people of his time were as to the true causes of the French revolution, or as the brothers were as to those of their war. In all that the fathers did they were sure that they acted as agents solely of their respective colonies or States, which they believed to be independent

and sovereign. Therefore they maintained that the authorship of the three great documents just mentioned was that of the separate States, when in truth it was that of the union. When the latter, which had been long forming its rudiments, came into something like consciousness, it at once spurred our fathers to make the declaration of independence. The declaration corresponds to the later ordinances of secession. And this union, gathering strength, led our fathers to make the old confederation; and its articles and the belonging government are closely paralleled by the constitution of the Confederate States and its belonging government. As southern nationalization brought forth the southern confederacy, so it was American nationalization that caused secession from England, the declaration of independence, and the confederation which won the Revolutionary war. To summarize the foregoing: Southern nationalization evolved the southern union, and American nationalization evolved the American union. The fathers, with the usual undiscernment of contemporaries, by a most natural *hysteron proteron* conceived the latter union to be the work, product, and result of the constitution. In the intersectional contention, the south accepted the mistakes of the fathers and rested her cause upon them, and the north, instead of correcting them, substituted a huge and glaring mistake of her own. Advocating the maintenance of the constitution over all the States, she sought to refute the doctrine of State sovereignty urged by the south with the arguments of those who had opposed the adoption of the federal constitution. Patrick Henry and Nathan Dane—we omit the others—argued that the constitution, if ratified, would really wipe out State lines and make the central government supreme in authority over the States, and actually sovereign. Could the people of the thirteen States have been made to believe this, they would have unanimously rejected the instrument. Washington, Hamilton, Madison, and many others competent to advise, stood in solid phalanx on the other side, and the people were convinced by them that adoption would have no such effect. They decided that the arguments were not good, and the constitution was ratified. But the discredited arguments were afterwards, by a very queer psychological process, taken up by Story, Webster, and a great host, and paraded as unanswerable refutation of the doctrine of State sovereignty, and demonstration that by the constitution the United States had acquired absolute supremacy over the different States.^[29] At a later place we will try to show you how Webster's glory outshines that of every other actor, except

Lincoln, in the great struggle between north and south. But here we must emphasize how, when supporting the fallacies of Patrick Henry and Nathan Dane, he met the one real and signal defeat of his life, to which the drubbing he received from Binney in the Girard College case was a small affair—a defeat none the less signal because at the time, and long afterwards, it was and still is crowned as a glorious victory by thousands upon thousands.

The force-bill had just been introduced into the senate of the United States. It provided for the collection of the revenue in defiance of the nullification ordinance of South Carolina. The next day, January 22, 1833, Calhoun offered in that body his famous resolutions, embodying his doctrine of nullification, under which he justified the ordinance just mentioned. The 16th of the next month, Webster discussed the two cardinal ones of these resolutions at length. As he summarized them, they affirmed:

“1. That the political system under which we live, and under which congress is now assembled, is a compact, to which the people of the several States, as separate and sovereign communities, are the parties.

2. That these sovereign parties have a right to judge, each for itself, of any alleged violation of the constitution by congress; and in case of such violation, to choose, each for itself, its own mode and measure of redress.”

He had not long before contemplated making an address to the public in answer to Calhoun’s pro-nullification letter to Governor Hamilton in the form of a letter from himself to Kent; and it cannot be doubted that he had got himself ready for this; nor can it be doubted that in the twenty-five days’ interim he had not only worked over and adapted the unused materials of the address mentioned, but he had most diligently made special preparation for his speech—in short, it may be assumed that he had bestowed upon the subject of the resolutions the most searching examination and profound meditation of which, with his superhuman powers, he was capable. In spite of all his conscientious labors, as I am now especially concerned to impress upon you, he injured and set back the cause of the union by defending it with answerable arguments—nay, rather, with arguments helping the other side.

At the outset he severely and sternly rebukes two terms of Calhoun’s, one being the use of *constitutional compact* for *constitution*, and the other being *the accession of a State to the constitution*. These terms are utterly impermissible, and are to be scouted. If we accept them, *we must acquiesce in the monstrous conclusions which the author of the resolutions draws from them*. That is really what Webster says. Note the confident positiveness of his pertinent language, some of which we subjoin:

“It is easy, quite easy, to see why the honorable gentleman has used it [constitutional compact] in these resolutions. He cannot open the book, and look upon our written frame of government, without seeing that it is called a *constitution*. This may well be appalling to him. It threatens his whole doctrine of compact, and its darling derivatives, nullification and secession, with instant

confutation. Because, if he admits our instrument of government to be a *constitution*, then, for that very reason, it is not a compact between sovereigns; a constitution of government and a compact between sovereign powers being things essentially unlike in their very natures, and incapable of ever being the same.

We know no more of a constitutional compact between sovereign powers than we know of a *constitutional* indenture of copartnership, a *constitutional* bill of exchange. But we know what the *constitution* is; we know what the bond of our union and the security of our liberties is; and we mean to maintain and to defend it, in its plain sense and unsophisticated meaning.”

This is enough of the exorcism of that malignant spirit, constitutional compact. Now as to the other malignant spirit. Webster says:

“The first resolution declares that the people of the several States ‘*acceded*’ to the constitution, or to the constitutional compact, as it is called. This word ‘*accede*,’ not found either in the constitution itself, or in the ratification of it by any one of the States, has been chosen for use here, doubtless, not without a well-considered purpose.

The natural converse of *accession* is *secession*; and, therefore, when it is stated that the people of the States acceded to the union, it may be more plausibly argued that they may secede from it. *If in adopting the constitution, nothing was done but acceding to a compact, nothing would seem necessary to break it up, but to secede from the same compact.* But the term is wholly out of place.... The people of the United States have used no such form of expression in establishing the present government. They do not say that they *accede* to a league, but they declare that they *ordain and establish* a constitution. Such are the very words of the instrument itself; and in all the States, without exception, the language used by their conventions was, that they ‘*ratified* the constitution;’ some of them employing the

additional words ‘assented to’ and ‘adopted,’ but all of them ‘ratifying.’”

Note that I have italicized in the quotation certain admissions of Webster, which, in case his premises should be disproved, concede the cause to his adversary. And we will now tell you how Calhoun did disprove those premises.

He showed that Webster himself had in a senate speech called the constitution a *constitutional compact*; and that President Washington, in his official announcement to congress, described North Carolina as *acceding* to the union by the ratification she had at last made of the constitution.

As to these two points Calhoun further sustained himself with unquestionable authority and also argument inconfutable by one who, like Webster, did not find the true *ratio decidendi*, that is, the effect of evolution to bring forth the nation.

The rest of Calhoun’s answer will be considered a little later. But what of it has already been given covers the essentials of the controversy. In supporting his proposition that the States were sovereign when they made the constitution, and kept their entire sovereignty intact afterwards, he was too strong for his antagonist. And yet had his knowledge of the facts been fuller, how much better he could have done. He could have quoted from all the great men who made the constitution and secured its ratification language, in which *accede* is used again and again in the same sense as it is in his resolutions.

Likewise, he could have quoted language in which they designated the constitution as a compact or something synonymous. Madison—to mention only one of many instances—advocating ratification in the Virginia convention, called the constitution “a government of a *federal nature*, consisting of *many coequal sovereignties*.” What an effective *argumentum ad hominem* could Calhoun have found in the provision of the constitution of the State of Webster, to wit: that Massachusetts is free, sovereign, and independent, retaining every power which she has not expressly delegated to the United States.[\[30\]](#)

Webster also made blunders in construing the context of the constitution, as well as the clauses specially involved, in contrasting the constitution with the articles of confederation, and in his reading of our constitutional history. These blunders were exhaustively, ably, relentlessly exposed.

We who are trained either in forensic or parliamentary debate well know the conquering and demolishing reply. Although, as we have just shown, Calhoun's reply could have been far more effective than it really was, still its success and triumph were so evident that when he closed, John Randolph, who had heard it, wanted a hat obstructing his sight removed, so that, as he said, he might see "Webster die, muscle by muscle."

Master the question at issue, and read the two speeches as impartially as you strive to read the discussion of Æschines and Demosthenes, and if you are qualified to judge of debate between intellectual giants you must admit that Webster was driven from every inch of ground chosen by him as his very strongest, and which he confidently believed that he could hold against the world.

Yet the union men, who were hosts in the north and numerous even in the south at that time, accepted Webster's speech as the bible of their political faith, and as its reward ennobled him with the pre-eminent title of Expounder of the Constitution. They ignored, or they never learned of, the pulverizing refutation. But the State-rights men and the south generally understood. Webster also understood. He did not make any real rejoinder. And his subsequent utterances are in harmony with the State-rights doctrine to which Calhoun seems to have converted him.^[31] I fancy that with that rare humor which was one of his shining gifts, he dubbed himself in his secret meditations, "Expounder because not expounding." Later I shall tell you how Webster builded better than he knew, and that there was, after all, in the speech that which fully justifies the worship it received from the union men.

But there is something else pertinent to be learned here. That the north generally found out only what Webster said in the debate for his side, and never even heard of what was said on the other, and that the south became at once familiar with both speeches, proves that each section had already formed its own belonging and independent public, and that the southern

public kept attentive watch upon all affairs of fact or opinion interesting the other, while the northern public knew hardly anything at all of the south. A large percentage of the southern leaders had studied in northern schools and colleges. In this and many other ways they had been instructed as to the north. Such instruction contributed very greatly to southern supremacy in the federal government until the election of Lincoln. We can now see that the powers in charge, as a part of their work, made the great northern public, which, as Lincoln observed, was to be the savior of the union, stop its ears to all anti-union sentiments or arguments. How else can you understand it that the ante-bellum notices of Webster, the memoir by Everett, the different utterances of Choate, and many, many other sketches, are so utterly dumb as to Calhoun's great reply? And is not the same dumbness of Curtis, Von Holst, and McMaster, writing after the war, due to the survival in the north of the old constraint? a constraint so powerful that, while Mr. Henry Cabot Lodge, in 1883, did concede just a little to Calhoun, he stopped far short of the full justice that I believe he would now render were he to traverse the ground again.

We must now go beyond what we have already hinted, and show you plainly how both the union men and the State-rights men assumed untenable premises, and how the south, maintaining a cause foredoomed, vanquished in the forum of discussion her adversary, maintaining the side which fate had decreed must win. In no other way can the reader be better made to understand the incalculable potency of the forces which preserved the American union after its orators and advocates had all been discomfited; and in no other way can he better learn what principles are to be invoked if he would grasp the real essence of the union.

We emphasize the material and cardinal mistake of the union men, thus phrased by Webster in the speech we have discussed: "Whether the constitution be a compact between States in their sovereign capacities, is a question which must be mainly argued from what is contained in the instrument itself."

This was to abandon inexpugnable ground. That ground was the great body of pertinent facts, known to all, which begun the making of the union before the declaration of independence, and which, from that time on to the very hour that Webster was speaking, had been making the union stronger and

more perfect. He ought to have contended that a nation grows; that it cannot be made, or be at all modified, even by a constitution. Any constitution is its creature, not its creator.

How weak he was when he invoked construction of the federal constitution as the main umpire. That constitution had been always construed against him. The three departments of the federal government had each uniformly treated it as a compact between sovereign States; and they kept this up until the brothers' war broke out. Mr. Stephens, in his great compilation,[\[32\]](#) demonstrates this unanswerably. But the State-rights men had a still greater strength than even this, if the question be conceded to be one of construction. As the author of the Republic of Republics shows by a mountain of proofs, the illustrious draftsmen of the constitution and their contemporaries who finally got the constitution adopted—all the people, high and low, who favored the cause—declared at the time that the sovereignty of the States would remain unimpaired after adoption.[\[33\]](#)

To sum up, the generation that drafted and adopted the constitution, and all the succeeding ones who had lived under it, agreed that the States were sovereign.

How could even Webster talk these facts out of existence? At every stage of the intersectional debate the cause of the south supporting State sovereignty became stronger. And there were great hosts at the north who understood the record as the south did; and, while they hoped and prayed that separation would never come, they conscientiously conceded State sovereignty to the full. It seems to me to be the fact that, although the federal soldiers cherished deep love for the union, a very great majority of the more intelligent among them did not long keep at its height the emotion excited by the attack on Fort Sumter, and soon settled back into their former creed, holding, because of the reasons summarized above, the States to be sovereign; and while they thought it supreme folly in the south to set up the confederacy, they still believed that to do so was but the exercise of an indubitable right of the States creating it. From what I saw at the time, and the many proofs that appeared to accumulate upon me afterwards, this explains the unprecedented panic with which the federal army abandoned the field at the First Manassas. Consider just a moment. The federal army, giving the confederates a complete surprise, turns their position and drives

them back in rout. The confederates make an unexpected stand, fight for some hours, and at last, assuming the offensive, win the field. The troops on each side practically all raw volunteers, very much alike in race and character. But the federals had much more than two to one engaged, as is demonstrated by the fact that the confederates had only twenty-five regiments of infantry in action, and they took prisoners from fifty-five. The more one who, like me, observed much of the war, thinks it over, the more clearly he sees that the flight from Manassas is not to be explained because of the superior courage and stamina of the southern soldiers. I believe that the union men, observing how brave and death-defying their brothers on the other side were in facing disaster that seemed irretrievable and odds irresistible, at last became convinced that these brothers, defending home and firesides, were right, and that they themselves, invading an inviolably sovereign State, were heinously wrong; and thus awakened conscience made cowards of all these gallant men. And it is thoroughly established, I believe, that everywhere in the first engagements of the war, the southern volunteers, if they were commanded by a fighter, showed far more spirit and stomach than their adversaries. In the amicable meetings, often occurring upon the picket line, when we confederates would with good humor ask the union men how it was that we won so many fights, it was a stereotyped reply of the latter, "Why, you are fighting for your country and we only for \$13 a month." It was but natural that, by reason of what has been told in the foregoing, the south unanimously, and a very large number at the north, should believe any State could under its reserved powers rightfully secede from the union whenever and for whatever cause it pleased.

We see now what the angry brothers did not see. The absolute sovereignty of the States, and the right of secession both *de facto* and *de jure* could have been conceded, and at the same time the war for the union justified. The unionists could well have said to the south:

"Your independence is too great a menace to our interests to be tolerated, and the high duty of self-defence commands that we resist to the death. The *status quo* is better for us all. Now that you have set up for yourself, we must tell you, sadly but firmly, that if you do not come back voluntarily, we must resort to coercion,—not under the constitution, for you have thrown that

off, but under the law of nations to which you have just subjected yourself.”

The man who of all southerners has given State sovereignty its most learned and able defence—Sage, the author of “The Republic of Republics”—says: “To coerce a state is unconstitutional; but it is equally true that the precedent of coercing states is established, and that it is defensible under the law of nations.”^[34]

To have received the confederate commissioners as representing an independent nation, and made demand that the seceding States return to the union, would have been a far stronger theory than that on which the war was avowedly waged; for it would have taken from the south that superiority in the argument which had given her great prestige in Europe, and even in the north. And lastly, under the law of nations, the federal government, after coercing the seceding States back, would have had—even according to the theory of State rights as maintained in the south—perfectly legitimate power to abolish slavery. The statement that emancipation was “sincerely believed to be an act of justice, warranted by the constitution, upon military necessity,” protests so much that one sees that the highly conscientious man hesitated and doubted. And well may he have doubted; for what warrant can be found in the constitution for destroying that property which it solemnly engaged to defend and protect as a condition precedent of its adoption?—that is, if the southern States were still in the union and under the constitution, as was claimed by all who justified the proclamation? But if the southern States had gone out of the union, they had revoked their ratification and had thrown away all the protection of slavery given by the constitution; and while the constitution did not direct how the federal government should act in the matter, the law of nations gave full and ample directions. Its authority was not stinted nor hampered by any rights recognized in the constitution as reserved to the States under it. The subsequent amendment, imposed as a condition of reconstruction, shows that the people of the north seriously questioned if slavery had been abolished by the proclamation and its enforcement by the union armies.

But this, strong as it was, would not have been the true theory. The true theory—the real fact—is that at the outbreak of the brothers’ war, and long before, the States had become more closely connected than the Siamese

Twins,—indissolubly united as integral parts of the same organism, like the different trunks of the Banyan tree; and while the southern nationalization was opposing the union forces with might and main, it was really but an excrescence, with roots far more shallow than those of the American union—a parasite like the mistletoe, growing upon the American body politic, fated to die of itself if not destroyed by its fell foe. For, as we have explained, the sole motor of this southern nationalization—slavery—could no more maintain itself permanently against free labor than the handloom could stand against the steam-loom, or the draft-horse can much longer compete with artificial traction power.

Now let us rapidly set in array the stronger supports of this true theory. We should start with the impulse to combine which adjacency always gives to communities of the same origin; and external compression and joint interest to those of diverse origin, as we see in the case of the Swiss. How clearly does our great American sociologist trace the effect of this impulse in ancient society. First a body of consanguine grows into a gens; after a while, neighboring gentes of the same stock-language form a tribe; then neighboring tribes, as some of the Iroquois and Aztecs, form a confederacy. At this point the development of the American Indians was arrested by the coming of the whites. “A coalescence of tribes into a nation had not occurred in any case in any part of America,” says the great authority.^[35] But we can easily understand what would have occurred had the Indians been left to themselves. They would have passed out of the nomadic state into settlements of fixed abodes, local and geographical political divisions evolving from the old gentes and tribes, the contiguous ones often uniting. History furnishes many examples of neighboring communities coalescing into nations. One of the most remarkable of all is the environment which has constrained peoples of four different languages to coalesce into the little Swiss nation. Turning away from prehistoric times and also ancient history, let the student re-enforce the case of the Swiss, just alluded to, with the modern nation-making in Italy and Germany. These few of the many instances which can be given show how and what sorts of adjacent communities are prone to co-operate or combine for a common purpose, and how such combination develops at last an irresistible proneness to national union. Drops of liquid in proximity to one another on a plane may long maintain each their independent forms; but bring them into actual

contact, and presto! all the globules have coalesced into a single mass. After the belonging part of the evolutionary science of sociology has been fully developed—which time does not seem very far off—the subject will receive adequate illustration. Then all of us will understand that, many years before Alamance and Lexington, the colonies, in their defence of themselves against the Indians and the French, in their intercommunication over innumerable matters of joint interest, in the beneficent example of the Iroquois confederacy and the advice of our fathers by the Iroquois, as early as 1755, to form one of the colonies similar to their own,^[36] and in many other things that can be suggested, were steadily becoming one people, and more and more predisposed to political union. We shall also see, much more clearly than we do yet, that the Revolutionary war, by keeping them some years under a general government, imparted new and powerful impetus to the nationalizing forces, which were working none the less surely because unobserved. Our lesson will be completely learned when we recognize that about the time the war with the mother country commenced the globules, that is, the separate colonies, had become actually a quasi-political whole,—a stage of evolution so near to that of full nationality that it is hard to distinguish the two. It seems to me that the nation had come at least into rudimentary existence when the declaration of independence was made. Surely from that time on something wondrously like a *de facto* national union of the old colonies grew rapidly, and became stronger and stronger; and this to me is the sufficient and only explanation of the seismic popular upheaval that displaced the weaker government under the articles of confederation with one endowed by the federal constitution with ample powers to administer the affairs of the nation now beginning to stir with consciousness. And yet so blind was everybody that in 1787 the delegates and their constituents all believed the convention to be the organ of the States, when in truth it was the organ of the new American nation. Prompted by a self-preserving instinct, this nationality deftly kept itself hid. Had it been disclosed, the federal constitution could not have been adopted; and had a suspicion of it come a few years later, there would have been successful secession. And so each State dreamed on its sweet dream of dominion until the call to the stars and stripes rang through the north. Then its people began darkly and dimly to discern the nationalization which had united the States and become a hoop of adamant to hold the union forever stanch. Of course to the south nothing appeared but the State sovereignty of

the fathers. Her illuded sight was far clearer and more confident than the true vision of the north, and she magnified State sovereignty which she thought she saw, and damned the American nationality preached by the north as anti-State-rights, when at that very time a nationality of her own had really put all the southern States at its feet. It mattered not for the thick perception of the north and the optical illusion of the south, the American nation was now full grown; and by the result of the brothers' war it made good its claim to sovereignty.

The historian must accurately gauge the effect wrought by the wonderfully successful career of the United States under the federal constitution in its first years. War with France imminent, Pinckney's winged word, "Millions for defence, but not a cent for tribute," the sword buckled on again by the father of his country—and peace; the extension of our domain from the Mississippi to the Pacific by the Louisiana purchase; the victories won against the men who used to say scornfully that our fathers could not stand the bayonet, and the still more surprising victories won with an improvised navy against the mistress of the seas, in the war of 1812; the brilliant operations of Decatur against Algiers; the military power of the Indians decisively and permanently outclassed, until soon our women and children on the border were practically secure against the tomahawk and scalping knife; and perhaps above all the world-wide spaciousness, as it were, and the inexpressibly greater dignity and splendor of the public arena, as compared with that of any single colony or State, which was opened at once to every ambitious spirit—these are some, only, of the feats and achievements which gave the United States unquestioned authority at home and incomparable prestige around the world. And on and on the American nation rushed, from one stage of growth into and through another, until the result was that for some years before secession State sovereignty, for all of the high airs it gave itself and the imposing show of respect it extorted, had become merely a survival.

Thus did the American nation form, from a number of different neighboring, cognate, and very closely-akin communities, under that complex of the forces of growth and those of combination which imperceptibly and resistlessly steers the social organism along the entire track of its evolution. The nationalizing leaven was hidden by the powers in charge of our national destiny in the colonial meal, and it had in time so

completely leavened the whole lump that Rhode Island, and North Carolina, trying hard to stay out, and Texas desporting joyfully and proudly under the lone star in her golden independence, could not break the invisible leading strings, which pulled all three into the United States. Note how Oregon and California, though largely settled from the south yet being without slavery, in their extreme remoteness from the brothers' war adhered to the union cause. And had the southern confederacy triumphed in the war, the States in it would have staid out of the federal union only the few years necessary for slavery to run its course. When there was no more virgin soil for cotton, the southern nation, which was merely a growth upon the American nation, would have collapsed of itself, as did the State of Frankland; and that continental brotherhood which brought in Rhode Island, North Carolina, and Texas, would have commandingly reasserted itself. The more you contemplate the facts, the more it is seen that this continental brotherhood was and is the most vigorous tap-root and stock of nationality in all history. The providence which at first gradually and surely mixed the colonies into one people, then into a feeble and infirm political whole, rapidly hardening in consistency, and lastly into an indissoluble union, and which was from the beginning more and more developing us into a nation—this overruling evolution, and not constitution or lawmaking organs, has been, is, and always will be the ultimate and supreme authority, the opposeless lawgiver, the resistlessly self-executing higher law in America, creating, altering, modifying or abolishing man-made constitutions, laws, ordinances, and statutes, as suits its own true democratic purpose, often inscrutable to contemporaries.

The foregoing is the substance of the argument that must now take the place of that made by Webster and the unionists after him, which was convincingly confuted by the south. It proves the complete and immaculate justice of the war for the union.

This view differs from the other, which we admitted above to be very strong, mainly in refusing to concede that a State is sovereign and can legitimately secede at will. But under it, it ought to be conceded that the States in the southern confederacy were for the time actually out of the American union by revolution. It is not possible to say they were in rebellion; that is an offence of individuals standing by an authority hastily improvised and manifestly sham. It was not by the action of individuals, but

it was by the action of States, veritable political entities and quasi sovereigns, that the confederacy was organized. When these States were coerced back, they could not invoke the protection to their slaves given in a constitution which they had solemnly repudiated. The United States could therefore deal with them as it had with the Territories from which it excluded slavery. While of course adequate protection of the freedmen against their former masters ought to have been provided, it should at the same time have been made clear to the world that slavery was abolished solely because events had demonstrated it to be the only root and cause of dismemberment of the union. Such a familiar example as the often-exercised power of a municipality to blow up a house, without compensation therefor, to stop the progress of conflagration, and many other seemingly arbitrary acts done by society in its self-preservation, would have occurred to conscientious people contemplating. And it would have been a long flight in morals above the proclamation, merely to have justified emancipation on the ground that the existence of slavery was a serious menace to the life of the nation.

One's logic may be often wrong, and yet his proposition has been rightly given him by an instinct, as we so often see in the case of good women. O this subliminal self of ours, how it bends us hither and thither, as the solid hemisphere does the little human figure upon it, posing with a seeming will of his own! Hence, and not from our argument-making faculty, come not only our own most important principles of action, but also our very strongest persuasive influence. And it is the subconscious mental forces moving great masses of men and women all the same way—that is, the national instincts—which are the all-conquering powers that the apostle of a good cause arouses and sets in array. And while it is true that the mere logic of Webster's anti-nullification speech is puerile, the after world will more and more couple that speech with the reply to Hayne, and keep the two at the top—above every effort of all other orators. In the reply to Hayne, in 1830, he had magnified the union in a passage which ever since has deservedly led all selections for American speech books. And now, in 1833, when dismemberment actually makes menace of its ugly self, the great wizard of speech that takes consciences and hearts captive,^[37] proclaimed to his countrymen that there could be no such thing as lawful secession or nullification. The earnestness and the emphasis with which he said this were

supreme merits of the speech. And thenceforth it was enough to the hosts of the north to remember that the American, towering like a mountain above them all, had in his high place solemnly declared that secession is necessarily revolution. And, to one who is familiar with the hypnotizing effect of subconscious national suggestion it is not strange that they scouted Calhoun's demolishing reply, and treasured Webster's false logic as supreme and perfect exposition of the constitution.



CHAPTER VI

ROOT-AND-BRANCH ABOLITIONISTS AND FIRE-EATERS

FOR a long while opposition to slavery was moderate and not unreasoning. The first actual quarrel over it between the sections was when Missouri applied for admission to the union in 1818. That was settled by the famous compromise of 1820. The most of the anti-slavery men of that day stood only against the extension of slavery. While many a one of them believed his conviction was dictated, independently and entirely, by his conscience, it was in fact given him because of his relation to the free-labor nationalization claiming the public lands for itself. That was also true of the great mass of northerners opposed to slavery down to the very beginning of the war. They wanted the Territories for themselves. The contest between the United States and England for Oregon is a parallel case. The American felt, if this territory falls to the United States, I and my children and children's children can get cheap land somewhere in it; but if it falls to England, I and they are forever shut out. In the intersectional contest over the public lands northerners felt that they would be practically excluded from any part of them into which slavery was carried; for infinitely preferring, as they did, the free-labor system, to which they had been bred, to the slavery system, of which they had no experience, and against which they were prejudiced, they would never voluntarily settle where it obtained. This, the prevalent view, brought about the compromise of 1820, by which all the territory north of 36° 30' was guaranteed to free labor, that is, to the north, not because its inhabitants were burning with zeal to repress the spread of what they thought to be an unspeakable moral wrong, but because they purposed thereby to insure a fair inheritance to their own children.

So much for what we have called the first quarrel between the sections over slavery. Let us now glance at the stages following until the root-and-branch abolitionist shows himself.

For some twenty years after the Missouri compromise was made there was hardly any public agitation at all as to slavery. In 1840 an abolition ticket for the presidency was nominated, but it received a support much smaller than had been currently predicted. It is not until January, 1836, when, upon Calhoun's motion in the senate of the United States to reject two petitions for the abolition of slavery in the District of Columbia, there ensued a prolonged and passionate discussion, that we can say that the old free-soil practically begins to pass into an abolition movement. Here moral attack upon slavery seriously begins. If we think but a moment we will understand it too well to explain it as an arousal of conscience, which ought to have been aroused many years before if slavery was indeed the terrible sin the abolitionists now commenced to say it was. The agitation of 1830, the year that Webster replied to Hayne, and that of 1833, when he and Calhoun crossed swords over nullification, mark a great advance of intersectional antagonism beyond that of the time of the Missouri compromise. We can see now as we look back what contemporaries could not see, that is, that the two were *avant couriers* of the southern confederacy. But some of the contemporaries did discern the fact—not consciously, but instinctively. With these there was, in subliminal ratiocination, a process somewhat as follows: The southern confederacy, if it does come, will disrupt the union, which assures, while it lasts, immunity of our country from frequent wars upon its own soil, and from the heavy load of great armies kept up even in the intervals of peace. This disruption will establish in America all the evil conditions of Europe from which our fathers fled hither. Slavery is the *vis matrix*, the sole developing force, the life of this menaced confederacy. Let us abolish slavery, and preserve the union.

How accurately the common instincts—especially those protecting our private interests—discern both the favorable and unfavorable, becomes more of a marvel to me every year. To them the favorable is morally right, the unfavorable morally wrong. If the latter threatens great injury, they excite against it deep-seated indignation as if it were a crime. How else can you explain it that all the churches, accepting the same Christ and worshipping the same God, were at last divided, the northern churches impugning and the southern churches defending slavery. Dwell upon this fact until you interpret it aright. On one side the most conscientious and the best of the north unanimous that slavery is morally wrong; on the other the

most conscientious and best of the south unanimous that it is morally right. Then think of the northern and southern statesmen, jurists, and the great public leaders; and at the last consider that the entire people of one section prayed for, fought and died for, slavery, while that of the other did the same things against it. When you do this, you must admit that our community, our country, the society of which we are members, fashions our consciences and makes our opinions.

The economic interest of the north was against slavery. It was her interest to get all the territory possible for opportunity to her free workers. It was also a transcendent economic interest of hers that there be no great foreign power near her to require of her that she put thousands of bread-winners and wealth-makers to idle in a standing army. On the other side the economic interest of the south in slavery was so great it commanded her to sacrifice all the advantages of union to preserve slavery, if that should be necessary. Each side feels deeply and more and more angrily that the other is seeking to rob it of the means of production and subsistence—the property to which of all it believes its title most indefeasible. It required some years to bring affairs to this point; but it was accomplished at last; and the north was ready for the root-and-branch abolitionist and the south for the fire-eater. Of course all this effect of oppugnant economical interests is under the guidance of the directors of evolution, who generally have their human servants to masquerade as characters widely different from the true. When these servants put on high airs as if they were doing their own will and not that of their masters, how the directors must smile. They have guaranteed animal reproduction from one generation to another by the impulsion of a supreme momentary pleasure, as Lucretius most philosophically recognizes in his *dux vitæ dia voluptas*. The passion of anger is the converse of that of love. When consent cannot settle some great controversy that must be settled, the passion of anger is so greatly excited by the instigation of the directors that the disputants leave arguments and come to blows. In the ripeness of time the Ransy Sniffleses^[38] come forth. They say and do everything possible to bring on the impending mortal combat. They never grasp the essence of the contention, for it is their mission to arouse feeling, passion, anger. They are resistlessly—most conscientiously and honestly—impelled to make the other side appear detestable and insultingly offensive in heinous wrong-doing. The most

zealous and the most influential of the root-and-branch abolitionists were young when they vaulted into the arena. Garrison was twenty-six when he started the "Liberator" in 1831, Wendell Phillips was some six years younger than Garrison, and he was about twenty-six when he made his début with a powerful impromptu in Boston, in 1837. Whittier was two years younger than Garrison, and he was early a co-worker in the "Liberator." It is demonstrated by everything they said that they were entirely ignorant of the south and its people, of the average condition of the slave in the south, and especially of the negro's grade of humanity. They never studied and investigated facts diligently and impartially, desiring only to ascertain the truth. They assumed the facts to be as it suited their purposes, given them by the directors, of exciting hatred of their opponents,—and it added greatly to their efficiency that they fully believed their assumptions. Knowing really nothing of the negro except that he was a man, it was natural for them to believe, as they did, that the typical, average negro slave of the south was in all the essentials of good citizenship just such a human being as the typical, average white. If they did not go quite so far, they surely claimed for him something so near to it that it is practically the same. We shall, as suggested above, treat this pernicious error more fully in later chapters.

The root-and-branch abolitionists have claimed ever since the emancipation proclamation became effective that the overthrow of slavery was brought about by them; and thousands upon thousands believing it sing them hosannas. But it is an undeniable fact that the superior power of free labor in its irreconcilable conflict with slavery was bound to do in America what it had done everywhere else. And without the abolitionist at all the days of slavery were numbered, and they were few even if there had been no secession, and very few if secession had triumphed. For free labor—its fell and implacable foe—was on the outside steadily and surely encircling it with a wall that hemmed it from the extension that was a condition of its life; and within its ring fence necessarily it was rapidly exhausting all of its resources. It was the mighty counteraction of free labor that crushed slavery. The root-and-branch abolitionist thrown up by this movement which had set forward irresistibly, long before he was ever heard of, and who believed that he started it and was guiding it, strikingly examples the proverb

“Er denkt zu schieben und ist geschoben.”

I believe that future history will give him credit only for having a little hastened forward the inevitable.

Another abolition misstatement ought to be corrected. Sumner fulminated against what he called the oligarchs of slavery. And it was common at the north to speak of southern aristocracy and southern aristocratic institutions. Of course the slaves had no political privileges, no more than they had in Athens, which has always been deemed the most genuine republic ever known. There was in the old south no oligarch, or anything like him, unless you choose to call such a man as Calhoun an oligarch, whose influence over his State was entirely from the good opinion and unexampled confidence of the free citizens of all classes, which he had won. There was no aristocracy, except such a natural one as can be found in every one of our States, as is illustrated by the Adamses in Massachusetts, the Lees in Virginia, and the Cobbs in Georgia. In those days property was much more equally distributed than now; and it was easy for the energetic and saving poor young man, of the humblest origin, to make his way up. In all my day there was universal suffrage, and it was political death to propose any modification. I explained nearly thirty years ago how southern conditions prevented the development of anything like the beneficent New England town-meeting system.^[39] But for all of that the entire spirit of southern society was democratic in the extreme, far more so than it is now with the nominating machinery everywhere in the south except South Carolina, controlled by corporation oligarchs. When the root-and-branch abolitionist inveighed against oligarchy and aristocracy, and aristocratic institutions in the south, he was just as mistaken as he was in denouncing what he asserted to be the guilt in morals of slaveholding.

The more I study the abolitionists whom I distinguish as root-and-branch, the more completely self-deceived as to facts, the wilder and more emotional I find them to be. I have just mentioned some of their misrepresentations; and in later chapters I shall dwell upon their cardinal mistake as to the place of the negro in the human scale. I have not sufficient space for more of these things. I will give just one example of their wildness. They put in circulation that Toombs had said he expected some day to call the roll of his slaves at the foot of Bunker Hill monument,—a

slander which they persisted in renewing after he had solemnly and publicly denied it.^[40] In their excited imaginations they were sure that the south was cherishing a scheme by which, under the help of the court that made the Dred Scott decision, slavery was to be established and protected by law everywhere in the north. The only parallel I can think of to this utterly groundless panic is that of some poor souls in the Confederate ranks in front of Richmond in 1862, who, when they learned that Jackson had got in the enemy's rear, expressed lively fears that he was going to drive McClellan's army over them.

And the fire-eaters,—how they got important facts wrong! They habitually said that the northern masses were too untruthful and dishonest for us of the south to stay in the partnership without disgrace and loss of self-respect. I heard of one who was wont gravely to assert that prostitutes and ice were all that the south was dependent upon the north for; and these were only luxuries which it was better to do without. Perhaps the height of falsification by the hotspurs was the assertion, made everywhere again and again, that northerners were such cowards that, even if they were spurred into a war in defence of the union, any one average southerner would prove an overmatch for any five of them.

It is now high time that each section turn resolutely away from these fanatics, and the literature which they have made or informed, to seek right instruction as to slavery, the struggle over it, the characters of the masses on each side and of their leaders, and all other belonging details, in the real facts. Especially must we understand the internecine duel between free labor and slavery, and what was the purpose of the directors of evolution placing the fanatical abolitionist and the fire-eater upon the stage. When we grasp that purpose clearly, how pretentious do we understand their claims and self-laudation to be, and how clearly we see that they are like the fly on the cart-wheel that became so vain of the great dust it was raising, and also like the little fice egging on the big dogs to do their fighting. I have still vivid recollections of hearing in amicable interviews of hostile pickets these characters denounced for keeping out of the war which, as was then said, they had caused,—the fanatical abolitionists denounced by the federals, the fire-eaters, original secessionists, the blue cockade wearers, by the confederates.

CHAPTER VII

CALHOUN

AFTER John Caldwell Calhoun, who was born March 18, 1782, the birth-year of Webster, had become large enough to go to the field, the most of his time until he was eighteen was spent in work on the plantation. His father had never had but six months' schooling. There were no schools in that region except a few "old field" ones, where the three R's only were taught. To one of these John went for a few months. The boy learned to read, and manifestly he had acquired some habit of reading. In his thirteenth year he was sent to school to his brother-in-law, Moses Waddell, who was an unusually good teacher. He found a circulating library in the house. This was his first access to books. He read old Rollin, and he probably moused about in Robertson's History of America and Life of Charles V, and Voltaire's Charles XII. Having laid Rollin aside, he assailed Locke's famous Essay; but when he got to the chapter on Infinity his health had become bad, doubtless due to his change from active to sedentary habits and from physical to mental activity. So he was taken back to his work at home. His father had died in the meanwhile, and his mother, who had great business talent, taught him, as we are told, "how to administer the affairs of a plantation."^[41] It will appear in the sequel that he was superbly trained.^[42] When he attained the age of eighteen the family had become convinced that he ought to be got ready for a profession. John, knowing himself to be the mainstay of his mother, and having resolved to be a planter, at first would not hear to this. But the family persisted. This doubtless influenced him to turn the subject carefully over in his mind; and the decision which he made showed an understanding of his own peculiar talents and needs, and also a prescience of his future which, when his youth, small opportunity of observation, and want of schooling are remembered, are very wonderful. He gave this family, who were not well-to-do, to understand he would not accept a limited and makeshift education. Naturally they asked what sort did he mean, and he answered, "The best school, college, and legal education to be had in the United States."^[43] Then they asked, How long

did he think all this would take, and he promptly answered seven years. To the average reader it seems that the time necessary to carry this unschooled lad through the course he proposed had been egregiously underestimated by him; but to the family, as they thought of the appertaining annual expenses, it must have looked very long. They had to give in. That irrefragable influence over his people which showed itself as soon as he came upon the public stage begins here. Some one long afterwards said of him, that if he could but talk with every man he would always have the whole United States on his side. It is more than probable that in the five years after he had left Waddell's school he had, in plantation management and other interests of the family, convinced them that he always acted or advised wisely. Another comment is in place here. Study of the record of his early life convinces you that very soon after, if not before, the commencement of his legal studies, he decided to make law only a stepping-stone by which to enter public life and also acquire the means to plant. I cannot help inferring that this was—somewhat vaguely it may be—his intention already formed when he dictated terms to the family as just told. It is not at all impossible that to him who afterwards astonished the world by the sureness of his prophecy there had even then been revealed the career awaiting; and so he resolved to get ready for college in two years, and pass the rest of the seven where, besides competent instructors, he would have cultivated society, libraries, and the best of opportunities to qualify himself for public life. Be our conjecture true or not, in two years after he had opened his Latin grammar he entered the junior class at Yale, and two years later he graduated with credit. After reading law in an office he took a year's course at the Litchfield law school in Connecticut, and then he went into an office again for a while. Some time in June, 1807, he hung out his shingle at Abbeville Court-house, as it was called up to the time of reconstruction. A few days afterwards in that month occurred the attack on the Chesapeake, and when the news came it caused a public meeting in the town. Some good report of him must have been bruited about in the community in advance of his coming. It is almost certain that his education had greatly developed those powers of conversation mentioned above, and that many listeners had greatly approved his views of the outrage, and the patriotic indignation he uttered over it. It is not stretching probability too far to assert that, young as he was, he was by far the ablest man that could be found in the locality to advise upon the burning question which had arisen so suddenly. He was

selected to draft appropriate resolutions and present them. There is no record of these or of his speech. But as we know that the resolutions carried, and that tradition still reports admiringly of the speech, we may be sure that his performance in both was extraordinarily good. Although there had been a strong popular prejudice in the county—or district, as it was then called—against lawyer representatives, October 13, 1807, less than four months after the meeting just described, he was elected to the legislature at the head of the ticket.

In that day presidential electors were appointed by the State legislatures. Shortly after the session of this legislature to which Calhoun had been elected opened, there was an informal meeting of the republican members to make nominations for president and vice-president. The first was unanimously given to Madison. When the other was up, Calhoun declared his conviction that there was soon to be war with England. At such a time there should be no dissension in the party. He gave strong reasons why George Clinton should not be nominated, as had been proposed; and he suggested John Langdon of New Hampshire as the proper man. The thorough acquaintance with the grave situation which he manifested, the due respect he showed Clinton while opposing his nomination, and the ability with which he discussed the question, advanced him at once to a place among the most distinguished members of the legislature.

“Several important measures were originated by Mr. Calhoun while in the legislature which have become a permanent portion of the legislation of the State, and he soon acquired an extensive practice at the bar.”^[44] He kept in the very midst of the political swim. His reputation as an honest, true, and able adviser had become so great and influential that the people, in their warm approval of the strong measures he advocated as preparation for the threatened war, pushed him out as their candidate for congress and elected him most triumphantly in October, 1810. The first session of this, the twelfth congress, commenced November 4, 1811. Clay, then speaker of the house, evidently expecting much of him, gave him the second place in the committee on foreign relations. There came before the house a measure contemplating an increase of the army in view of the war which appeared to many to be nearer than ever. John Randolph was against it. In March, 1799, a year before Calhoun started to school, Randolph, then not twenty-six years old, had fearlessly met the great Patrick Henry in stump discussion,

and had, in the opinion of his auditors, got the better of it. He was elected to congress in this year. Steadily since then he had developed, until he was now one of the most prominent figures upon the national stage. While his powers of discussion of a subject were great, the power that especially characterized him was that of nonplussing his antagonist with a snub or a sarcasm. Randolph made an earnest speech. Calhoun replied. It is not enough to say of this speech that it evinces full mastery of the subject. It presents every important view most effectively, satisfactorily answering everything which had been said on the other side. And it is especially happy in the wise use made at each proper place of the commands of morality and patriotism.

Mr. Pinkney has instructively and entertainingly illustrated this speech by his excerpts.^[45] To them I here add another, which I would have you consider,—Randolph had strenuously insisted that the cause of this war, said by the other side to be impending, should first be defined; and until this plain duty was done there should be no preparation. To this Calhoun said:

“The single instance alluded to, the endeavor of Mr. Fox to compel Mr. Pitt to define the object of the war against France, will not support the gentleman from Virginia in his position. That was an extraordinary war for an extraordinary purpose. It was not for conquest, or for redress of injury, but to impose a government on France which she refused to receive—an object so detestable that an avowal dared not be made.”

This is a thrust which Randolph especially could appreciate.

The more I examine this first speech of a very young member of congress upon a question of such transcendent importance to the people of the United States, the more sound, able, complete,—to sum up in one word,—the more statesmanly it appears. I am confident that whoever will weigh it carefully will agree with me. He will not be surprised to learn that it carried the house decisively. Even in Randolph’s own State it drew great praise. But its fame went abroad everywhere, and it was revealed to America that she had found among her public men another giant.

In the year 1800 Calhoun was a lad of eighteen, without even a complete common school education. Represent to yourself clearly what he had

accomplished in the interval from the year last mentioned to December 12, 1811, when, not yet thirty, he made the speech we have just considered. If any public man of America, burdened with such disadvantages, has surpassed, or even equalled, this meteoric stride, I do not now recall him. I am not emphasizing especially that he got to congress in such a short while. What I do especially emphasize is that he so early won place as an eminent statesman. In these eleven years he lost no time at all in idleness, or probation, or waiting.

January 8, 1811, some three months after his election to congress, he married his cousin, Floride Calhoun—not a first cousin, but a daughter of a first cousin. His letters of courtship, not to her, but, in the old style, to her mother; his only letter to her, written shortly before the marriage; and other letters from and to him afterwards, all of which you can read in the Correspondence,—show him to be such a lover, father, brother, son-in-law, brother-in-law, grandfather, etc., as everybody wants. Some South Carolinian, adequately gifted, ought to tell befittingly the tale of Calhoun's beautiful domestic life.

I must now mention some other facts which will further enlighten you as to the man.

I was fourteen when Calhoun died. For four or five years before, and afterwards until I went to the brothers' war, I heard much of Calhoun from relatives in Abbeville county and the Court House. I still recall most vividly what a paternal uncle habitually said of the brightness and unexampled impressiveness of Calhoun's eyes, and the charm and instructiveness of his conversation. In Georgia there was not a public man whose course in politics commended itself to all of my acquaintances. I had become accustomed to hearing much disparagement of Toombs and of Stephens, with whom I was most familiar. But my South Carolina relatives, and every man or woman of that State whose talk I listened to; every boy or girl with whom I talked myself, yea, all of the negroes,—always warmly maintained the rightfulness of Calhoun's politics, national or State. I thought it a good hit when a Georgia aunt of mine dubbed the Palmetto State "The Kingdom of Calhoun," and Abbeville Court House "its capital." This universal political worship was a great surprise to me. But there was a still greater one to come. That was, that according to all accounts, and without any

contradiction, in spite of his living away from home the most of his time, he yet gave his planting interests and all else appertaining the very best management, and with such unvarying financial success it would be unkind to compare Webster's money-wasting and amateur farming at Marshfield. In this community, where he seemed to be known as well as he was before he removed to Fort Hill, some sixty miles distant, in 1825, he had become a far greater authority in business than he had even attained in politics. His acquaintances all sought his advice, which they followed when they got it; thus making this busiest of public servants their agricultural oracle.

The reader will find in Starke's memoir and the Correspondence ample proofs of that diligent attention of Calhoun to his home affairs which made him the exceptionally successful planter that he was. Starke happily calls him "the great farmer-statesman of our country."^[46]

Now let us see where he made his mark as an able business man in another place. He was Monroe's secretary of war from 1817 to 1825. When he entered the office he found something like \$50,000,000 of unsettled accounts outstanding, and jumble in every branch of the service. He soon brought down the accounts to a few millions. And he reduced the annual expenditure of four to two and a half millions, "without subtracting a single comfort from either officer or soldier," as he says with becoming pride. He established it, that the head of every subordinate department be responsible for its disbursements. His economy was not parsimonious. He was especially popular at West Point, for which he did great things, and with the officers and men of the army.

And if one chose to look through the belonging parts of the Correspondence and the other accessible pertinent records, he will find ample proofs that he was ever alert to all the duties of his office, performing each one, whether important or trivial, with the height of skill and diligence.

Consider, as to his career in the war department, this language of one of the most inveterate of his disparagers:

"Many of his friends and admirers had with regret seen him abandon his seat in the legislative hall for a place in the president's council. They apprehended that he would, to a great extent, lose the renown which he had gained as a member of

congress, for they thought that the didactic turn of his mind rendered him unfit to become a successful administrator. He undeceived them in a manner which astonished even those who had not shared these apprehensions. The department of war was in a state of really astounding confusion when he assumed charge of it. Into this chaos he soon brought order, and the whole service of the department received an organization so simple and at the same time so efficient that it has, in the main, been adhered to by all his successors, and proved itself capable of standing even the test of the civil war.”[\[47\]](#)

Now let us glance at his magnificent success in winning for the United States the vast territory of Texas and Oregon. The latter had long been in dispute between us and England. Ever since 1818 it had been jointly occupied under agreement. We wanted all of it; and of course as our settlements in the west approached nearer and nearer, our desire for it mounted. And England wanted all of it too. Soon after Texas achieved her independence she applied for admission into our union, but as the settlers had carried slavery with them free-soil opposition kept her out. Texas got in debt, and the only thing for her to do was to tie to some great power willing to receive her. England, seeing her opportunity, was trying to propitiate Mexico in order, with the favor of the latter, to get Texas for herself. Of course the south wanted Texas to come in, but the free-soilers did not. And the north wanted Oregon; and although its soil and climate did not admit of slavery, the south was against its acquisition unless the concession be made that it be permitted to slavery to occupy all the suitable soil of the Territories. As early as 1843 Calhoun, with his piercing vision, saw the situation clearly. If the dispute as to Oregon provoked war, England could throw troops thither from China by a much shorter route than ours, the latter going as it did from the States on the Atlantic coast around Cape Horn. That would be bad enough for us. But suppose England gets Texas. A hostile power, with a vast empire of land, will spring up under the very nose of the States, where our adversary will acquire a base of operations in the highest degree unfavorable to us. Then England will rise in her demands as to Oregon, and perhaps win all of it from us. In an affair of inter-dependent contingencies it is of the first importance to do the right thing instead of the wrong thing first. Texas was ripe, Oregon was not. Calhoun saw the first

thing to do was to annex Texas. For when England cannot secure that base of operations in Texas she will shrink from making Oregon a cause of war, and while she is hesitating, Oregon—which is near to us and far from her—is steadily filling with population in which settlers from the United States more and more preponderate; and at the same time the populous States are fast approaching. After a while the inhabitants will all practically be on our side, and they will have hosts of allies to the eastward in supporting distance, which would give us an invincible advantage in case war for Oregon does come. This is what Calhoun styled “masterly inactivity” on our part, and which, had it been fully carried out as he advised, Oregon would now extend much further north than it does. To sum up in a line, he saw that activity as to Texas and inactivity as to Oregon was each masterly.

But the hotheads of the south and the fanatical wing of the anti-slavery men at the north rose up, obstructing his way like mountains. At the same time there was lack of vision in even the leaders of each section who could rise to patriotism above prejudice. Polk blundered in not continuing Calhoun as secretary of State, in which place he had made so good a beginning that it soon accomplished the annexation of Texas. In his inaugural Polk asserted that our title to Oregon was good, and to be maintained by arms if need be; and he went further away from “masterly inactivity” in his first annual message. He evoked great popular excitement, and “Fifty-four forty or fight!” and “All of Oregon or none!” came forth in passionate ejaculations in every corner of the land. Calhoun had been called from retirement to take Texas and Oregon in hand, and when Polk made a new secretary he went back into the retirement for which he greatly longed. The record shows that the best men of all parties, north and south, felt that as Tyler’s secretary he was the man of all to manage the two matters so vitally important to the United States, and they deeply regretted that the place was not continued to him by Polk. And now instead of the happy settlement they had been sure the master would effect, the country was face to face with a war that portended direful disaster to each section. The eyes of patriots turned to Calhoun again; and as he cannot be secretary, he must be in the senate. And a way being made, he was seated in due time. It needs not to go into much detail. The situation had changed greatly. The especial thing to do now was to avoid war. And as a resolution to terminate the joint occupation had been passed by congress, and as the ire of Great Britain had been greatly aroused,

there must at once be a settlement of the Oregon controversy. And so the controversy was compromised and averted, this good result being mainly due to the efforts of Calhoun. Even Von Holst calls his speech of March 16, 1846, great. It will live forever. It is paying it gross disrespect to treat it as mere oratory, even if one concede to it the highest eloquence. It voices the ripest wisdom of the ablest practical statesman dealing with a most momentous public affair, in a crisis delicate and perilous in the extreme. The vindication of the true course of action is majestic. But to my mind the great achievement of the speech is his sublime philanthropic deprecation of war between England and America. When the papers told us at the outbreak of our war with Spain that all the British subjects on the warships of the latter had thrown up their places, it seemed to me that nothing else could so fairly omen co-operation of England and America in the near future to democratize and make happy the world. And I believe that that inexpressibly sweet token of Anglo-American brotherhood would have been postponed at least a half-century, if not much longer, had it not been for that speech.

This speech likewise discomfited pro-slavery and anti-slavery fanatics alike, and won the hearty approval of the wisest and best of every part of the country.

Calhoun's self-education merits the closest attention. Railroaded through school and college, as he was, his tuition was necessarily defective in some important particulars. In the main he spelled accurately, but the Correspondence shows that he wrote "syblable," "indisoluably," "weat" for wet, "merical" for miracle, "sperit," "disappinted," "abeated," etc. It is doubtless to be regretted that he did not have larger familiarity with polite literature. Admitting these faults, still we must know he had been uncommonly studious and thoughtful to win his degree in four years after his start to school; but his systematic study, careful observation, and hard thinking really commenced with his entrance of public life, and were kept up to his very death. Note this pertinent excerpt from Webster's memorial speech, in which I italicize a passage happily describing his studies:

"I have not, in public nor private life, known a more assiduous person in the discharge of his appropriate duties. I have known no man who wasted less of life in what is called recreation, or

employed less of it in any pursuits not connected with the immediate discharge of his duty. He seemed to have no recreation but the pleasure of conversation with his friends. *Out of the chambers of congress, he was either devoting himself to the acquisition of knowledge pertaining to the immediate subject of the duty before him, or else he was indulging in those social interviews in which he so much delighted.*”

From his first speech in congress to the end of his life you note that he has always mastered the pertinent facts, literature, and guiding principles of whatever he has to do with, whether in speech or action. This indicates continuous, most industrious, and most wise self-instruction. I believe it was Mr. Parton who said that Jefferson was the best educated man of his time. His full equipment from all belonging learning and science was surpassed only by the versatility with which he instantly solved all new questions. But Calhoun’s was more of a special training than Jefferson’s. Having for some years learned by doing,—doing after the best study and reflection, consistent with due promptness, that he could give each thing he had to do,—his capital of knowledge and developed faculty had become all-sufficient. Stephens, a profound student of both Jefferson and Calhoun, makes this comparison:

“Amongst the many great men with whom he associated, Mr. Calhoun was by far the most philosophical statesman of them all. Indeed, with the exception of Mr. Jefferson, it may be questioned if in this respect the United States has ever produced his superior.”[\[48\]](#)

Government—that is, good democratic government—he studied all his life with rare devotion. His two special works,[\[49\]](#) and the parallel parts of his speeches, warmly commended by such a thinker and friend of democracy as John Stuart Mill, are sufficing proof. In all the long tract from Plato and Aristotle down to the popularization of direct legislation, which commences with the publication of Mr. Sullivan’s pamphlet a few years ago, there is to be found nobody who has penetrated so deeply into the secrets of those principles by which alone true democracy must be maintained. With what clear vision does he read us lessons from the unanimous veto of the Roman tribunes; the political history of the twelve tribes of Israel; the balance of

interests in the English constitution and our own, intended to guarantee what he calls government of the concurrent majority. His illustration from the confederacy of Indian Tribes is to be especially emphasized as demonstration of his industry in collecting his materials and of his great insight.[\[50\]](#)

I must give still another example, which I am sure will yet benignly enlighten America.

Ever since Adam Smith fell into my hands in early manhood I have had a strong predilection for political economy. My conviction during the brothers' war that proper management of the currency of the confederacy was indispensable to the success of our cause initiated me into an earnest study of the science of money. And later intense interest in the greenback question, and afterwards the silver question, added to the impetus. The longer I observed the more plainly I saw a few private persons controlling the coinage, the greenbacks, and the national bank currency of purpose to monopolize government credit, and also fix the interest rate and the price level, at any particular time, as suited their selfish interests. The remedy became clear,—government must retake and fulfil all its money functions. Especially must it keep the country supplied with a volume of money which never becomes either redundant or contracted. How to do this properly brought up the question, What is money? What is it that makes a sheep, or cow, or coin, or piece of paper, money? For the true answer to this question is the very beginning and foundation of all monetary science. I took up Ricardo again, who, with a solitary exception mentioned a little farther on, had, from the time I turned into him during my study of the confederate currency, of all the economists by profession, showed to me the best understanding of the real nature of money; and of course John Stuart Mill, Jevons, Carl Marx, and others of less note, were examined. The result confirmed Ricardo in his primacy; although I felt that the true nature of money was assumed—rather vaguely—by him, and not clearly expressed as it ought to be. I believed myself familiar with all the important work of Calhoun. Somehow I had overlooked his contributions to this subject. A few brief quotations from the more unimportant of these I found in certain American books, which made me read the pertinent speeches.[\[51\]](#) It was a most inexpressible surprise to me to find that he had perfected Ricardo. Briefly stated, this is the true doctrine according to Calhoun. It is not legal-

tender laws, nor is it intrinsic value, which makes even gold go as money. Well, what is it? Calhoun was not the first to answer it, for others had given the true answer; but they ran away from it as soon as they made it. He divined the full satisfactoriness of the true answer, which he demonstrated to be true by a method as nearly mathematical as the case admits of. And he lightens up what was dark before by showing that that is money, and good money, whatever it may be,—gold, silver, paper, property, what not,—which the government receives in payment of its dues. The practice of the government,—not laws, nor the market value of different materials of money,—this is the great thing. If the United States should refuse to receive gold for its dues, that would so greatly lessen the demand for gold as money that the coin would depreciate and drop out of circulation. Nothing—not the precious metals, not diamonds of the first water, not radium, not the bills of the best bank, not greenbacks, not treasury notes can maintain themselves as money if the government will not receive it. This is the first half of the subject. Calhoun adds the other by showing that whatever the government makes money, its volume can always be kept of the proper quantity,—which proper quantity varies with the needs of commerce,—so as to avoid the too much or too little. His illustration from the treasury notes of North Carolina, which could not be a legal tender under the federal constitution, but which circulated briskly and buoyantly and stayed at par for many years, because they were received without discount by the State, and also because their volume was kept within bounds, will yet greatly help the cause of honest money.

In the achievement just told Calhoun not only excelled the economists of his day, but he is yet in advance of all of the present except Del Mar,^[52]—the only economist who has excelled Ricardo in divining the essence of money. These two alone explain clearly and fully why it is that bankers keep such tenacious grip upon the money function of government—they thereby so shape its practice that their wares shall be money, with all the incidents of profit therefrom, and no others shall. Del Mar never quotes him; and I almost know he has never studied his views upon this subject.

America will yet have a “rational money,” a term which Prof. Frank Parsons has happily chosen as the name of his invaluable book.^[53] To win it she must fight many battles with the money power. When this war of the people is waging by the people for the people, the doctrine of Calhoun will

be the banner of the right. After the sordid money oligarchy is overthrown and the United States is blessed with a people's money, that benign deliverance will add prodigiously to the fame of Calhoun.

My space does not admit of telling you how deeply Calhoun loathed the spoils system. That must be borne in mind, and taken into account in any true estimate of him as a statesman.

I deem it especially important to have you consider his standing with the people of his State. Literally his word was law in South Carolina. Hayne in 1832, and Huger in 1845, resigned their seats in the national senate to give place to him. Everybody in his State always wanted him to lead, and everybody always wanted him to lead according to his own will. This unwonted influence, utterly without precedent, was due to the accurate measure which the masses had taken of him. As he lived and aged among them they knew him better and better to be irreproachable in private and public life, the ablest of the able, the most diligent of the diligent, and the truest of the true as a representative or official, and of that severe and lofty virtue which scorns all popularity that is not the reward of righteousness. And so he became example, model, worship, to all classes. The forty years political ascendancy of Pericles in the Athenian democracy is the only befitting historical parallel which I can think of. Familiar with the State from boyhood, I have long thought its people the most advanced of the south. In spite of the revenge wreaked upon her in war, and in spite of the direr devastation of the twelve years of negro rule following the fall of the Confederate States, that little community, with her dispensary and her system of really direct nomination,^[54] to say nothing of her wise management of all her material resources, is teaching the nation lessons of the highest wisdom. These are the people from whom Calhoun won a crown more resplendent than any other of our States has ever bestowed upon a loved son. How eloquent were her last offices. Read Mr. Pinkney's extracts from the "Carolina Tribute," narrating the reception of his mortal remains in Charleston:^[55] the novel procession of vessels, displaying emblems of mourning, the solemn landing at noon, an imposing train moving amid houses hung with black, "a Sabbath-like stillness" resting on the city, "The solemn minute gun, the wail of the distant bell, the far-off spires shrouded in the display of grief, the hearse and its attendant mourners waiting on the spot, alone bore witness that the pulse of life still beat within the city, that a

whole people in voiceless woe were about to receive and consign to earth all that was mortal of a great and good citizen.”

Appropriately and impressively Mr. Pinkney closes his description of this forever memorable demonstration by quoting Carlyle’s “How touching is the loyalty of men to their sovereign man.”^[56]

Some men reserve out of the pillage of their fellows a great fund to signalize their graves. Stronger cars must be made, bridges strengthened, and too narrow passages avoided by long circuits in order that their huge piles be transported to the conspicuous spot selected in a fashionable cemetery. How the funerals which a weeping people give a Calhoun, Liebknecht, Pingree, Altgeld, and other true ones dwindle such monuments into smallness and contempt!

I must add something here to what has been said in the foregoing of Calhoun’s speeches. Somebody must after a while do for him what the compilation called “The Great Speeches and Orations” has done so well for Webster. His very greatest effort is that against the force bill, delivered in the United States senate February 15 and 16, 1833. As an appeal in behalf of the rights of the minority against the oppressive majority it is unequalled. All through it, from its most befitting exordium to the righteous indignation of the closing sentence, there are passages which “the world will not willingly let die.” No one who has ever given it attention can forget the paragraph defending Carolina against the charge of passion and delusion; that demolishing as by a tornado the assertion of a senator that the bill was a measure of peace; the far-famed one as to metaphysical reasoning; what is said as to the nature of the contest between Persia and Greece; the rupture in the tribes of Israel graphically expounded; the first mention of the government of “the concurring majority” as distinct from and far better than that of the absolute majority; the lesson to us of the Roman tribunes. To read this speech becomingly, purge yourself of all prejudice; by an adequate effort of the historical imagination see all the main things of the then situation, and put yourself fully in Calhoun’s place; so that you cannot fail to feel all of his deep earnestness. You will have succeeded when you can rightly appreciate this outburst:

“Will you collect money when it is acknowledged that it is not wanted? He who earns the money, who digs it from the earth with the sweat of his brow, has a just title to it against the universe. No one has a right to touch it without his consent except his government, and this only to the extent of its legitimate wants. To take more is robbery; and you propose by this bill to enforce robbery by murder.”

When I pronounced that against the force bill, the greatest of his speeches, I was not unmindful of his last, that of March 4, 1850, not four weeks before his death. I can hardly class it as a speech. It was a revelation of the woe in store for America if the abolition movement was not checked. Its analysis and demonstration of the preponderant power of the north, and its retrospection over the progressive stages by which the former equilibrium of the sections had been destroyed, are as clear-sighted as its prediction. Never in all history has an actor in a revolution described its course behind him so understandingly, nor its future course with such true prophecy.

Let us give you the fewest possible selected brief passages that will do something towards possessing you of the core of Calhoun's valedictory to the United States and the South.

This is first in order: “How can the union be saved? There is but one way by which it can with any certainty; and that is by a full and final settlement, on the principles of justice, of all the questions at issue between the two sections. The south asks for justice, simple justice, and less she ought not to take. She has no compromise to offer but the constitution, and no concession or surrender to make.”

The vital concern of his section against abolition, and what it must do to avoid it, he tells in these passages:

“[The South] regards the relation [of master and slave] as one which cannot be destroyed without subjecting the two races to the greatest calamity, and the section to poverty, desolation, and wretchedness, and accordingly she feels bound, by every consideration of interest and safety, to defend it.”

“Is it not certain that if something is not done to arrest it [the abolition movement], the south will be forced to choose between abolition and secession?”

If the south must choose secession, he justifies her by the example of Washington, with a calm and repose that prove his deepest conviction of its rightfulness, and with a power that cannot be confuted. He says:

[“The Union cannot] be saved by invoking the name of the illustrious southerner whose mortal remains repose on the western bank of the Potomac. He was one of us—a slaveholder and a planter. We have studied his history, and find nothing in it to justify submission to wrong. On the contrary, his great fame rests on the solid foundation that, while he was careful to avoid doing wrong to others, he was prompt and decided in repelling wrong. I trust that, in this respect, we have profited by his example.

Nor can we find anything in his history to deter us from seceding from the union should it fail to fulfil the objects for which it was instituted, by being permanently and hopelessly converted into a means of oppressing instead of protecting us. On the contrary, we find much in his example to encourage us should we be forced to the extremity of deciding between submission and disunion.

There existed then as well as now a union,—that between the parent country and her then colonies. It was a union that had much to endear it to the people of the colonies. Under its protecting and superintending care the colonies were planted, and grew up and prospered, through a long course of years, until they became populous and wealthy. Its benefits were not limited to them. Their extensive agricultural and other productions gave birth to a flourishing commerce which richly rewarded the parent country for the trouble and expense of establishing and protecting them. Washington was born and grew up to manhood under that union. He acquired his early distinction in its service; and there is every reason to believe that he was devotedly

attached to it. But his devotion was a rational one. He was attached to it, not as an end, but as a means to an end. When it failed to fulfil its end, and, instead of affording protection, was converted into the means of oppressing the colonies, he did not hesitate to draw his sword and head the great movement by which that union was forever severed, and the independence of these States established. This was the great and crowning glory of his life, which has spread his fame over the whole globe, and will transmit it to the latest posterity.”

With what moving entreaty does he thus adjure the victorious north:

The north “has only to wish it to accomplish it—to do justice by conceding to the south an equal right in the acquired territory, and to do her duty by causing the stipulations relative to fugitive slaves to be faithfully fulfilled, to cease the agitation of the slavery question, and to provide for the insertion of a provision in the constitution, by an amendment, which will restore to the south, in substance, the power she possessed of protecting herself before the equilibrium between the sections was destroyed by the action of the government. There will be no difficulty in devising such a provision—one that will protect the south and which at the same time will improve and strengthen the government instead of impairing and weakening it.”

“The responsibility of saving the union rests on the north, and not on the south. The south cannot save it by any act of hers, and the north may save it without any sacrifice whatever, unless to do justice and to perform her duties under the constitution should be regarded by her as a sacrifice.”

This sleepless watchman since 1835 had again and again blown the trumpet as the sword of disunion was coming upon the land. Now, the grave yawning before him, he sees that sword nearer and sharper, and conscious that it is his last public duty he sends forth to all his country a blast of warning more earnest and more solemn than ever. Warning that the bloodiest of all wars is coming, and that between brothers. Warning—it is the whole of this dread deliverance. Here is the first paragraph:

“I have, senators, believed from the first that the agitation of the subject of slavery would, if not prevented by some timely and effective measure, end in disunion. Entertaining this opinion, I have on all proper occasions endeavored to call the attention of both the two great parties which divide the country to adopt some measure to prevent so great a disaster, but without success. The agitation has been permitted to proceed, with almost no attempt to resist it, until it has reached a point where it can no longer be disguised or denied that the union is in danger. You have thus had forced upon you the greatest and the gravest question that can ever come under your consideration,—How can the union be preserved?”

And this is the last paragraph:

“I have now, senators, done my duty in expressing my opinions fully and candidly on this solemn occasion. In doing so, I have been governed by the motives which have governed me in all stages of the agitation of the slavery question since its commencement. I have exerted myself during the whole period to arrest it with the intention of saving the union, if it could be done, and if it could not, to save the section where it has pleased providence to cast my lot, and which I sincerely believe has justice and the constitution on its side. Having faithfully done my duty to the best of my ability both to the union and my section, throughout this agitation, I shall have the consolation, let what will come, that I am free from all responsibility.”

Had abolition been in charge of men, Calhoun, claiming, as appeared to them, the most palpable rights under current views of justice, under the constitution, under the law, and under patriotic duty, would have prevailed. He never understood, no more than the abolitionists themselves did, that providence was making an instrument of abolition to remove the only danger to the American union, and that providence was not under human constitutions, laws, and convictions of duty. As you meditate this superhuman achievement of the true citizen in his last stand for his doomed section, does it not help you to appreciate better the high saying of the

Greeks, that the struggle of a good man against fate is the most elevating of all spectacles?

The speeches that will find place in the selection suggested above will not enrapture the reader with the proud diction, learning, ornateness, and exquisite finish of Webster, but he will find them everywhere to be proofs of the dictum of Faust:

“Es trägt Verstand and rechter Sinn
Mit wenig Kunst sich selber vor;
Und wenn’s euch Ernst ist, was zu sagen,
Ist’s nöthig, Worten nachzujagen?”[\[57\]](#)

He will also note that many of the wisest and most eloquent passages are almost the extreme of choice, but chaste and severe, expression. Here read aloud the passage as to Washington quoted above from the speech of March 4, 1850, and you will hardly dissent.

America owes it to Calhoun to publish a cheap edition of his best speeches, and also of his “Dissertation on Government.”

A word as to the “Dissertation” and the “Discourse on the Constitution of the United States.” The project of these two books lay close to his heart for many years. He intended them as his last admonitions to the people of the great republic. Doubtless the special object of his retirement was to finish them, but he had to return to the senate. What we have of the books was written in the little leisure which he snatched from the pressure of public duties, domestic affairs, and ill-health. The resoluteness with which, in the midst of these difficulties, he worked at the self-imposed task proves a lofty and unselfish love. He did not finish them to his satisfaction. Darwin did not do that with his epoch-making “Origin of Species,” for he found there was no need to do so. I believe that, as the essentials of the belonging part of evolution are all to be found in the “Origin of Species,” so all the essentials of Calhoun’s great doctrine of government are fully set forth in his two books. To me the “Dissertation” seems complete. I note with pleasure that, though slowly, it is steadily climbing to the lofty height which is its due place in the world’s estimation. And the “Discourse”—of which he did not live to finish the final draft—surely leads all the productions of the State sovereignty school. The providence which opposed his wishes was

kind to his country, to the world, and to himself in calling him from his desk; for it allowed him to get Texas and Oregon for us, to give mankind his Oregon speech, and his last, and thus to finish his good work and make his fame full.

The foregoing is intended to influence my readers to turn away from Von Holst, who wrote Calhoun's life, with the smoke and dust of the brothers' war still in his eyes, and from Trent, who merely says ditto to Mr. Burke, to Stephens, to the great Webster, to the touching "Carolina Tribute," to the happy and appreciative sketch of Pinkney, to the man himself and his grand career, in order to find the facts and principles by which one of America's very greatest ought to be judged. And I do hope that they now begin to discern that Calhoun was nothing at all of a doctrinaire, nor chop-logic, nor fanatic, nor professional politician, nor ignorant and over-zealous partisan, but was the very height of practical talent and an extraordinarily successful man of affairs, of more than Roman integrity, conscientious and diligent beyond almost all others in the duties of his place, and a foremost statesman of wide and profound culture. Whether I have accomplished my design or not, let me beg you to read for yourself with careful attention what Webster said of him in the United States senate just after his death. Remember two things as you read: (1) The speaker and the dead had been opposed to one another in politics for more than twenty years, the former being the great exponent of free-labor nationalization and the other the great exponent of slave-labor nationalization; (2) nobody ever weighed his public utterances more carefully than did Webster, and that he would not say anything which he did not believe, even as a politeness.

Let us now try to follow with proper discernment this man whom we hope we have proved to be good and wise through his titanic defence of the cause which fate had decreed must fail. As our explanation of how evolution, and not the north on one side nor the south on the other, brought forward the crisis in which slavery, the sole menace of American dismemberment, was to perish, is so nearly complete, we can be much briefer in the rest of the chapter.

The true beginning here is with the proposition that everything which Calhoun did as the southern leader was prompted by a righteous conscience and the highest and most unselfish patriotism. He was the very first to

discern the full menace of abolition to the welfare of the people he represented. And when years afterwards the situation became darker and more serious, and more and more importunately put to him the question, If abolition can be avoided only by leaving the union, what ought the south to do? he answered to himself, with the fullest approval of his conscience, she must go out; for manifestly it is her paramount duty to protect her citizens against any such invasion of their rights as abolition. But he had no illusion as to peaceable secession; and he likewise worshipped the union, believing with deepest conviction that it is far better for neighboring communities to be federated than independent. And the memories of the great American history were as sweet to him as they were to Webster. To sum up, only one thing in his opinion could justify secession. That was control of the federal government by the abolitionists. If that comes, the south must seek her independence, even if it is beyond a sea of blood.

Abolition was on its way then to overturn the supports of comfort and domestic peace in the south, as it afterwards did. Suppose Webster had seen the imminence of such a dreadful evil to New England, would he not have felt that his duty to his section was now the great thing? My brother who wore the blue, ought he not to have so felt? If the union had been turned into a course which would not only impoverish and beggar the people of New England, but would for long years actually deprive the masses of those modes of business and labor by which they were subsisting themselves and their families, can it be thought that Webster, with his exalted admiration of the fathers, who endured all privations to win liberty from their oppressors, would not have been heart and soul for secession?

The only actual difference between the two great patriots was that to Calhoun the dread alternative of looking outside the union for defence and protection of home and fireside was commended by a cruel fate, while a kind fate withheld it from Webster.

I shall corroborate the foregoing by some pertinent excerpts from Calhoun's speeches in the United States senate. And as my purpose is to build everywhere in this book, as far as possible, upon only the most obvious facts and to vouch therefor the most accessible authorities, I take the excerpts from quotations made by Von Holst:

“It is to us a vital question. It involves not only our liberty, but, what is greater (if to freeman anything can be), existence itself. The relation which now exists between the two races in the slaveholding States has existed for two centuries. It has grown with our growth, and strengthened with our strength. It has entered into and modified all our institutions, civil and political. None other can be substituted. We will not, cannot, permit it to be destroyed.... Come what will, should it cost every drop of blood and every cent of property, we must defend ourselves; and if compelled, we should stand justified by all laws, human and divine; ... we would act under an imperious necessity. There would be to us but one alternative,—to triumph or perish as a people.”[\[58\]](#)

“To destroy the existing relations would be to destroy this prosperity [of the southern States] and to place the two races in a state of conflict, which must end in the expulsion or extirpation of one or the other. No other can be substituted compatible with their peace or security. The difficulty is in the diversity of the races.... Social and political equality between them is impossible. The causes lie too deep in the principles of our nature to be surmounted. But, without such equality, to change the present condition of the African race, were it possible, would be but to change the form of slavery.”[\[59\]](#)

“He must be blind, indeed, who does not perceive that the subversion of a relation which must be followed with such disastrous consequences can be effected only by convulsions that would devastate the country, burst asunder the bonds of union, and engulf in a sea of blood the institutions of the country. It is madness to suppose that the slaveholding States would quietly submit to be sacrificed. Every consideration—interest, duty, and humanity, the love of country, the sense of wrong, hatred of oppressors and treacherous and faithless confederates, and, finally, despair—would impel them to the

most daring and desperate resistance in defence of property, family, country, liberty, and existence.”[\[60\]](#)

The student unfamiliar with the confederate side of the brothers’ war can find the whole of it clearly stated in these short passages re-enforced by the cognate ones quoted above from the speech of March 4, 1850. The maintenance of the then existing relations between white and black was vital both to liberty and existence. Because of the world-wide diversity of the two races they cannot be socially or politically equal (a subject which we will deal with specially after a while). And it was the duty of the south to fight to the bitter end “in defence of property, family, country, liberty, and existence.” This is the marrow of the quotations. They convincingly show not only the grasp of the statesman, but the prescience of the prophet, as has been plainly proved by the brothers’ war and what followed in its track.

Opposition to the tariff, which in his judgment favored the manufacturing at the expense of the staple States, seems to have been the first thing that led Calhoun to take a pro-Southern stand in politics.[\[61\]](#) It finally produced the famous nullification episode, which we have already somewhat discussed. In this his platform was simply anti-tariff. But the current, without his being aware of it, was carrying him resistlessly and rapidly on into the anti-abolition career in which his life ended. It was the petition presented in 1835 to congress against slavery in the District of Columbia which, it seems, was the first thing that opened his eyes to the menace of abolition. Note his wonderful foresight. Compare him with Cicero just before the outbreak of the war between Pompey and Cæsar; or with Demosthenes before Philip discloses his purpose towards Greece; or with Carl Marx, predicting the future of co-operative enterprise. Cicero almost foresees nothing—he mostly fears; Marx is utterly mistaken. The divination of Demosthenes is far superior, and it is clear; yet it is belated when it comes. But Calhoun sees with “appalling clearness,” as Von Holst says, all the storm-cloud from which tempest and tornado will ravage the entire land, just as its first speck shows on the horizon; and nobody else will see that. If this abolition movement is not stopped in its incipency, it will soon get beyond all control. This he says over and over in his public place. What a horrible spectre of the future haunted him for the rest of his life! The south in her self-defence forced out of the union, and then perhaps overcome in war. After her braves have perished, and their dear ones at home have been

plunged in the depths of want, the triumphant abolitionists will have the former slaves to lord it over them.

His conscience commanded him to stand by slavery as the fundamental condition of his people's well-being; it also at the same time commanded him to strain all his energies to save the union by making it the protector instead of the assailant of slavery. This was the insuperable task which the powers in the unseen put him in the treadmill to do. From the time he commenced the discussion of the anti-slavery petitions until his exclamation over the "poor south," on his death-bed, life was to him but a deepening agony of solicitude and utmost effort,—solicitude for his country and section, effort to avert the danger that became greater and more awful to him every day. He strove after remedies under the constitution. The more he recalled the success of the single stand of South Carolina against the tariff, the prouder he became of being the author of nullification. Its dearness to him was that it was peaceable as well as efficient. The better opinion of the State-rights school is that nullification is an absurdity, and that South Carolina's only true remedy against the tariff was to secede if it were not repealed. But he knew better than everybody else that secession meant internecine war between the sections, and this influenced him to exalt peaceable nullification above bloody secession.

It needs not to consider each barrier, whether party combinations, admission of new slave States, legislation, etc., that he tried to erect against the incoming oceanic wave. But we must briefly consider the amendment of the constitution which he proposed. He wanted the north and the south each to have a president, as he said, "to be so elected, as that the two should be constituted the special organs and representatives of the respective sections in the executive department of the government; and requiring each to approve all the acts of congress before they shall become laws."^[62] Do this, he urged, and neither section can use the powers of government to injure the other, for whatever proposed law menaces a section will be vetoed by its president. It profits the student of the science of government to consider the historical examples which Calhoun adduced here. They are indeed so apt that the hearing which has ever been denied him should be granted him at least academically. He says: "The two most distinguished constitutional governments of antiquity both in respect to permanence and power had a dual executive. I refer to those of Sparta and Rome."^[63]

It is interesting to be informed that those same wise Iroquois from whom our fathers probably got the precedent of the old confederation, put in practice something very like what Calhoun advises. We append both the account and instructive comment of Morgan:

“When the Iroquois confederacy was formed, or soon after that event, two permanent war-chiefships were created and named.... As general commanders they had charge of the military affairs of the confederacy, and the command of its joint forces when united in a general expedition.... The creation of two principal war-chiefs instead of one, and with equal power, argues a subtle and calculating policy to prevent the domination of a single man even in their military affairs. They did without experience precisely as the Romans did in creating two consuls instead of one, after they had abolished the office of *rex*. Two consuls would balance the military power between them, and prevent either from becoming supreme. Among the Iroquois this office never became influential.”[\[64\]](#)

But Calhoun lays much more stress upon another example,—that of the protection which the Roman plebeians got in tribunes elected from their own order alone, which tribunes could veto any act of the lawmaking organs, all of which were then actually in the hands of their oppressors, that is, the order of patricians; the result being that in course of time the plebeians achieved equality.[\[65\]](#)

Of course the inevitable could not be put off. And yet ought we not to admire the inventive genius of the statesman who of all proposed the remedy that promised the best? And ought we not also to cherish in affectionate memory this last and high effort of Calhoun to avert a dreadful brothers’ war at hand, the end and consequences of which nobody could then forecast?

The situation of Rome granting tribunes to the plebs was widely different from ours. That was a case of giving a veto to one class only, and to a class which belonged to the entire body politic. Calhoun proposed not a single veto, but two; neither one to be given such a class as we have just mentioned, but a veto to each one of two geographical divisions, in one of

which there was a developed, and in the other a nascent and almost complete, nationality, these two nationalities already closed with each other in a life and death grapple. His hope must have been to confine the combatants to an arena which could be effectually policed by the civil power, and in which all fighting except with buttoned foils be prevented. We may be almost sure that his heart broke when that presentiment which often comes to the dying as clear as sunlight revealed the bloody war that was quickening its approach.

O the unutterable pathos of his life from 1835 to 1850! During this time he was like the mother of a boy whom consumption has marked for its own. In advance of all others she reads the first symptom, nay, she anticipates it. All those who believe that they know him as well as she does, laugh at her fears with unsympathetic incredulity. But her eyes never fail to see grim death at the door, although bravely she hopes against hope, and fights, fights, fights. Inexorably, relentlessly the end, which others now begin to discern, comes on, but until the last breath of her darling she has ever some suggestion of change of place or climate, of a new remedy, of something else to be done. It is the supreme tragedy of her trial that while outwardly she is all self-gratifying love, inwardly she is all self-consuming misery. We say the love of a mother is greater than all other. But we know that she loves her country better than she does her child. Patriotism is as yet the strongest love of all. Realize that our exalted patriot was tending and nursing the cause of his country. Think of the noble Lee, his career of victory over, wearing away the winter at Petersburg, hourly expecting his line, so tensely stretched in order to face overwhelming odds, to break; think of him after it does break, on the retreat, when he has discovered that his supplies have gone wrong; and think of him when he must yield the sword as ever memorable as Hannibal's. The world has given Lee, and will long give him, rains of gracious tears. But he was never plagued with Calhoun's sharpened eyes to future disaster, and he was confident that he would reach the mountains almost until the very moment of surrender. Think rather of the great sufferers for high causes,—Bonnivard, wearing a pathway over the stone floor of his prison; Lear, of all of Shakspeare's heroes, in the deepest gulf of misfortune; and especially of Calvary and the crucifixion, for Jesus travailed for his brothers and sisters. It is here you must look for the like of Calhoun. For fifteen years that "mass of moan" which was coming to his

dear ones pierced his ears plainer and plainer and made his heart sicker and sicker, and during this long bloody sweat he gave the rarest devotion and self-sacrifice to his country which he feared more and more was to plunge over the precipice. As we recall the scene of his death it makes us rejoice to know that the cross he had borne so long has at last been cast off and he has entered into the rest of the martyr-patriot. Then it occurs to us that he carried with him his affections,—too lofty not to be immortal,—and we cannot believe that the sad spirit ever smiled until Wade Hampton, twenty-six years afterwards, re-erected white domination in South Carolina.

Dixie will never forget that one who of all her sons loved her best and suffered for her the most. And it is my conviction that each noblest soul of the north will after a while revere in Calhoun the American parallel to the moral grandeur of Dante, of whom Michaelangelo said he would cheerfully endure his exile and all his misfortunes for his glory.

CHAPTER VIII

WEBSTER

CALHOUN was the pre-eminent champion of the southern cause in the union, while Toombs was that of southern nationalization seeking independence. Webster was the pre-eminent champion of American nationalization seeking continental union. Toombs and Webster are therefore in antithesis; and it will be well for me to begin the chapter by anticipating some of the characteristics of the former, who will be treated at large later on, and briefly contrasting the two.

By nature Toombs was so prone to action that even in his daily recreation—talk with the nearest to him was by far the most of it—his immense and tireless outpouring of fine phrase, wisdom, and wit was the increasing wonder of all who knew him. Webster's proneness was to repose, almost indolence. He often seemed lethargic. His activity could be excited only by the pressure of necessity. This difference between the two showed itself very markedly in their several careers. Toombs, coming to the bar in the last year of his nonage, took the profession at once to his heart, settled in his native county, in a lucrative field of practice, overcame all hindrances of natural defects and insufficient training seemingly by a mere act of will, and in four or five years his collecting a thousand-dollar fee in an adjoining county was no very uncommon thing. When he was twenty-eight he was a fully developed lawyer and advocate on every side—law, equity, and criminal—of the courts of that prosperous planting community, then overrunning with cases of importance, and his annual income from practice was \$15,000. Webster went up much more slowly. He read long and industriously; was not called until he was twenty-three; for the next two and a half years was content with an income of \$600 or \$700; and then for nine years at Portsmouth his average income was \$2,000 yearly. Even when Webster at thirty-four removed to Boston he was hardly as a lawyer the equal of Toombs at twenty-eight; and I believe that the latter was always the superior lawyer. The greater reputation of Webster is due to the greater reputation of his cases, and of the tribunal wherein he long held the lead.

We see a like difference between the two in congress. Webster shirks the routine duties of his place to gain opportunity for practice in the United States supreme court. Toombs stays away from all courts during the session, and gives every measure before the body to which he belongs its proper attention, study, and labor. But the performance by him of all the many duties of representative or senator, whether little or great, with unparalleled diligence, ability, and splendor, has been so completely obscured by the few of Webster's great congressional exploits, that it is not now cared for by anybody.

The greater lawyer and the greater congressman has been accorded the lesser renown. This is because of the relation which each one bore to the two publics which I have tried to make you understand,—the southern public and the northern public. Toombs's legal career was mainly in the courts of his own State. It was not much heard of outside, in even the southern public, until his extraordinarily meritorious discharge of congressional duties involving a mastery of law was observed. Although some of Webster's cases in State courts were celebrated, his greatest ones, to be considered in a moment, were won in the United States supreme court, in the eyes of both publics watching intently. The highest accomplishments of Toombs in the non-sectional parts of his congressional career were almost matters of indifference at the time to both publics, becoming steadily more absorbed in pro- and anti-slavery politics; and what he did in the other part of it excited the hostility of the northern public, and brought him obloquy instead of good name. The few memorable deeds of Webster in congress were victorious vindications of the cause clearest of all to the northern, that is, the free-labor, public. That public has at last not only conquered, but it has annexed the other as a part of itself. And so Toombs's fame as a lawyer and statesman has been left so far behind that it can hardly hope ever to have impartial and fair comparison with that of Webster.

Just one more parallel, and I shall proceed with my sketch. Each one of the two, in order to accept his mission of leadership, was plainly made by his destiny to abandon a previously cherished doctrine for a new and contrary one. Toombs was once an ardent union man, Webster was once almost a secessionist. In his Taylor speech, made in the United States house of representatives July 1, 1848, speaking of the then expected acquisition of territory, Toombs said:

“All the rest of this continent is not worth our glorious union, much less these contemptible provinces which now threaten us with such evils. It were better that we should throw back the worthless boon, and let the inhabitants work out their own destiny, than that we should endanger our peace, our safety, and our nationality by their incorporation in our union.”

The silly embargo measures, making war upon our own citizens instead of our enemies, had deeply injured New England interests. On their heel came the second war with England, into which the government of France had, as Mr. Lodge says, “tricked us ... by most profligate lying.”^[66] This war paralyzed the production and occupations of Webster’s people.

A speech made by him July 4, 1812, is “a strong, calm statement of the grounds of opposition to the war.”^[67] Mr. Lodge quotes and emphasizes a passage as proof that Webster, although a federalist, and the majority of his party in New England were—to use the words of the same author—“prepared to go to the very edge of the narrow legal line which divides constitutional opposition from treasonable resistance,”^[68] was then standing by the union with might and main. This quotation, separated from its circumstances and the immediate sequel, strongly supports the contention. The speech being printed, circulated widely among those federalists who were gravitating so strongly towards “treasonable resistance.” By reason of it Webster was chosen as a delegate to a convention, held the next month. This man, whom Mr. Lodge would have us believe to be so fixedly counter to the then uppermost revolutionary sentiment of his party, was chosen to be their mouthpiece. He wrote their report—the “Rockingham Memorial” in the form of a letter to President Madison. Mr. Lodge thus contrasts the report and the speech. “In one point the memorial differed curiously from the oration of the month before. The latter pointed to the suffrage as the mode of redress; the former distinctly hinted at and almost threatened secession, even while it deplored a dissolution of the union as a possible result of the administration’s policy.”^[69] Then the biographer most confidently states that in the speech Webster was declaring his own views, but in the other document he was declaring those of members of his party.

But the average American will be sure that those familiar with the speech at the time did not strain its counsels as far away from their own as Mr. Lodge

does, otherwise they would not have elected him as delegate; and further, he never would have made their report for them unless he had been known to entertain their own sentiments.[70]

The popular wave that he had thus mounted carried the draftsman of the “Rockingham Memorial” into congress, where, while British armies were actually treading our soil, he voted against the taxes proposed for national defence. Mr. Lodge does not go the full length of sustaining this conduct. [71] The severe comment of another biographer will be cordially approved by average readers, northern and southern.[72]

The facts properly considered show that from the speech of July 4, 1812, on, Webster, although he stood aloof from the Hartford convention movement, was in full sympathy with the federalists of New England, whom the national government by its unrighteous oppressions had driven to contemplate disunion as a possible measure of self-protection.

This attitude of Webster towards the union was entirely contrary to that which afterwards became his power and glory among his countrymen. We wish it noted that as he changed with the people of New England from anti-tariff to pro-tariff politics, he likewise changed with them in their principles as to the union; and that Toombs went with the south, in an opposite direction, that is, from embrace to rejection of the union.

Having in the foregoing brought out the prominent characteristics of Webster’s nature and career, and having also impressed you that he, like all other great statesmen, could lead only by following his people, I will cursorily trace him from stage to stage through his development. He was selected in infancy, if not before by providence, to be made not the expounder of the constitution, but the invincible defender of the union. When his activity begins, he is at first to consolidate the union by the management of some great law cases, and delivery of occasional addresses to popular assemblies; and afterwards in his high place as United States senator he is to demonstrate to the northern public its complete guaranty of their highest material interests, and set it in their hearts above all things else. Thus did providence assign to him the preservation of the greatest of all democracies, to the end that there be no break in the future course of human improvement.

Before his activity begins the powers train him. They gave him a long education, and a slow growth as a statesman. He could never remember when he had been unable to read. His feeble physique while a child shielded him from the labor required of the other children, and permitted him to enjoy books. Early he soaked his mind in the King James version of the bible and other good English standards. As he grew apace his opportunities of reading were far better than those of Calhoun, who never saw even a circulating library until he was in his thirteenth year, and soon was taken away from that. These opportunities he used in his leisurely way. His mind was strong and his memory good, and he digested and kept under command what he read. His schooling and college course were in the main continuous. He got to Dartmouth at fifteen, where he spent four years. Here he made the reputation of being the best speaker and writer of all the students. In his study for the law he took ample time. And in his first years of practice he had much leisure. Besides revelling in the Latin classics, Shakspeare, Milton, Pope, and Cowper, and much history, he was keenly observant of what was going on about him. We know how Jeremiah Mason gave him lessons both in law, rhetoric, and elocution to his great advancement. We know too that his interest in current political questions was vigilant. He took his seat in congress May, 1813, being then a little over thirty-one. His speech against a bill to encourage enlistments made January 14, the next year, shows, as Mr. Lodge says, that “he was now master of the style at which he aimed.”^[73] Of this peculiar style I shall say something after a while. Mention of his greatest exploits in consolidating the union is now in order.

The first of these is his conduct of the Dartmouth college case in the United States supreme court. It is entirely out of place for me to give even the briefest notice of the details which fill Mr. Shirley’s unique book.^[74] Little more than emphasis of the effect of the decision to knit more closely the bonds of union between the States is required. This effect will be considered more carefully when we comment on *Gibbons v. Ogden*, which finishes the important work commenced in the other. It needs only to remind the reader now that the protection of contracts against impairing State legislation has contributed probably more than anything else to the prosperous development of American internal trade and commerce,—a most potent factor in consolidating the union,—and that this protection

originates in the Dartmouth college decision. But there is something special to be said of Webster as to the case. He did not stress the constitutional point—that upon which the judgment was finally placed—either in his law-brief or argument. The victory is all due to his consummate management of the court, especially of the chief-justice. The latter really found the true ground of the decision. But the powers had Webster in hand, and it suited their purposes to crown their *Liebling* with the credit of the decision. When he found out the reasons given for the ruling he had won, I fancy that a good angel of his destiny whispered in his ear he ought to have discerned that the weal of all classes of his entire country, and not merely that of its colleges, was at stake in his case, and he must never in the future overlook such an opportunity again. In his Hanover fourth of July speech, made when he was only eighteen years old, to quote from the authority we make so much use of, “the boy Webster preached love of country, the grandeur of American nationality, fidelity to the constitution as the bulwark of nationality, and the necessity and the nobility of the union of the States.”^[75] Mr. Lodge impressively adds, “and that was the message which the man Webster delivered to his fellow men.”^[76] His Fryeburg fourth of July speech, made not long afterwards, was in the same strain. After the powers had thus started him in the way they wanted him to go, we have noted above how he was carried by the federalists of New England into a movement hostile to the union. This brief wandering from his destiny, as it were, is to be compared with his neglect to grasp the point in the Dartmouth college case which was in the exact line of that high destiny. This shows how even the greatest genius must stumble and grope before it has found the right road. I think the Venus and Adonis, Lucrece, First Part of Henry VI, and the Sonnets of Shakspeare are like examples.

The Plymouth oration, delivered in 1820, begins a new and very important stage of Webster’s career. As Virginia was the mother of the southern States, so New England was in large measure the mother of the northern. The latter was the very fountain of the free-labor nationalization. And as she was known to be exceptionally advanced in intellectual as well as material development, she was to all the free States both their great example and highest authority. Hardly anybody has even yet fully taken in all the permanent good which New England has done for herself at home and for her children and scholars outside. Of course still less of it was understood in

1820. But in the Plymouth oration Webster set forth so much of it, the effect upon New England was magical. It was as if he had raised a curtain concealing great riches and treasures of her merit and glory, the existence of which had not been suspected. New Englanders all fell in love with him, and accorded him the foremost place among their counsellors.

The anti-slavery spirit of the speech deserves special notice. I do not mean to emphasize the oft-quoted passage denouncing the African slave-trade; for everybody in the south—even the smuggler and the few purchasers who encouraged him—had been against legalizing it, for reasons mentioned above, from a time long before the southern States showed a desire in the constitutional convention to stop the trade at once. I mean his mention of slavery in the West Indies. I do not think that he had the south in mind, stressing as he does the absenteeism of the masters and the mortgages of their lands for capital borrowed in England. But much else that he says of the evil effects of slavery could be easily applied, at least in some measure, to the system as it then existed in the south, such as, for instance, the backwardness to make permanent improvements or endow colleges. His contrast of New England with the West Indies is intended to show that a free-labor community is far superior to a slave-labor community in the most important elements of a good and progressive civilization. His conviction of this truth is serious and undoubting. And those few words, “the unmitigated toil of slavery,” which show that he erroneously believed that the slave toiled as hard as the wage-earning laborer, evince a strong moral revulsion on his part.

We summarize as to the Plymouth oration. It made Webster really the political leader of New England, which—the animosity excited by the embargo and the late war having become a forgotten thing of the past—is now both in command of and also in the van of the free-labor and anti-slavery nationalization, destined by the powers to perpetuate the union.

We have told you how Webster—being at the time the very antipodes of what he was afterwards when he talked with Bosworth as to the Rhode Island case—missed the true and cardinal point in the Dartmouth college case, and how the powers, after having Marshall to establish it, gave all the glory of the great accomplishment to Webster. We come now to *Gibbons v. Ogden*, argued in 1824, in which the latter made far more than ample

amends for his shortcoming, and taught even the great Marshall how to decide.

New York State had given Fulton and Livingston for a term exclusive steam navigation of all its waters, and Webster was to maintain that the grant impugned the federal constitution and was therefore invalid. The question was *res integra*, without analogies which often help us forlorn advocates who cannot find a precedent and are utterly without any literature suggesting the *ratio decidendi*. I know I cannot explain to a layman how such cases as these bewilder and paralyze the typical Anglo-American judge, who has walked all his life by precedent and not by sight. Further, Webster's side antagonized prevailing sentiment and, it would be hardly too much to say, the public conscience; either one of which generally sways courts more powerfully than the law-brief, argument, and appeal of complete advocates. The only thing which Webster could oppose to these formidable odds was just a clause of a sentence of the constitution, this clause being only of twelve words when even the belonging context is read into it,^[77] and appearing to be, we cannot say surplusage, but neither well-considered nor of any particular force. Out of this he constructed such a perfect and wise doctrine of the immunity of our interstate commerce from local attack and restraint that every succeeding generation has admired its wisdom more, and subsequent additions and extensions of importance are all manifest conclusions from the promises which he made good.

Reading and reflecting for writing my "American Law Studies" familiarized me with a few instances in which a man has left a lasting impress upon the development of the law (some of which instances will be mentioned in a moment). Thus I was led to meditate Webster's work in this case; and it becomes an increasing wonder to me. Read what his biographer tells of the unfavorable circumstances of the preparation for the argument and how he overcame them by superhuman effort. Read also his own account as given by Harvey, how Wirt, his associate, older and of much more experience in that court, disparaged the ground upon which he said he should stand, and proposed another; and how Marshall drank in every word of Webster's argument, and afterwards virtually reproduced it in the opinion.

But the great thing is what he did for the law. The current distribution of the common law under its larger heads was made by Hale and Blackstone after that of the contemporary civilians, which is founded upon that of the Institutes of Justinian. This book is but a reproduction of that of Gaius. So we may assert of this last mentioned author that it is his systematization which still obtains both in the English and Roman law, that is to say, the entire law of the enlightened world.^[78] A few English chancellors perceptibly moulded equity; Mansfield almost created English commercial law; in our country, Hamilton, in one argument overturned the doctrine of tacking securities, and in another remade the essentials of libel; our great text-author Bishop, with his treatise often worked over in new editions, is really the enacter of the American law of divorce; and Marshall's additions to our federal law will never be forgotten. By what he did in *Gibbons v. Ogden*, Webster has won a proud place in the small company of great law-givers.

And he is entitled to a liberal share of the glory which the Dartmouth college decision has won, for without him Marshall would have had no opportunity.

To estimate the prodigious effect of the rulings in these two cases, try to realize to yourself what would be the consequences to American trade and commerce if the States were not effectually kept from infringing contracts or granting monopolies of transportation. Try to realize the loss, the inconvenience, the trouble, the vexation, all the evil that would have unavoidably befallen us if these two companion decisions and the subsequent ones following them as precedents or extending them as analogies, had not made practically the whole of American inland business a unit—to use Webster's word—under the protection everywhere of the same impartial law. The longer you think it over the more confirmed will be your opinion that from no other cause has the evolution away from the old independence of States towards a permanent union and a single organism of perpetually federated communities been more furthered. The unification of production and distribution thus given resistless impulse has almost of itself alone worked the unification of all our States. So looking back from the standpoint of to-day we may be sure that the powers had Webster by his accomplishment in the cases now in mind, to build for perpetual union far better than he knew.

It needs not to dwell upon the Bunker Hill oration, made June 17, 1825. It is, as I believe, the most familiar as a whole of all speeches to Americans. It did not stop with adding greatly to the influence he had won over New England by the Plymouth oration; it revealed him to the whole country as its supreme orator. Bear in mind its theme, remembering how large a part the battle of Bunker Hill was in founding our union.

The plainest manifestation that providence ever made of its favoritism to Webster was its having Adams and Jefferson both to die on the same day of all the year the most commemorative of each. By the eulogy of the two patriots which Webster made the next month he attained the height of his popular celebrity. His subject was no longer one that principally concerned New England and the north, but it was the co-operation of both sections in making the United States. Slowly, but surely, he has climbed to the top of authority, whence he ever draws audience and attention from north and south, both in the present and for ages after the brothers' war.

These three popular speeches just noticed are unique in oratory, not in their general character, but in the nobility of the subjects, the ripeness of the occasion, the profound wisdom of treatment, and the extraordinary elevation and perfection of style.

Another stage begins in 1830 with the reply to Hayne. What Webster says therein, recommending brotherly love between the sections, and commending the union, he reproduced with grateful variation in many memorable passages of later speeches. The original and reproductions are the most precious gems of our literature, ranking in excellence even above Poe's poetry, America's best.

The speech of 1833 against Calhoun's nullification resolutions, that which won for Webster the cognomen, The Expounder of the Constitution, belongs to the next succeeding stage, wherein he rose from supreme panegyric to invincible defence of the union. As we have already given in a former chapter this performance its due praise, we need not say more of it.

This chapter would not be complete if we failed to glance at the essentials of Webster's greatness as an orator, and to point out the means used by the powers to give him his extraordinary excellence. He did not stale himself by discussing trivial matters. When he rose, people knew that he had an

important message, and they ought to attend. In harmony with this was his uniform seriousness, gravity, and becoming dignity of manner; and even in his merry-making humor, as instanced in describing Hayne leading the South Carolina militia, he never stooped. He spoke to the sound common sense and the regnant conscience of the masses. His propositions, his illustrations, his argument went home without effort to every one who thought at all and who cared for moral virtue. The entire country has heard with great acceptance that Davy Crockett said to him, “Mr. Webster, you are not the great orator people say you are; for I heard your speech, and I understood every word of it.” Whether this be an invention or not, it well characterizes his easy intelligibility. Herbert Spencer could have exemplified the main proposition of his able essay on style by Webster’s best efforts, and every part and parcel of them—statement of proposition, necessary explanation and narrative, distinctions, illustrations, reasoning, invocation of feeling—appeal to the sense of justice. I often feel that he is not more majestic in any particular than the always manifest meaning of what he says. In this he reminds of Bacon.

He chose only the most important subjects; he befittingly addressed always the higher nature of his hearers; and he always spoke with a transparent clearness. But all this does not indicate more than the mere beginning of true eloquence. The greatest teachers—those who win and keep the admiration of the world—have, as their worshippers teach us, gifts of expression commensurate with the desert of their communications. Remember Homer, Plato, Demosthenes, Vergil, Cicero, Dante, Bacon, Goethe, and above all Shakspeare. As the reader hangs over them he becomes more and more unconscious of what we call, rather vaguely, their style. Their diction, in unhackneyed use of hackneyed words, in metaphors that flash like electric sparks, in appropriateness of varied rhythm, and all appertaining jewels, becomes to him but a belonging of the much more precious sense. As it must impart that without impediment it is unconsciously made as like it as the protecting coloring of animals is made like that of the objects amidst which they lurk. There has been but one other which admits of comparison in world-wide secular importance with Webster’s theme—that which inspired

“Tu regere imperio populos, Romane, memento.”

We have learned how the *Æneid* was prized above all other poetry, not only by the Romans themselves, but, long after they had become a mere name and memory, by the different nations of Europe. Plainly it was because Vergil, in that “stateliest measure ever moulded by the lips of man,” had fitly celebrated the greatest factor delivering from barbarism, and spreading civilization abroad, that had yet appeared in history,—the Roman empire. The American union, immeasurably exceeding that empire in immediate good to millions at home, and in fair promise to all the earth, was Webster’s subject. It got from him an appropriate style. The variety of ornament in his language reaches all the way from the modest violets of the Anglo-Saxon common to Bunyan and King James’s version, up to the most gorgeous trappings which are part and parcel of the sense in the best passages of *Paradise Lost*. There is also a variety of idiom. He uses that of the field or street, or of the gentleman or of the scholar, as best suits. He affected short sentences, and also pure English words. He told Davis to weed the Latin words out of his speech on Adams and Jefferson. But when occasion calls he can revel in that latinity of our tongue which, as De Quincey has noted, becomes intense with Shakspeare, when he is soaring his strongest. If you are inclined to dispute this, look over the last two sentences of the reply to Hayne. How you would lower this sublime peroration into the dust, if you replaced the Latin with native derivatives, or changed the long for short sentences in what is now above all example in English or American oratory, and can be paralleled in structure, “ocean-roll of rhythm,” and exquisite words only by the most famous paragraphs of Cicero and Livy. As our last word here, Webster always imparts the wisest counsel as to the American union in phrase all-golden, and his eloquence is entitled to praise beyond all other, because it is always what his high subject demands.

As I have to do mainly with the permanent and lasting in Webster, I can merely allude to his physical endowments, described with such rapture by March, Choate, and many others of his time, and well summarized by Mr. Lodge. I must remind the reader how it accorded with the purpose of the powers to bestow upon their favorite majesty of form, mien, and look, a voice that suggested the music of the spheres, action that would have been a model to Demosthenes; in short, a physique for the orator superior to any on record. These things helped him mightily in his day.

Apparently I finished with Webster's education some pages back of this. But the more important part of it has not as yet been touched upon; and it is incumbent upon me to tell it, because of the lesson we ought to learn from it.

The largest and most characterizing part of our education—perhaps it would more accurately express my meaning to say our culture—each one of us gets from his associations, from his contact with the people of all sorts around him in his infancy, boyhood, and manhood often as far on as middle age, if not sometimes farther. We get it by imitation, unconscious and conscious, and by absorption from what we see, hear, and read, etc., which absorption is often most active when we are least aware of it. Now let us consider the community of which Webster was the product.

In the Plymouth oration, as we have already suggested, he exhibits the exceptional progress and acquisitions of New England. What other community ever showed greater courage against danger or greater energy against obstacles, and such wise building-up of a new country in a strange land? The Pilgrim Fathers could not have liberty and their own religion at home, and for these they went into the wilderness. There they kept the savage at bay. With soil and climate both unfavorable they wrought out general plenty and comfort. They prospered in industry. They equalized as far as they could all in property rights. And these liberty-lovers gave the regulation of local affairs to the town meeting, of which Webster says: "Nothing can exceed the utility of these little bodies. They are so many councils or parliaments, in which common interests are discussed, and useful knowledge acquired and communicated."

Jefferson, the great apostle of popular self-government, most earnestly longed to see all America outside of New England divided into such townships as hers.

But to return to the Pilgrims. They established schools and churches everywhere. Free education was maintained by taxation of all property.

Let us sum up. Here was a country in which everybody had been well trained in the available ways of self-support and also of saving and accumulating,—the very first essential to make good citizens. Such citizens were required to administer their public affairs themselves; and thus they

received the very best political education and training in a school of genuine democracy,—which is the next essential. The children of each generation were schooled better than those of the former, the colleges and universities constantly did better with the students, and libraries open to the public both multiplied and enlarged,—the third essential. And education and business were rationally mixed, until in Webster's time it might be said with truth that the average New Englander worked with a will, and wisely, every day to maintain himself and family, and also found leisure to add something of value to his store of knowledge. Here is another essential. The moral and religious atmosphere became purer and purer, and more and more on all sides good intention was conspicuous in the light, and evil intention hid itself deep in the dark. This is the last essential.

The foregoing is made up from the Plymouth oration. Webster was too near to discern all the intellectual and moral advancement and the opulent future promise of his own community, the proper fruit of the conditions just summarized.^[79] Let us indicate by only such a paucity of examples as we have room for. Able and fully furnished lawyers everywhere. Think of Story, a most diligently attending judge and one of the best; also finding time both to be the first law professor and most fertile and eminent author of the age, exhausting English and American sources and authority in his books, and crowding them with a civil law learning to be surpassed only by that of the Roman jurists of Germany; let Ticknor, whom we may call the founder of the post classical school of literature in our country, suggest the students of modern languages who followed in an illustrious line,—let him suggest also the famous historians, such as Prescott, Bancroft, Hildreth, Motley, Parkman, really representatives of the school just mentioned, using methods that got into the American air first from Ticknor; let Channing suggest the pulpit,—Channing, who raised religion from the gloom of dogma and orthodoxy into a life of angelic joy; what can one say to describe Emerson in a breath,—the teacher to us all of fit aspiration, right thinking, noble expression, the highest virtue and truest religion, and who lived, as Dr. Heber Newton has lately told, the most perfect of lives as a man; Hawthorne, showing the world sick with its yearning for moral redemption that even a disgraced, lone, and friendless woman can by a subsequent life of unreserved confession, purity, and love to her neighbors turn a horrible brand of guilt into a jewel more precious and brilliant than

diamond,—how his consummate achievement rebukes the sixty years' dilatoriness of Goethe over his unfinished Faust; and divine poets, Whittier, Longfellow, Lowell, and Holmes,—the last two conspicuous in letters, Lowell being in my judgment the greatest American man of letters; I have said nothing of the statesmen and orators, beginning with Fisher Ames and John Adams,—and there are others in every high round of the intellectual life known all over the land whose names I must omit.

In this enumeration I have intentionally looked somewhat forward; for what is in one particular generation you cannot find out until its effects are plain in the next. I want to accentuate it that Webster belonged to a society which had made some of the extraordinary figures whose names are given, and was making the rest of them. When the view just suggested has been taken, and if in comparing New England with any other community—even with Athens, Florence, England, or Germany, in their best eras—periods of time be equalized and differences of population be properly allowed for, it will appear that the conditions moulding Webster were more energetic in productivity than can be found elsewhere. And if, in this comparison, the relative general condition of the masses in each community be duly taken into the account, the result will be far more favorable to New England; for a high level of the masses is a much better proof of a fecund culture than merely many striking individual instances.

Thus we bring out the point that Webster was born, grew up, and lived in a nursery prolific in men and women of extraordinary powers and virtues. How insignificant is the muster-roll of any other part of our country! I compare that of the south because I am familiar with it, and one can with better manners disparage his own section than another. The ante-bellum southern treasures of art and literature except speeches, political and forensic, can be counted on the fingers of one hand without taking them all. The poetry of Poe, a few essays of Legaré, especially that on Demosthenes, Calhoun's Dissertation on Government, and Toombs's Tremont Temple lecture, are all that are pre-eminent; and some of the historians of our literature insist that Poe was southern only in his prejudices, and not in his making. To turn away from authors, how few can be found to compare in education, polish, and literary or scientific accomplishments with average New Englanders of their several professions or occupations. Toombs, in the diamond-like brilliance of his extempore effusion in talks or speeches, is as

solitary in the south as Catullus, the greatest of the spontaneous poets of his nation, was in the Rome of his day.

Webster absorbed and absorbed, assimilated and assimilated, all the better elements of this marvellous New England culture, which I am painfully conscious of having most insufficiently described above, until at last he mounted its eminences in his profession, in the politics of democracy, æsthetic taste, and especially statesmanly eloquence. So assured was his stand upon these eminences that all the wisest and most refined of the section spontaneously and involuntarily did him obeisance, recognizing in him their ideal of wisdom and counsel befittingly expressed. We can stop to give only two examples. Edward Everett is the one American master of grand rhetoric. He heard the reply to Hayne, and, as he says, he could not but be reminded throughout of Demosthenes' making the unrivalled crown oration. Choate, profoundly versed in the law, the incomparable forensic advocate and popular speaker, daily flying higher with inspiration drawn from Demosthenes and Cicero—he poured out his admiration in many utterances that have already become classic. Webster was made in and by New England, and not for herself alone. The toast, "Daniel Webster,—the gift of New England to his country, his whole country, and nothing but his country," to which he responded December 22, 1843, tells but the truth. No American other than a New Englander ever had what one may term such a greatness breeding environment as he. And passing in review all the famous children of those famous six States, whether they spent their lives at home as Choate, or developed elsewhere as Henry Ward Beecher, it is my decided opinion that Daniel Webster as fruit and example of her culture is New England's greatest glory.

There remain now but a few prominences of Webster for me to touch upon.

His speech of March 7, 1850, was fiercely denounced by the root-and-branch abolitionists. Horace Mann called him a fallen Lucifer. Sumner charged him with apostasy. Giddings said he had struck "a blow against freedom and the constitutional rights of the free States which no southern arm could have given." Theodore Parker could think of no comparable deed of any other New Englander except the treachery of Benedict Arnold. Wittier condemned him to everlasting obloquy in a lofty lyric, which from its very title of one word throughout was reprobation more stinging than the

world-known lampoon of Catullus against Julius Cæsar. The effect of this tempest has not yet all died out; and in many quarters of the north Webster is still regarded as a renegade. His defenders, however, multiply and become more earnest and strong. Let us consider this speech with the serenity and riper judgment which should mark the historical writer of to-day.

First and foremost let us grasp the wide difference of the situation from that at the beginning of 1833. Then, the question was only remotely a pro-slavery or southern one. A southern president, the most popular American, of great firmness of purpose and extraordinary courage, had taken a decided stand against the movement of one southern State hostile to the general government,—a stand the more decided because he cordially hated Calhoun, who was leading the movement. The southern leaders outside of that State did not approve of nullification; most of them believing it was an absurdity for a State to contend she could stay in the union and at the same time rightfully refuse to perform a condition of that union. It seemed that no southern State except Virginia would stand by South Carolina in the event of a collision between her and the United States. We can well understand that Webster could then see no danger to the cause he loved above all others, that is, the union, in uncompromisingly demanding that the revenue be collected, and with force if necessary.

Nullification was palpably unjustifiable, even under the doctrine prevalent in the south. We have explained how Calhoun's extreme desire for peaceable remedies only, led him to champion this illogical measure. The theory of State sovereignty demanded that, instead of the nullification ordinance, South Carolina pass an ordinance of secession, conditioned to commence its operation at a stated time if the objectionable duties had not been repealed. The situation in 1833 was that all the north and nearly all of the south were arrayed under a southern leader against only one southern State, making a demand which was plainly untenable in either one of the two differing schools of constitutional construction.

But the situation, in 1850, was a south solidly united, not upon such an obvious heresy as nullification, but aroused as one man to protect the very underpinning of its social structure. It was standing confidently upon the doctrine of State sovereignty, which, as the historical records all showed,

was the creed of the generation, both north and south, that made the constitution. As we have already told, Calhoun in 1833 probably convinced Webster that the States were sovereign. That did not mean that the force-bill was wrong; it meant only that if South Carolina chose, she could rightfully secede. And we may say that this great argument of Calhoun, demolishing as it does the premises of Webster, was really irrelevant, for it did not support his own proposition. Now in 1850, as Webster saw it, the south was justified by the constitution, however foolish might be her policy, and he was too conscientious to oppose what he believed right and just. In addition to this claim by the south of State sovereignty as abstractly right, his conscience told him that some of her practical demands were just. It had been provided not only that all of Texas south of 36° 30' be admitted with slavery, but further that four other States be made out of the same territory. Although Webster was a free-soiler from first to last, his conscience told him peremptorily that the only honest course of congress as to the provision mentioned, which was really a solemn contract with Texas, was to perform the contract in good faith. This advice, of course, aroused the ire of the abolitionists, who had united upon the position that no other slave State should ever be admitted into the union. And he boldly said that the south was right in her complaint that there was disinclination both among individuals and public authorities at the north to execute the fugitive slave law. Meditate these serious words:

“I desire to call the attention of all sober-minded men at the north, of all conscientious men, of all men who are not carried away by some fanatical idea or some false impression, to their constitutional obligations. I put it to all the sober and sound minds at the north as a question of morals and a question of conscience, What right have they, in their legislative capacity or any other capacity, to endeavor to get round this constitution, or to embarrass the free exercise of the rights secured by the constitution to the persons whose slaves escape from them? None at all; none at all. Neither in the forum of conscience, nor before the face of the constitution, are they, in my opinion, justified in such an attempt.”

I must believe that as time rolls on the outcry against this position of Webster's, so unshakably founded in conscience and reason as the position

is, must not only cease, but turn to words of praise and commendation. The northern fanatics who tried to abolish slavery by repudiating such solemn contracts as the resolution of March 1, 1845, respecting the admission of Texas, and the fugitive slave restoration clause of the federal constitution, *while purposing to stay in the union*, were just as morally wrong as were the southern fanatics who proposed to stay in the union and enjoy its benefits and not pay the taxes necessary for its maintenance.

One other passage of this speech has been strongly attacked. Webster opposed applying the Wilmot proviso to California and New Mexico, where, as he said, “the law of nature, of physical geography, the law of the formation of the earth ... settles forever with a strength beyond all terms of human enactment, that slavery cannot exist.” To apply the proviso would be, as he added, to “take pains uselessly to reaffirm an ordinance of nature,” and “to re-enact the will of God;” and its insertion in a Territorial government bill would be “for the mere purpose of a taunt or reproach.” Mr. Lodge, reprehending most severely, confidently asserts that though these Territories were not suited to slave agriculture, yet that their many and rich mines could have been profitably worked by slaves.^[80] He stresses the fact that certain slave owners declared that they would, if they could, so work these mines. This distinguished author is to be reminded of how cheaply Seius could replace any one of his slaves that he worked to death in Ilva’s mines. Let him re-read the *Captivi* of Plautus,—not to mention many other ancient records just as instructive,—and realize that in that time it was not only one race that furnished slaves, but that every free human being was in lifelong danger of falling to a master. The prisoners taken in the incessant wars kept the slave markets glutted. A few months’ work of one of his slaves would bring the master enough to pay the purchase money and leave a considerable sum to his credit with the banker. The Spaniards worked their mines with Indians to be had for the catching in near-by places. And Mr. Lodge mentions mining with the labor of criminals and serfs. In all the instances that he has in mind the worker can be had for his keep or a little more than that. But to have mined with the slaves of the south,—that was widely different. There was no way to get such a slave except to rear or hire or buy him in a protected market. Does Mr. Lodge really believe that Seius would have permitted his eight hundred slaves to sicken in the mines of Ilva if each one had been worth at least \$1,000 in the market? Really the leading

industry of the south was slave rearing. The profit was in keeping the slaves healthy and rapidly multiplying. This could be done at little expense in agriculture, where even the light workers were made to support themselves. But had a planter gone into a mining section, where he could get no land, for corn to feed his slaves and stock, and for cotton to bring him money, he would have found no margin of profit whatever in mining. I was reared in the gold-bearing district of Georgia. I can remember old Mr. John Wynne, a wealthy cotton planter living in Oglethorpe county, some six or seven miles from my father's, who, when—to use plantation parlance—he had laid by his crop at the middle or end of July, would work his gold mine until cotton-picking became brisk about the middle of September. He made money out of his gold mine, without injuring his other far more valuable mine, that is, the natural increase of his negroes. And I heard of other such mine workers. But you could not have tempted one of these shrewd business men to settle with his slaves outside of a cotton-making district in order to mine. Had either Mr. Clingman or Mr. Mason—mentioned by Mr. Lodge—made the trial, he would have soon returned to his old neighborhood a sadder and wiser man.

The negro's work as a slave in the coal and iron mines of the south never commenced until after the thirteenth amendment freed him. Since then he has done much cruelly hard work as *servus poenae*—a slave of punishment—in these mines, for convict lessees, having no other interest in him than to get all the labor possible during his term.

So it is clear that Webster, in contending that the conditions in these Territories were prohibitive of slavery was as statesmanly and perspicacious as he was generally in other matters.

His detractors charged that the entire speech was a bid for the support of the south in his eager struggle for the presidency. That he passionately longed for the chair was manifest. But his was not the sordid ambition of the professional place-hunter. He had a heaven-reaching aspiration to show America what a president should be in those angry times. He must have been conscious that he was the only man of gifts to do the great deed. What an appropriate climax that would have been for the invincible defender of the union, who, when replying to Hayne twenty years before, had outsoared Pindar in eulogizing South Carolina leading the south, and Massachusetts

leading the north, in the same breath; and who, neither from prepossession in favor of his native community or resentment because of attack upon it by those of the other section, had ever been removed out of brotherly love for all his countrymen alike. If you can do an all-important thing for your fellows which you believe no one else can do, and are without ambition for opportunity, are you not a poor grovelling creature? Webster, knowing that secession could not be peaceable, and seeing it become more and more probable, racked with fears for the union, and aghast at the menace of fraternal bloodshed, like Calhoun, he cheated himself with a futile remedy. We have told you of Calhoun's proposal to disarm the combatants. In his amiability Webster believed with his whole soul that he could as president make his countrymen love one another as he himself loved them, and that he could pour upon the waters now beginning to rage oil enough to save the ship of union through the tempest soon to be at its height. It was an aspiration high and holy, deserving of eternal honor from all America. You cannot read this great speech of March 7 aright if you do not discern that Webster was seriously alarmed. When you see that a dear one's malady is fatal, you will not confess it to others,—not even to yourself. His excited exclamations, "No, sir! no, sir! There will be no secession! Gentlemen are not serious when they talk of secession," cannot deceive a reader whose wont it has been to look into his own heart. Webster did not see the future with the superhuman prevision of Calhoun; but he had observed the course of things in that stormy session. Is it to be believed that he had overlooked the tremendous significance of Toombs's speech of December 13, and of the wild plaudits it brought from the southern members? And try to conceive what must have been the effect upon him of that most solemn and the saddest great speech in all oratory of Calhoun just three days before. Read the 7th of March speech by its circumstances and it is revealed to you, as by a flashlight, that Webster had peeped behind the curtain which he had prayed should never rise in his lifetime. Horror-struck as he was, he would not despair of his country,—he would not believe that the brothers' union was about to turn into a brothers' war. Oh, let nobody dishonor his better self by seeing in this glorious speech, which our best and most lovable have placed in their hearts beside Washington's farewell address, the bid of a turncoat. Rather let us learn to understand its supreme statesmanly reach; its impartiality towards and just rebuke of the orator's own section and its merited castigation of the other courageously given, while affection for both

is kept uppermost; its grand dignity, moral height, and pre-eminent patriotism. Let us also learn properly to estimate the disfavor with which he regarded ever afterwards during the rest of his life the active anti-slavery men of the north, whom he could not understand to be other than bringers of the unspeakable calamity he would avert. And let us give him his due commiseration for missing the nomination, and realizing that the hopes of saving his country which he had cherished so fondly were all, all shattered. When we do our full duty to him we will, northerners and southerners alike, agree that Whittier's palinode ought to have gone full circle before it paused.

What is Webster's highest and best fame? In answer we think at once of the reply to Hayne, its loftiness throughout, its eagle ascensions here and there, and most of all the organ melodies at the grand close, beside which the famous apostrophe of Longfellow is harsh overstrain. The next moment we feel he is higher in his profound love for his whole country than in his unequalled eloquence. He and Lincoln were the supereminent Americans who could never, never forget that the people of the other section were their own full-blood brothers and sisters. They are the supreme exponents of that American brotherhood, more deeply founded and more lasting than either one of the nationalizations which we have explained, out of which a continental is first, and then a world-union to come. To save our union was also to do the better deed of saving that brotherhood. For this each strove in his own way. I believe that the people of the world-union will pair them in Walhalla, and set them above all other heroes, crowning Webster as the monarch of speech which prepared millions with faith and fortitude for the crisis, and crowning Lincoln the monarch of counsels and acts in the crisis. It will be understood that neither was called away before his mission was finished. The greatest work of each was example of the love with which we should all love one another; and that was complete.

CHAPTER IX

“UNCLE TOM’S CABIN”

THE misrepresentations in “Uncle Tom’s Cabin” of the character of the negro and his usual treatment in southern slavery have been taken as true by the best-informed and most unprejudiced everywhere outside of the south. The quotations which I make above from Prof. Barrett Wendell’s *bahnbrechend* work on American literature^[81] show a rare and exemplary freedom from sectional bias. But he is a most convincing witness to the statement with which I begin this chapter, as I shall now show by two other excerpts from the same book, making it appear that even Professor Wendell has accepted without question the misrepresentations mentioned. In these excerpts I italicize the important statements, and I follow each with a contradictory one of my own. I invite close attention to what Professor Wendell says on one side and I on the other, for they make up issues of fact that must be rightly settled before the historical merit of the work which is the subject of this chapter can be accurately judged.

This is the first excerpt:

“Written carelessly, and full of crudities, ‘Uncle Tom’s Cabin,’ even after forty-eight years, remains a remarkable piece of fiction. The truth is that almost unawares Mrs. Stowe had in her the stuff of which good novelists are made. Her plot, to be sure, is conventional and rambling; but her characters, even though little studied in detail, have a pervasive vitality which no study can achieve; *you unhesitatingly accept them as real. Her descriptive power, meanwhile, was such as to make equally convincing the backgrounds in which her action and her characters move. What is more, these backgrounds, most of which she knew from personal experience, are probably so faithful to actual nature that the local sentiment aroused as you read them may generally be accepted as true.*”^[82]

I say as to the characters in the novel that the negroes are monstrous distortions, being drawn in the main with the leading peculiarities of whites and without those of negroes; and that as to her most representative southern whites Mrs. Stowe is utterly untrue to fact by making them all anti-slavery. I say as to the “backgrounds,” that she knew as little of them as she did of the negroes. I expect to demonstrate that the “personal experience” claimed for her by Professor Wendell was scanty and inadequate in the extreme.

I now give the second and last excerpt: “She [Mrs. Stowe] differed from most abolitionists *in having observed on the spot all the tragic evils of slavery.*”^[83]

I do not dispute that her opportunity of learning southern slavery, small as it was, was very far superior to that of the other prominent abolitionists except Seward, who had taught school in the black belt of Georgia.^[84] I maintain that she knew but little of southern slavery, and they less; that what both they and she conscientiously and most confidently believed to be their knowledge of this slavery, the slave, and of the slaveholder, was but a prodigious mass of delusion and prejudice.

I shall show, I think, that, instead of observing, she merely fancied and imagined, and that, to say the least, it is very misleading to allege that this fancying and imagining of hers was done “on the spot.”

By the words, “all the tragic evils of slavery,” Professor Wendell evidently means that the evils of southern slavery to the slave were both very many and very great. I shall show, I believe, that the condition of the average negro in southern slavery was far better than it was in Africa whence he came, and far better than it is now since he has been freed. There are occasionally incident to every human condition—even to the relation of parent and child—some tragic evils of its own. In the native home of the negro in West Africa all the women and nearly all the men are slaves of brutally cruel savages, without any protection of law whatever. The social organism is in the very lowest stage; and there is complete inability to evolve into a better one as the stationariness of ages proves. In the new south, certain causes which I have described at length in the last two chapters of this book have, ever since emancipation, been steadily and with

acceleration depressing the average negro; and the rise of the few who have managed to acquire some property, or to get a good industrial education, only brings out more conspicuously the misery and wretchedness of the mass. It is correct to say that there was a vast multitude of tragic evils to the negroes in West Africa; and it is also correct to say that there is now the same to them in the south; but it is not correct to say that the tragic evils of southern slavery to the slave were frequent or general. The truth as to southern slavery ought to be known everywhere, which is, that it raised the negro very greatly in condition, and, now that he has been taken out of it, his progress has been arrested, and he is relapsing.

The great proposition of Mrs. Stowe and of the root-and-branch abolitionists was that slavery in the south was such a flagrant and atrocious wrong to the negro, that every human being was commanded by conscience to do everything possible to help him if he should try to escape from his master. Combating this proposition, without any concession whatever, I think it well that we try at the outset to ascertain how southern slavery affected the negro, whether cruelly or beneficially. To do this, his condition in his native land, his condition while a slave in America, and, lastly, his condition after his emancipation, must be compared. I beg my reader to follow me attentively as I now review and contrast these three conditions. First, as to his condition in Africa. Here is what Toombs said of him to a Boston audience, January 24, 1856:

“The monuments of the ancient Egyptians carry him back to the morning of time—older than the pyramids; they furnish the evidence both of his national identity and his social degradation before history began. We first behold him a slave in foreign lands; we then find the great body of his race slaves in their native land; and after thirty centuries, illuminated by both ancient and modern civilization, have passed over him, we still find him a slave of savage masters, as incapable as himself of even attempting a single step in civilization—we find him there still, without government or laws of protection, without letters or arts of industry, without religion, or even the aspirations which would raise him to the rank of an idolater; and in his lowest type, his almost only mark of humanity is, that he walks erect in the image of the Creator. Annihilate his race to-day, and

you will find no trace of his existence within half a score of years; and he would not leave behind him a single discovery, invention, or thought worthy of remembrance by the human family.”[85]

If my reader deems Toombs’s picture overdrawn let him consult those parts of the recent work of a most diligent and conscientious investigator describing the negroes of West Africa, and note what is there told of heathen practices still surviving,—slavery of women to their polygamic husbands, pitiless destruction of useless members of the family, robbery, murder, cannibalism, the utter want of chastity.[86] We quote this as to slavery, which is especially important here:

“Slavery, having existed from time immemorial, is bound up with the whole social and economic organization of West African society. There are, broadly speaking, three kinds of slaves: those captured in war, those purchased from outside the tribe,—usually from the interior,—and the native-born slaves. *All alike are mere chattels, and by law are absolutely subject to the master’s will without redress.* But in practice a difference is made, for obvious reasons, between native-born slaves and captives taken from hostile tribes. *The latter are numerous, and the severest forms of labor fall to their lot. They are treated with constant neglect, and cruelly punished on the slightest provocation. Their lives are at no time secure; they serve as victims for the sacrifice; when sick they are driven into the jungle; in times of scarcity they starve.*”[87]

The master has the power of life and death over all slaves.[88]

The same author adds: “*The pawning of persons for debt is exceedingly common. If the debt is never paid in full, the pawn and his descendants become slaves in perpetuity.*”[89]

Surely the reader who has attended to these details which I have given from Mr. Tillinghast will admit that the southern master transferred the African into a condition far better than any he could find at home. In the south two agencies gave him beneficent favor to which he and his fathers had always been strangers. The law of the land protected his life and shielded him from

cruelty; and his high market value made it the interest of his American master not to overwork or under- feed and clothe him. And he was introduced into the first stage of monogamic life, which he developed steadily and rapidly until he was freed. In this he was travelling the only true road up from barbarism. If he could have but stayed in it until, after some generations—perhaps centuries—chaste wives and mothers had been evolved, he would have stood firmly on the threshold of permanent civilization and improvement.

Whatever evil of southern slavery to the negro my readers, prompted by the root-and-branch abolitionists, may suggest, they will find on reflection that it would have been far greater to him and more frequent had he remained in Africa. Separation of members of the family has been repeatedly emphasized as a most horrible evil of slavery in the south. Such separation was incalculably more cruel and frequent in West Africa than it ever was among the negro slaves in America. And how have the root-and-branch abolitionists mended matters? What do we see in the new south, now that slavery, the great rupturer of family circles, is no more, and a master no longer can part parent and child, or husband and wife? Before the end of the brothers' war there had not been a single separation of a family among my father's slaves. At much expense and inconvenience he had bought the husband of one and the wife of another in order to keep each one of these two pairs united. In 1866, Bob, a boy of sixteen, who, because of his obedience and merry-making gifts, had always been a greatly indulged pet, signalized his new-found freedom by stealing from the house of one of our neighbors some articles of considerable value. He fled from justice, and, never seeing his parents or his brothers and sisters again, died among strangers. In 1868, Lewis abandoned his wife Esther and their young child, and went to a distant town. Some ten years afterwards, Bill, a brother of Bob, and several years younger, convicted of an unmentionable crime, received a ten years' chain-gang sentence. Not long before this the body of one of his two wives who was at the time out of his favor was found in a well. Reputable whites living near were convinced that he had murdered her. If that be true, it should count as a separation. While he was serving out his sentence his remaining wife married again, and this should be set down also as a separation. Bob, Lewis, Esther, and Bill were slaves of my father. He did not own twenty in all. This example shows how, as to the same

negroes, southern slavery operated to prevent separation of families, and how freedom has operated to encourage and stimulate it. It is not an exceptional example. My maternal grandfather and a maternal aunt owned each many more slaves than my father did. Some of my father's near neighbors had slaves in considerable number. In all of these slaves, while I knew them, there never was a separation of a family except by death or the voluntary act of parties to a marriage? But when they were freed in 1865 separation at once became rife, and it has always been active. What I have just told is fairly representative of the new south throughout the cotton States.

There were now and then sales made of slaves which sundered man and wife, and parent and child; but such were extremely few, and their proportion was steadily decreasing under two potent influences. Restraint of them by the law had commenced and was growing. But the stronger influence was custom and public opinion. Before approaching sales at public outcry by sheriffs or representatives of a deceased, and also before private sales, the slaves to be sold were given opportunity to find their new masters. There was generally a neighbor who owned husband, wife, parents, or children, or wanted a cook, washerwoman, seamstress, boy to make a carpenter, striker, or blacksmith of, somebody careful with stock, etc., and the upshot would be that the man selected by the slave had got him. The seller had natural feelings. His wife and all of his children would do their utmost to get such new masters as the negroes preferred. I shall always cherish in memory the affectionate regard which the mother of the household and all the family habitually showed to their slaves. As I write, a sweet reminiscence comes of how the children would always clamor and mutiny against the most merited punishment of their nurse by father or overseer. There is no doubt that the slave steadily won larger place in the domestic affections, and that his treatment by each generation of masters was more kind and humane. And as a part of this amelioration the percentage of forced separation of slave families was all the while becoming less.

Let us devote a moment to the negro trader, as he was called, and his slave-pens, which were the subjects of much and heated invective. The first suggestion in order here is that there were such in West Africa, far more frequent and far exceeding in cruelty any ever known in the south. To take

the African away from the latter and turn him over to the former was great kindness to him. I remind my readers, in the next place, that the factors constantly minimizing separation of slaves from other members of the family—law, public opinion becoming more sensitive, custom becoming more merciful, and the sway of the domestic affections stronger—were *pari passu* humanizing every incident of the commerce in slaves as property. Lastly, the negro trader and the pen, by reason of the small number of the slaves to whom they caused real suffering, were mercy and prosperous condition itself beside the convict gangs and pens which emancipation has put in their place, as will come out more clearly in a short while.

His use of the lash was a dire accusation of the master. The reader thinks at once of the relevant words in a famous passage so often quoted from one of President Lincoln's messages: "If this struggle is to be prolonged till ... every drop of blood drawn by the lash shall be paid by another drawn with the sword." This was said March 4, 1865, a month and five days only before General Lee's surrender, and when all the great battles of the brothers' war had been fought,—a war by far the most sanguinary in the world's history. Blood did sometimes follow the blow of the lash, but not often. The overseer who could not correct without breaking the skin always lost his place. When the statement of Mr. Lincoln just commented on is compared with the actual fact, it appears to be one of the most extravagant hyperboles ever uttered.

Before I have my readers to look at the actual facts I want to say a preliminary word. The parent was enjoined by Solomon not to spare the rod. The rod was permitted to the master of the apprentice, the school-teacher, the drill officer, and others. It was often used with great severity. As we see from the Decameron husbands were wont to correct their wives by beating them with sticks. Whipping on the bare back was a common execution of the judgment of a criminal court. Our insubordinate convicts are strapped. The usual punishment of a slave's disobedience was to whip him. A switch was not generally used, because by reason of his thick and tough skin and lower nervous development—to use a common expression—it would not hurt him. It was a familiar thing to me in my childhood to hear some negro tell of the use of a switch on him by women or feeble men, how the blows could scarcely be felt, and yet with what outcry and clamor he pretended that each one gave him great pain. The cowhide, but far more

frequently the whip, took the place of the switch. The former was more and more discredited, because it could seldom be laid on hard enough without cutting the skin. The whip had a flat lash at the end, with which, as the strap or paddle now used on our convicts, a stinging blow could be hit that would not draw blood.

An ordinary correction of a negro did not cause him as much pain as your child, with his far superior sensitiveness, receives when you give him the rod. Large and heavy as the overseer's whip looked, the negro, with his high degree of insensibility to physical pain inherited from his African ancestors, who for a hundred generations or more had bestowed upon one another all kinds of corporal torture, cared far less for it than the abolitionist who insisted on making him merely a black white man, could ever understand. How little of both mental and corporal suffering the lash causes the average negro is strikingly shown by the fact that ever since his emancipation, when he is detected in a serious offence, he is prone to propose that he be whipped instead of being carried to court. If his offer is accepted he strips off his clothes with alacrity, exclaims the conventional "O, Lordy!" under every fall of the whip; and when the contract number of lashes has been given he goes away with the look and air of one who has just learned that he has drawn a lottery prize of thousands; and his nearest and dearest, his wife and children, all his sweethearts, congratulate him cordially, and the entire negro community rate him as rarely fortunate. This is enough here of the lash; but a word or two more will be appropriate when we give the chain-gang attention.

"Run, nigger, run, patroller get you."

The riotous merriment of this air can be fully appreciated only by one who has heard Cuffee sing it at the quarters while picking his banjo. It completely confutes the charge often made that the patrol law was a cruel one. To the negro, the execution of that law was more of fun and frolic than punishment. Let this air, and all the others to which the slaves used to dance, be meditated by those, if there are such, who incline to believe that Professor DuBois has really detected, as he seriously contends, in the negro melodies of the old south deep sorrow over slavery. If miserable conditions give character to musical expression, the songs, if any, that now come forth spontaneously from the mass of southern negroes—that is, from those of

the lower class, which class will be described later herein—ought to be sadder than the tears of Simonides.

My reader who has his memory stored with the raw-head and bloody bones fiction of abolitionists who had never set foot on an inch of slave territory, probably thinks of bloodhounds, and wonders if I will be frank enough to mention them. He has been made to believe that runaway slaves often had the flesh torn from their bones by these dogs. I witnessed several chases of runaways, and in every one, when the negro was overtaken by the dogs, he was in a tree far above their reach. Think about it, and bring it home to yourself. Put yourself in the runaway's place, you would surely understand as well as a common house cat does how to avoid pursuing dogs. Negro dogs, as they were called, were bred to be far more slow than fox dogs. The tricks of the runaway would put the latter at fault so often that they could hardly ever catch him. Further, the packs of negro dogs were usually too small to overpower a stout negro. He was often armed with a scythe-blade for use if overtaken where he could not find a tree. When he could keep ahead no longer he preferred taking refuge to fighting with the dogs. He knew he could kill or disable only the few that would rush in recklessly, and that the others would stay too far from him to be hurt and yet keep him at bay. He was now going to be caught, and he would think it better not to provoke the ire of the owners by killing or injuring their dogs.

The negro hunted the 'possum and 'coon by night and the hare—the rabbit, as everybody called it—on Sundays, half-holidays, and Christmas, either with his young master or without him, and always with the dogs; which he thus learned to control. A negro woman cooked the corn-bread and pot-liquor, with which they were fed by her or some other slave. They were always waiting near when the slaves ate by day in the fields or at all hours of night in their cabins, and many a bit was thrown to them. Usually there was the greatest friendship between the dogs on the plantation, those intended for chasing runaways included, and the negroes. It was great entertainment for a negro, at the command of his master, to give the young negro dogs a race, as it was called. These races were frequent, and they were the entire training of the dogs for their business. A hunting dog when lost will track his master. And many a runaway was caught by dogs which he was in the habit of feeding and hunting with. The average negro of those days, prowling so much at night as he did, necessarily became a most expert

dog-tamer. How often I have been diverted with this sight! A strange negro, coming on some errand, intrepidly opens the front gate and enters the yard of a dwelling. A savage dog dashes forward. Just as the dog couches near for his spring, the negro, by a very quick movement, takes off his hat and extends it to the dog. The latter turns his eyes away from the negro, looks at the old, soiled wool hat, smells it, and then retires, nonplussed.

As a general rule a negro was safe from the bite of dogs. Running away was not frequent. The almost insuperable difficulty of final escape from the dogs prevented it. And it was in practice a most mild means of prevention. I suppose that I knew and heard of the catching of some twenty odd slaves in the contiguous parts of Oglethorpe, Wilkes, Taliaferro, and Greene counties, which constituted the locality with which I was familiar, and in not a single case was one injured by the bloodhounds. The dogs that are now turned loose after our convicts are of far more savage temper than were the negro dogs of the old south; and consequently the human game, when come up with, is more prompt to go up a tree than was the old slave.

There was much less lack of food and raiment among the slaves than among the class known as the white trash. It was considered a business blunder not to keep them supplied always with more food than they wanted. They were in better physical condition than the average white laborer now shows.

And they were not worked hard. Even in the longest days of the year, when the battle with the grass was fiercest, at night the quarters were resonant with mirth, song, and dancing as soon as the mules had been watered, stabled, and fed.

The foregoing is a report, from my observation on the spot, of “all the tragic evils of slavery” to the negro in the south. I have been at pains to make it as true as can be. I purpose to follow it now with a like report of all the gladsome blessings to him of his freedom.

His true and fast friends, the abolitionists, equalized him *per saltum* to his master as a voter and office-holder. This single measure was sure to make deadly enemies of white and black in the south, and to bring a war of races in which the superior one was bound to conquer and become absolute. This war did come, and was fought out. Profound peace has reigned for some

years, and the negroes now contentedly stay away from the polls, and manifest no aspiration whatever for office and place.

His same friends gave the ex-slave equality with his old master under the criminal law. He had this in slavery only when charged with a capital offence; and if he was charged with a graver one of the non-capital offences, such as breaking and entering a dwelling, stealing something of considerable value, he was brought before a statutory court of justices of the peace, and if upon his summary trial he was convicted, his punishment was usually a short term in jail, the sheriff to give him so many lashes each day until he had received the full number adjudged in his sentence. I never heard of one that was seriously injured by this kind of punishment. It never gave him any permanent mental anguish. His conscience approved whipping as the most fit punishment for every offence. The crimes of negroes mentioned above in this paragraph were very infrequent. Their many peccadillos were in practice wholly ignored by the law, and given over to private and domestic jurisdiction. Cuffee would sometimes indulge a sudden craving for fresh meat by appropriating a shoat or grown lamb, or he would gratify a watering mouth by stealthy invasion of melon patches or sweet potato patches and banks. And he was prone to other small larcenies. If caught,—which was very far from always happening,—he was whipped; and that was the last of it. Now he must replace the bounty of his master which sheltered, clothed, and fed him comfortably all his life by living from hand to mouth. His forecast utterly undeveloped, and more and more losing the work habit, there is often but one way for him to avoid starving or freezing, and that is to get the necessities of life by various acts which are crimes in the law. It is but a scanty supply that he thus manages to get. His year is nearly always, from beginning to end, but an alternation of short feasts upon the cheapest fare, and prolonged fasts. Yet in the eye of the stern and severe law how many gross offences does he commit by doing only the things which, if he did not do, he could not keep soul and body together. And so he is brought before every court of any criminal jurisdiction, and when convicted, as he generally is, for he is nearly always guilty,—not in conscience, but guilty under the law which his emancipators have put him under,—often he cannot find a friend to pay his fine, and he must work it out in the chain-gang. The city has its chain-gang, the county has its chain-gang, and the State works or farms out its convicts. The percentage of

whites among these convicts is very small. Often when you encounter a gang at work you cannot find a single white person in it. These negro convicts are many, many. As fast as one's time expires his place is filled by another. Disease, decay of energy from irregular food supply, growing habits of idleness, and other things in the train, bring forth tramps more plentifully, and from these the chain-gangs are more and more largely recruited. These slaves of punishment work under the eyes of guards furnished with the best of small-arms loaded to kill. The most of them work in shackles. If they do not work as their superintendents think they ought, they are strapped. I have seen them working in the rain, as I never saw required of slaves. At night they are put to sleep in a crowded log-pen, all of them chained together, the chain being made fast to each bunk. The guards are practised marksmen, known to be men who will promptly and resolutely "do their duty." This hell-like life constantly keeps each convict watching for opportunity to make a dash for liberty. If the guards have anything like fair shots when he starts, one more unmarked and soon forgotten grave is dug and filled in the paupers' burial ground, and that is the earthly end of this poor derelict of the human race. Suppose he gets safely away from the guard. In a few minutes the unleashed dogs are yelping on his track. In the old days even the negro dogs were fed and tended by slaves, and almost every dog in the land seemed to love negroes. But these bloodhounds in the convict camps have been bred into a deadly hatred of every negro. Escaping Cuffee is usually caught. Then more of the paddle, heavier shackles, chains at night stronger and more taut, and the bosses harder to satisfy as he works under greater hindrances—these make his lot more hell-like than it was before.

It is a melancholy proof of the insufficient dietary and bad hygiene of the common negroes that these convicts fatten in spite of their cruel hardships.

The long-term convicts, farmed out to coal and other mine owners and various manufacturers, and private employers, I know but little of from observation. But what I hear makes me believe that their condition is worse than that of those just described. This is to be expected, for two reasons. First, they are worked for profit by persons whose only interest is to get the largest possible product out of their labor. The labor exacted by the owner, bear in mind, would not be severe enough either to impair the market value or check vigorous reproduction of his slaves. Second, the places where

these convicts are worked are more or less retired, and thus the employer escapes scrutiny nearly all the year. Think of a negro who, receiving a twenty years' sentence for burglariously stealing a ham when he was hungry, is put to work in the coal mine! Who ever hears of him afterwards? He is soon forgotten by his wife, who takes another husband, and by his children either skulking here and there to shun the officer, or toiling in a chain-gang. Here is indeed a bitter slavery—bitterer by far than any West Africa ever knew. There the slave does not labor underground and out of the sun so dear to him. His manumission comes mercifully in many ways, long before the expiration of twenty years—the sacrifice may need a victim; he may starve; he may fall sick and be cast out in the bush. But the mine slave—the mine boss will not whip him hard enough to give him even short rest from his work, work, work; he shall always have enough of raiment, food, and sleep to keep him able to work, work, work; when he gets very sick the mine doctor will patch him up and send him back to his work, work, work; he will work, work, work out his twenty years in this hell hole. Miss Landon in her immortal invective against child labor exclaims:

“Good God! to think upon a child
That has no childish days,
No careless play, no frolics wild,
No words of prayer and praise!”

This factory child that never knew any of the proper joys of a child is without either sweet memory or unavailing wish. But the mine slave, the most of whose former life was passed in the open air, how he pines for the splendor of his loved sun by day; how in his bunk he recalls his rounds by night when the Seven Stars, the Ell and Yard and Job's Coffin were his clock and the North Star his compass. Each part of the revolving year whispers to him when he is at work or dreaming. Christmas suggests the jug with the corn-cob stopper, the 'possum cooked brown, the yams exuding their sugary juice, the banjo picker and his song, the fiddle playing a dancing tune, and the floor shaking under the thumping footfalls; the cold weather following suggests the 'possum and 'coon hunt; the early spring brings what he used to call the corn-planting birds and their lively calls; and on and on his thoughts go over mocking-bird, woodpecker, early peaches and apples, full orchards spared by frost, the watermelon, solitary and incomparable among all things for a negro to eat, his Sunday fishings and

rabbit hunts, his church and society meetings, this and that dusky love who fooled him into believing that he was dearer to her than husband or any other man, especially some yellow girl, his nonesuch, exceeding all other women as the watermelon excels all other produce of tree or vine,—on and on his thoughts go over what he can never have again. I need not say a word for the white victims of child labor, for their race is rousing for their rescue, and I know its power to achieve. But I do feel that it is my duty to put that friendless, forgotten, long-term negro convict in the minds of my southern readers. If he must be a convict, do not farm him out to mine operators or where he will be worked behind any screen. Put all our convicts, both felony and misdemeanor, upon the public roads until they need only a little working now and then, say I. There the convicts will not be worked for profit, nor in secret.

The total of the negroes suffering in southern slavery from all causes falls in amount far below that alone which has come upon him because he was stupidly subjected to the white man's criminal law, and not given reformatories and other belongings of the system which we are perfecting for juvenile offenders. The suffering in slavery was occasional only, and soon over. The present suffering of the negroes under the criminal law is constant, and is to be found rife in every locality. The aggregate of the felony and misdemeanor convicts of Georgia now at hard labor is about 4,500. The convicts sentenced by city and town police courts for short terms of days I cannot give with any approximate accuracy. I think it probable that the number of those convicted each year in the municipal courts is somewhat larger than that of those convicted in the State courts. By reason of a late wholesale reduction of felonies the number of long-term convicts does not increase,—it is at a standstill,—but the number of the misdemeanor and municipal convicts steadily increases. More than nine-tenths of those in each one of the three classes are negroes. The stench, filth, and discomfort of their nights and the hardship of their days, who can describe? How it moves my pity to see, as I often do, the convict toiling incessantly for long hours, impeded and tortured by his iron shackles, the paddle at hand, and a double-barrel or Winchester frowning over him, each to be used on occasion by somebody who cares nothing for and has no interest in him. Weary as the worker may be, a word from the boss gives new impetus to his pick or shovel. Here is the only place I have ever known

on American soil where one can find “poor, oppressed, bleeding Africa.” How different it was with the slave offender! It mattered not what was the charge against him, he had persons related to him both in interest and affection who would intercede powerfully at his call. Wherever he might be,—in the sheriff’s hands, or locked up by the overseer in the gin-house,—a messenger-service as secret and more sure than wireless telegraphy even if not as quick, was at his command; and some child, white or colored, or favorite servant would carry his entreaties to the Big House. And the justices, or ole master or the overseer, would be influenced by a word from ole miss, or the tears of young miss, or the importunity of young master. In the end Cuffee’s punishment would be made tolerable; and after it was over he would the next night at the cabin brag joyfully of the many friends he had and what great things they had done for him—the children of his master present and showing more gladness than himself.

Which of the two was the more humane and christian punitive system for the negro? Which of the two was the better for him? That of slavery, or that produced by the conditions which his professed friends put in place of slavery?

I assert it most solemnly that I never saw a negro slave worked in shackles and under a loaded firearm, neither by his master nor an overseer, nor by their command, nor by an officer of the law; and, further, that I never had information or report that such had been done.

When their emancipators led the negroes out of their cabins into their new life it was something like throwing our domestic animals into the forest and desert, where they, without formed habits of self-maintenance and without knowledge of the new environment, must live, if they can live, only in competition with their wild brothers and sisters knowing the environment and who are self-maintaining experts therein. That comparison serves somewhat. But this comes nearer: Suppose children between the ages of eight and twelve, who have never been taught to do anything for themselves, to be taken away from their parents, and settled among a people lately made bitterly hostile to the children, as the whites were made to the negroes by the effort of the emancipators to give political equality—nay, supremacy—to the latter. Those emancipated children must subsist themselves. How little they could earn by begging or work. They would

have to steal to live. Those that did not steal, and for whom no companion would steal, would perish. The philanthropists who founded this infantile colony would have outdone but by a very little those who thrust the reluctant negroes into freedom.

I ask my reader to add here mentally the full description which in my last two chapters I have given of the lower class of the negroes in the south—this description showing them to be ninety-five per cent of the whole, far below their average condition in American slavery, and steadily becoming worse.

I believe that in due time the people of the north will make these admissions:

1. Any and every evil of southern slavery to the negro was accidental, and not a necessary incident of the system, just as the occasional evils of marriage to the parties are not necessarily incidental to that institution.

2. As this slavery had improved and was still improving the negroes so prodigiously in every particular, and as their condition during the forty years following emancipation has been going uninterruptedly from bad to worse, until now the extinction of the great body is frightfully probable, as I shall show in my last two chapters, the sudden and sweeping abolition of 1865 was an unutterable misfortune to these dependent creatures. Emancipation ought to have been gradual. Especially ought there to have been established something like the Roman patronate, under which the freedman would have been sure of wise advice, beneficial overlooking, and efficient protection from his former master.

3. The grant at once of right to vote and hold place and office to the southern negroes indiscriminately exceeds all blunders of democracy in madness and stupidity.

4. Southern slavery, so far from being wrong morally, was righteousness, justice, and mercy to the slave. The federal constitution was simply obeying the commands of good conscience in recognizing the slave as the property of his owner, and protecting that property. Therefore, when the federal government emancipated the slaves it ought to have given the masters just compensation.

So much for what American slavery was to the negro, and what its abolition has done for him in the south. This can be told now. But for years the powers watching over our union kept the subject in the dark. It did not suit their purpose that the people of the union-preserving section should see and understand. They had decreed that northern resistance to slavery, as the solitary root of disunion, should go beyond refusing it extension into the Territories. They chose to add another provocation of the secession which they had planned as the means of abolishing slavery. This new provocation was that the north be induced to make the fugitive slave law a dead letter. To drive the south into early secession, perhaps it would not be enough merely to deny her new territory. But unite the north against the law mentioned, and encourage both running away and the underground railroad by an active public opinion, then soon all along the southern border slavery will lose its hold, some of the slaves escaping and the rest going south. This zone will, after a while, be settled by the friends and employers of free labor, who from year to year will push the southern non-slave district further in. The menace of this hostile occupation will steadily become greater to the slaveholders, and finally it will convince them that they cannot protect slavery in the union.

Many northerners who declared it was wrong to interfere with slavery in the States, at the same time sympathized with the public opposition to restoring the fugitive to his master. It is clear that they did not regard this opposition to be what it really was; that is, actual war upon slavery where it existed. To oppose execution of the law was both to invite and help runaways. And if such invitation and help was persisted in, from one end of Mason and Dixon's line to the other, the risk of escape of slaves and their consequent depreciation in market value would both steadily increase. The refusal to enforce the fugitive slave law was therefore a deadly attack upon slavery in the States; and this was so plain that the union-loving people of Georgia declared in the famous Georgia Platform of 1850 that the union could not be preserved if that law was not faithfully executed.

The faithful guardians of the American union had "Uncle Tom's Cabin" written of purpose to prevent the execution of the fugitive slave law. They hypnotized the root-and-branch abolitionists and Mrs. Stowe into believing

that to abet in any way the restoration of a flying slave was an unpardonable crime; and that the obligation of conscience to refrain from committing such a crime imperatively commanded disregard of all counter provisions of the constitution and the law of the land. One cannot at all understand the mighty abolition movement if he stop with the professed motives of Phillips, Whittier, Garrison, Mrs. Stowe, and the rest. They believed in their hearts, and declared, its purpose was to wipe out the great national disgrace of slavery, to lift the slave out of an abyss of unspeakable outrage and injustice, and to better his condition. As we have shown you, they were, in their very extreme of conscientiousness, as wide from the facts and right as wide can be. They were not doing their own wills, as they thought they were. They but did the will of the fates. The latter ruthlessly—so it seems to us now—sacrificed both the prosperity and comfort of the southern people for several generations, and the very existence, it may be, of nearly all the negroes in America, besides also making a laughing-stock of the abolitionists—all to the end to kill that nationalization which threatened the integrity of the American union.

I believe that I can now take my reader on with me in what I have to say of Mrs. Stowe's book. Let him bear in mind that the object of the fates was to have in it not a representation true to fact, but such an untrue and probable one as would unite the people of the north in moral and conscientious resolve against any and every attempt to restore a fugitive slave. What the fates wanted was an author who appeared to have extensive and accurate acquaintance with slavery, and who, while believing it most conscientiously to be the extreme of evil to the black, was endowed with the power to make the north see with *her* eyes. They found their author in Mrs. Stowe, whom they had educated and trained from infancy.

In view of the mighty influence which "Uncle Tom's Cabin" exercised upon public opinion, it is important to examine what were Mrs. Stowe's qualifications to speak as an authority on southern slavery. And in this investigation the same qualifications of all others who arraigned the system for what they alleged were its heinous moral wrongs to the slave are likewise involved. The statement of Professor Wendell, quoted above, that she was the only one of the abolitionists who had observed slavery "on the spot," can be corroborated by overwhelming proofs. If it be made to appear, as I think will be the case, that she was from first to last under a delusion

which metamorphosed the negro into a Caucasian, and further that she had no real opportunities of learning the facts of slavery, then the case of the root-and-branch abolitionists must fall with the testimony of the only eye-witness whom they have called.

Whether she was biased or not we will let her own words decide. Here they are:

“I was a child in 1820 [she was then nine years old] when the Missouri question was agitated; and one of the strongest and deepest impressions on my mind was that made by my father’s sermons and prayers, and the anguish of his soul for the poor slave at that time. I remember his preaching drawing tears down the hardest faces of the old farmers in his congregation. I well remember his prayers morning and evening in the family for ‘poor, oppressed, bleeding Africa,’ that the time of her deliverance might come; prayers offered with strong crying and tears, and which indelibly impressed my heart, and made me what I am from my very soul, the enemy of all slavery. Every brother that I have has been in his sphere a leading anti-slavery man. As for myself and husband, we have for the last seventeen years lived on the border of a slave State, and we have never shrunk from the fugitives, and we have helped them with all we had to give. I have received the children of liberated slaves into a family school, and taught them with my own children, and it has been the influence that we found in the church and by the altar that has made us do all this.”[\[90\]](#)

No comment is needed. The passage shows that her strongly excited feelings unavoidably shaped all her perceptions and formed all her judgments as to everything in slavery.

Now as to the means she had of acquiring the facts. Although she had seen a little of Kentucky, a border slave State, she had never lived in it, nor anywhere else in the south. Especially is it to be emphasized that she had had no experience of the cotton region, the real seat of slavery, and the only place where it could be fully studied and learned. She passed some eighteen years in lower Ohio, just across the river from Kentucky, where she saw

much of escaping slaves. Of course, being aflame with zeal as she was for her subject, she had observed closely the native negroes of the north. Such of these as she met were widely different from the mass in slavery; for, born and bred in the north, they had had the beneficent training of the free-labor system, and also opportunity to absorb considerable of a higher culture. These negroes were exceptional, even of the northern natives. And the fugitives were also exceptional; for they far excelled the companions left behind them in intelligence, spirit, and every essential of good character. An ordinary Cuffee had liberty the least of all things in his thoughts. A negro like Hector or Garrison, the former escaping from Calhoun and the other from Toombs, was as much above the average as the shepherd dog is above common sheep-worriers and egg-suckers. Mrs. Stowe, as her book shows, had no conception whatever of the ordinary plantation negro. And while she had seen much of some Kentuckians, these were not representative southerners. They lived upon the border, where slave labor found but little lucrative opportunity, and they were also affected more or less with the sentiments of their nearby northern neighbors. Naturally only those Kentuckians of the border who really were of her opinion would consort with this decided anti-slavery partisan; the others would stand aloof. Mrs. Stowe never knew either real negroes or real slaveholders. And she also knew nothing whatever of cotton plantation management. Some authors show an amazingly full and accurate knowledge of countries and communities which they never saw. Burke's knowledge of every detail touching India occurs to me. Lieber had visited Greece while Niebuhr had not. When the former had minutely described to the other some famous landscape,—say the battlefield of Marathon,—Niebuhr would make copious inquiries about remains of old roads and belongings which the other had forgotten, although he had seen them. Tom Moore had never been in Persia, but there is so much of that country drawn to the life in Lalla Rookh that somebody applied to him the saying that reading D'Herbelot was as good as riding on the back of a camel. Mrs. Stowe could not collect, sift, and read facts, and see through the most cunningly devised masks, as Henry D. Lloyd showed his marvellous power to do in "Wealth against Commonwealth." That was not her gift. Her gift was to tell the best of stories—to vary it prodigally and artistically throughout with wonders, with things to make you shudder and also thrill with pleasure, with things to

make you cry and laugh. Her emotional invention was the great factor. Here is her own account:

“The first part of the book ever committed to writing was the death of Uncle Tom. This scene presented itself almost as a tangible vision to her mind while sitting at the communion-table in the little church in Brunswick. She was perfectly overcome by it, and could scarcely restrain the convulsion of tears and sobbings that shook her frame. She hastened home and wrote it, and her husband being away she read it to her two sons of ten and twelve years of age. The little fellows broke out into convulsions of weeping, one of them saying through his sobs, ‘Oh, mamma, slavery is the most cursed thing in the world!’”

The description of Uncle Tom’s death is the goal and climax of the novel. Its scene is laid far down in the south, hundreds of miles below any place which she or the children had ever seen or studied. It would have been more in order for her to submit the draft to observant residents of that locality; but the fates did not intend that her convictions should be weakened by real information. Evidently she considered that her truth to fact was fully vindicated by the effect of the narrative upon her children, who, like herself, were entirely without knowledge of the subject. They wept and exclaimed over it. Why, of course, like all children they loved horrible tales, which their weeping and lamentation proved that they thought were true. Doubtless these same children had made respectable demonstrations over Bluebeard or Little Red Ridinghood. And now over Uncle Tom’s death, which is more dreadful than anything in Dante’s Inferno, and as pure figment, their feelings were shaken with storm and tempest as never before.

The statement just quoted proceeds thus:

“From that time the story can less be said to have been composed by her than imposed upon her. Scenes, incidents, conversations rushed upon her with a vividness and importunity that would not be denied. The book insisted upon getting itself into being, and would take no denial.”

I often fancy, as I think over it, that the last quotation describes suggestions from the fates.

But we must let Mrs. Stowe finish what we have had her tell in part. Informing us that, after writing “two or three first chapters,” she made an arrangement for weekly serial publication in the *National Era*, she says:

“She was then in the midst of heavy domestic cares, with a young infant, with a party of pupils in her family to whom she was imparting daily lessons with her own children, and with untrained servants requiring constant supervision, but the story was so much more intense a reality to her than any other earthly thing that the weekly instalment never failed. It was there in her mind day and night waiting to be written, and requiring but a few moments to bring it into veritable characters. *The weekly number was always read to the family circle before it was sent away, and all the household kept up an intense interest in the progress of the story.*”^[91]

This household had been indoctrinated by the zeal of Dr. Lyman Beecher into believing unreservedly all the inventions of ignorant assailants of slavery instead of the widely different facts.

Before I begin a detailed statement of the material errors and perversions of fact in “Uncle Tom’s Cabin” I want to emphasize it that every one of them appeared to northern readers, unfamiliar with the negro and the south, to be true, and most efficiently helped to form and strengthen sentiment against enforcement of the fugitive slave law.

Many things that she writes show that Mrs. Stowe was completely ignorant of the ways of the cotton plantation. I have space to mention but one. Tom was bred in Kentucky, where no cotton was grown. And Cassy, by reason of her indulgent rearing, had had as little experience as Tom in cotton-picking. Yet these two show such expertness that Tom can add to the sack of a slower picker, and Cassy give Tom some of her cotton, and each have enough to satisfy the weigher at night. The good cotton-picker is surely a most skilled laborer. He must be trained from childhood to use both hands so well that he becomes almost ambidexterous. The training that the typewriter is now urged to take is a parallel.

Mrs. Stowe shows that she had no accurate knowledge of the sentiments of the whites of the south as to slavery. As we have already suggested, there

may have been among the Kentuckians of the border some outspoken opponents of slavery; but it is very probable that in her womanly ardor for her great cause she lavishly magnified their numbers. In her novel she has nearly all of her white southerners—I may add all of the attractive ones—to declare themselves as abolitionists at heart. Misrepresentation of fact could not be grosser than this. I was twenty-five years old when the brothers' war commenced. I had mingled intimately with the people, high and low, of my part of the south. During all of this time I never found out there was a single one of my acquaintances, man, woman, boy, or girl, who did not believe slavery right. The charge implied by Mrs. Stowe that we southerners were doing violence to our consciences in holding on to our slaves is utterly without evidence; nay, it is unanimously contradicted by all the evidence. As we and our parents read the bible, it told us to hold on to them, but to treat them always with considerate kindness.

Mrs. Stowe emphasizes the frequent cruelty of the master to the slave; and she emphasizes more strongly still that under the law he was helpless. The slave was not helpless. He was protected by law. Note this example, given by Toombs:

“The most authentic statistics of England show that the wages of agricultural and unskilled labor in that kingdom not only fail to furnish the laborer with the comforts of our slave, but even with the necessities of life, and no slaveholder could escape *a conviction for cruelty to his slaves* who gave his slave no more of the necessities of life for his labor than the wages paid to their agricultural laborers by the noblemen and gentlemen of England would buy.”[\[92\]](#)

The witness just called has full knowledge, and is the extreme of frank honesty and truthfulness.

The statute-book demonstrates that the law was steadily bettering the condition of the slave. I have not space to state the progression which can be found in the different Georgia enactments. But I must mention two instances. In 1850 the procedure of trying a white person charged with a capital offence was extended to the slave. The code which came of force January 1, 1863, and which had been adopted some while before, prevented

any confession made by a slave to his master—it mattered not how voluntary or free from suspicion it might be—from ever being received in evidence against him.

I commenced law practice in 1857. From that time until I went to the front I observed that public opinion was becoming more decided against mistreatment of the blacks. The masters of *ashcats*,—as ill-fed negroes were called in derision of their lean and dingy faces by the great multitude of sleek and shining ones,—those who punished with unreasonable severity, those who exacted overwork,—they were few and far between,—they were all more and more detested; and grand juries became more and more prone to deal properly with them. I would support this by cases, if their citation would not be unpleasant to descendants of parties.

Mrs. Stowe has his master to brand George Harris in the hand with the initial letter of the former's surname. She has Legree's slaves to pick cotton on Sunday. I never heard of any cases of branding human beings except as a punishment for crime in execution of a judgment of conviction, and very few of them. Tidying up the house, cooking, serving meals, caring for the animals on the place, and such other things as are done everywhere on Sunday, were of course required of the domestic slaves. Leaving these out, no slave was ever put to work on Sunday except to "fight fire," or at something commanded by a real emergency. Their employers now exact from thousands of white persons of both sexes all over the country a great amount of such hard and grinding Sunday work as was never exacted of the slaves in the south. Peep into stores, offices of large corporations, and elsewhere, while others are at Sunday-school or church, and count those weary ones you find finishing up the work of the last week.

But all of the mistakes of Mrs. Stowe noticed in the foregoing are mere matters of bagatelle as compared with the character and nature which she gives the average negro of the south.

She represents the women as chaste as white women, and the husbands faithful to their wives even when separated from them. I shall now tell the truth as I know it to be—the truth that all observant people who have had experience with negroes know.

The moment almost that a married pair of slaves were separated for any cause, each one secretly, or more often openly, took another partner. Even when not separated, infidelity of both was the rule. Mrs. Stowe has the girls and their parents to shrink with horror from the desires of the master. To the simple-hearted African the master was always great, and there was among them not a woman to be found who would not dedicate herself or her daughter to greatness, finding it so inclined,—husband, father, brothers, and sisters all in their desire for a friend at court heartily approving. The white whose concubine gave favors behind his back to her slave friends was the stalest joke of every neighborhood.

The mass of the negroes are more unchaste now than they were in slavery, a subject of which I shall say something further in another chapter. But even where the master's steady requirement from one generation to another of a stricter observance of family ties, and the natural imitation of the ways of the dominant race, had lifted the slaves, in appearance at least, far above their West African ancestors, not even mothers had become chaste. Boys, girls, men, and women, both married and unmarried, were as promiscuous by night as houseflies are by day. The horror of horrors in this abyss of moral impurity to one of a superior race was their utter unconsciousness of incest.[\[93\]](#)

Mrs. Stowe has their philoprogenitiveness—as phrenologists call it—as fully developed as the whites. One bred in the cotton districts well remembers that it required all the vigilance of master and mistress, overseer, and the deputies selected from the older slave women, to secure from the mothers proper attention to their children, and especially to keep them from punishing too cruelly. But I do not mean to say that this parental misbehavior was as general as the unchastity mentioned. When the mothers aged beyond forty-five or fifty, they would begin to think somewhat less of beaux and somewhat more of their children.

George Harris and Eliza are next of the slave characters in prominence and importance to Uncle Tom. With their large admixture of white blood, their comparatively good education and superb moral training, a southerner would think that you were merely mocking him if you named these as fairly representative negroes. As they are drawn, they are really whites—whites of

high refinement—with only a physical negro exterior, and that softened down to the minimum.

But Uncle Tom—I pray my northern readers to take counsel of their common sense and consider what I shall now say of him. Rightly to estimate him, I must begin with some contrasts. The first that occurs to me is Tyndarus, the slave hero of the *Captivi* of Plautus, pronounced by the great critic Lessing to be the most beautiful play ever brought upon the stage. Tyndarus and Philocrates, his young master, taken prisoners, are sold to Hegio. The two captives personate each other, and induce Hegio to send home Philocrates, who was a wealthy noble, and keep only the born slave. Hegio was scheming to recover his own son, now a slave in the land of the captives, by a bargain for Philocrates, this bargain to be negotiated by the counterfeit Tyndarus. Discovering how he had been duped, the anguished father tells the real Tyndarus that he shall die a cruel death. This is the reply of the slave:

“As I shall not die because of evil deeds, that is a small matter. My death will keep it ever in remembrance that I delivered my master from slavery and the enemy, restored him to his country and father, and chose that I myself should perish rather than he.”

That is exalted. But Tyndarus has not the complete goodness of Uncle Tom. As soon as he is at last rescued from the horrible mines, to find Philocrates true and himself a free man, he threatens woe to a slave who had injured him, and looks approvingly upon the execution of his threat.

Compare Uncle Tom with the good men of the bible, such as Moses, Peter, and Paul, to mention no more. Not one of these was able always to keep his feelings and tongue in that complete subjection that never fail Uncle Tom.

Uncle Tom, in whom love alone prompts all thoughts and deeds, surpasses every saint in Dante’s *Paradise*—he surpasses even the incomparably sweet Beatrice, who now and then chides unpleasantly.

The climax of my comparison is reached when I suggest that Uncle Tom is made from first to last a more perfect Christ than the Jesus of the gospels. The latter, as Matthew Arnold and other reverent christians remark, was sometimes unamiable. Remember his expulsion of the money changers and

traders from the temple, and the many opprobrious words he used of and to the Pharisees. Growing recognition of the all-human Jesus is benignly replacing a religion of superstition, intolerance, and dogma with one of universal love and brotherhood. I cannot fully express my appreciation of the liberal divines, from Charming to Savage, who are preparing us so well for the millennium. But I am sure a new study of Uncle Tom would give each one of them firmer grasp of christlikeness and far more power to present it. Think over such instances in that holiest and most altruistic of lives as these: He has just learned that he has been sold; that he is to be carried down the river. His wife suggests that as he has a pass from his master permitting him to go and return as he pleases, he take advantage of it and run away to the free States. As firmly as Socrates, unjustly condemned to death, refused to escape from prison when his friends had provided full opportunity, Tom declared he would stay, that he would keep faith with his master. He said that, according to Eliza's report of the conversation she had overheard, his master was forced to sell him, or sell all the other slaves, and it was better for himself to suffer in their place. And as he goes away he has nothing but prayers and blessings for the man who sends him into dread exile from his wife and children. He falls to a new master, whom, and his family, he watches over with the fidelity and love of a most kind father, doing every duty, but above all things trying to save that master's soul. Then his cruel fortune delivers him to the monster Legree. For the first time in his life he is treated with disrespect, distrust, and harshness. Yet he forgets his own misery, and finds pleasure in helping and comforting his fellow sufferers, striving his utmost to bring them into eternal life. He will not do wrong even at the command of his cruel master, who has him in a dungeon, as it were, into which no ray of justice can ever shine. And here he dies from the cruel lash—almost under it. He falters some, it is true; but there was no sweat of blood as in Gethsemane, nor exclamation upon the cross, "My God, my God, why hast thou forsaken me!" He went more triumphantly through his more fell crucifixion.

I believe that the character of Uncle Tom is the only part of the book which future generations will cherish; not for the lesson against slavery it was intended to teach, but because it excels in ideal and realization all imitation of Christ in actual life or the loftiest religious fiction. Consider its

marvellous effect upon Heine, as told by a quotation from the latter in The Author's Introduction to the book.^[94]

The detailed comparison which I have just made puts Uncle Tom upon a pinnacle, where he is above all the saints in lofty, self-abnegating, and lovingly religious manhood; and the reader notes how fruitlessly I have tried to find another like him. But Mrs. Stowe was confident that she had not exaggerated or overdrawn him, and further that such were common among the southern slaves. Here is what she deliberately says in her Key:

“The character of Uncle Tom has been objected to as improbable; and yet the writer has received more confirmations of that character, and from a greater variety of sources, than of any other in the book.

Many people have said to her, ‘I knew an Uncle Tom in such and such a southern State.’ All the histories of this kind which have thus been related to her would of themselves, if collected, make a small volume.”^[95]

Toombs once said to me, “It would have been a matchless eulogy of slavery if it had produced an Uncle Tom.” But, as we see from the last quotation, she claims far more. She really claims that it was fruitful of Uncle Toms in every southern State.

Shall we attribute this firm belief, that there were among the southern slaves many who were better christians than Christ himself is represented to have been, to a mere hallucination? That word is not strong enough. To explain the belief, we must think of visions suggested by the hypnotizing powers, or something like the spell on Titania, when Bottom with his ass's head inspired her with the fondest admiration and love.

Although the foregoing is far from being exhaustive, it is enough; it shows incontrovertibly that Mrs. Stowe builded throughout upon the exceptional and imaginary. My father, a Presbyterian clergyman, with the strictest notions as to the Sabbath, as he generally called Sunday, made me read, when a boy, a book called, if I recollect aright, “Edwards's Sabbath Manual.” Be the title whatever it may, the entire book was but a collection of instances of secular work done on Sunday, and always followed closely

by disaster, which appeared to be divine punishment of sabbath-breaking. The author was confident he had proved his case. He believed with his whole soul that if one should do on Sunday any week-day work not permitted in the catechism, it was more than probable that God would at once deal severely with him for not keeping his day holy.

This is a somewhat overstrained example of Mrs. Stowe's method. I will therefore give one which is as close as close can be. Suppose a diligent worker to cull from newspaper files, law reports, and what he hears in talk, the cases in which one party to a marriage has cruelly mistreated the other. If he digested his collection with a view to effect, it would prove a far more formidable attack upon the most civilizing and improving of all human institutions than Mrs. Stowe's Key is upon slavery; and if he had her rare artistic gift he could found upon it a wonderful anti-marriage romance. The author of such a Key and romance would be confuted at once by the exclamation, "If these horrors are general, people would flee marriage as they do the plague." Let it be inquired, "If 'Uncle Tom's Cabin' and Mrs. Stowe's Key truly represent, why did not more of the blacks escape into the free States? and why did they not revolt in large bodies during the war in the many communities whence all the able-bodied whites had gone to the front far away?" and there can be but one answer, which is, there was no general or common oppression of the African in slavery—there were no horrors to him in the condition—but on the contrary he was contented and happy, merry as the day is long.

How was it that a book so full of untrue statement and gross exaggeration as to an American theme found such wide acceptance at the north and elsewhere out of the south? For years I could not explain. When I read it at Princeton, I talked it over with the southern students. We pooh-poohed the negroes, but we admired the principal white characters except Mrs. St. Claire, whom we all regarded as a libellous caricature. The representation of slavery was incorrect, and the portrayal of the negro as only a black and kinky-haired white was so absurd that one of us dreamed that either would be taken seriously by the north. It was some ten years after the brothers' war that the true explanation commenced to dawn upon me, and it has at last become clear.

It is an important fact that the great body of the people of the north knew almost next to nothing of the south, and especially of the average negro. As one calmly looks back now he sees that in the agitation over the admission of California, the cleavage between the two nationalizations treated in foregoing chapters was becoming decided, and that the people belonging to each were losing their tempers and getting ready to fight. When even a political campaign in which the only question is, who shall be ins and who outs, is on, each party is prone to believe the hardest things of the other. But when such a fell resort to force as that of 1850 and the years immediately following is impending, all history shows that those on one side will believe any charge reflecting upon the good character of those on the other side which is not grossly improbable. Such quarrels are so fierce that we never weigh accusations against our adversaries—we just embrace and circulate. Thus had the northern public become ripe for an arraignment of the morality of slavery, which—as was with purblind instinct felt, not discerned—was the sole active principle of the southern nationalization. Even without the provocation just mentioned, a northern man would liken the African in everything but his skin and hair to a white. We always classify a new under some old and well-known object. When the Romans first saw the elephant they thought of him as the Lucanian ox. The automobile which propels itself around our streets is made as much like the corresponding horse-drawn vehicle familiar to the public for ages as can be. The northerner knew no man well but the Caucasian, and he had long been led by a common psychological process to give his characteristic essentials to the negro. And now when anti-slavery partisans positively maintained that the latter was a white in all but his outside, adducing seeming proofs, and the free-labor nationalization was with its leading strings pulling all the northern people into line, even the calmest and most dispassionate among them were influenced to believe that the negroes were so much like our Anglo-Saxon selves it was an unspeakable crime to keep them in slavery. And all tales of cruelty and horror found easy credence.

Thus had the northern public been made ready for “Uncle Tom’s Cabin.” And although the book wholly ignored and obscured the really live and burning issue, and it was packed from beginning to end with the most gigantic errors of fact, it took the section by storm.

It is a great book. When something has been as persistently demanded as long as “Uncle Tom’s Cabin” has been by the northern public and the “Conquered Banner” by the southern public; when thousands upon thousands of plain people weep over them and lay them away to weep over them again, you may know—it matters not what the unruffled and sarcastic critic may say—that each is a work of the very highest and the very rarest genius. Tears of sympathy for tales of distress and misery, whoever can set their fountain flowing is always a nature’s king or queen.

I have read “Uncle Tom’s Cabin” four times: first at Princeton in 1852; the second time amid the gloom of reconstruction, more accurately to ascertain northern opinion of the negro and forecast therefrom, if I could, what was in store for the south; the third time as I was meditating the Old and New South; and just the other day the last time. The more familiar I become with it the greater seems to me the power with which the attention is taken and held captive. The very titles to the first twelve chapters are, in their contents and sequence, gems of genius, and draw resistlessly. I become more and more impatient with Ruskin’s reprehending the escape of Eliza, when, with her child hugged to her bosom, she leaps from block to block of floating ice in the Ohio until she is safe on the other side—a marvel like the ghost’s appearance in the first scene of Hamlet, exciting a high and breathless interest at the outset, which is never allowed to flag afterwards. Whenever I begin to read the book, I fall at once into that illusion which Coleridge has so well explained. I accept all her blunders and mistakes as real facts, and although it is hard to tolerate her negro travesties and the anti-slavery sentiments of her southern whites, somehow they do not then offend me, and there is chapter after chapter in which I follow the action with breathless interest. “Gulliver’s Travels” and “Pilgrim’s Progress” are examples to show how little of reality either entertaining or moving fiction needs. From a mass of false assumptions, seasoned with the merest sprinkling of fact; and especially from her taking for granted that the negro is really on a par of development with the white, she has constructed the Iliad of our time. The nursery tale out of which Shakspeare fashioned the drama of Lear did not furnish him with smaller resources. What a wonderful action he puts in the place of the nursery tale! how natural and probable it all appears to us as it unfolds! how we hate, or pity, or admire, or love as we cannot keep from following it! Likewise every reader in the

north accepted Mrs. Stowe's novel as the very height of verity, and afterwards saw in every fugitive slave a George Harris, or Eliza, or an Uncle Tom. And the book evoked the same effect out of America. The most curious proof of this that I can think of is the statue of The Freed Slave, which I saw on exhibition at the Centennial. It has nearly all the peculiar physical characteristics of the Caucasian; and it represents not a typical man of African descent, but a negro albino, that is, a white negro, not a black one. There are albino negroes, but there are also albino whites. That statue shows what was European conception of the negroes whose chains were broken by the emancipation proclamation. Its reception in America shows also that the same conception prevailed here. Day after day I saw crowds of northern people contemplating that counterfeit with deep emotion, many of the women unable to restrain their tears.

Surely "Uncle Tom's Cabin" in its propagandic potency is unrivalled. It did more than the anti-slavery statesmen, politicians, preachers, talkers, and orators combined. To it more than to all other agencies is due that the people of the north took such a stubborn stand in opposition that the south at last saw that the fugitive slave law had been practically nullified. Thus the fates worked to bring about secession. For secession was to bring the brothers' war; and this war was to do what could not be done by law or consent,—that is, to get rid of slavery as the informing principle of southern nationalization.

The post-bellum propagandic effect of "Uncle Tom's Cabin" has been very malign. With the companion literature and theories, it formed the opinion that devised and executed the reconstruction of the southern States. The cardinal principle of that reconstruction was to treat the blacks just emancipated as political equals of the whites.

Those who did this are to be forgiven. They had been made to believe that the negroes of the south were as well qualified for full citizenship as the whites, and it was but meet retributive punishment of the great crime of slavery and waging war to hold on to it, that the masters be put under their former slaves. "Uncle Tom's Cabin" had made them believe it.

The only parallel of mass of pernicious error engendered by a book, so far as I know, is "Burke's Reflections." Constitutional England ought to have

followed Charles Fox as one man, and given countenance to the rise in France for liberty. But Burke's piece of magnificent rhetoric effectually turned the nation out of her course, and had her in league with absolutists to put back the clock of European democracy a hundred years or more. Even yet intelligent Englishmen magnify that most unEnglish achievement. The bad effects of "Uncle Tom's Cabin" have not been so lasting in our country. We Americans get out of ruts much more easily than the English. The north is now rapidly learning the real truth as to the utter incapacity of the mass of southern negroes to vote intelligently, and complacently acquiesces in their practical disfranchisement by the only class which can give good government.

We must utterly reject and discard everything that Mrs. Stowe and those whom I distinguish as the root-and-branch abolitionists have taught, in their unutterable ideology, as to the nature and character of the negro, and in its place we must learn to know him as he really is—to tolerate him, nay, to love him as such. This is the only way in which we can prepare ourselves for giving the negroes their due from us.

Further, we owe it to our proud American history, now that the brothers' war is forty years past, to ascertain the real cause of that mighty struggle, maintained most laudably and gloriously by each side. Those whom I am here criticising made many believe that the real stake was whether the slave should remain the property of his master or not. Note the emphasized adjuration in the "Battle Hymn of the Republic:"

"As he [Christ] died to make men holy, let us die to make men free."

A most beautiful sentiment, fitly expressed; but how it humiliates the grand issue, which was whether federal government should live or perish! And that greatest of American odes, Whittier's "Laus Deo," how wide of the true mark is its sublime rejoicing! Celebrating the abolition of slavery by constitutional amendment, the occasion demanded that he extol the really benign achievement. That achievement was that all cause of diverse nationalization in the States had been forever removed, and thus it was assured that brotherhood of the nations was to grow without check. But the

rapt bard was blinded, as his utterances show, by what now almost appears to have been a fit of delusional insanity. He says:

“Ring! O bells!
Every stroke exulting tells
Of the burial hour of crime.”

What does he mean is the crime? Why, the delivering of certain Africans and their descendants from lowest human degradation and misery, and blessing them with opportunity and help to rise far upward? Had he seen, as we do now, forty years later, instead of pouring out this wild and mad delight, he would have dropped scalding tears over the “burial hour” of all that promised anything of welfare to those for whom he had labored so long and faithfully. And in the last stanza his command that

“With a sound of broken chains”

the nations be told

“that He reigns,
Who alone is Lord and God!”

The poet misunderstood the “broken chains” as greatly as he did the “burial hour.” Chains were broken, but their breaking was no blessing to the negro. Golden chains of domestic ties, drawing him gently, kindly, surely up to higher morality and complete manhood—these were broken; and far other were forged for him, with which fear he has been made fast to destruction. His only friends able to help alienated; what a clog! Given back to African improgressiveness; what a fetter! How he is held to the body of death by unbreakable chains of want, misery, vice, disease, and utter helplessness! and how his shackles gall him and his convict chains clank in every corner of the land which was once an earthly paradise to him!

Let us not sully with Whittier the glory of the federal arms by ascribing to them as their chief triumph the gift of illusory freedom to a few negroes. Rather let us inform ourselves with the spirit of Webster, and give praise and thanks without end for the actual blessings and the richer promise of the restored union to myriads of that race whose mission it is to spread an inexpressibly fair socialism over all the earth.

And let me say at the last, the people of the north should learn that all the tragic evils which Professor Wendell and others outside of the south have in mind belong only to the slave-ships, and by a strange psychological metastasis—no stranger, however, than that by which the fourth commandment, in popular conception, has been abrogated as to the seventh day, and applied to the first day of the week—they have firmly attached themselves to the reputation of southern slavery. For long years we of the south, our mothers and our mothers' mothers, our fathers and our fathers' fathers, have been charged with cruelties and outrages purely fancied. These fabrications are the stock comparisons with which almost every invective against the wrongs of any lower class is sharpened. The writer or speaker whenever he is taken short says something of the dreadful condition of the southern slave under the sway of an entirely absolute master. Variety of the misdeeds invoked as illustration is limited only by the promptness with which the utterer can think of what he has read in abolition literature or its sequel. It is all mere parrot gabble. To hear so much of it as we do is "a little wearing," as Reginald Wilfer said. Surely if our brothers and sisters of the north but think, they will acknowledge that these so-called horrors of slavery were all nothing but the inventions of the angry passions provoked by the powers in the unseen after they had decided that slavery must be sacrificed in the interests of the union. And these dear brothers and sisters will no longer persist in asserting that southern slavery was but robbery and oppression of and cruelty to the slave; that the system was evil to him of itself. They will talk no more of the pro-slavery infamy, of the unscrupulousness and perfidy of the slave power, and all such false twaddle, that can now serve no purpose whatever except to offend good men and women and their children without cause.

CHAPTER X

SLAVERY AT LAST IMPELLED INTO A DEFENSIVE AGGRESSIVE

UNTIL the crisis of 1850, slavery had never changed from purely defensive tactics. This year made it seem that the north had fully resolved that slavery should never be allowed another inch of new territory; and also was very near, and was rapidly coming nearer to, the point of practically preventing the enforcement of the fugitive slave law. We have explained how slave property could not live unless it found new virgin soil in the Territories; and we have also explained what a deadly blow it would receive, in the refusal to restore fugitives. This refusal would be really indirect abolition. Read the masterly sketch by Calhoun, in his speech March 4, 1850, of the conquering advance of the anti-slavery party, until now—to use his language—“the equilibrium between the two sections ... had been destroyed;” and he demonstrates that the actual exercise of the entire national political power must soon be in the hands of the free-labor section. The south instinctively felt that the time for her old tactics was over, and that she must do more than merely fend off the blows of abolition. And, as we will tell in the next chapter, she found her new leader in Toombs. Nullification as advocated by Calhoun was the extreme energy of the pure defensive of the south. His proposed dual executive amendment was merely that nullification be made a right granted to the federal government instead of remaining one reserved to the States. Toombs had grown up in the school of William H. Crawford. George R. Gilmer, a follower of Crawford, tells of the latter: “He was violently opposed to the nullification movement, considering it but an ebullition excited by Mr. Calhoun’s overleaping, ambition.”[\[96\]](#)

Toombs scouted nullification. Under his lead his State, in 1850, adopted the Georgia Platform quoted above. This platform was considerate and resolute preparation for the southern offensive.

Next the south assumes initiative. Extension of slave-territory is so great an economical *sine qua non* that she attacks its barriers. Using her control of the then dominant democratic party she got the Missouri compromise repealed. Her main purpose in this was to wrench from the anti-slavery men the weapon of congressional restriction, then deemed by them the most powerful of all in their armory. She also contemplated extorting a concession of all lands in the Territories which could be profitably cultivated by slaves from the north, alarmed into apprehending that otherwise slavery might be carried above 36.30'.

This repeal did more than anything else—more even than “Uncle Tom’s Cabin”—to arouse the north into mortal combat with slavery. The historian cannot understand why the south procured it, if he ignores that energy of southern nationalization which we have done our utmost to explain. This nationalization had got into what we may call the last rapids, and was bound to go over the precipice into the gulf of secession.

The bootless struggle by the south against overwhelming odds of northern settlers to make Kansas a slave State was the sequel to the repeal of the Missouri compromise. When the South understood that Kansas was really gone, she advanced her forlorn hope in her endeavor to secure slavery in the union. The essence of the compromise measures of 1850 was that the demand of congressional non-interference with slavery in the States and Territories, made by the south, was declared adopted as future policy. As the forlorn hope just mentioned she now made the demand that the owner’s property in his slaves, if he should carry them into a Territory, should be protected by congress until its people had made the constitution under which the Territory would be admitted into the union. Her adherence to this demand split the democratic party; and the election of Lincoln ensued. This election meant that slavery—the property supporting more than nine-tenths of the southern people, and which was virtually their entire economic system—was put under a ban. There was nothing for it but depreciation in the near future; soon more and more depreciation; until after prolonged stagnation and paralysis the value of all her property would collapse as did that of the continental currency. That was the way it looked to her. We believe that the facts show that her conviction was right. She felt with her whole soul that the time had come to invoke State sovereignty. So she seceded, with intent to save the property of her people and maintain their

domestic peace. Of course she purposed an equitable apportionment of the public domain between herself and the north under which she would get the small part that suited slave agriculture.

The circumstances constrained the south throughout every part and parcel of her offensive as powerfully as exhaustion of his supplies constrains the commander of a garrison to a sortie upon what he has reason to believe is the weakest point of the circumvallation. She was hypnotized by the powers. They made her believe that she was always doing the right thing to protect slavery when they were having her to do that only which assured its destruction. She was all the while as conscientious as the mother who, afraid of drafts, keeps the needed fresh air from her consumptive child and thereby kills him.

We recognize the resistless play of the cosmic forces upon the sun, moon, and stars; upon our earth; in the yearly round of the seasons; in the ocean tides; in storms and heated terms; in vegetation; and in things innumerable taken note of by the senses. But this is not all of their empire. They sway individuals, communities, peoples, nations, making the latter even believe that they are having their own way when in fact they are most servilely doing the will of the powers.

CHAPTER XI

TOOMBS

CALHOUN solidified the south in resolve to leave the union if the abolition party got control of the federal government. Just before his death there commenced such serious contemplation of an aggressive defence of slavery that we may call it an actual aggressive. Although by reason of his unquestioned primacy he could have assumed the conduct of this aggressive, he did not. Toombs was its real, though not always apparent, leader, from its actual commencement until it resulted in secession. Thus he played an independent part of his own, and deserves a chapter to himself. While Calhoun was the forerunner, Toombs was both apostle and the Moses of secession. As nearly all of my readers have never thought of any one else than Calhoun in this capacity, the statement of Toombs's prominence just made will probably startle them. But I know if they will follow me through the record they will all at last agree with me. In view of Calhoun's conspicuousness in the southern agitation from 1835 until his death in 1850, this misapprehension of my readers is very natural. Contemporaries following Sulla, named Pompey, not Julius Cæsar, The Great. Similarly Toombs, as an actor in the intersectional arena, is as yet dwarfed from comparison with the really great but not greater Calhoun.

It is much more necessary than I saw such a method was with Calhoun to deal first with what we may call the non-sectional parts of Toombs's career. And I wish to assure my readers at the outset that these parts are exceptionally important and valuable not only to every American, but to all those anywhere who prize shining examples of private virtue and exalted teachers of good and honest government.

I was nearly ten years old when Toombs's congressional career commenced in December, 1845. Living only eighteen miles from him I heard him often mentioned. It was the delight of many people to report his phrases and repartees. By reason of their wisdom or wit and fineness of expression, the whole of each one lodged in the dullest memory. I never knew another

whose sayings circulated so widely and far without alteration. As they serve to introduce you to his rare originality, I will tell here a few of them that I heard admired and laughed at in my boyhood.

He had not then left off tobacco, but he chewed it incessantly, and a spray of the juice fell around him when he was speaking. Once while he was haranguing at the hustings, a drunken man beneath the edge of the platform on which he was standing, rudely told him in a loud voice not to let his pot boil over. Toombs, looking down, saw that his interrupter had flaming red hair: "Take your fire from under it, then," he answered.

In another stump speech he was earnestly denying that he had ever used certain words now charged against him. A stalwart, rough fellow—one of Choate's bulldogs with confused ideas—rose, and asserted he had heard him say them. When and where was asked. The man gave time and place, and added tauntingly, "What do you say to that?" Toombs rejoined, "Well, I must have told a d—d lie."

A rival candidate, really conspicuous and celebrated for his little ability, in a stump debate pledged the people that if they would send him to congress he would never leave his post during a session to attend the courts, as he unjustifiably charged Toombs with habitually doing. The latter disposed of this by merely saying, "You should consider which will hurt the district the more, his constant presence in, or my occasional absence from, the house."

In another discussion this same opponent charged him with having voted so and so. Replying, Toombs denied it. The other interrupted him, and sustained his charge by producing the *Globe*; and he expressively exclaimed, "What do you think of that vote?" Toombs answered without any hesitation—nothing ever confused him—"I think it a d—d bad vote. There are more than a hundred votes of mine reported in that big book. He has evidently studied them all, and this is the only bad one he can find. Send *him* to congress in my place, the record will be exactly inverted; it will be as hard to find a good one in his votes as it is now to find a bad one in mine."

In the congressional session of 1849-50 Toombs had made his Hamilcar speech, to be told of fully after a while. In this he avowed his preference of disunion to exclusion of the south from the Territories so positively and

strongly that the ultra southern rights men hailed him as their champion. But soon afterwards, with the great majority of the people of the State, he took his stand upon the compromise of 1850 and the Georgia Platform quoted above. This was really on his part a recession from the extreme ground he had taken in the speech. In 1851, a coalition of the whigs and democrats of Georgia nominated Howell Cobb, a democrat, for governor, and Toombs, then a whig, canvassed for him with great zeal. He had an appointment to speak, in Oglethorpe county, at Lexington, the county seat. There were quite a number of ardent southern rights men in the county, who held that the admission of California, really in southern latitude, with its anti-slavery constitution, called for far more decided action on the part of the south than was counselled in the Compromise and Georgia Platform. Hating Toombs, whom they regarded as a renegade, they plotted to humiliate him when he came to Lexington. As he never shrank from discussion they easily got his consent to divide time with—as the phrase goes—a canvasser for McDonald, their candidate for governor. Toombs was to consume a stated time in opening the stump debate; then the other was to be allowed a stated time; after which Toombs had a reply of twenty minutes—these were the terms. In opening, Toombs, as was natural, stressed the compromise measures and set forth the advantages of preserving the union; and he fiercely inveighed against the men who could not be satisfied with the Georgia Platform, embraced as it had been by a great majority of all parties, denouncing them as disunionists. The other disputant took the Hamilcar speech of Toombs, made just the year before, as his text. Deliberately, accurately, systematically he unfolded the doctrine of that speech, and he did the same for the speech just made, and contrasting the two, he put them into glaring inconsistency. Southern rights stock rose and union stock sunk rapidly as the comparison went on. In his peroration the speaker commented upon Toombs's tergiversation with such effective severity it elicited wild applause from the men of his side. They had pushed themselves to the front. Toombs rose to reply. In their riotous rejoicing over the great hit of their speaker, they forgot the proprieties of the occasion; forgot that it was Toombs's meeting, as was said in common parlance; and they rapped on the floor with canes, and even clubs provided for the nonce, howled, and made all kinds of noises to drown his voice. Unabashed he looked upon them, smiling that grandest and blandest of smiles. As the foremost of these roysterers told me long afterwards, his self-possession

excited their curiosity. They wanted to hear if he could say anything to get out of the trap in which they had so cleverly caught him; and they became still. "It seems to me," he commenced, "that men like you meditating a great revolution ought first to learn good manners." At this condign rebuke of behavior which, according to stump usage, was as uncivil and impolite as if it had been shown Toombs in his own house by guests accepting his hospitality, spontaneous cheers from the union men, who were in very large majority, appeared to raise the roof. In his highest and readiest style—for mob opposition always lifted him at once into that—he reminded his hearers that their whole duty was to decide whether they would approve the compromise and the Georgia Platform or not; and that to discuss whether what he had spoken last year before these measures were even thought of, was right or wrong, was to substitute for a transcendently important public question a little personal one of no concern to them whatever. "If there is anything in my Hamilcar speech that cannot be reconciled with the measures which I have supported here to-day with reasons which my opponent confesses by his silence he cannot answer, I repudiate it. If the gentleman takes up my abandoned errors, let him defend them."

How the union men cheered as he broke out of the trap, and caught the setters in it!

I heard much of this day, still famous in all the locality, when six years afterwards I settled in Lexington, to begin law practice. Over and over again the Union men told how their spirits fell, fell, fell as the southern rights speaker kept on, until it looked black and dark around; and then how the sun broke out in full splendor at the first sentence of Toombs's reply, and the brightness mounted steadily to the end. That sentence last quoted is a proverb in that region yet. If in a dispute with anybody there you try to put him down by quoting his former contradictory utterances, he tells you that if you take up his abandoned errors you must defend them.

The interest excited in me by what is told in the foregoing was the beginning of my study of Toombs, which never at any time entirely ceased, and which will doubtless continue as long as I live. He has impressed me far more than any other man whom I ever knew. Soon after his return, in 1867, from his exile I resolved I would try to write his Life under the title, "Robert Toombs, as a Lawyer, Statesman, and Talker;" and for ten or fifteen

years I had been systematically collecting the data. These had accumulated under each head—especially reports of his epigrams and winged phrases—far more considerably than was my expectation at first. I added to them very largely by copious notes of the record of his congressional life which I read attentively in course, commencing immediately after his death. In a few years I had finished my task. As yet I have not found the times favorable for publication, and the MS. may perplex my literary executor. Of course my object in the too egotistic narrative just made is to inform you that I have bestowed very great labor and study upon the subject, hoping thus to draw your attention.

Robert Toombs was born July 2, 1810, on his father's plantation in Wilkes county, Georgia. He went to school at Washington, the county seat; then to the State university; which having left, he finished his collegiate course at Union. Next he spent a year at the law school of Virginia university. He never was a bookworm. His habitual quotations during the last fifteen years of his life—when I was much with him—betrayed a smattering of the Roman authors commonly read at school, a much greater knowledge of the Latin quoted by Blackstone and that of the current law maxims, and considerable familiarity with "Paradise Lost," "Macbeth," and the Falstaff parts of "King Henry IV.," and "Merry Wives," Don Quixote, Burns, and the bible. But this man, whose diction and phrases were the worship of the street and the despair of the cultured, had no deep acquaintance with any literature. Erskine got the staple of his English from a long and fond study of Shakspeare and Milton; but Toombs must have drawn his only from the fountains whence Tom, Dick, Harry, and Mariah get theirs, and then purified and refined it by a secret process that nobody else knew of,—not even himself, as I believe. If he had only corrected after utterance as assiduously as Erskine did, of the two his diction would be much the finer.

The year before he came of age he was admitted to the bar by legislative act. In the same year he married his true mate and settled at Washington. For four years the famous William H. Crawford was the judge of the circuit. Toombs was born into the Crawford faction, and the judge who, as there was no supreme court then, was law autocrat of his circuit, gave him favor from the first. The courts were full of lucrative business. The old dockets show that in five years Toombs was getting his full share in his own county and the adjoining ones. The diligent attention that he gave every detail of

preparation of his cases, had, in a year or two after his call, made him first choice of every eminent lawyer for junior. One of these was Cone, a native of Connecticut, who had received a good education both literary and professional, before he came south. Toombs, who had known the great American lawyers of his time, always said after his death in 1859 that Cone was the best of all. Lumpkin used to tell that during a visit to England he haunted the courts, but he never found a single counsel who spoke to a law point as luminously and convincingly as Cone. Another one of these was Lumpkin. He is, I believe, the most eloquent man that Georgia ever produced. He had some tincture of letters; but he was without Choate's pre-eminent self-culture and daily drafts of inspiration from the immortal fountains. A. H. Stephens admired Choate greatly. He heard the latter's reply to Buchanan. Often, at Liberty Hall—as Stephens called his residence—he would repeat with gusto the passage in which Choate roasts Buchanan for his inculcation of hate to England. Stephens contended that if all that education and art had done for each—Choate and Lumpkin—could have been removed, a comparison would, as he believed, show Lumpkin to be the stronger advocate by nature.

These three—Cone, Lumpkin, and Toombs—were often on the same side. But whether Toombs had them as associates or as adversaries, they were always in these early years of his at the bar, in his eye. With the unremitted attentiveness of what we may call his subconscious observation, and a receptivity always active and greedy, he seems to have soon appropriated all of Cone's law and all of Lumpkin's advocacy—that is, he had, as he did with the speech and language heard by him every day, transmuted them into the rare and precious staple peculiar to his own *sui generis* self.

In his first forensic arguments his rapid utterance was as indistinct as if he had mush in his mouth, old men have told me. But after a year or two of practice he developed both power and attractiveness. In due time when Cone or Lumpkin were with him, he would be pushed forward, young as he was, into some important place in court conduct. I myself heard Lumpkin tell that the greatest forensic eloquence he had ever heard was a rebuke by Toombs—then some twenty-seven years old—of the zeal with which the public urged on the prosecution of one of their clients on trial for murder. The junior—the evidence closed—was making the first speech for the defence. As he went on in a strong argument, the positiveness with which

he denied all merit to the case for the State, angered the spectators outside of the bar, and a palpable demonstration of dissent came from some of them, which the presiding judge did not check as he ought to have done. Toombs strode at once to the edge of the bar, only a railing some four feet high separating him from these angry men, and chastised them as they merited. His invective culminated in denouncing them as bloodhounds eager to slake their accursed thirst in innocent blood. These misguided ones were brought back to proper behavior, and with them admiration of the fearless and eloquent advocate displaced their hostility, and carried upon an invisible wave an influence in favor of the accused over the entire community, and even into the jury box. And the narrator, who was one of Toombs's greatest admirers, told with fond recollection how the popular billows were laid by the speech of his junior, and how he himself took heart and found the way to an acquittal which he feared he had lost.

This affair is illustrative of Toombs in two respects. In the first place it shows his extempore faculty and presence of mind. I have seen him so often in sudden emergencies do exactly the thing that subsequent reflection pronounced the best, that I believe had he been in Napoleon's place when the Red Sea tide suddenly spread around, he would have escaped in the same way, or in a better one. I do not believe that this can be said of any one else of the past or present. In the second place it is one of the many proofs extant that he could always vanquish the mob.

He divined what offered cases are unmaintainable more quickly, and declined them more resolutely than any one I ever knew. So free was he from illusion that he could not contend against plain infeasibility. It was impossible for clients, witnesses, or juniors to blind him to the actual chances. For ten years or more, commencing with 1867, I observed him in many *nisi prius* trials, and I noted how unfrequently, as compared with others, he had either got wrong as to his own side or misanticipated the other. But now and then it would develop that the merits were decidedly against him. He would at once, according to circumstances, propose a compromise, frankly surrender, or, if it appeared very weak, toss the case away as if it was something unclean. When he had thus failed, his air of unconcern and majesty reminded of how the lion is said to stalk back to his place of hiding when the prey has eluded his spring.

Stephens came to the bar some four years after Toombs did, and settled in an adjoining county. I need merely allude to their long and beautiful friendship, full details of which are to be found in the biographies of the former. I merely emphasize the importance of Stephens's help to Toombs's development in his early politics. The former got to congress two years before he did. Toombs evidently relied greatly upon the sagacity with which the other divined how a new question would take with the masses. On his return from a brief and bloodless service in the Creek war as captain of a company of volunteers, Toombs commenced a State legislative career, which Mr. Stovall has creditably told.^[97] I can stop only to say it was honorable, and contributed greatly to his political education.

When Toombs was at the Virginia law school, he heard some of Randolph's stump speeches; and for a few years afterwards he often vouched passages from them as authority. Stephens would tell this; and then with affectionate mischief tell further that his friend, before he had finished in the Georgia legislature, had ceased entirely to support his contentions with anything else than his own reasons.

Before he got to Congress, he had made reputation at the hustings. In 1840 he crossed the Savannah, and meeting the veteran McDuffie in stump debate is reported to have come off with the high opinion of all hearers, including his adversary.

Let us now take an inventory of him as he is about to enter congress. He is the best lawyer in the State, except Cone, and fully his equal; while as a speaker he did not have Lumpkin's marvellous suasion of common men, yet with them he was almost the next, and he was far greater than Lumpkin in quelling the mob, convincing the honest judge that his law was right, and convincing also the better men of the jury and citizens present that the principles of justice involved in the issue of facts were to be applied as he claimed; he had acquired enough of property to be considered rich in that day, although he had always lived liberally; his legislative and political career had convinced the people that he was incomparably the best and ablest man of the district for their representative. It is to be especially emphasized that he had practical talent of the highest order. His plantation was a model of good management. His investments were always prudent and lucrative. Practical men of extraordinary ability were bred by the

conditions about him. In the Raytown district of Taliaferro county—about ten miles distant—my maternal grandfather, Joshua Morgan, lived on his plantation of more than a thousand acres, which he managed without an overseer. His father had been killed by the tories. His education had been so scant that he found reading the simplest English difficult, and to sign his name was the only writing I ever knew him to do. But his plantation management was the admiration of all his neighbors. His land was sandy and thin, but he made it yield more than ample support for his numerous family, his rapidly increasing force of negroes, his blooded horses, his unusually large number of hogs, cows, sheep, and goats; and a fair quantity of cotton besides. The slaves loved sweet potatoes more than any other food, and they were a favorite food in the Big House. His supplies never failed, there being some unopened “banks or hills” when the new potatoes came. His hogs were his special attention. His fine horses required so much corn, and so much more of it was needed for bread, that he could not feed it lavishly to his hogs. So he developed a succession of peach orchards, with which he commenced their fattening in the summer. These were four in all; the first ripened in July and the last the fourth week in October. The fruit in any particular one ripened at the same time, and he cared not how many different varieties there were. Whenever he tasted peaches away from home that he liked, if they were not from grafted trees, he would carry away the seed, and there was a particular drawer labelled with the date, into which they were put. Whenever he had need to plant a tree whose fruit was desired at that particular time of the year, the seed was planted where he wanted the tree. Many of his neighbors planted the seeds in a nursery, whence after a year or two they transplanted the young trees; but my grandfather, as he told me, saved a year by his method. He was always replanting in place of injured trees and those he had found to be inferior. The “fattening” hogs—that is, those to be next killed for meat—were turned into the July orchard just as soon as the peaches commenced to fall; and they went on through the rest of the series. There was running water in each orchard. After peach-time, these hogs ran upon the peas which were now ripe in the corn fields, the corn having been gathered. And for some two weeks before they were to be killed they were penned and given all the corn they would eat. What pride the good planter of that time took in keeping independent of the Tennessee hog drover, who was the main resource of his rural neighbors who did not save their own meat, as the phrase then was! Observing that his

hogs were not safe against roving negroes when away from the house on Sunday, on that day they were kept up. One of my earliest recollections is that of Old Lige driving them to the spring branch twice every Sunday. For a long while he tried in various ways to protect his sheep against worrying dogs. At last he had them “got up” every night in some enclosure he wished to enrich near enough to the Big House for his own dogs to be aware of any invasion by strangers, and he never had a sheep worried afterwards. The foregoing is enough to suggest the whole of the system. The management of its different trains and many separate departments upon an up-to-date railroad was not superior in punctuality and due discharge of every duty. He lived well, entertained hospitably, and kept out of debt. Mr. Thomas E. Watson has lately given a graphic description of good plantation conduct, [98] which ought to be considered by all those who now believe that every planter was necessarily slipshod and slovenly in his vocation. It was a good training school for the born business man. Let me give an example to show how extensive planting bred experts in affairs. The Southern Mutual fire insurance company—its principal office being at Athens, some forty miles distant from Toombs’s home—at the beginning of the brothers’ war had for some years almost driven all other insurers out of its territory. It is still such a favorite therein that it is hardly exaggeration to state that its competitors must content themselves with its leavings. The plan of this great company is a novel form of co-operative insurance—indeed, I may say, it is unique. It was invented, developed, and most skilfully worked forward into a success which is one of the wonders of the insurance world. The men who did this were never any of them reputed to be of exceptional talents. They had merely grown up in the best rural business circles of the old south. A similar fact explains the mastery of money, banking, and related matters which Calhoun acquired in a locality of South Carolina, not forty miles distant from Washington, Georgia. It also explains why Toombs, bred in the interior and far away from large cities, had perfectly acquired the commercial law; had complete knowledge of the principles and practice of banking, and those of all corporate business, and also a familiarity with the fluctuating values of current securities equalling that of experts.

He was also, as I know, almost a lightning calculator, and fully indoctrinated in the science of accounts.

Surely this man, now thirty-five, is ripe for congress.

January 12, 1846, the United States house of representatives having under consideration a resolution of notice to Great Britain to abrogate the convention between her and the United States, of August 6, 1827, relative to the region commonly called Oregon, Toombs made his congressional debut.

It is an able speech for a new member—especially for one grappling with a question peculiar to a part of the country so far away from his own. Convinced that the adoption of the resolution could give no just cause of offence, he will not yield anything to those who merely cry up the blessings of peace. The warlike note is deep and earnest. Then comes the most original part of the speech. Showing great familiarity with the facts and the applicable international law, he does his utmost to prove that the title of each country is bad; and it seems to me that he succeeds. He urges that the time has arrived when American settlers are ready to pour into Oregon. “Terminate this convention and our settlements will give us good title.”

Of course I believe that Calhoun’s policy, as I have explained it above, was the true one, and that we should have continued the convention as to joint occupancy as long as possible. Toombs was bred among the followers of Crawford, who regarded Calhoun as his rival for the presidency, and I doubt if he ever did neutralize this early influence enough to enable himself to do full justice to Calhoun. And as a further palliation, his combative temperament must be remembered, and also that he had inherited from a gallant Revolutionary father an extreme readiness to fight England.

July 1, 1846, he discusses a proposal to reduce import duties in a long speech, carefully premeditated as is evident. He shows great familiarity with Adam Smith, economical principles, fluctuations in prices of leading commodities, and the consequences of affecting legislation. Its main interest here is the detailed argument in its concluding passages against the expediency of free trade, of which he afterwards became an advocate.

January 8, 1847, a speech on the proposed increase of the army is his next considerable effort. He denounces the Mexican war as unjust in its origin, but he reprehends its feeble conduct. He is very strong, from the southern standpoint, in what he says of the Wilmot proviso. Here is a passage characteristic of Toombs later on:

“The gentleman from New York [Grover] asked how the south could complain of the proposed proviso accompanying the admission of new territory, when the arrangement was so very fair and put the north and south on a footing of perfect equality. The north could go there without slaves, and so could the south. Well, I will try it the other way. Suppose the territory to be open to all; then southerners could go and carry slaves with them, and so could northerners. Would not this be just as equal? [Much laughter.] I will not answer for the strength of the argument, but it is as good as what we of the south get. [Laughter.]”

Winthrop, who followed, commences by deprecating the necessity that exposed him to the disadvantage of contrast with a speech which had attracted so much attention and admiration. And Stephens praised the effort greatly.^[99]

December 21, 1847, Toombs offered a resolution in the house, that neither the honor nor interest of the republic demand the dismemberment of Mexico, nor the annexation of any of her territory as an indispensable condition to the restoration of peace.

His Taylor speech of July 1, 1848, evinces warm whig partisanship.

In his first years at the bar he loitered a while as a speaker. And one who studies his record in congress discerns that it is some two years before he commences to feel easy as a member of the house. The speeches which I have mentioned above, with the solitary exception of that of January 8, 1847, are labored communication of cram rather than the peculiar language of the speaker who, when I commenced to observe him a few years later on the stump, had become a marvel both of strong thinking and fit expression extempore.

I detect a gleam of the coming man, when August 4, 1848, and February 20, 1849, he exhibits his inveterate hostility to maintaining and increasing an army in time of peace. Next he begins his lifelong war upon high salaries, and the extravagance and waste of congressional printing. Note what he says February 29, 1848, advocating reduction of salaries of patent examiners; and his denouncing the evil of congress's publishing agricultural works, in two speeches, the one made March 20, 1848, the other January

18, 1849. These are short, but strong, and their forcible style gives sure promise that the true Toombs is at hand. He suddenly found his real self in December, 1849, when his lead towards secession commenced, as I shall detail later. After that date he soon becomes one of the strongest and most influential members; and especially one whose speech greatly attracts audience. I must support this assertion by the record. With my limited space I must be very brief. My trouble is that the many examples which I could use are all so good it is hard to decide what must be left out. While I shall always give dates, so that my statements can be checked by reference to the *Globe*, I need not confine myself strictly to the order of time.

His mastery of parliamentary law is a good subject to begin with.

January 18, 1850, it was moved that the sergeant-at-arms act as doorkeeper until one be elected. The chair decided that the question affected the organization of the house and was therefore one of privilege. On an appeal there was much discussion. Here is the part played by Toombs:

“Mr. Toombs. I apprehend that the speaker has committed error. This is not an office known to the law; it was created only by the rules of the house. The office of speaker and clerk alone are known to the law.... It is not every officer whom by their rules they may choose to appoint, that is necessary to the organization of the house. Suppose that by a rule they provided for the appointment of a bootblack; could a resolution for his appointment be made a question of privilege to arrest and override all other business?

Mr. Bayley inquired of the gentleman from Georgia if a rule was not as clearly obligatory upon the house as a law.

Mr. Toombs. It is; but its execution is not a question of organization.”

A reversal was the result.

The following took place February 20, 1851, and is a good illustration of his forcible way of putting things:

“Mr. Toombs. (Interrupting Mr. Stanton) called the gentleman to order. The committee ought not to tolerate this custom of speaking to matters not immediately before it.

The Chairman. Does the gentleman from Georgia raise the point of order that the remarks of the gentleman from Tennessee are not in order because they have no reference to the bill before the committee.

Mr. Toombs. My point is that debate upon steamboats is not in order upon a pension bill.

The Chairman. I decide the gentleman is in order. It has been invariable practice to permit such debate in committee of the whole on the state of the union.

Mr. Toombs. The practice may have been permitted; but it was wrong.”

On appeal by Toombs the chairman was reversed.

Though Toombs—a whig—had stubbornly opposed the candidacy of Howell Cobb—a democrat—he soon became to the latter, after his election as speaker, the leading parliamentary authority. Often there would be confused clamor and wild disorder, nearly every member proposing something. At a loss himself, Cobb would look at Toombs and see him intently conning his Jefferson. Soon he would rise, and being recognized by the speaker at once, would forthwith suggest the right thing.

The foregoing was often told by Cobb, as his friends have informed me.

February 24, 1853, he shows up the bad consequences of overpaid offices, the duties of which the holders can hire others to do for half of its compensation; and March 2, the same year, he thus speaks of a cognate evil:

“The gentleman seems to go upon the principle that as many clerks with high salaries should be attached to one office as to any other—the principle of equalizing the patronage of these different offices without regard to the species of labor required by each.”

I append here a collection of short extracts from Toombs's speeches in the lower house, which illustrate his power to tickle the ear by striking presentation, epigram, and novel expression:

Debate always Harmless. "A little more experience will show the gentleman that he is mistaken, and that the absence of discussion here does not accelerate adjournment. The most harmless time which is spent by the house, he will find, is that spent in discussion." February 17, 1852.

Nominees of National Conventions. "What are the fruits of your national conventions?... They have brought you a Van Buren, a Harrison, a Polk, and a General Taylor.... I mean no disparagement to any one of these. All of them but one [Van Buren] have paid the last debt of nature, and the one who survives, unfortunately for himself, has survived his reputation." July 3, 1852.

Two Classes of Economists. "There is a class of economists who will favor any measure by which they can cut off wrong or extravagant expenditures. But there is another class who are always preaching economy—who are always ready to apply the rule of economy and get economical in every case except that before the house." February 17, 1852.

Principles of Banking. "If we intend to regulate the business of banking in this District, the bill does too little; if we do not, it does too much. As it does not seek to control generally the business of banking, but permits the issue of notes greater than five dollars, it violates the principles of unrestrained banking, but does not go to the extent of regulation by law. I think the public are more likely to suffer, and to a greater extent, from bank issues above five dollars than those under that amount." January 11, 1853.

The Dahlonga Mint, in his own State. "I believe the mints at Dahlonga, Charlotte, and New York are each unnecessary.... I do not desire to continue abuses in Georgia any more than in New York. I am willing to pull up all abuses by the root.... I

think the existing mint is adequate to the wants of the country.”
February 17, 1853.

Personal Explanations in Debate of Appropriations. “I believe that with all the abuses we have had in the discussion of appropriation bills, we have never had personal explanations.”
February 21, 1850.

Toombs is now about to leave the lower for the upper house. He has grown in all directions in the qualifications and powers marking the good representative. There is no other man in the house, from either section, whose ability is superior or whose promise greater. Three days before his career in the United States senate begins, he made the following appeal, protesting against hasty and reckless expenditure, which seems to me a model of matter and extemporaneous expression:

“In this bill the fortification bill is introduced; and provision made for private wagon ways for Oregon and California. There is in it an appropriation of \$100,000 to pay somebody for the discovery of ether. You have a provision for a Pacific railroad; and you have job upon job to plunder the government in the military bill;—and the representatives of the people are called upon to vote on all these grave questions under five minutes’ speeches. You do gross injustice to yourselves; you betray great interests of the people when you act upon such important measures in this manner. Let the house reject the amendments; let the senate devote its time to maturing bills, and send them to us to be acted upon deliberately; and then whichever way congress determines for itself, it will have a right so to do. But to act upon them in this way, is not only to abdicate our powers, but to abdicate our duties. Put your hands upon these amendments and strike them out.” March 1, 1853.

Manifestly all that he had learned of the pending bill was from having heard it read. The instant apprehension and accurate statement, and the exhaustion of the subject in far shorter time than his small allowance—these recall what I often heard Stephens say, “No one else has ever made such perfect and telling impromptus as Toombs.”

His famous Hamilcar outburst did not consume all of his five minutes.

Toombs was United States senator from March 4, 1853, until the spring of 1861. His peculiarities must be suggested. Although he was perhaps the ablest lawyer in the senate, loved the profession with all the ardor of first love, and had great cases with large fees offered him every day, he resolutely subordinated law practice to his congressional duties. He did much practice, but it was all in the vacations of congress. He did not seek office. There is not to be found, so far as I know, a trace of any aspiration of his during his congressional career for other than the place of senator. If on a special committee, he worked energetically; but he avoided the standing committees. He says:

“It is only occasionally that I go to the committee meetings to make a quorum to act on important business. I do not attend them one day more than I am obliged to, for I am quite sure it is not my duty unless charged with a certain subject. This whole machinery is a means of transferring the legislation of the country from those to whose hands the constitution commits it to irresponsible juntas.... I say general standing committees, without any exception, are great nuisances, and they ought to be abolished.... They are not proper bodies to exercise legislative powers. They are not known in the country from which we derive our institutions. The English have no standing committees. They raise special committees on special objects.”^[100] February 18, 1859.

“The general business of the country,” as he expressed it, January 10, 1859, that was his concern. Each subject requiring the action of the senate, whether important or trivial, received his industrious attention, as his course and language on the floor always show; and he evidently feels it his duty to furnish the body on all questions the utmost instruction and aid that he can possibly give. He had no ambition to be the author of novel measures—he was strenuous only to bestow upon every subject of current legislation the proper consideration. His premeditated efforts are but few. He never shows any distrust of his offhand faculty. He takes part in nearly all the discussions, often being up several times the same day on the same subject. He is seldom lengthy, hardly ever away from the point needing explanation,

and never, never dull. Generally he comes with correcting fact or enlightening principle, and it is seldom that his matter and words are not both impressive. I found it well in writing the Life mentioned above to present the most of his senatorial course by assorting his utterances under their proper heads, with the briefest possible comment, rather than to narrate chronologically in the common way of biographers. In his speeches it is only now and then that he is steadily progressive as he was in the Iowa contested election case. His advocacy or opposition is generally founded upon a principle, and from this principle—usually central and self-evident—the different passages radiate in aphorisms, self-supporting paragraphs, and detached arguments,—this common radiation being their only connection. Accordingly if you know what is the particular subject that is under discussion, a part taken at random anywhere from any of his extempore speeches is nearly always complete in itself and fully intelligible. Therefore we can have him to give in his own words, in a comparatively small space, an approximately full collection of the rich and varied teachings of his senatorial career, although our chrestomathy would appear to one putting it beside the unmutilated report of the *Globe* as a beggarly and jejune abstract. I know of no other public man with whom this can be as satisfactorily done. Of course the compilation made by me, as just told, cannot be given here. He challenged every bad and defended every good measure. He is on record both by speech, nearly always hitting the nail on the head, and by vote, nearly always right, upon every one. What he did in the house deserves close attention; but his actings and doings in the senate, to which he belonged from March 4, 1853, until shortly after his famous speech of January 7, 1861, when he left to go with his seceding State, are such that I challenge all students of history to produce a single example of such earnest grappling with and able handling of so many matters of importance in so short a time—not eight full years—by any member of ancient or modern parliaments.

Having now, I hope, aroused my readers to some faint conception of Toombs's greatness as a senator in non-sectional matters, I must bring that greatness into fuller view, if I can. I therefore add to the foregoing catalogue the rough character sketch next following.

We begin with his devotion to his duties. One examining the *Globe* will hardly find any other member who calls as often for the reading of the

reports accompanying bills to pay private claims, and such other small matters; and he will always observe that his immediate comment shows that he has fully taken in what has been read. He said once, "I have been reproached half a dozen times within the last two days as being rather fractious because I desired to understand the business on which I was called to vote." August 3, 1854.

The alert and intelligent vigilance which he gives every measure proposed seems superior to that of all his colleagues. They acknowledge this by the many inquiries they make of him for information as to pending bills. Thus June 20, 1860, Green asks him where is the amendment? when was it adopted? has the house disagreed to it? has it been before a committee? etc., and every query is answered without hesitation. This but examples how the other senators very often made a convenience of Toombs's accurate note of what was passing.

He shows a like readiness upon facts of history—especially English and American—on clauses of the constitution, or statutes, or treaties, provisions of the law of nations, principles of political economy, institutions, commercial systems, customs of particular nations, and all such topics as may illustrate the pending question, however suddenly it may have risen. And so he discusses every matter, grave or trivial, with perfect grasp of the proposition submitted, and with fullness of knowledge and understanding. He avoids strained and over-ingenious reasoning. Plain and safe men never disparaged his arguments by calling them hair-splitting or metaphysical. But though he took his stand upon the palpable meaning of undisputed facts and the most plainly applicable doctrines of reason and justice, he displayed an unparalleled power of formulating in intelligible and striking words the key principles of common affairs. This gift always found instant appreciation with practical men, and they admired it as genius. Though he has his eye ever open to principle, he is the very opposite of the mere doctrinaire. He is practical, and always pushing business on, except when the bills depleting the treasury—to use his favorite name for them—are up and likely to pass because of the coalition between the opposition and the fishy democrats which he is always exposing with exhaustless variety of language. Only then he prefers to do nothing.

As to his own measures, he changes words, accepts amendments—in short makes every concession which will gain him the substance of his desire.

We will here say a little of him as a speaker. He thus describes himself:

“I speak rapidly; but the idea which I intend to utter generally comes out, sometimes perhaps with too much plainness of speech. What I say, I mean; and the whole of what I mean generally gets out.” July 30, 1856.

He shows in the following a contemptuous opinion of written speeches:

“As a general rule a speech that is fit to be spoken is not fit to be printed, and one fit to be printed is not fit to be spoken.... The senator from New York [Seward] comes in with his already in type; other gentlemen around me, on both sides of the house, from all sections of the union, who think proper to write essays, bring them here and read them to the senate.... I am not objecting to their character, but I would rather read them in my room. Of course nobody pays any attention to them here.” April 22, 1858.

He did not habitually correct the report of his speeches, as he says May 13, 1858; at the same time entering a general disclaimer as to all that he does not report himself. This disclaimer must not be pressed too far. If you are familiar with the man you need not fear being led astray by the inaccuracies, the number of which he greatly exaggerates. His stamp is so unmistakable that you always know what is his. Extempore discussion was his forte. Therefore nearly all the quotations I use in the Life which I have written I intentionally take from his shorter, impromptu, and evidently unrevised speeches. These unlabored effusions, it matters not how dry or small the particular theme may be, have generally the double merit of showing the true solution and refreshing with figure, apt illustration, or wit.

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In important debate he is conspicuously the strongest man in the senate. We will run over the leading ones:

July 28, 1854, a bill containing appropriations for places in nearly every one of the States came up. Through the long debate he evinces uncommon

power and readiness. He is too tart in rejoinder, and too much gives the rein to invective.

In the two days' debate of the mail steamer appropriation—February 27, 28, 1855,—he distinguishes himself.

February 6, 1856, Toombs, with Hunter and Toucey, supports a resolution proposing the origination of appropriation bills in the Senate. Sumner and Seward take the other side. The argument of Seward is very elaborate, notwithstanding his declaration at the outset that he is wholly unprepared. It is demolished by Toombs in his most crushing style. Note, too, how accurate the latter is as to the proceedings of the constitutional convention, how familiar he is with the abuses of wild appropriations which he is trying to correct, and how graphically he depicts them.

July 28, 1856, the Black Lake harbor appropriation is the subject. All that he says is noticeable for power; especially his replies to interruptions by Pugh, Wade, and Cass. Though the bill was passed over his head, as you read the report you feel that his was the actual triumph.

July 30, 1856, another debate of river and harbor improvements. It is begun by Hunter. Benjamin takes the lead in support of the bill; Toombs joins discussion with the latter, who by his coolness and adroitness for a while foils his adversary; but soon Toombs gets his feet firmly on the constitution, and still more firmly upon the injustice of extorting the support of commerce from other interests, and he is resistless. The disputants often put questions to one another. Toombs's promptness to answer every adverse position is a taking exhibition. It is to be noted that many sparkling sentences are struck out of him by the incessant hammering of the others. At the close, he seems either to have wearied or silenced his opponents. One cannot but feel that this is no arena for a man who can make only written speeches.

August 4, 1856, the subject being the improvement of the Mississippi, Toombs urges that the valley is prosperous, and it should improve its river. The examination he gives the question is profoundly searching. Towards the conclusion of the debate, Cass reads the counter doctrine of Calhoun, in the report of latter to the Memphis convention, his reason being, as he says: "I will confess frankly my object in reading it. The senator from Georgia has

treated the question with great ability; and I want the same vehicle that carries his remarks to the public to carry also the opinions and views of Mr. Calhoun, whose authority is vastly better than mine.”

Through the whole of this debate the faculty and force exhibited by Toombs are wonderful even for him.

Consider all that he says of the proper management of the post-office, February 28, 1859.

January 30, 1860, there was an animated debate, which occupied the morning and was renewed in the evening. The vigorous blows which he deals the coalition passing the appropriations—ever the theme of his severest reprehension—and the review he makes of each item in the appropriation bill, taken all in all, are high feats.

His conduct, January 6, 1857, in the Iowa contested election manifests such rare courage against party and section for the right that it must be told at some length. We think it belongs with the more important matters just noticed rather than to its chronological place.

Harlan, a republican, had been sitting for some time as a senator from Iowa. There was no contestant. The adverse report was grounded upon a protest of the Iowa senate, stating that that body did not participate in the so-called joint convention which had affected to elect Harlan. It appeared that both houses of the Iowa legislature had met in joint convention, had balloted without result, and the convention had adjourned to meet at 10 A. M. the next day. On this day the senate—the majority of its members manifestly being democrats and opposed to the sense of the joint majority—met in their own chamber and adjourned before the hour appointed for the assembling of the convention. But a majority of the senate were present in the convention when it made the election—several of them having been brought in by the sergeant-at-arms, and who protested that they did not act in the proceedings. In the United States senate the democrats were in a majority, but Toombs, who was always above mere party considerations, supported the cause of Harlan, saying afterwards, “I maintained his title, black Republican though he was, because I believed it stood on right.” February 15, 1858. The decision was against Harlan; but I do not think that an unbiased man who regards mere technical rules as no more than the

instruments of justice, will fail to concur with Toombs. His treatment of the subject is extremely good and entertaining. Every material fact is given prominence; every important distinction taken, as, for instance, that the convention, as it could do no legislative act and did not require the concurrence of the executive, was not really the legislature, but only the persons constituting the legislature acting in a body of their own as electors; and further, his position that after the convention had organized it could proceed with the election as long as it had a quorum. Having completed a most lawyer-like and concatenated argument, which is a wonderful exhibition of concise and exhaustive extemporaneous reasoning, he rises to the higher plane of statesmanship and justice, in which he shows in a vivid light what a monstrous evil it would be to approve the factious withdrawal of the majority of the Iowa senate from the convention. Note especially the many questions asked him by different members, and the readiness and satisfactoriness of his answers.^[102] It is all in all one of the best samples of Toombs's dispassionate debate to which I can refer. Very probably the democrats would have done right by Harlan had it not been for Bayard's argument, the special effectiveness of which was the use he made of the case of his own election, in 1839, to the United States senate by the Delaware legislature. As he stated it, it was this: There being a majority of one in the Delaware house of representatives in favor of the opposite party, a majority of that house refused to go into the joint balloting. Bayard was elected, and it was maintained by his party, the democrats, that a majority of the members of the two houses had authority to proceed; but he hesitated, and at last consulted Silas Wright, of New York. The latter gave a decided opinion that such an election was invalid. Whereupon Bayard succumbed, and his State was without a senator for two years. I cannot help feeling that if Wright had considered the subject and bottomed it on true principle, as Toombs afterwards did, Bayard would have settled down in the opposite conclusion, and he and Toombs in concert would have forced their fellow-democrats of the United States senate into doing justice to an opponent.

Many have been superior to Toombs in making perfect orations, but it is hard to find in any deliberative body a match for him as a debater. Charles Fox was a giant; but he did not have the strength, the grip, the never remitted activity, the infinite thrust, the parry, illustration, wit, epigram, and invincible appeal to conscience, feeling, and reason—in short, the complete

supply and command of all resources that marked Toombs as foremost in the pancratium of parliamentary discussion. It ought to add inexpressible brightness to his fame that he sought for no triumphs except those of justice and good policy. He was far more than a mere logician in debate. His brilliant snatches, his sudden uprisings, his thawing humor, and flashing wit—all these did their part as effectively in winning favor and working suasion as his array of facts and his ratiocination did theirs in convincing. He was too prone to use harsh language towards the other side. There are many places in his speeches where I wish he had used soft instead of bitter words. That he could observe perfect parliamentary propriety there are proofs in the *Globe*. Especially would I refer to his behavior in the Harlan debate, spoken of a moment ago, and his discussion of the Indiana senatorial election, June 11, 1858. Note the last especially (belonging volume, 2943-2947) for his moderation, courtesy, and invitation of question while he is most ably supporting the central proposition he had before urged in the Iowa case.

Yet, in spite of his occasional vehemence and acrimonious language, he seems to have the respect and regard of even his most decided political opponents. Wade and he recognize each the great merit of the other. Once after applauding his honesty and frankness, Toombs says of him: “He and I can agree about everything on earth until we get to our sable population, I do believe.” March 22, 1858.

Wade had already said this of Toombs: “I commend the bold and direct manner in which the senator from Georgia always attacks his opponents.” February 28, 1857.

February 8, 1858, Fessenden said, “I am very happy to get that admission from the senator from Georgia. It is made with his customary frankness and clearness.”

Hale also respects him. January 23, 1857, he says that Toombs ought to have been on the bench, complimenting his desire for justice and fairness as well as his legal ability.

The northern democrat Simmons loves to praise him, as is evidenced by what he says June 2, 1858, February 9, 1859, and June 23, 1860.

Such unsought and spontaneous commendations of the great southern partisan by northern men during the heat of sectional agitation are extraordinarily strong proofs of his high character as well as great genius.

Of course the southern members showed their appreciation. Especially note what Bayard says March 21, 1860, and what Butler says January 6, 1857. I could give many more such; but I shall only add here how, February 14, 1860, by reason of the importunate urgency of some of these, evidently regarding him as the special southern champion, he is pushed into making an able rejoinder to Hale, who had just concluded a reply to Toombs's speech on the Invasion of States.

Toombs's inflexible keeping to what he deemed the right course parallels the absolute fearlessness with which Julius Cæsar, when a young man, clung to the wife whom the all-powerful and bloody-minded Sulla commanded him to put away. The Sulla of America are the people in their unconscientious moments, and unpopularity the proscription threatened which disquiets almost all public men with torturing apprehension. And so there is in nearly every one some admixture of the trimmer. But Toombs never showed fear either of the people at large or of those of his own State and locality. He thus scourges juries assessing the value of land condemned for the government:

“It has come to such a pass that in getting places for the army, it seems to be considered better to be cheated by the owners of a site out of a few hundred thousand for \$10,000 worth of property rather than trust a jury.” June 12, 1860.

When he uttered the following he knew it was extremely unpalatable to his section:

“The southern States from their sparseness of population do not pay all their postal expenses. The whole mail service of the south ought to pay its whole expenses, and I am ready to put it on that ground.... I say the point to retrench is in the south.” February 28, 1859.

The following distasteful lesson he read his own State:

“I know that some of the mail routes in my own neighborhood were taken away, and I never was consulted about them, and I never thought it was the duty or business of the postmaster-general to consult me. I have not been to his office during this winter in regard to a single one; and I have been very much complained of, even in my own county and town, on account of it.... I have a word to say about the *Isabel*. She touches at Savannah; and I have received memorials from people, letters from interested people, from the Savannah chamber of commerce, and others, saying, ‘By all means keep up the *Isabel*; we want it.’ It is a very popular thing; it is a good ship, and has done its duty well. What have I to do but follow my uniform line of policy, and give them the same rules as everybody else? Sixteen years’ experience here—and I was here in 1847, when this steamship system commenced—have satisfied me that congressional contracts are always unwise, and are the fruitful sources of boundless legislative corruption. Therefore, I will never sustain one under any necessity whatever.” May 28, 1860.

February 22, 1859, though Iverson, his companion from Georgia, was the other way, he advocated abolishing the mint at Dahlonega in that State, and the mint also in North Carolina.

The last instance we cite is his declaration, April 25, 1856, that he had always voted against a claim of the daughter of Governor Irvin of Georgia.

And to this proud independence he was without spot of corruption. This was never questioned but once. May 13, 1858, he was taunted for having supported the Galphin claim. When at last he sees that the charge is seriously urged, in a becoming glow he demands an explanation. A disclaimer of reflection upon his character being made, he gives a detailed account of the claim, his steady support of it, and a complete justification of George W. Crawford in the affair. At its close, Hammond of South Carolina, who was familiar with all the details, bestowed upon it his unqualified voucher. The lofty spirit and just indignation informing this statement of Toombs from beginning to end distinguish it as that of one who has kept out of dark places and walked so purely in the light that accusation is far more of a surprise than insult.^[103]

He never showed any symptom of the presidential fever, which, to say nothing of its many other victims, enfeebled each one of the great trio,—Clay, Calhoun, and Webster. Fully content with his place in the senate, he did not look elsewhere. Taking popularity at its exact worth; candid and frank to the extreme; contented in the course dictated by his judgment and conscience though opposed by his people or party and his own private interest; in no bargains with men nor smirching connections with women, doing nothing in secret which, if published, would bring a blush; elevated above the amiable weaknesses of unwise benevolence, ever championing with all his powers the righteous cause of the weak and unpopular,—as exemplified in his maintaining the claims of certain persons in Louisiana to the Houmas land against the formidable opposition of the two senators from that State, in his extraordinarily eloquent appeal for the naval officers retired without a hearing, in his heroic endeavor to have his party seat the republican Harlan; incorruptible and really consistent forever and always,—when he is scrutinized as a public man his character rises into a grandeur of unselfishness, firmness of high purpose, honesty, and power to show and do the right almost superhuman. It stands by itself awe-striking and imposing.

But let us particularize the special lesson of his senatorial career. We must begin by suggesting his peculiar bent. It is clear that he chose as his province commerce and industry, with the related themes of political economy, finance, the currency, taxation, the tariff, the principles of exchange and distribution, and so on.^[104] He probably had the best business insight of all our prominent statesmen, Calhoun even not excepted. Though Hamilton and Webster—the former especially—evinced titanic comprehension of financial theory, yet we see from their lives and poor money-saving success that commercial and business affairs were not to them both practice and theory as they were to Toombs. Of all his peers he was most at home in the ways and principles which dictate proper legislation as to trade and business. To judge by his words, uttered year in and year out, nobody else ever saw more clearly that there ought to be no tariff, improvement, job, or any other pets of government. The latter should not foster such a class, yearly increasing in number, as it always will, living idly and luxuriously upon the public income, that is, upon the labor and property of others. This class supplants the vigorous products of natural selection by pampered fatlings of bounty, always raising their demands for

support, and ever more and more clamorously calling for the suppression of all self-supporting competition at home and abroad. With the moral hardihood of Shakspeare, who shrinks not from rudely shocking our feelings by making Henry V discard his old boon companion Falstaff, Toombs never wearied of proclaiming the unpopular truth that the government ought not to be the helper, guardian, patron, protector, guarantor, surety, almoner, of any of its citizens. Ponder these stout-hearted and golden words of his, although the evil represented therein is now established and magnified into dimensions far beyond what he could conceive when they were said—an evil, to suppress which let us hope all patriots will soon unite:

“Whenever the system shall be firmly established that the States are to enter into a miserable scramble for the most money for their local appropriations, and that senator is to be regarded the ablest representative of his State who can get for it the largest slice of the treasury, from that day public honor and property are gone, and all the States are disgraced and degraded.” February 27, 1857.

He is always preaching against the heinous abuse of diverting government from impartially guarding the whole community and making it profit only a few. His text is never far-fetched. He finds it in the proposed legislation of the day, which it is his duty to consider in his place. He cares not that he makes no present effect. Just before Bell’s bill for improving the Cumberland river was passed, he said of it and its companions: “These bills are passing *sub silentio*, and I suppose attempt to resist is wholly useless. I wish it understood that I do not assent to their passage. I am opposed to all of them.” February 24, 1855.

He sees that the appropriations for harbors and rivers, lighthouses, private claims, pensions, etc., are almost as baneful as was the distribution of corn to the Roman populace, and yet the people everywhere are eager for the corrupting gifts. Against his party, against many of his section, he fights alone and single-handed, reminding of Horatius keeping the bridge against the Etruscan host. Though always outvoted, he behaves with spirit and dignity. Either he, or some one of the faithful few who act with him in the slim minority, always have the yeas and nays recorded. His grand purpose

was to appeal to the American people upon an issue involving the article of his creed which he had held up with so much puissance and fidelity in days of evil report. These words contain the motto of the long contest which occupied all of his non-sectional career in the senate:

“I think every one of these bills should be considered. I do not wish to have them considered in such a manner as improperly to occupy the time of the senate. I desire to spread before the country reasonable information. That is the only purpose we can have now; because the combination is sufficient to carry everything that the committee report. But there is a day of reckoning to come; and I trust that those who support this system will be called to judgment.”

“I desire the truth to go to the honest people all over the country. Let the taxpayers look at this matter; let the jobbers beware. ‘To your tents, O Israel!’” July 29, 1856.

The sectional agitation, mounting higher and higher, as Toombs said often, blinded the people to this great subject. Secession came, and his State—to him the only sovereign—called the solitary combatant away from the ground that ought to be kept forever in loving memory for his long, desperate, thrice-valiant stand. And the world should also remember that the clauses of the constitution of the Confederate States, “prohibiting bounties, extra allowances, and internal improvements,” came from him.^[105]

The struggle that wins our deliverance from the monopolists now causing us to go hungry, cold, and unshod is yet to be. I cannot say when; but I know it will come soon, and that the people will conquer. As in that day Calhoun’s monetary doctrine will be brought out of its obscurity to add new lustre to his fame, as I believe, so I believe also that the name of Robert Toombs will become an object of affectionate reverence to all his countrymen, and the weighty and eloquent sentences in which he sought to shield general industry from drones and rivals favored by government, and in which he advocated that the public burdens be reduced to the minimum, and then apportioned justly,—these stirring words will be quoted everywhere to receive at last their due audience and favor. And when no branch of our government either robs or gives to its citizens, Toombs’s

never-remitted, brave, unselfish, and gigantic endeavor to bring on this millennium ought to be put by Americans in their Sunday-school books. When we who fought the brothers' war completely forget and forgive, as we soon will, it will then be understood how much the sectional agitation impeded him, and that when he was caught away from the senate by the whirlwind of secession he was only fifty years old, and of such constitutional vigor that he had the guaranty of at least a quarter of a century more of undiminished activity. A fond imagination will inquire: Suppose the energy spent upon the Kansas discussion; the protection of slavery in the Territories; in the great speech of January 24, 1860, on the Invasion of States, and in that of January 7, 1861, justifying secession, his supreme effort, as most of his admirers claim, could have been saved for themes of Pan-American concern; and suppose him remaining in the senate, eschewing all other place, with increasing years loved the more by his people for his courageous fidelity to the right, age assuaging his vehemence and softening his invective, ripening his judgment and bringing him charity and wisdom to the full,—to what a height and glory he would have grown!

If there had been no slavery, I verily believe that the south would have been the leading and most prosperous part of the union, and that Toombs would have been the greatest American. Stephens knew Webster, Calhoun, and Clay. The longer he lived the more positive he became in believing that Toombs was superior in ability to each one of the three. I have heard him say often that he had never found anything to which he could compare the power of Toombs, discussing a great theme extempore, except Niagara.

Turning back from these unavailing conjectures, I must say a last word as to that part of Toombs's career in the senate which I have been discussing. Its exemplariness is not so much in single great achievements. It is his uniform attention to the current duties of his place. Whether the particular duty impending was important or trivial, whether it was popular or not, it received from him at the proper time whatever effort was needed for doing it rightly. His performance averages so high in merit that I cannot find a like. No plodder ever kept more closely to the safe and beaten path. But he did far more than plod. Almost every day for eight years he showed how genius can manifest itself fully and fitly and find its true activity in the common round of affairs; how it can better, exalt, ennoble, and beautify

daily routine. I believe that if you will reflect over this, you will at last see that such are the greatest of men, and those that the world most needs.

I now take up Toombs's sectional career. The aggressive defence of slavery, looming in sight as Calhoun is within a few months of death, called for a leader who did not hug the union, and whose eyes were shut to everything but the justice and sanctity of the southern cause. Calhoun's last speech, that of March 4, 1850, was throughout an appeal to the north. In that same session, and some while before that speech was delivered, the true apostle of secession begins the proclamation of his mission, and some time after Calhoun's death and before the end of the session that portentous proclamation was complete. Robert Toombs—then in his fortieth year, and having as yet attained but little conspicuousness in congress—is the man I mean. His appeal was really to the south.

Just after the new congress assembled in December, 1849, a caucus of the whigs, to which party Toombs then belonged, having met to nominate a candidate for speaker of the house, he introduced a resolution to the effect that congress ought not to put any restriction upon any State institution in the Territories, nor abolish slavery in the District of Columbia, and, the resolution being rejected, Toombs, Stephens, and a small number of others retired from the caucus, and they did not act any further with their party in the organization of the house. Toombs and his following declared their purpose to disregard former connections and side with whatever party accorded the south the guaranty demanded by the resolution above mentioned. As these southern whigs, and also fourteen northern democrats and whigs, would not support for speaker either Cobb, the democratic nominee, or Winthrop, the whig, neither one of the two nominees could muster the majority necessary under the rules for election. Toombs's tactics were like those of the commons who would not vote the supplies until the king granted their wishes in other matters. At this time all the southern democrats and a majority of the southern whigs were opposed to his action. He was leading what appeared to be a hopeless advance. This is the beginning.

The next stage is when, after nine days of balloting for speaker without result, a resolution was introduced declaring Cobb, who had received a plurality, speaker, when Duer of New York opposing, said he was willing for the sake of organizing to elect a whig, democrat, or free-soiler—only that he could not support a disunionist. This manifest reflection upon the whigs who had held themselves aloof made Toombs break the silence he had theretofore kept.

He surprised everybody—perhaps himself—with an impromptu of powerful argument and burning eloquence. Note, in order to compare it with whatever utterance of Calhoun you please, these passages:

“Sir, I have as much attachment to the union of these States, under the constitution of our fathers, as any freeman ought to have. I am ready to concede and sacrifice for it whatever a just and honorable man ought to sacrifice. I will do no more. I have not heeded the aspersions of those who did not understand or desired to misrepresent my conduct or opinions. The time has come when I shall not only utter them, but make them the basis of my political action here. I do not, then, hesitate to avow before this house and the country, and in the presence of the living God, that if by your legislation you seek to drive us from the Territories of California and New Mexico, purchased by the blood and treasure of the whole people, and to abolish slavery in the District, thereby attempting to fix a national degradation upon half of the States of this confederacy, *I am for disunion*; and if my physical courage be equal to the maintenance of my convictions of right and duty, I will devote all I am and all I have on earth to its consummation.”

“The Territories are the common property of the United States.... You are their common agents; it is your duty while they are in the territorial state to remove all impediments to their free enjoyment by both sections ... the slaveholder and the non-slaveholder. You have made the strongest declarations that you will not perform this trust; that you will appropriate to yourselves all the Territories.... Yet with these declarations on your lips, when southern men refuse to act with you in party

caucuses in which you have a controlling majority—when we ask the simplest guaranty for the future—we are denounced out of doors as recusants and factionists, and indoors we are met with the cry of ‘Union, union!’”

“Give me securities that the power of the organization which you seek will not be used to the injury of my constituents, then you have my co-operation; but not till then.... Refuse them, and, as far as I am concerned, ‘let discord reign forever.’”

I must emphasize the effect of this speech made December 13, 1849,—nearly three months before that of Calhoun last mentioned,—and which goes great lengths beyond anything ever said by Calhoun. The *Globe* mentions that the speaker was loudly applauded several times. Stephens, who was present, says “it received rounds of applause from the floors and the galleries,” and we can well believe his assertion that it “produced a profound sensation in the house and in the country.”^[106] Another eyewitness, Hilliard of Alabama, a southern whig who was not in sympathy with his refusal to act with his party, relates with rapturous reminiscence the full-orbed splendor with which Toombs unexpectedly rose upon the house at this time. He tells: “A storm of applause greeted this speech. Mr. Toombs had left his desk and taken his stand in the main aisle and the southern members crowded about him.”^[107]

For completeness and height, and for sudden surprise, this speech exceeds all impromptus on record. To appreciate it you must recognize it as surely forerunning the future uprising of southerners as one man in what they deemed the holiest of causes. When you do this you can adapt to it Webster’s words:

“True eloquence ... does not consist in speech.... It must exist in the man, in the subject, and in the occasion.... It comes ... like ... the bursting forth of volcanic fires, with spontaneous original, native force.... Then patriotism is eloquent, then self-devotion is eloquent.... This, this is eloquence; or rather it is something greater and higher than all eloquence—it is action, noble, sublime, godlike action.”

The remaining facts of this remarkable session, which show that Toombs and not Calhoun was the apostle of secession, can now be told very briefly.

December 14, 1849, debate in the house was prohibited by resolution. On the 22d the whigs and democrats, in order to organize without agreeing to the demands of Toombs, joined in a resolution that the person receiving the largest vote on a certain ballot, if it should be a majority of a quorum, should be speaker. This was a palpable violation of the rules, but perhaps authorized by the great emergency. When the resolution was presented, Toombs, having resolved to prevent any organization until he had secured the guaranty he was standing for, in defiance of the prohibition of debate, made a demonstration of his surpassing endowment, as compared with all other orators, to outmob a hostile mob and scourge them into respectful audience. He adroitly led Staunton, introducing the resolution, to yield the floor. Why should he want the floor? The house had forbidden any discussion, and especially were nine-tenths of them deaf to him, deeming him the cause of their failure to organize. Announcing his purpose of discussion, he was called to order. Then a point of order was raised, which the clerk tried to put. The yeas and nays being demanded, the clerk began to call the roll. There was turmoil and din, but Toombs held on, denying the right of anybody to interrupt him, supporting his attack on the resolution by the constitution, the act of 1789, and the high authority of John Q. Adams, challenging the right of the clerk calling the names, and indignantly inquiring of the house how they could so permit an intruder and an interloper in nowise connected with them to interrupt their proceedings. At the last he forced the house into quiet, and completed the argument he had risen to make. You will not understand this marvellous achievement if you deem it, as many do, to have been prompted by the pride of ostentation and the rage of turbulence. Toombs was thinking only of securing the rights of his people. He was as earnest in this cause as ever Webster was for the union. And destiny, providence,—not himself nor other men,—was in this juncture revealing him to the south as her leader.

He now begins to be conscious of his coming leadership, and to feel that he is an authority and entitled to pronounce *ex cathedra* upon the question of southern equality in the disposition of the Territories. Consequently, February 27, 1850, he made a long speech on the subject of the admission of California—one far more elaborate and finished than his average efforts.

Especially to be noted is its ending with the famous words of Troup, “When the argument is exhausted, we will stand by our arms.”

One other exploit of Toombs during this session must be told. It crowned him as the leader of the south.

Excitement had become intense. The extreme northern partisans for bringing in California were challenged to answer if they ever would vote to admit a slave State, and they declined to say that they would. Thereupon came from Toombs an outburst which is perhaps the finest example of his miraculous extempore declamation which has survived. He did not consume the five minutes to which he was limited. We append the conclusion, which is a little more than a third of the whole:

“We do not oppose California on account of the anti-slavery clause in her constitution. It was her right to exclude slavery, and I am not even prepared to say she acted unwisely in its exercise—that is her business; but I stand upon the principle that the south has the right to an equal participation in the Territories of the United States. I claim for her the right to enter them all with her property and securely to enjoy it. She will divide with you, if you wish it; but the right to enter all, or divide, I shall never surrender. In my judgment, this right, involving as it does political equality, is worth a thousand such unions as we have, even if they each were a thousand times more valuable than this. I speak not for others, but for myself. Deprive us of this right and appropriate this common property to yourselves, it is then your government, not mine. Then I am its enemy, and I will, if I can, bring my children and my constituents to the altar of liberty, and, like Hamilcar, swear them to eternal hostility to your foul domination. Give us our just rights, and we are ready, as ever heretofore, to stand by the union, every part of it, and its every interest. Refuse it, and for one I shall strike for independence.”

Stephens, ever a most accurate and trustworthy witness, says that of all speeches which he heard during his congressional course, which covered the years 1843-1859, this produced the greatest sensation in the house.[\[108\]](#)

Its effect outside—that is, in the southern public—was widespread, deep, and permanent. The comparison with which it closed had been, I believe, used before; but what of that? It exactly voiced the revolutionary sentiment which, as his deliverances on the 13th of December before showed, was beginning to come into consciousness in his section. It gave new impetus to the circulation of the other speeches. The young men of Georgia, as I know, and perhaps those of other southern States, read them over and over, reciting with passionate emphasis the most stirring passages. Especially did they delight to declaim the peroration of the Hamilcar speech, as that of June 15, 1850, has always been called in Georgia. To the stump orators, the last mentioned and that of December 13 became examples which they emulated only to find in their despairing admiration that parallel was impossible. And even the retiring, quiet, and elderly people who care for nothing but their daily business caught the fire. Not long ago, one who is now old, who was entering middle age in 1850, and who has been a stanch union man all his life, told me that he could not keep from reading these speeches over and over, and whenever he read one of them, it made him for the time a disunionist.

The part played by Toombs in the congressional session of 1849-50 seems to me one of the most wonderful exploits in all parliamentary annals. Since slavery is gone, and I can at last understand that it was all blessing to the African and all curse to us, my joy is inexpressible. But I must ever hold that its defence was one of the noblest efforts of the best of people. It will soon be understood by the whole world, and especially by our brothers of the north. They will acknowledge that neither Greek nor Scot nor Swiss were more manly or heroic than southerners, and the supporters of the Lost Cause will be crowned with such lustre and glory as magnify Hannibal succumbing to Rome, or Demosthenes unavailingly stirring up his country against Macedon. It will forever bring me ecstatic emotion to recall the many, many places where my fellows suffered or fell at my side without a murmur. Our victories at the opening of the brothers' war; then the drawn battles; then the defeats; and the round of sickening disasters at the end,—all these come thronging back, and I can never be other than proud of the prowess and endurance of our out-numbered armies, the energy and untamable spirit of our people, and the devotion of our blessed women to the weal of our soldiers. I often look back over the track of what I have

called the aggressive defence of slavery. Though it was disguised under various names, such as the threat of disunion in certain contingencies by the Georgia Platform, just division of the public domain between the sections called for by all parties in the south, and finally the demand for full protection of slavery in the Territories; and though it was now and then seemingly at rest, that movement from the day it set in was in reality one directly towards secession, and it kept on as steadily as the Propontic. And as I look back at the further edge of this retrospect, marking the beginning, towering above all who took high place later,—even above Lee and Jackson,—ever comes more plainly into view the majestic figure of Robert Toombs, revealing his unsuspected power like a thunderclap from the sunny sky, December 13, 1849, when he extorts wild acclamations of applause from the majority of southern whigs and all of the southern democrats, both unanimous against his stand for a guaranty of congressional non-restriction; a few days later coercing an infuriated house trying to cry him down into wondering silence; and through the whole session upholding his cause with such might that the single champion proves an overmatch for the two parties striking hands against him, and he finally conquers preaudience and dictation upon the main southern theme.

I become more and more confident that future history will find the achievement of Toombs in the session of 1849-50 to be the exact point where the drift towards secession, which had before that been only latent and potential, becomes actual, and that here is the dawn of the Confederate States. The more I gaze at it the plainer and redder that dawn becomes.

We need not tell the rest of Toombs's sectional career with much detail. The all-important part of it historically is its beginning, and how he vaulted into the lead of the aggressive defence of the south, which I hope I have adequately told. From this time he showed in all that he did the quality which Mommsen glorifies in Julius Cæsar,—ready insight into the possible and impossible. Much discontent manifested itself in Georgia, and also in Mississippi, Alabama, and South Carolina, against the compromise measures, and especially against the admission of California with its constitution prohibiting slavery. A convention being called in Georgia to consider what should be done, there was thorough discussion. An overwhelming majority of delegates opposing any resistance was elected. To this result Toombs contributed more than any one else, and he really

shaped the platform finally promulgated by the convention. This—the Georgia Platform of 1850, as we always called it—is a most important document to the historian; for it was the weighed and solemn declaration of some nine-tenths of the people of a pivotal southern State.

The southern-rights men, as a small but noisy part of the southern people then called themselves, had mistaken Toombs's last-mentioned speeches in congress as declarations for immediate disunion in case California was admitted under her free constitution; and when he supported the compromise measures, and also the Georgia Platform, they hotly denounced him as a turncoat. In their blind fury they could not see, as everybody else did, that vehement and fervent language, proper to awaken one's people from perilous apathy, may really be at the time understatement, and that, after the people have awakened, to seek in that same language the counsel of right action would be the extreme of immoderate folly. The more you meditate it the more plainly you discern that his leadership was masterly. From the first to the last his appeal was to the middle class of property owners—then so numerous that it was practically the whole of southern society. His object at the first, as he declared, was to make with this class the protection of their fundamental property interest the prominent question of national politics. And the end showed that he not only took, but that he kept, the right road. The Georgia Platform became the bible of every political following in the State. The next year, 1851, Toombs, still a whig, supported Howell Cobb, a democrat, for governor against McDonald, one of the most popular men of the State, the southern-rights candidate. Toombs's side, which won by a large majority, was called the union party. You will not be deceived by this if you keep in mind that Cobb was elected on the Georgia Platform, which had pledged the people of the State to resist, even to disunion, certain named encroachments upon slavery which providence had already ordered to be made.

In 1848 Yancey had aroused the people of Alabama into demanding that the United States protect slavery in the Territories, and he advocated secession in 1850. But in both these things he was premature. As compared with Toombs he uncompromisingly stood for every tittle of what he believed were the rights of the south. Toombs was a far more practical and able opportunist. His falling back upon the Georgia Platform from a much more advanced position, as I have just told, is an instance. I want to give others.

He always declared in private conversation after the war that the democratic party was ripened and committed by Douglas and his co-workers to the repeal of the Missouri compromise while he was kept away from Washington by necessary attention to the interests of a widowed sister, otherwise, with his commanding position at the time, he would have crushed the scheme at its first proposal. When he returned to his public duties, to his amazement he found that every prominent member of the party was irrevocably for the repeal, and he could do nothing but embrace the inevitable. Then he would say substantially, "Had it not been for that administratorship which I could not avoid taking, we would all still be working our slaves in peace and comfort. That Missouri settlement was not right, but we had agreed to it; and with me a wrong settlement, when I agree to it, is just as binding as a righteous one."

When others are urging that the United States ought to protect slavery in the Territories, the record does not show that he is interested at first; although when at last the question is forced into debate he makes by far the strongest speech of all in championship of the Davis resolutions. I believe the current sucked him in.

Just after Lincoln's election—an event which influenced nearly all of even the most moderate elderly people of my acquaintance to declare at once for a southern confederacy—he proposed that Stephens join with him in an address to the people of Georgia, counselling that no immediate secessionist nor non-resistance man be elected to the convention;^[109] and later he professed willingness to accept the Crittenden compromise.

The truth is that the ablest leaders, as we call them, do not lead—they are led. If they should become non-representative, their followers would go elsewhere. And those of these leaders whose influence is the most potent and permanent are the conservative and moderate. Toombs was never really ahead in the southern movement except when for a brief while in the session of 1849-50 he planted the standard far to the front and called his people forward. Afterwards there were always others who appeared to be fighting much in advance of him.

He companioned his people as they steadily developed their readiness for the dread action commanded by the Georgia Platform if the north should

say not another inch of extension for slavery, and no extradition of fugitive slaves. Of course he matured in feeling for secession far beyond what appeared to be his ripeness in 1850. With all his conservatism, he was of that stuff out of which the most earnest and biased partisans are made. There are many who can admit nothing against those they love, and a still larger number who hug their country with a religious acceptance of everything in it as the best in the world. To him and his people, the south, under the mighty influence of the nationalization we have explained, had long been unconsciously displacing the union in their hearts. As one may learn from his Tremont Temple lecture, he saw and magnified all of the good in the society to which he belonged, and was as blind to the bad as a mother is to the faults of her children. He was often heard to run through an enumeration of southern superiorities. The courage and valor of the men, the virtue and loveliness of the women, the purity of the administration of justice and of the performance of all public duties; especially did he love to say that the honesty of his section was so well established that its few venal congressmen were like a woman of easy virtue in a good family, whom the reputation of the latter keeps from solicitation; and he would fall to praising the kingliness of cotton, the beneficence of slavery both to master and slave, the delicacy of our yam, the excelling flavor given by crab grass to beef and butter, the juice of the peach of Middle Georgia, sweeter than nectar, the incomparable melon, and cap the climax by asserting persimmon beer to be more acceptable to the palate of a connoisseur than any champagne. And in the days just preceding the great outbreak he had become more intense in his deep love for his State and section. The raid of John Brown into Virginia was, I think, the event which turned the scale with him, and made him feel that secession was near. Taking the occasion offered by Douglas's resolution, directing the judiciary committee to report a bill for the protection of each State against invasion by the authorities and inhabitants of other States, January 24, 1860, he delivered in the senate a speech which we must notice. It is common in Georgia to adopt the eulogy of Stephens and pronounce the speech of January 7, 1861, justifying secession, as Toombs's greatest effort. But I hesitate, unable to decide which is superior. He states his propositions thus:

“I charge, first, that this organization of the abolitionists has annulled and made of no effect a fundamental principle of the federal constitution in many States, and has endeavored and is endeavoring to accomplish the same result in all non-slaveholding States.

Secondly, I charge them with openly attempting to deprive the people of the slaveholding States of their equal enjoyment of, and equal rights in, the common Territories of the United States, as expounded by the supreme court, and of seeking to get the control of the federal government, with the intent to enable themselves to accomplish this result by the overthrow of the federal judiciary.

Thirdly, I charge that large numbers of persons belonging to this organization are daily committing offences against the people and property of the southern States which, by the law of nations, are good and sufficient causes of war even among independent States; and governors and legislatures of States, elected by them, have repeatedly committed similar acts.”

The facts are reviewed closely and summed up with extraordinary force; the subject is treated as carefully under the law of nations as under the constitution; the quotation from Mill’s “Moral Sentiments,” and that from Thucydides, narrating the successful effort of Pericles in persuading the Athenians to resort to war rather than concede the right of the Megareans to receive their revolted slaves, are appositely used; the conviction that there is no longer safety for the south in the union speaks out in every line; and, with the exception of a few overheated passages, the entire speech is from the loftiest height of the statesman who bids his people arm for self-preservation. Just preceding the peroration there are paragraphs describing nervously and graphically the great resources of the south and her rapid development from feeble beginnings, one of which especially emphasizes the past and present of Virginia, adding at the last

“One blast upon her bugle horn
Were worth a million men.”

Next before this are words which invoke the northern democracy, but they seem out of place and foreign. He abruptly ends his appeal to the national classes who have his respect by saying, "The union of all these elements may yet secure to our country peace and safety. But if this cannot be done, peace and safety are incompatible with this union. Yet there is safety and a glorious future for the south. She knows that liberty in its last analysis is but the blood of the brave. She is able to pay the price and win the blessing. Is she ready?"

The last three sentences are the southern correlative of Webster's soaring when he magnified the union in his reply to Hayne. They were repeated over and over by everybody with a wild acceptance utterly without parallel in my knowledge, and after the election of Lincoln became the war cry of Georgia.

The position taken in the very conclusion of this truly Periclean speech is especially to be attended to here. It is that in the event of the success of the republican party in the next presidential election the people of his State must redeem their pledge made nine years before in the Georgia Platform.

From this time on he is *facile primus* of southern champions. Note his long and elaborate reply to Doolittle, February 27, 1860; the discussion with Wade, March 7, 1860,—both relating to his speech last noticed above; and his very able argument, May 21, 1860, on the duty of protecting slavery in the Territories.

During the presidential campaign of 1860 the Douglas men and the Americans in Georgia charged the supporters of Breckinridge with plotting disunion that would bring on war. The charge was generally denied. The truth is, hardly anybody was aware that the awful crisis was near. Those who really expected secession believed with Howell Cobb and his brother Thomas, and with Thomas W. Thomas, that it would be peaceable, and perhaps they were about a tenth; the rest followed Stephens, believing that the American people on each side of Mason and Dixon's line would, when it was demanded, rise up in resistless co-operation and make safe both southern institutions and the union. Generally Stephens was far superior to Toombs in forecast and discernment of the sentiment of the masses. But while the former was too wise to consider even for one moment the

probabilities of peaceable secession, he had a most un-American conviction that nothing good was ever gained by war, and he so loved peace and the union that he could not believe his people would secede. In his great sympathies Toombs was here far more clear-sighted. While he was the only speaker in this presidential campaign that was disrespectful to the union, often calling it in derision "the gullorious," and he gave no promise that withdrawal from the union would be peaceful, and so appeared to be to himself and alone, he was really the only one riding the waves of the undercurrent rising every day nearer the surface, and soon to sweep all of us onward upon its raging waters. The other speakers discussed the rival platforms, but the nearer election day approached the more potently he was preparing the people and himself for secession, though unawares to both. And when Lincoln was elected,—the man who had solemnly published his belief that this government could not endure permanently part slave and part free,—an occurrence which aroused the south throughout as the firing upon Fort Sumter afterwards aroused the north, Toombs drank in every accession to the emotion of his people, and towered more largely before them every day as the soul of the revolution now palpable in its coming to all. When secession was debated before the Georgia legislature, after enumerating what he declared to be the wrongs of the south, he said, "I ask you to give me the sword; for if you do not give it to me, as God lives, I will take it myself." In his immortal eulogy of the union the next night, Stephens quoted these words, and Toombs, who was present, answered in a voice of thunder, "I will." The house rocked to and fro with frenzied applause. Long afterwards Stephens told me that this outburst was the first revealing sign to him that his people were rushing to war. He lost his breath while gasping out the awful word, and there was terror in his looks as if the direful ghost had risen again. Some ardent secessionists professed themselves ready to drink all the blood that would be spilled, but Toombs, in his warlike nature, was already revelling in the joy of fighting for his people in this most sacred of causes. In one of his speeches he eulogized beforehand those who were to fall in defence of the south, giving them the requiem of sleeping forever where

"Honor guards with solemn round
The silent bivouac of the dead."

I did not hear this, but a friend told me that the speaker's electric recitative made the hackneyed words forever new and fresh to him.

I must go faster. January 7, 1861, Toombs made in the United States senate his famous defence of secession. He presented in behalf of the south these demands expressed in writing:

1. Any person to be permitted to settle in any Territory, with any of his property, including slaves, and be protected in his property till such Territory is admitted as a State on an equality with the other States, with or without slavery as its people may determine.
2. Property in slaves to receive everywhere from the United States government the same protection which under the constitution it can give any other property, it being reserved to each State to deal with slavery within its limits as it pleases.
3. Extradition of persons committing crimes against slave property, as commanded by the constitution.
4. Extradition of fugitive slaves as commanded by the same constitution.
5. Congress to pass efficient laws punishing all persons aiding or abetting invasion of a State or insurrection therein, or committing any other act against the law of nations that tends to disturb the tranquillity of the people or government of the State.

It is plainly evident to the unprejudiced that he had the warrant of the constitution, the law of nations, of the practice and professions of the great body of even northern citizens ever since the adoption of the constitution, for every one of these demands. It is also as plainly evident that every one was vital to each southern community, founded as it was from basement to roof, upon property in slaves. The justice of his demands could not be denied without repudiating the constitution, the law of nations, and the solemn compacts of the fathers, their children and children's children. And providence had really made each one of these astounding repudiations, in her purpose to extirpate slavery as the only menace to the American union, even if the people so dear to Toombs must be all cast out of their prosperity and comfort into beggary. But when a man is fighting for his loved ones,—especially if he is fighting for his country,—and he has the valor of Toombs,

his not-to-be-shaken conviction is that providence is on his side, and the nearer great disaster approaches, the stouter becomes his heart. Toombs's support of his demands, and his defence of what he knew the south would do if they were refused, are the most earnest words he ever spoke. Note these paragraphs:

“You cannot intimidate my constituents by talking to them about treason. They are ready to fight for the right with the rope around their necks.”

“You not only want to break down our constitutional rights; you not only want to upturn our social system; your people not only steal our slaves and make them freemen to vote against us; but you seek to bring an inferior race into a condition of equality, socially and politically, with our own people. The question of slavery moves not the people of Georgia one half as much as the fact that you insult their rights as a community. You abolitionists are right when you say that there are thousands and ten thousands of men in Georgia, and all over the south, who do not own slaves. A very large portion of the people of Georgia own none of them. In the mountains there are comparatively few of them; but no part of our people are more loyal to their race and country than our brave mountain population; and every flash of the electric wires brings me cheering news from our mountain tops and our valleys that these sons of Georgia are excelled by none of their countrymen in loyalty to the rights, the honor, and the glory of the commonwealth. They say, and well say, this is our question; we want no negro equality, no negro citizenship; we want no mongrel race to degrade our own; and as one man they would meet you upon the border, with the sword in one hand and the torch in the other. We will tell you when we choose to abolish this thing; it must be done under our direction, and according to our will; our own, our native land shall determine this question, and not the abolitionists of the north. That is the spirit of our freemen.”

Here is the grand conclusion:

“This man, Brown, and his accomplices, had sympathizers. Who were they? One who was, according to his public speeches, his defender and laudator, is governor of Massachusetts. Other officials of that State applauded Brown’s heroism, magnified his courage, and no doubt lamented his ill success. Throughout the whole north, public meetings, immense gatherings, triumphal processions, the honors of the hero and conqueror, were awarded to this incendiary and assassin. They did not condemn the traitor; think you they abhorred the treason?

Yet ... when a distinguished senator from a non-slaveholding State proposed to punish such attempts at invasion and insurrection, Lincoln and his party say before the world, ‘Here is a sedition law.’ To carry out the constitution, to protect States from invasion and suppress insurrection therein, to comply with the laws of the United States is a ‘sedition law,’ and the chief of this party treats it with contempt; yet, under the very same clause of the constitution which warranted this bill, you derive your power to punish offences against the law of nations. Under this warrant you have tried and punished our citizens for meditating the invasion of foreign States; you have stopped illegal expeditions; you have denounced our citizens engaged therein as pirates and commended them to the bloody vengeance of a merciless enemy. Under this principle alone you protect our weaker neighbors of Cuba, Honduras, and Nicaragua. By this alone are we empowered and bound to prevent our people from conspiring together, giving aid, money, or arms to fit out expeditions against a foreign nation. Foreign nations get the benefit of this protection; but we are worse off in the union than if we were out of it. Out of it we should have the protection of the neutrality laws. Now you can come among us; raids may be made; you may put the incendiary torch to our dwellings, as you did last summer for hundreds of miles on the frontier of Texas; you may do what John Brown did, and when the miscreants escape to your States you will not punish them, you will not deliver them up. Therefore, we stand defenceless. We must cut

loose from the accursed 'body of this death,' even to get the benefit of the law of nations.

You will not regard confederate obligations; you will not regard constitutional obligations; you will not regard your oaths. What, then, am I to do? Am I a freeman? Is my State a free State? We are freemen. We have rights; I have stated them. We have wrongs; I have recounted them. I have demonstrated that the party now coming into power has declared us outlaws, and is determined to exclude thousands of millions of our property from the common Territories, that it has declared us under the ban of the union, and out of the protection of the law of the United States everywhere. They have refused to protect us by the federal power from invasion and insurrection, and the constitution denies to us in the union the right either to raise fleets or armies for our defence. All these charges I have proved by the record; and I put them before the civilized world and demand the judgment of to-day, of to-morrow, of distant ages and of heaven itself, upon the justice of these causes. I am content, whatever may be the event, to peril all in so noble, so holy a cause. We have appealed time and time again for these constitutional rights. You have refused them. We appeal again. Restore us these rights as we had them, as your court adjudges them to be just as our people have said they are; redress these flagrant wrongs, seen of all men, and it will restore fraternity and peace and unity to all of us. Refuse them, and what, then? We shall ask you, 'Let us depart in peace.' Refuse that, and you present us war. We accept it; and inscribing upon our banners the glorious words 'Liberty and Equality,' we will trust to the blood of the brave and the God of battles for security and tranquillity."

No new nation about to be launched upon a sea of blood was ever heralded with words that were above these in appeal to the conscience and strongest affections of humanity. They are not outvied by those of Patrick Henry reported by Wirt, or those of John Adams reported by Webster, which the world will ever treasure as all gold. O that he had corrected them! He could not use the file, as we have already said.

Soon after making the speech he went away from the senate without taking leave. March 14, 1861, that body passed a resolution reciting that the seats before occupied by Brown, Davis, Mallory, Clay, Toombs, and Benjamin had become vacant, and directing that the secretary omit their names from the roll.

It was clear from his incomparable and faultless leadership of the active defence of the south, and his unique ability in affairs, that he was the choice of the directors of southern nationalization for president of the Confederate States; but these were overcome by stronger spirits, and Davis was made president. I have always believed that Toombs regarded this as the great miscarriage of his life. He could not continue his connection with the unbusinesslike conduct of the administration, and he retired from his secretaryship of state. Read what his superiors say of him at Sharpsburg, and what Dick Taylor with admiration tells of the help he afterwards got from him in a dark hour, as specimens of his gallantry and efficiency in the service. But his was not the nature of Epaminondas, to doff his natural supereminence and sweep the streets. Pegasus did not show more unsuited to the plow than he did to his inferior station in this stage of the great conflict which was his meat and drink.

The collapse came, flight from America, return at last to his stricken people, and disability for the rest of his life. Though he had something of even a great career at the bar, and in State politics, his longing for the old south and discontent with the new increased, slowly at first, then faster and faster. As infirmity from age came on apace, and his wife whom he had always made his good angel went to heaven, every day he became more lonely. He had survived *his* country. Such love as his for that loves but once and always. The sacrifices that he had made for it became his treasures. He hugged his disability as his most precious jewel. Our gallant Gordon was not more proud of the scars on his face. Not long before his mind and memory were failing, speaking of the past, he said with the utmost firmness: "I regret nothing but the dead and the failure.

‘Better to have struck and lost,
Than never to have struck at all.’”

What a fall! Greater by far than Lucifer's. Lucifer was rightfully cast out because of heinous offence. But Toombs was cashiered because he had been the best, ablest, and most faithful servant of his people, whose dearest rights were in jeopardy. According to our merely human view it is the way of fiends to reward such supremacy in virtue and achievement with hell pains. If we cannot hope confidently, may not we survivors at least send up sincere prayers that the Lord will yet give this Job of the old south twice as much of fair fame as he had before.

If the defeated in the wars between England and Scotland and in the English civil wars; and if Cromwell and the regicides who set up a government that had to fall,—if all these have found respectful and fully appreciative mention at last, why shall not Calhoun and Toombs look to have the same after some years be passed? Trusting that such will come, I close this sketch by suggesting where Toombs will, I think, be niched in American history.

He is often spoken of as the southern correspondence to Wendell Phillips. There was nothing whatever in common between the two except extraordinary fluency of zealous speech. Early in life, Phillips, almost a mere boy, broke with Mrs. Grundy by advocating abolition before his neighbors were ripe for it. While Toombs cared nothing for Mrs. Grundy, he always so comported himself that he was her great authority. He was a very able lawyer, who had made a considerable fortune by practice, and a thorough statesman, when fate confided the southern lead to him; and while Phillips was reckless and rash, Toombs never, never essayed the impossible with his people. The more you balance him and Phillips against each other, the more unlike you will find them. Prof. William Garrott Brown is quite correct in pairing Phillips and Yancey.

There is a northern character to whom Toombs as a southern opposite corresponds in so many important particulars that it surprises me it has not been proclaimed. As Webster was the special apostle of the preservation of the union, Toombs was the same of secession. Their missions were parallel in that each one was the foremost champion of his nationality, Webster of the Pan-American, as we may call it; and Toombs of the southern. All through the brothers' war their phrases were on the lips and fired the hearts of each host, those of Webster impelling to fight for the union, those of Toombs for the southern confederacy. Each was probably the ablest lawyer

of his day. Each was surely the ablest debater to be found. Each was of sublime courage in defying what he thought to be unjust commands of his constituents. And the last point which I think of is that each was of most complete and perfect physical development, and was the most majestic presence of his day. The busiest men in the streets of all sorts and ranks always found time to look upon either Webster or Toombs as he passed, and admire. I never saw Webster. But I believe that from his pictures, from long study of his best speeches, and from what I have greedily read and heard of him in a fond lifelong contemplation, I have an almost perfect figure of him before my mind's eye. Toombs from my boyhood I saw often. I will describe him as I observed him at the hustings just before the war. His face, almost as large as a shield, but yet not out of proportion, was in continual play from the sweetest smile of approval to the scowl of condemnation, darkening all around like a rising thundercloud. His flowing locks tossed to and fro over his massive brow like a lion's mane, as was universally said. In every attitude and gesture there was a spontaneous and lofty grace—not the grace of the dancing-master, but the ease and repose of native nobility. His face was not Greek, but in his total he looked the extreme of classic symmetry and the utmost of power of mind, will, and act. Princely, royal, kingly, even godlike, were the words spontaneously uttered with which men tried in vain to tell what they saw in him. He and just one other were the only men of my observation whose greatness, without their saying a word, spoke plainly even to strangers. That other man was Lee. I noted, when we were near Chambersburg in Pennsylvania those three or four days before the great battle, that, while the natives would curiously inquire the names of others of our generals as they rode by, every one instantaneously recognized Lee as soon as he came near. This publication of her chosen in their mere outside which destiny makes is not to be slighted nor underprized. And so remember that Webster looked the greatest of all men of the north, and Toombs the greatest of all men of the south.

To my mind I give each unsurpassable praise and glory when I call Webster the northern Toombs and Toombs the southern Webster.

I add a note by way of epilogue. I observe with pain that the obloquy against Toombs in the north seems to increase, while that against him in the rising generation of the south—who do not know him at all—is surely increasing. It is, however, a growing consolation to me to note that every charge, currently made against him north or south, is founded either upon complete mistake of fact or the grossest misunderstanding of his character and career. It is a duty of mine not only to him as my dead and revered friend, but a high duty to my country, to set him in his right place in the galaxy of America's best and greatest. I never knew a man of kinder or more benevolent heart; nor one who had more horror of fraud, unfairness, and trick; nor one whiter in all money transactions; nor one whose longing and zeal for the welfare of neighbors and country were greater; nor one who showed in his whole life more regard for the rights and also the innocent wishes of everybody. The model men of the church, such as Dr. Mell and Bishop George Pierce, loved him with a fond and cherishing love. The humblest and plainest men were attracted to him, and they gave him sincere adulation. Many of my contemporaries remember rough old Tom Alexander, the railroad contractor. I saw him one day in a lively talk with Toombs. As he passed my seat while leaving the car he whispered to me: "Bob Toombs! his brain is as big as a barrel and his heart is as big as a hogshead." From 1867 until 1881 I was often engaged in the same cases with Toombs, either as associate or opposing counsel, and I saw a great deal of him. It falls far short to say that he was the most entertaining man I ever knew. He was just as wise in judgment as he was original and striking in speech. I am sure that his superiority as a lawyer towered higher in the consultation room just before the trial than even in his able court conduct. And he led just as wisely and preeminently in the politics of that day, when it was vital to the civilization of the south to nullify the fifteenth amendment. Georgia would indeed be an ungrateful republic should she forget his part in the constitution of 1877. That was deliverance from the unspeakable disgrace of nine years—a constitution made by ignorant negroes, also criminals who, to use the words of Ben Hill, sprang at one bound from State prisons into the constitutional convention, and some native deserters of the white race—the constitution so made kept riveted around our necks by the bayonet. The good work would have remained undone for many years had not Toombs advanced \$20,000 to keep the convention, which had exhausted its appropriation, in session long enough

to finish our own constitution. The railroad commission established by that instrument is really his doing. This post-bellum political career of his, in which he restored his stricken State to her autonomy and self-respect, has not yet won its full appreciation.

If Toombs could but be delineated to the life in his extempore action, advice, and phrase he would soon attain a lofty station in world literature. It mattered not what he was talking about,—an affair of business or of other importance, communicating information, telling an experience, complimenting a girl, disporting himself in the maddest merriment, as he often did after some great accomplishment,—his language flashed all the while with a planet-like brilliancy, and the matter was of a piece. Those of us who hang over Martial, how we learn to admire his perpetual freshness and variety! But when we compare him with Catullus, his master, we note that while his epigram is always splendid, the language is commonplace beside that of the other.^[110] Toombs was even more than Martial in exhaustless productivity and unhackneyed point, and his words always reflected, like those of Catullus, the hues of Paradise. Perhaps a reader exclaims, “As I do not know Martial and Catullus your comparison is nothing to me.” Well, I tell him that I have read Shakspeare from lid to lid more times than I can say, and that I have long been close friends with every one of his characters, all the way from Lear, Othello, Hamlet, and Macbeth at the top, down to his immortal clowns at the bottom. Surely with this experience it can be said of me, “The man has seen some majesty.” I have often tried, and that with the help of a few intimates almost as deeply read in Shakspeare as myself, to find in the dainty plays an equal to Toombs throwing away everywhere around him with infinite prodigality gems of unpremeditated wisdom and phrase. Samuel Barnett, Linton Stephens, Henry Andrews and my cousin, his wife, Samuel Lumpkin, and S. H. Hardeman, all of whom knew him well, were among these. The end of every effort would be our agreement that Shakspeare himself could hardly have made an adequately faithful representation of Toombs.

The mental torture of the last three or four years of his life I must touch upon again. The most active anti-slavery partisan and most scarred soldier of the union will compassionate if he but contemplate. I met him only now and then. As I read his feelings—one eye quenched by cataract and the other failing fast; his contemporaries of the bar and political arena dead; the

wife whom he loved better than he did himself sinking under a disease gradually destroying her mind; ever harrowed with the thought that his country was no more, and that he was a foreigner and exile in the spot which he had always called home,—though I was full of increasing joy over the benefit of emancipation to my people and gladness at the promise of reunited America, my tranquillity would take flight whenever he came into my mind. He was that spectacle of a good man in a hopeless struggle against fate that moves enemies to pity. To me his last state was more tragic and pathetic than that of Œdipus.

Of course his powers were declining. I know that he would never have drunk too much if there had been no sectional agitation, secession, war, nor reconstruction. His appetite was never that insane thirst, as I have heard him call it, which impels one into delirium tremens. He always disappointed his adversaries at the bar calculating that drink would disable him at an important part of the conduct. Others as well as myself can testify to this. Near the end he deliberately chose to drain full cups of purpose to sweeten bitter memories. With moderation he had more assurance of longevity than any other of his generation; and he would, I verily believe, have been green and flourishing in his hundredth year. He lost his rare faculty of managing money. It was a shock of surprise to me when the fire in August, 1883, disclosed that he had let the insurance of his interest in the Kimball house run out shortly before. It was a pitiable sight to see him in his growing blindness and wasting frame armed by his negro servant along the streets of Atlanta in his last visits to the place. During all this time he was dying by inches.

But the sun going down behind heavy clouds would now and then send forth rays of the old glory. It was in May, 1883, during the session of the superior court of Wilkes, where I had some of my old business to wind up, that I was last in his house. He had made invitations to dinner without keeping account. At the hour his sitting-room was densely packed. A few of us were late. When we arrived many were compounding their drinks. He hospitably suggested to us new-comers that there was still some standing room around the sideboard. In a little while the throng was treading the well-known way to the dining-hall, which we overflowed so suddenly that his niece, whom Mrs. Toombs, then keeping her room, had charged with seeing the table laid, was astounded to find she could not seat all of the

bidden guests. Just as her flurry was beginning to make us uncomfortable our host entered. In spite of his infirmity and purblindness he took in the situation with his wonted quickness. He said in a tone of tender remonstrance to his niece, "O, I do not object to having more friends than room; it is usually the other way in this world." And with despatch and order he had the surplus given seats at side tables. My eyes moistened. I had an unhappy presentiment that this was my last observation of the only man I ever knew whose fine acts and words never waited when occasion called. I was aroused by the whisper of a neighbor, "Can any one else in the world do such a beautiful thing on the spur of the moment?" The admiring looks that followed inspired him, and his talk seemed to have more than its old lustre and gleam.

In his final illness, when paralysis was slowly creeping up his frame, and he had lost the sense of place and time, he would now and then start from his stupor and send across the State a bolt from the bow which no other could bend. Somebody spoke of a late meeting of "prohibition fanatics." "Do you know what is a fanatic?" he asked unexpectedly. "No," was replied. "He is one of strong feelings and weak points," Toombs explained. And overhearing another say that an unusually prolonged session of the State legislature had not yet come to an end, he exclaimed with urgency, "Send for Cromwell!"

He died December 15, 1885, in his seventy-sixth year.

If I have told the truth in this chapter,—and God knows I have tried my utmost to tell it,—ought not my brothers and sisters of each section to lay aside their angry prejudices and bestow at last upon the only and peerless Toombs the love and admiration which are the due reward of his virtues, his towering example, his wonder-striking achievements, and his incomparable genius? May that power which incessantly makes for righteousness, and which always in the end has charity to conquer hate, soon bring to us who really knew him our dearest wish!

CHAPTER XII

HELP TO THE UNION CAUSE BY POWERS IN THE UNSEEN

IF you are not balked by adherence, either to the rapidly waning overpositiveness of materialism, or to the ferocious orthodoxy which denies that there has been any providential interference in human affairs since that told of in the bible; and if you are exempt from the fear of being regarded as superstitious which keeps a great number of even the most cultivated people forever in a fever of incredulity as to every example of what they call the supernatural, you have long since become convinced that evolution is intelligently guided by some power or powers in the unseen. I seem to myself to discern plainly in many important crises of history the palpable influence of what are to me the directors of evolution. Washington, to found our great federation, and Lincoln to perpetuate it—these come at once as examples. Now follow me while I try to show you what the directors did in preparation for and in conduct of the brothers' war, of purpose that the north should triumph and save the union. Of course I am precluded from all attempt to be exhaustive. I shall only glance at a few of the facts that appear to me cardinal and most important.

In the first place, they deferred the war until under the effect of foreign immigration the population of the north greatly outnumbered that of the south and had become almost unanimous against slavery; and until the south was almost entirely dependent upon her railroads and her river and ocean commerce. Had secession occurred because of the excitement over the application of Missouri for admission into the union with a slave constitution, there might have been a war, but it would have been short, the end being that every foot of the public domain admitting of profitable slave culture would have fallen to the south. Suppose a serious effort had been made in 1833 to collect the revenue in South Carolina, how long would the south have endured invasion of the little State and slaughter of its citizens? Even President Jackson would have soon forgotten his enmity to Calhoun

and recognized that blood is thicker than water. The time was not then ripe, as the directors saw; and so they effected an adjustment of the controversy. It did not suit the directors to have the war commence in 1850, for there was at the time no general use of ironclads, and the railroad system was far from completion. Consider for a moment the advantage to the north of having gunboats and the disadvantage to the south of not having them. Fort Donelson really fell because of gunboats. Grant got re-enforcements in time to save him from disastrous defeat at Shiloh because of the command of the river by gunboats. The gunboats caused the fall of Vicksburg. And it was the holding of the James from its mouth to Fort Darling by gunboats which gave Grant such secure grip at Petersburg that Richmond had to fall at last, and with it the confederacy.

Now a word as to the southern railroads. Next to the navigable rivers they were the lines of easiest penetration to invaders. Remember how the British in 1898 advanced in Africa only as they completed their railroad behind them. Of course had the railroad been already made their advance would have been along it. How could Sherman have ever crossed the devastated tract from Dalton to Atlanta had he been without the railroad behind him? During his retreat Johnston kept the invading army between himself and the railroad without which it could not have been subsisted, and staid so close that Sherman had him constantly in view; conduct which is still lauded by some people in the south as masterly beyond compare.

To conceive more vividly the river and railroad situation which I am striving to explain, suppose that during the Revolutionary war the States had been as dependent as the south afterwards became upon rivers and railroads, and the British had and the Americans did not have iron-clad gunboats; as matters now look, our forefathers would have been beaten back to the foot of the throne. I believe that the railroads alone would have rendered their subjugation certain.

So much for the matchless judgment shown by the directors in deciding as to the time of the war. I shall now tell what I have long thought is most unmistakably their work in conducting that war.

As soon as secession was an accomplished fact, they deprived the better southern statesmanship of all guidance of the brothers' war now inevitable

and about to begin. In such a war a proper executive is of far more importance than good legislators and even good generals. Toombs was the man who stood forth head and shoulders above all others as the logical president of the southern confederacy. But the wily directors hypnotized the electors into believing that Davis, because of his military education, service in Mexico, and four years' secretaryship of war, was the right man. It is generally believed in the south that the considerations just mentioned turned the scale in favor of Davis. But sometimes I think that the true explanation is different. Stephens has told how Toombs was got out of the way. When this narrative^[111] was published, both Toombs and Davis, with many of the partisans of each were alive, and regard for them may have kept him silent as to a reported mischance to Toombs, which provoking opposition—as was whispered—from some of those who had been among his most earnest supporters, decided him to retire. A biographer writes: "There was a story, credited in some quarters, that Mr. Toombs's convivial conduct at a dinner party in Montgomery estranged from him some of the more conservative delegates, who did not realize that a man like Toombs had versatile and reserved powers, and that Toombs at the banquet board was another sort of a man from Toombs in a deliberative body."^[112]

Something like that stated in the quotation just made did happen, as Stephens was wont to relate at Liberty Hall—the name which he gave his hospitable home at Crawfordville, Georgia. I was present more than once at such times.

Such could have been the work of the directors.

Georgia, being the pivotal State of the new federation, was by many conceded the presidency. Besides Toombs she had two other men, far abler statesmen than Davis and then as conspicuous in the public eye—A. H. Stephens and Howell Cobb. The election of either one of these would really have been the same almost as the election of Toombs, for the three were in complete accord, and Toombs was the natural and actual leader. So great was their fealty to him that neither one could have been induced to stand for the place after he had missed it. The directors saw to it that neither one of the three should be president of the Confederate States.

Suppose that Toombs—or that either Stephens or Cobb—had been made president, what a different conduct there would have been of the war. Besides being the foremost statesman of the south, Toombs was its very ablest man of affairs, and as far superior to Davis in practical and business talent as a trained and experienced man is to an untrained and inexperienced woman. Not intending to disparage the other great qualifications of Toombs, I must emphasize it that of all his contemporaries he alone evinced a clear understanding of the principles according to which the confederate currency could have been better managed than were the greenbacks by the other side. A letter of his during the war to Mr. James Gardner, of Augusta, Georgia, published at the time in the paper of which the latter was then editor, shows insight and grasp of the subject equal to Ricardo's. Toombs as president of the confederacy would have had congress enact proper currency measures. When he was in place to advise and lead, his influence exceeded by far that of any other man that I ever knew.

But this, important as it is, is far from being the most important. He and Stephens were fully convinced at the very first of the overruling importance to the confederacy of these two things: (1) to make full use of cotton as a resource; (2) to prevent a blockade of the southern ports. I make these extracts following from a speech of Stephens's at Crawfordville, Georgia, November 1, 1862:

“What I said at Sparta, Georgia, upon the subject of cotton, many of you have often heard me say in private conversation, and most of you in the public speech last year to which I have alluded. Cotton, I have maintained, and do maintain, is one of the greatest elements of power, if not the greatest at our command, if it were but properly and efficiently used, as it might have been, and still might be. Samson's strength was in his locks. Our strength is in our locks of cotton. I believed from the beginning that the enemy would inflict upon us more serious injury by the blockade than by all other means combined. It was ... a matter of the utmost ... importance to have it raised. How was it to be done?... I thought it ... could be done through the agency of cotton.... I was in favor, as you know, of the government's taking all the cotton that would be subscribed for eight per cent bonds at a rate or price as high as ten cents a

pound. Two millions of the last year's crop might have been counted upon as certain on this plan. This, at ten cents, with bags of the average commercial weight, would have cost the government one hundred millions of bonds. With this amount of cotton in hand and pledged, any number, short of fifty, of the best ironclad steamers could have been contracted for and built in Europe—steamers at the cost of two millions each, could have been procured, equal in every way to the 'Monitor.' Thirty millions would have got fifteen of these, which might have been enough for our purpose. Five might have been ready by the first of January last to open some one of the ports blockaded on our coast. Three of these could have been left to keep the port open, and two could have conveyed the cotton across the water if necessary. Thus, the debt could have been promptly paid with cotton at a much higher price than it cost, and a channel of trade kept open till other ironclads, and as many as were necessary, might have been built and paid for in the same way. At a cost of less than one month's present expenditure on our army, our coast might have been cleared. Besides this, at least two more millions of bales of the old crop on hand might have been counted upon—this with the other making a debt in round numbers to the planters of \$200,000,000. But this cotton, held in Europe until its price became fifty cents a pound, would constitute a fund of at least \$1,000,000,000 which would not only have kept our finances in sound condition, but the clear profit of \$800,000,000 would have met the entire expenses of the war for years to come.”[\[113\]](#)

The reader who carefully reflects over the passage just quoted may well think that the extravagant profit pictured savors more of Mulberry Sellers than of a cool-headed statesman; but if the war price of cotton be recalled he readily agrees that under the plan proposed the south could easily have got a fleet of the best ironclads. Such a fleet would have kept the southern ports open. The advantage of which would have been very great. It would have held the Mississippi from the first, or have recovered it after the capture of New Orleans. It would have cleared the gunboats out of all the navigable rivers in the south. And we must not forget how it might have

ravaged the northern coast, perhaps capturing New York, and forcing an early peace.

I must make you see the greatness of cotton as a resource. There has been from soon after the invention of the gin a steadily increasing world demand for it, and the south has practically monopolized its production. I can think of no other product of the soil except wine and liquor that is as imperishable. But wine and liquor spill, leak, and evaporate, while cotton does neither. If you but safe it against fire it will not deteriorate by age. In 1884 I was told of a sale just made of some cotton for which the owner had refused the famine price in 1865. It brought the market price of the day, and experts said it sampled as well as new cotton. It was at least 19 years old. Wine and liquor cannot be compressed, but the same weight of raw cotton becomes less and less bulky every year. By reason of the foregoing, cotton is always the equivalent of cash in hand. Now add the effect of the steadily growing war scarcity, and remember how easy it was during the first two years of the war to carry out cotton in spite of the blockade. The European purchasing agent of the Confederate States government says “it possessed a latent purchasing power such as probably no other ... in history ever had.”^[114] He means cotton. There were several million bales of it in the confederacy, all of which could be had for the taking—much of it for merely the asking. And there were a legion of carriers eager to run the blockade. I cannot understand how Professor Brown could have ever written, “The government had not the means either to buy the cotton or to transport it.”^[115] Surely the government could have seized the cotton as easily as it did all the men of military age, and collected the tithes in kind.

If Toombs had been president of the southern confederacy, the very best possible use of its cotton as a resource would have been made. At the time, if but managed with the financial skill which he always showed, that cotton would have been a great war chest in a secure place, always full and appreciating. It is very probable that almost at the beginning of the war the confederacy would have struck terror into its adversaries with some warships far superior to any with which the United States could have then supplied itself. In this case there never would have been any Monitor. And the south would have had all the benefits of wise husbandry and conduct.

During his short premiership of the confederacy Toombs showed marked ability. Note his extraordinary insight when instructing the commissioners, that “So long as the United States neither declares war nor establishes peace, the Confederate States have the advantage of both conditions;” and consider how accurately he foresaw that the north would be rallied as one man to the stars and stripes by attack upon Fort Sumter, and how earnestly he opposed the proposed attack.[\[116\]](#)

Stephens was thoroughly against the policy of many pitched battles. He counselled from the very first that we should draw the invaders within our territory, where, having them far from their base and taking advantage of our shorter interior lines, we could when the right moment came, by attacking with superior numbers, virtually destroy their entire army. The more I think over it, the more clearly I see that this was the true way for us to have fought. Stephens’s influence would have been so great with Toombs or Cobb as president that he would have shaped the conduct of the war.

There would have been no keeping of inefficient men in high command; and no efficient one would have been kept out. Mr. Lincoln would have had an executive rival worthy of his steel. As the former searched diligently and with rare judgment for his commander-in-chief and at last found him in Grant, so Toombs would in all probability have found the proper southern general in the west. It would have been Forrest. The marvellous military genius of this illiterate man, who at the beginning of the war could not have put a recruit through the manual of arms, showed him far superior to his superiors who sacrificed the southern army at Fort Donelson. The lieutenant-colonel would not surrender, and his escape with his entire command proved that he could have executed the offer he had made to the commander to pilot the whole army out. From this moment Forrest moves on and upward with the stride of a demigod. The night after Johnston has fallen at Shiloh he alone in the southern army discovers that Grant is receiving by the river thousands as re-enforcement, and he gives Beauregard wise counsel which the latter is not wise enough to heed. Read his letter of August 9, 1863, to Cooper, adjutant-general of the Confederate States,[\[117\]](#) in which he proposes to do what will virtually wrest the Mississippi from the federals, and the sane comment thereon of his biographer.[\[118\]](#) Think of him just after the battle of Chickamauga; how, had Bragg listened to him, he would have reaped the fruits of a great victory

which he was too stupid to know he had won. Meditate the capture of Fort Pillow, in spite of its strong defences and the succoring gunboat, by dispositions of his troops and a plan of attack which, though made and executed on the spur of the moment, are the most superb and brilliant tactics of all the engagements of the brothers' war. And his incomparable conduct by which the army of Sturgis was almost annihilated at Brice's Cross-Roads. The conception of Forrest is as yet, even in the south, very untrue. He is thought of only as always meeting charge with countercharge, in the very front crying "Mix!" sabring an antagonist, and having his horse killed under him. When he is rightly studied he is found to be a happy compound of the characterizing elements of such fighters as mad Anthony Wayne and Paul Jones, of such swoopers and sure retirers as Marion and Stonewall Jackson, of such as Hannibal, whose action both before, during, and after the engagement, is the very best possible. Of all the northern generals Grant showed by far the best grasp of the military problem. I think Forrest's grasp was equal. Toombs would have divined the genius of Forrest. The confederate army under him would probably have equalled—possibly surpassed—the achievements and glory of that under Lee.

It was one of Toombs's epigrams that the southern confederacy died of too much West Point. Of course one must not unjustly disparage the military school. Yet there were plainly graduates on both sides who had in them too much of it. This was true of Halleck and McClellan; also of Davis and Bragg. Mr. Davis, by reason of his exaggerated West Point spirit, was not nearly so well qualified as Mr. Lincoln for finding the few real generals in the south. Toombs, with the help of Stephens and all the real statesmen of the section, would have kept the best generals in command.

Let us briefly summarize. Had Toombs been president these things would have followed:

1. The cotton of the south, fully realized as a resource, would have given her an adequate gold supply, a stable currency, and an unimpaired public credit. It would have also kept our ports open and the hostile gunboats out of our rivers.
2. There would have been no unwise waste of our precious soldiers. As it was, their very gallantry in our contest with a foe so greatly outnumbering,

was made a guaranty of defeat.

3. These magnificent soldiers would have been led always by the best commanders.

These were resources enough, and more than enough, to have won for the south. I often paralleled her neglect to use them with the supineness of the French Commune in 1871. Lassigarray tells us how there were piles of money and money's worth in the bank deposits and reserves, which could have all been had by mere taking.^[119] But the Commune made no use of this great treasure. It surprises one as he reads of it. Then it occurs to him that the new French government was in the hands of men who generally had had no experience in government whatever. It was widely different with the southern confederacy. No other revolutionary government ever started with so little jolt and difficulty. The grooves along which it was to run were all ready. "Confederate States" was instantaneously substituted for "United States" in the constitution, organic federal statutes, and the thoughts of the people, and the administration of the new government seemed to everybody in the south but a continuation of that of the United States. And this new federation was inaugurated by the best-trained statesmen in America. That these men should have overlooked the great resources we have pointed out is a far more strange and wonderful blunder than was that of the raw and inexperienced managers of the Commune. You can explain it only by recognizing it as the accomplishment of fate. Fate put in charge of the fortunes of the confederacy an executive as just as ever was Aristides, and as much respected and confided in by his people. That executive most conscientiously drove out of the public counsels the only men who could have saved the southern cause.

To the foregoing I shall add but a few other instances briefly told.

Grant was at the opening of his career put in a place which taught him the importance of gunboats, and held there until his skill in using them had given him resistless prestige. Beauregard's failure to make use of the daylight remaining after the fall of Albert S. Johnston seems to have been prompted by the powers who had the future conqueror in charge. Had he been sent against Lee in 1862 or 1863 he would hardly have done better than McClellan, Burnside, or Hooker. Compare how the powers in charge

of the Roman empire prevented a too early encounter of Scipio with Hannibal.

Ordinary conduct ought to have captured McClellan instead of driving him to the James. The tone of McClellan's boasting over the flank movement by which he successfully marched across the entire front of Lee's army within cannon shot is really that of a man who feels that he has miraculously escaped an unshunnable peril.

The directors sent Stuart astray and hypnotized Lee into believing that Gettysburg was to be another Chancellorsville.

They blinded Davis to the merits of Forrest. Especially to be thought of here is the rejected proposal of the latter to recover the Mississippi shortly after the fall of Vicksburg.

I need not go further. The student of the brothers' war can add to the foregoing many other favors shown the union cause by the powers in the unseen.

Of course we of the south stood by our side, fighting to the last against increasing odds with the resoluteness of hereditary freemen. In spite of all their potency the powers were often hard pressed by Lee, Jackson, Forrest, and the incomparable valor of the confederate soldiers. These should have some such eternizing epitaph as this:

"For four years they kept the fates banded against them uneasy."

The parallelism of the fall of the confederacy to that of Troy has incalculably deepened the interest I take in Vergil's great description. Especially of late years do I realize more vividly how his goddess mother removed the cloud darkening his vision, and gave Æneas to see Neptune, Juno, and Pallas busy in the destruction of the burning city; and a lurid illumination falls upon the statement,

"Apparent diræ facies inimicaque Troiæ
Numina magna deum."[\[120\]](#)

CHAPTER XIII

JEFFERSON DAVIS

FOR some time after the brothers' war it was very generally believed that Davis had been one of the Mississippi repudiators; that through all his ante-bellum public career he had been an unconditional secessionist—what we in the south mean by a fire-eater; that cherishing an accursed ambition for the presidency of the southern confederacy he organized a secret conspiracy which consummated secession; that as the chief executive of the Confederate States he aided and abetted the perpetration of inhuman cruelties upon federal prisoners of war; that he was accessory to the murder of President Lincoln; and that when captured he was disguised as a woman. I suppose that these accusations—all of which are utterly untrue—are still in the mouths of many at the north. They have attained some currency abroad. I note that the leading German encyclopedia—that of Brockhaus—repeats those as to the conspiracy and disguise. But “The Real Jefferson Davis,” as Landon Knight has of late presented him,^[121]—without hostile bias and with something like an approach to completeness—is at least beginning to be recognized outside of the south. It is about as certain as anything in the future can be that all detraction from the moral character and patriotism of Davis will after some while wear itself out. I believe far greater favor than mere vindication from false accusation will at last be awarded him in every part of his own country and also abroad. Later in the chapter I shall try to bring out fully the praise and appreciation which world history will, as seems probable to me, shower upon his career. Here I can take time to mention only the beginning of that great fame which we of this day have looked upon. We saw him fall from one of the highest and proudest places in which for four years he had been the talk and envy of the earth. We saw him in sheer helplessness, accused of murder and treason, his feeble health and personal comfort made a jest of, disrespect and insult heaped upon him—we saw him endure all the most refined tortures of imprisonment. Then we saw him set free—his innocence confessed by the acts of his accusers. Then for over twenty years he lived with the people

who under his lead had been conquered and despoiled; and we saw them always eager to pay him demonstrations of the warmest love; we saw them bury him with inconsolable grief; and we see them keeping his memory green by reintering him in the old capital of the Confederate States, giving him there a conspicuous monument, and making the anniversary of his birth a legal holiday in different States. This—which we impressively mark now as only a beginning of glory—must develop into something far larger.

Whenever Davis comes into your mind, of course, you first think of that with which his name is most closely connected—his elevation and his great fall. Therefore it is quite right that we make our start from this point, which is, that he was the head of a subverted revolutionary government. He is one of a few who, like Richard Cromwell, Napoleon, and Kruger, were suffered to survive deposition. Nothing in nature hates a rival more than sovereignty—which, be it remembered, is the representative of a distinct nationality. Note how inevitably a young queen bee is killed by her own mother when found in the hive by the latter. Humanity has not in this particular evolved as yet very far above bee nature; and the fate of Maximilian, emperor of Mexico, usually befalls the sovereign head of a defeated revolution. To the student of history it is a surprise that the life of Davis was spared when American frenzy was at its height. Think of some of the things which then occurred. Mrs. Surratt and Wirz were hanged; the cruel cotton tax; the negroes were made rulers of the southern whites; it was provided *ex post facto* that the high moral duty of paying for the emancipated slaves should never be done. While good men and women both of the north and the south will always censure with extreme severity the treatment which Davis as a prisoner received, they ought to note it as a most significant sign of American progress that he was at last allowed to go forth and live without molestation the rest of his life among his old followers.

Before we begin the sketch which we contemplate let us bring out more vividly the novelty of his example by contrasting him with the failing leaders of revolutions mentioned above. Richard Cromwell could be tolerated as a private man by the restored royal government, because his protectorate had been, so far as he himself is considered, a mere accident. It was the mighty Oliver, his father, that overthrew and beheaded Charles I, and then took the reins of rule. These, when he died, came to his son, who in ability and ambition was a cipher. They who set him aside would have

been ashamed to confess the slightest fear of him. His captors exiled Napoleon, and Kruger exiled himself. Richard Cromwell, having been cast out of the protectorate, living forgotten in England, is no parallel to Davis spending his last years in Mississippi honored by the entire south with mounting demonstration to his death. Had Napoleon lived in France and Kruger in the Transvaal, each after his overthrow, they would be parallels. As it is, the subsequent life of Davis is without any parallel.

Having thus shown you what it is that Davis especially exemplifies, let us now give you briefly such a biography as suits the purpose of this book.

The fairies bestowed upon him treasures of mind and heart, of form, mien, and face, of speech and manners. He was not of the very first rank, as Webster, Toombs, and Lee, who suggest comparison with the Pheidian Zeus, nor was he in the next with Poseidon and Ares. When President Pierce and the members of his cabinet were passing by Princeton, a throng of citizens and students called them out during the stop of the train at the Basin. As we went away it seemed to me that no speech but that of Davis was remembered. Compliments were rained upon him. At last a student from New York State cried, "He's an Apollo!" and all the hearers assented with enthusiasm. This placed him right,—at the head of the Olympians in the third circle.

Though he became a very prominent political leader, the choice of a profession made by him was that of a soldier. And that profession was always his first love. His early education, though very deficient and limited, was far superior to that with which Calhoun had to be content until he was eighteen. But Davis had when a boy something which supplies educational defects—a taste for study and a fondness of and access to books. When at the age of thirty-five he made his *début* in politics he had become really a well-schooled and highly cultured man. He completed his West Point course, graduating in July, 1828. His wife says: "He did not pass very high in his class; but he attached no significance to class standing, and considered the favorable verdict of his classmates of much more importance."^[122]

He served in the army until June 30, 1835, when he resigned. I will cull from the entertaining narrative of Mrs. Davis certain occurrences of his

army life which are characteristic.

Reaching a ferry on Rock river in Illinois, in 1831, with his scouts, he found the boat stopped by ice, and the mail coach with certain wagons going to the lead mines waiting on the bank. All the crowd put themselves at his direction. He had the men to cut blocks from the ice for a bridge. Water was poured upon each block as soon as it was laid, and this freezing, the block was kept firmly in its place. Whenever a cutter would fall overboard, he was sent to turn himself round and round before the fire until he was dry and ready to resume work. The bridge was soon finished, and the entire party crossed the river. This incident shows that there was something in Davis's appearance that invited full trust, and that he was unwontedly quick and ingenious in expedient.

How he disabled a disobedient soldier of ferocious temper and great size by an unexpected blow, and then beat him into complete submission; and how he captivated the other soldiers by announcing that he would not notice the affair officially, illustrates his talent for command.

Men desperate and well armed had taken possession of the lead mines, and they were to be removed. He tried to induce their consent by making them a speech. Some weeks later he sought another conference. Finding a number of them in a drinking booth, he was begged by his orderly not to go in. "They will be certain to kill you," the orderly said; "I heard one of them say they would."

"Lieutenant Davis entered the cabin at once, and, as they expressed it, 'gave them the time of day' [that is, he said "Good-morning" or what the hour demanded]. He immediately added, after saluting them, 'My friends, I am sure you have thought over my proposition and are going to drink to my success. So I shall treat you all.' They gave him a cheer."^[123]

How much more heroic is such Cæsar-like courage and tact in quelling the mob than to butcher misguided men with musketry.

I have reserved for emphasis here, as illustrating Davis's presence of mind and readiness in emergency, two incidents which are earlier in time than what I have just been telling. The first is this. One of the professors disliked and was inclined to disparage Davis while he was a cadet at West Point.

Lecturing on presence of mind, this professor fixed his eye on Davis “and said he doubted not there were many who, in an emergency, would be confused and unstrung, not from cowardice, but from the mediocre nature of their minds. The insult was intended, and the recipient of it was powerless to resent it. A few days afterwards, while the building was full of cadets, the class were being taught the process of making fireballs, when one took fire. The room was a magazine of explosives. Cadet Davis saw it first, and calmly asked of the doughty instructor, ‘What shall I do, sir? This fireball is ignited.’ The professor said, ‘Run for your lives!’ and ran for his. Cadet Davis threw it out of the window, and saved the building and a large number of lives thereby.”^[124]

In the affair last told, Davis showed a freedom from confusion and an alertness that is very rare. But the second thing which I have to tell is still more remarkable.

While stationed at Fort Crawford in 1829, he had set out in a boat with some men to cut timber, accompanied by two *voyageurs*.

“At one point they were hailed by a party of Indians who demanded a trade of tobacco. As the Indians appeared to have no hostile intentions, the little party rowed to the bank and began to parley. However, the voyageurs ... soon saw that their peaceful tones were only a cloak. They warned Lieutenant Davis of the danger, and he ordered his men to push out into the stream and make the best time they could up the river. With yells of fury the Indians leaped into their canoes and gave chase. There was little, if any, chance for the white men to escape such experienced rowers.... If taken ... death by torture was inevitable. They would have been captured had not Lieutenant Davis thought of rigging up a sail with one of their blankets. Fortunately the wind was in their favor, but it was very boisterous. As it was a choice between certain death by the hands of the Indians, or possible death by drowning, they availed themselves of the slender chance left and escaped.”^[125]

These things which we have selected to tell of him prove that he had in large measure some of the endowments which are indispensable to the

excellent soldier. They will be recalled by you when we tell his feats in Mexico. I must say here that I do not mean to claim first-rate ability for him; but I do believe that he was equal or almost equal to the best in that great department of the military requiring the powers of the gifted officer and not those of the few born generals of the world.

It is a most amiable touch that he left the army to marry a woman the choice of his heart, and give her a happy home. He cordially sacrificed for her an occupation which he loved only less than herself. He had had as brilliant a career as could be won by a lieutenant in garrison duty and service against the Indians. It must be remembered he had been promoted to first lieutenant for gallantry.

It is proper to mention here one other fact of his army life. He had resolved that if the regiment to which he belonged should be sent to help execute the force bill in South Carolina, he would resign. Though he never was a nullifier, his conscience could not permit him to abet in any way the coercion of a sovereign State, as he always believed each one of the United States to be.

His wife lived only a few months. Her death was a fell blow. Her husband mourned her for nearly ten years. Then he made a most happy marriage with the lady who survives him.

In 1836—the next year after the death of his first wife—he settled on a plantation. Mr. Knight is especially happy in telling how, with his elder brother Joseph, who had been a successful lawyer, but was now a rich planter, as instructor and guide, he studied diligently for some while. To quote:

“During the period of their residence together, the time not required by business the brothers devoted to reading and discussion. Political economy and law, the science of government in general and that of the United States in particular, were the favorite themes. Locke and Justinian, Mill, Adam Smith, and Vattel divided honors with the Federalist, the Resolutions of ninety-eight, and the Debates of the Constitutional Convention. It was said they knew every word of the last three by memory; and it is certain that year after year,

almost without interruption, they sat far into the night debating almost every conceivable question that could arise under the constitution of the United States.”

Jefferson Davis, as his congressional speeches and his book show, became deeply versed in the subjects of the joint study just described. I must note, however, that the discussion which engaged him for such a considerable period of his ante-public life was had only with one who was of the same State-rights creed as he himself was, and that it was all in the closet, as it were. You can only begin the making of a great lawyer by feigned cases and moot courts. Likewise the true political leader must early be plunged into real contentions over questions of actual interest, and thus almost from the very first mix practice with theory. Compare Webster and Toombs, each at his outset combating with the ablest lawyers of his State as adversaries, and also publicly discussing varied questions of policy. I suspect that this prolonged closet training, with its abundance of academic debate, had much to do in developing Davis into that supra-logical consistency, stiffness, and unmodifiability of opinion which is one of his special differences as a practical statesman from the two great men last mentioned. This, and the mental habitude given by his military education and experience, mark him as *sui generis* among our political leaders. His public career shows more of the doctrinaire and precisian than can be found in any other one of these.

In the long post-graduate course which he took in private under his brother, he was preparing for public life without being aware of it, as it seems to me.

He had now but one acquisition to make—to think on his legs and tell his thoughts at the same time. Extempore speakers are generally made. But Davis was a born one. He did not have that experience at the bar and in the State legislature which has been the beginning of so many famous American orators. The democrats of his county nominated him for the legislature in 1843, and his first experience in public speaking was in a stump-debate immediately afterwards with the redoubtable S. S. Prentiss, Davis then being thirty-five years old. The debate consumed most of the day. The disputants had each fifteen minutes at a time. The result of the campaign was in favor of Prentiss. As Davis, a democrat, was merely leading a forlorn hope in a county overwhelmingly whig, that was to be expected. But the pluck, readiness, and power which he exhibited in this,

his maiden effort, pitted as he was against the ablest speaker of the State, astounded the auditors, and it seemed even to the whigs that the raw debater while nominally losing had really triumphed.

The next experience he had is thus narrated by Mr. Knight: "Mr. Davis took a conspicuous part in the presidential campaign of 1844, and was chosen as one of the Polk electors. Before this campaign he was but slightly known beyond his own county, but at its conclusion his popularity had become so great that there was a general demand in the ranks of his party that he should become a candidate for congress in the following year."

He had to receive just one more lesson as a speaker. In 1845 Calhoun was coming to Natchez. Davis was selected to welcome him with a speech. He made careful preparation, which his wife, whom he had lately married, took down at his dictation. But when Calhoun had come, after a moment or two of slowness in the exordium, Davis gave up trying to recite from memory, and delivered with grace and effect an unpremeditated speech of taking appropriateness.[\[126\]](#)

What Mrs. Davis says of him as a speaker is so just and in such good taste, that I quote it:

"From that day forth no speech was ever written for delivery. Dates and names were jotted down on two or three inches of paper, and these sufficed. Mr. Davis's speeches never read as they were delivered; he spoke fast, and thoughts crowded each other closely; a certain magnetism of manner and the exceeding beauty and charm of his voice moved the multitude, and there were apparently no inattentive or indifferent listeners. He had one power that I have never seen excelled; while speaking he took in the individuality of the crowd, and seeing doubt or a lack of coincidence with him in their faces, he answered ... with arguments addressed to the case in their minds. He was never tiresome, because, as he said, he gave close attention to the necessity of stopping when he was done.

Only so much of his eloquence has survived as was indifferently reported. The spirit of the graceful periods was lost. He was a parenthetical speaker, which was a defect in a written oration,

but it did not, when uttered, impair the quality of his speeches, but rather added a charm when accentuated by his voice and commended by his gracious manner. At first his style was ornate, and poetry and fiction were pressed from his crowded memory into service; but it was soon changed into a plain and stronger cast of what he considered to be, and doubtless was, the higher kind of oratory. His extempore addresses are models of grace and ready command of language.”[\[127\]](#)

He took his seat in the United States house of representatives in December, 1845, he and Toombs, who was two years younger, beginning their congressional careers together. Davis made a very creditable speech on the Oregon question early in February, 1846. He was a modest member, but he did all the duties of his place with praiseworthy diligence.

Although he was a thoroughgoing anti-tariff democrat and Webster a pro-tariff whig leader, he could not be induced to join in the effort to make political capital for his own party by blackening the name of Webster. The minority report of the committee which investigated the conduct of Webster, as secretary of state, was really made by Davis, who was one of the committee. The stand taken by the latter, and the true presentation which he made, at last got the whole committee to adopt his report substantially. Webster was greatly pleased with it.

Early in May, 1846, Taylor had won his first victories. On the 29th Davis, supporting joint resolutions of thanks to the general and his army, made reply to what he deemed were unwarranted reflections upon West Point. He emphasized Taylor's operations as proving the high value of military education. He asked Sawyer of Ohio, who had disparaged the Academy, if the latter believed that a blacksmith or tailor could have done such good work. Thus, without knowing it, he trod upon the toes of two members of the house; for Sawyer had been a blacksmith, and Andrew Johnson, of Tennessee, a tailor. Sawyer took it good-humoredly, but Johnson, the next day, passionately defended tailors, and used language very offensive to Davis, implying that the latter belonged to “an illegitimate, swaggering, bastard, scrub aristocracy.” To this the latter, justly indignant, rejoined with cutting severity. There was never any love lost between the two afterwards. When President Lincoln was murdered Johnson, succeeding him,

committed the unspeakable folly of offering by proclamation \$100,000 reward for the arrest of Davis as accessory. When Davis, having been captured, was told of the proclamation he said to General Wilson—hoping his words would be reported to Johnson—that there was one man in the United States who knew the charge was false; this was the man who had signed the proclamation; “for,” said Davis, “he at least knew that I preferred Lincoln to himself.”

Of course had Davis possessed the chief qualifications of popular leadership he would have made a fast friend instead of a bitter enemy of this man, whose rise from low estate to greatness proves that he had in him elements of manhood and virtue that ought to have homage from the highest and proudest.

It was by his course in the Mexican war that Davis commenced life in the eye of the nation. Without canvassing for the place—he never did canvass for a place—he was elected colonel of the First Mississippi volunteers, and “he eagerly and gladly accepted.” The president, authorized by a new law, offered to make him a brigadier general. Mrs. Davis says: “My husband expressed his preference for an elective office; when pressed, he said that he thought volunteer troops raised in a State should be officered by men of their own selection, and that after the elective right of the volunteers ceased, the appointing power should be the governor of the State whose troops were to be commanded by the general. This was his first sacrifice to State rights, and it was a great effort to him.”^[128]

General Scott doubted if the percussion lock was as well suited to field use as the flint lock, but Davis knew better. He had his men furnished with the percussion-lock rifle, a very superior arm to the old smooth-bore. He drilled his regiment well. And he kept its members from pillaging.

As the storming of Monterey opened, the head of the column recoiled in confusion from a deadly cross-fire, “producing the utmost confusion among the front of the assaulting brigade. The strong fort, Taneira, which had contributed most to the repulse, now ran up a new flag, and amid the wild cheering of its defenders redoubled its fire of grape and canister and musketry, under which the American lines wavered and were about to break. Colonel Davis, seeing the crisis, without waiting for orders, placed

himself at the head of his Mississippians, and gave the order to charge. With prolonged cheers his regiment swept forward through a storm of bullets and bursting shells. Colonel Davis, sword in hand, cleared the ditch at one bound, and cheering his soldiers on, they mounted the works with the impetuosity of a whirlwind, capturing artillery and driving the Mexicans pell-mell back into the stone fort in the rear. In vain they sought to barricade the gate; Davis and McClung [the lieutenant-colonel] burst it open, and leading their men into the fort, compelled its surrender at discretion. Taneira was the key of the situation, and its capture insured victory. On the morning of the 23d of September, the following day, Henderson's Texas Rangers, Campbell's Tennesseans, and Davis's Mississippians, the latter again leading the assault, stormed and captured El Diabolo, and the next day General Ampudia surrendered the city.”[\[129\]](#)

Davis's quickness, coolness, and dash—and especially his promptness to take such wise initiative as is permissible to a colonel in action—shone forth conspicuously in this affair.

He was the very soul of the glorious stand of the Americans at Buena Vista against odds of more than 4 to 1. At the opening of the battle a ball drove a part of his spur into the right foot just below the instep, making a very painful wound. He kept his seat as though nothing had happened. Later in the day, his bleeding foot thrown over the pommel, he spurred his horse into leaping a ravine, in which he saw a horse and cart beneath him as he flew over. But his great exploit was the re-entering line of his regiment and Bowles's Indianians, with which he received the charge of a host of heavy cavalry. His rifles being without bayonets, the hollow square, then the approved mode of defence, was not to be thought of. So necessity, the mother of invention, suggested to him a formation which poured something like two crossing enfilades into the head of the cavalry column. The brilliant conception was brilliantly executed. The carnage that befel the cavalry drove it from the field. Did not the spirit of Napoleon looking on regret that he had not given the pesky Mamelukes like punishment? The world has noted how Sir Colin Campbell learned from Davis the right way of opposing infantry to the onset of heavy cavalry.

The great distinction won most deservedly by Davis, as the colonel of a raw regiment in these important engagements, is, so far as I know, without any

parallel. It was but natural that he should always afterwards believe himself to be a great military genius. Of course he had become famous throughout the whole country.

There was a vacancy in one of the United States senatorships from Mississippi, and Davis was appointed to fill it. I need not go into much detail at this point. He was warmly greeted at his entrance into the upper house. He maintained himself with growing ability. While he was independent and self-reliant enough now and then to differ with Calhoun, in the main he followed the latter as his leader. There was a dignity and poise in his nature that suited the senate better than the house of representatives. And he was doubtless frank when he asserted later that he preferred the senate to any other place. As I contemplate his record at this part of his life he impresses me as that one of all the more prominent southern public men who was most fixed in the opinion that the very surest preservative of the union was for the south to be always unflinching and utterly uncompromising in demanding exact enforcement of every constitutional protection of slavery. He loved the union most fondly. It was only the south that he loved more. Conscientious doctrinaire as he was, he believed that the rights of the south were so plain and palpable that if they were but stated they would be conceded by the great mass of the northern people. He thought it was to encourage disunion to surrender even a jot of our claim to equality in the Territories and that the fugitive slave law should be fully enforced. His anticipation was that the more we yielded to the anti-slavery men the more we would be asked to yield, until at last we would be driven into the ditch, when we could save the south only by secession. So he counselled with all his might that the south should resolve to surrender nothing whatever—to go out of the union rather than so to do. Let the north understand this and the abolition party will disappear. That is the only way to save the union. This explains why he refused to support the compromise measures of 1850. He was beaten for governor of Mississippi on that issue. He was classed with the fire-eaters. But that was utterly untrue. Remember that in 1860 he actually contemplated being the democratic presidential candidate, and that Massachusetts sent a delegation to the Charleston convention instructed for him.

A word or two as to his secretaryship of war. He was as up to date in adopting every new thing of merit as he had been in insisting upon

percussion-lock rifles for his regiment in the Mexican war. The diligence and prolonged labor which he conscientiously gave his official duties were truly exemplary. I wish especially to have my reader reflect upon two things belonging here. In selecting men to fill offices, from the highest to the lowest, he was utterly regardless of their politics. When remonstrated with by democratic partisans for not giving democrats the preference in competition for appointments, he declared positively that he should always make fitness and qualification the only conditions of such selection. And his actions as long as he held the important office spoke even louder than his words. Surely here is an example for these times to profit by. The second thing really belongs to the same class as the first. It is that when civil war actually prevailed in Kansas between the anti-slavery men on one side and the pro-slavery men on the other, and the commander of the federal troops in the Territory would virtually be absolute in power, though Davis was the very extreme of pro-slavery he gave the place to Colonel Sumner, an outspoken abolitionist, “whose honor, ability, and judgment recommended him as the best man for the difficult duty.”^[130]

The secretaryship must be noted as deepening the regular-army grooves in which Davis’s thoughts and tastes had long been moving.

He became United States senator again in 1857, which position he held until the secession of his State. I need touch upon nothing but the prominent part he took. Without knowing it he became the guide that conducted the south in the aggressive defensive which the closing in around her of the hostile lines imperatively dictated. All that he did of importance but led up to or supported his famous resolutions of February 2, 1860. Their gist was that if the judiciary and executive could not and the Territorial legislature would not protect slave property in any of the Territories, congress was bound to pass efficiently protecting laws, to remain of force until the Territory was admitted as a State, with a constitution that authorized or prohibited slavery.

Compare the speech he made for these resolutions with that made for them by Toombs, and the wide difference of the two men comes out plainly. The former is the height of commonplace morality and patriotism, expressed with manly strength and eloquence, while the speaker does not see clearly into the gulf of the brothers’ war into which his measure has been made by

the fates the lever to plunge America. That of Toombs shows titanic mastery of law and statesmanship, and almost full discernment of the national catastrophe at the door. It is destined, I believe, to stand in the highest class of great speeches.

Compare the last speeches of each in the senate. Toombs's justification of secession is with argument and appeal to conscience that the greatest men cannot, and only cosmic forces, the fates, the directors of evolution, can answer. Davis's does satisfy the conscience of the typical southerner, and in the tone preserved from beginning to end is a marvel of propriety. The pathos of his leave-taking melted the sternest hearts on the other side. It was especially in his freedom from offensive words and the gentlemanly self-restraint of his manner that Davis showed as decidedly superior to the other. In the speech of Toombs last noticed there are some harsh and heated words that I would blot into complete oblivion if I could. There is not a single line in the other that I can find fault with. I will here parallel them in another place that is strikingly illustrative. Some years after the war the people of Mississippi wanted to send Davis back to the United States senate. To this end the legislature memorialized him to apply for the removal of his disability. He replied that repentance ought always to precede asking for pardon, and that he had not yet repented. One day about the same time a sympathizing southerner asked Toombs if the yankees had pardoned him yet. He scowled his darkest, and thundered, "No. And God damn 'em, I haven't pardoned them." Of course the average man or woman will cordially approve the decorum of Davis's reply, and on reflection will censure the other.

Davis was completely representative of the real chivalry of the south; and from the Mexican war on, this was more and more recognized in the section. When he was made president of the confederacy the great majority of the people approved. He is such a gentleman; so conscientious; so attentive to his public duties; and then his military education and experience make him far superior to Lincoln—this was said by the general. Thus were his disqualifications for the place concealed from the people of the south.

His chief defect was that not being a successful business man, he was not a practical statesman. On this point we have already said enough.

His own judgment upon himself was that he ought to command the armies of the confederacy. To the very last he believed he had the extreme of military ability. During the gloomy days that set in after Gettysburg he often exclaimed, "If I could take one wing and Lee the other, I think we could between us wrest a victory from those people."^[131]

But he did not have extraordinary military capacity, as appears from the facts which I will now tell.

He was on the field at First Manassas when that unprecedented panic seized the federal army. It was instantaneously understood by the latest recruit looking on from our side. The men and line officers around me ejaculated, "We ought to press forward and go into Washington with 'em." Davis with his training should have seen better even than these raw volunteers, and recognized it was his part by pursuit to accelerate the flight and raise that panic to its top. There were remaining several hours of daylight, during which five of his men could chase a hundred and a hundred put ten thousand to flight, and when night came the excited imagination of the fliers would re-enforce the confederates with a vast host of destroying monsters behind and before. The federals losing all organization, were racing to escape over the bridge at Washington which was a little more than twenty miles away. They were choking the roads with abandoned vehicles and artillery. As it was, they seriously choked the bridge. Had there been rapid advance by us, and firing in the rear, it is more than probable we should have got the bridge unharmed. We should have added thousands to our prisoners. But far more important than this, would have been the arms, ammunition, wagons, horses, quartermaster and commissary supplies of all sorts—in short, the entire baggage of the enemy—that would have been ours for the taking. And if the federals had destroyed the bridge before we reached it, we should have had McDowell's pontoons, or captured material out of which to make a bridge of our own. We should have crossed somehow, and at the place which circumstances and the insight of genius suggested. The capital would have fallen, really without a blow; and what an immense addition to our booty would have been here. And the prestige! In a day or two our flag would have waved over Baltimore, the consequence being that Maryland, with a throng of most true and valiant fighters, would have been won for the Confederate States, and its northern line instead of the Potomac would have become the frontier. All this would

have happened if Davis had been a Cæsar and had Cæsar-like used the one great opportunity of the war. It must be set down to his credit that he did far more than Johnston and Beauregard insist upon pursuit. But he does not seem to have thought of it until night; and at last he permitted himself to be reasoned out of it.

There have been earnest efforts to justify the fateful supineness of our army after this victory. We were without transportation means, and a retreating army always outruns its pursuers, said Johnston. Mr. Knight says Northrop had left us without commissary supplies, and of course men without anything to eat had to wait until they could be fed. Beauregard says we ought to have made for the upper Potomac, which was fordable. All such reasons come from those who ignore the situation. A real general would have said to his soldiers, in the first moment of the panic, "You are weary; it will rest you to chase your flying foe; you can catch him because of the obstructing bridge. You are hungry; there are full haversacks and commissary wagons of your enemy just beyond Centerville without defenders. Forward, and escort the grand army into Washington city!" And such a general with just what infantry he could find to hand, all the while being re-enforced by eager men catching up, pressing forward as persistently as Blucher spurred with his cavalry after the French flying from Waterloo, would have been in sight of Washington when the sun rose.

Mr. Knight sets forth very truly the incapacity of Davis as the military chieftain of the Confederate States.[\[132\]](#) I would abridge what can be said here under these heads:

1. Each particular army ought to have operated as a part of the whole force of the confederacy, and that whole force ought to have been wielded as one machine. Instead of trying to effect this end, the president decided that all exposed points must be defended. The result was that these were taken one after another by superior armies. A military man will understand me when I say his strategy was below mediocrity. True strategy dictated the abandonment of many places in order to assemble by using our shorter interior lines a resistless power on a really decisive occasion. McClellan, in Virginia, and Grant, in Mississippi, ought each to have been captured as Burgoyne and Cornwallis were.

2. He selected his generals and important officers according to his likes and dislikes, and not according to their true qualifications.

3. He was without practical administrative talent in any high degree. Such a man as Joseph E. Brown, of Georgia, would have shown far superior to him.

It will doubtless be the decision of future history that he was neither statesman nor military man of sufficient ability for the presidency. He did not want it. Compare him as secession was dawning, with Toombs, who was the man of all to be president. The latter scenting battle in the air, was really eager for the inevitable fighting to begin; Davis was cast down and dejected. He loved the union, and it was inexpressibly bitter to him to part with it. And then he was sure that there would be a long and bloody brothers' war. What he wanted was to fight for the south so dear to him. The news of his election as president was perhaps the greatest surprise of his life. Says Mrs. Davis: "When reading the telegram he looked so grieved that I feared some evil had befallen our family. After a few minutes' painful silence he told me, as a man might speak of a sentence of death."[\[133\]](#)

Writing of his inauguration at Montgomery, he says to his wife: "The audience was large and brilliant. Upon my weary heart were showered smiles, plaudits, and flowers; but, beyond them, I saw troubles and thorns innumerable."[\[134\]](#)

And she tells this of his inauguration as president of the permanent government:

"Mr. Davis came in from an early visit to his office and went into his room, where I found him an hour afterwards on his knees in earnest prayer 'for the divine support I need so sorely' [as he said].... 'The inauguration took place at twelve o'clock.' [The anterior proceedings having been described, the contemporary account she quotes goes on thus:]

"The president-elect then delivered his inaugural address. It was characterized by great dignity, united with much feeling and grace, especially the closing sentence. Throwing up his eyes and hands to heaven he said, 'With humble gratitude and adoration,

acknowledging the providence which has so visibly protected the confederacy during its brief but eventful career, to Thee, O God, I trustingly commit myself, and prayerfully invoke Thy blessing on my country and its cause.’”

Then she adds:

“Thus Mr. Davis entered on his martyrdom. As he stood pale and emaciated, dedicating himself to the service of the confederacy, evidently forgetful of everything but his sacred oath, he seemed to me a willing victim going to his funeral pyre; and the idea so affected me that, making some excuse, I regained my carriage and went home.”[\[135\]](#)

So did this thrice-noble man sacrifice his dearest wishes and with superhuman resolution step into the arena at the command of the fates, to be the target of their wrath against his people.

He was like Hamlet upon whom destiny had imposed a high task far beyond his powers. We can believe that to the end of his presidency Davis sorely sighed more and more often:

“The time is out of joint: O cursed spite
That ever I was born to set it right.”

His official career from beginning to end was full of fatal mistakes. But in every one of these he did the right—to use Lincoln’s grand word—as God gave him to see it. This will more and more through all the future turn his failure to glory. He will be like Hector, who draws the admiration of the world a thousand-fold more than Achilles, his vanquisher.[\[136\]](#)

At the last, when the sword of Grant had beaten down the sword of Lee, and all of us, it seemed to me, knew that it was the highest duty of patriotism to yield our arms, he was for fighting on. Casabianca would not go with those who were leaving the burning ship until his dead father bade him go. Davis would not abandon the cause of his nation without its command; and it could give none; for it was dead and he did not know it. He was trying his hardest to reach the west, intent upon prosecuting the war from a new base, when he was taken.

His capture was accepted by the southern people as the fall of the blue cross. Every man, woman, and child old enough to think, in the late confederacy became sick and faint. Sorrow after sorrow, and grief after grief tore their hearts. The first was the thought, for all the blood we have poured out during four years of such effort on the battlefield as the world never knew before we have lost; we have been beaten, and we are subjugated. The next thought that pierced was, the property that made our homes the sweetest and most comfortable on earth has all been destroyed, and for the rest of their lives our dear ones must pine in hardship and misery. O how this pang actually killed many old men and women! It seems to me that heart failure commenced in the south with the great harvest it gathered in the first five years succeeding the war. But the agony of agonies was that the negroes were put over us. Those five years—particularly the last three of them—are the one ugly dream of my life. To pay his debts, which would have been a small thing to him had he kept his slaves, but which were now monsters, my father overworked himself, while trying to make a cotton crop with freedmen. I did not learn of his imprudence until I had been summoned to see him die. There was something like this in every family. A night of impoverishment, misery, contumely, and insult descended upon us, and the sun would not rise. I kept the stoutest heart that I could. Now and then it was a comforting day dream to imagine how well it would have been for me if I had fallen in the front of my men on the second day of Gettysburg, when I was trying my utmost to make them do the impossibility of charging across the narrow bog staying us, and mixing with the men in blue lining the other side. Had that happened to me I should never have known, in the flesh, of our decisive defeats, nor of the trials of my people after they laid down arms; and even if my grave could not have been found, there would have been at a place here and there for some years honorable mention of me with tears on Memorial Day, to gladden my spirit taking note. This would sometimes be my thought, and thousands of others had like thoughts.

Early in this time of sorrow and suffering the women of the south instituted Memorial Day. Each year when it comes they do rites of remembrance to the fallen soldiers of the confederacy. These soldiers lie in every graveyard from the Ohio and Potomac to the Rio Grande. When the day comes these women in their unforgetting love assemble the people, have praises and

lamentations of their dead darlings fitly spoken; and then they deck their graves with the fairest flowers of spring. It is an annual holiday, sacred to grief for our heroes who died in vain. It is the fairest, tenderest, and sweetest testimonial of love ever given—love from those who have nothing else to bestow, lavished upon those who can make no return; and it is further the most splendid and glorious, being the co-operative demonstration of a whole people of “true lovers.”^[137]

I cannot say where and when the observance of Memorial Day began. Perhaps Miss Davidson correctly asserts that it was in Petersburg, Virginia, in 1866.^[138] It had reached its height at Charleston, South Carolina, in the spring of 1867, when as prelude to decorating the graves in Magnolia cemetery, Timrod’s hymn, containing this oft-quoted passage, was sung:

“Behold! your sisters bring their tears,
And these memorial blooms.

“Small tributes! but your shades shall smile
More proudly on these wreaths to-day,
Than when some cannon-moulded pile
Shall overlook this bay.

“Stoop, angels, hither from the skies!
There is no holier spot of ground
Than where defeated valor lies,
By mourning beauty crowned.”

The “true lovers” could no more forget their living leader in prison than they could forget their soldiers in the grave. “Out of sight, out of mind” could not be said of Davis during his two years’ confinement. The concern of his people mounted steadily. They made all his sufferings their own, lamenting and praying for him as a loved father. When he was about to be released on bond the news gave the south a wilder joy than did the unexpected victory of First Manassas. He was brought in custody to Richmond by a James river steamboat. Mrs. Davis thus describes how he was received:

“A great concourse of people had assembled. From the wharf to the Spottswood Hotel there was a sea of heads—room had to be made by the mounted police for the carriages. The windows were crowded, and even on to the roofs people had climbed. Every head was bared. The ladies were shedding tears.... When Mr. Davis reached the Spottswood Hotel, where rooms had been provided for us, the crowd opened and the beloved prisoner walked through; the people stood uncovered for at least a mile up and down Main street. As he passed, one and another put out a hand and lightly touched his coat. As I left the carriage a low voice said: ‘Hats off, Virginians,’ and again every head was bared. This noble sympathy and clinging affection repaid us for many moments of bitter anguish.

When Mr. Davis was released, one gentleman jumped upon the box and drove the carriage which brought him back to the hotel, and other gentlemen ran after him and shouted themselves hoarse. Our people poured into the hotel in a steady stream to congratulate, and many embraced him.”

Bear in mind the people, and where it was, and when it was, from whom this show of respect so great, so earnest and unfeigned, spontaneously came. They were of that part of the south which had lost more in blood, property, and devastation than any other, and who, one might think, were too embittered against their defeated leader to show him anything but disapproval. They were also of a State which had not been readmitted into the union. The axe was suspended over their necks by a party seeking excuses for letting it fall; by a party to whom Davis was the most hated of men. Surely these Virginians who thus risked their fortunes were the truest of lovers.

No reader of mine, though he search history and encyclopedias through and through for years, can find anything like the Southern Memorial Day and the honors given Davis in Richmond as we have just told. They unmistakably mark an ascent of humanity. But it is not my purpose to emphasize them as specially signaling the south. Their great lesson is not learned if it is not understood that they are glories of federal government.

Under any other form of government such demonstrations would be suppressed as disloyal and treasonable.

For more than twenty-two years after this auspicious day the ex-president of the southern confederacy lived most of his time among his people. Their love for him steadily grew. He proved worthy of it. He would not accept the bounty they stood ready to shower upon him, and he was poor and without money-making faculty. When Mississippi wanted to make him United States senator again, he felt that he was too old and broken to serve the State efficiently, and he declined. It occurred to all of us that he sorely needed the salary of the place. He struggled on under the load of poverty and ill-health. All of us knew that the latter came from that cruel and inhuman imprisonment, and the more he suffered the closer our hearts drew to him. The cause of his section he justified to the last, and with all his energy. His book defending that cause was written under difficulty almost insurmountable by man. His character as one tried in every way and found true came out clearer and clearer. He showed more and more of spotless virtue, becoming all the while to us a stronger justification of the fight we had made under him for the lost cause. We thought to ourselves with pride that the world will some day learn what a good man he was, and that will be our complete vindication from the slanders now current.

Let me tell of some of the other demonstrations made over him. I witnessed that in Atlanta, in 1886. April 30, all the State of Georgia was there, as it seemed. Old and young, white and colored, waited impatiently for the railroad train bringing him from Montgomery. My wife, divining the rare sight thus to be gained, secured a station out of town where she could see the train pass without obstruction. As long as she lived afterwards, his car, prodigally and appropriately bedecked with the fairest May flowers of the sunny south, was her proverb for that which pleases too greatly for description.

When he had come out of his bower of flowers and we knew he was resting, we felt as if the angel of the Lord was here with tidings of great joy for all our people.

Who can describe the rejoicing of the next day that came forth everywhere as Mr. Davis showed himself to his people! I have seen popular outbursts of

gladness, but nothing like this. It surpassed in profundity of feeling and sustained energy and flow that which seemed to come straight out of the ground when, in 1884, we knew at last that Cleveland was elected, and the south was convulsed with an ecstasy of happy surprise. The women and men who had tasted the war all crying; all pouring benedictions upon his gray hairs as they came in sight; “God bless him” displayed on every corner. I am utterly unable adequately to report this grand occasion. I will tell only a few things that I saw or heard of. He passed by a long line of school-children in Peachtree street. They made the sincere and decided demonstrations of children whose pleasure is at its height. But what was especially noticeable to me here was the behavior in the section of colored children. Their delight seemed, if that were possible, to be somewhat wilder and more unrestrained than that of the white children. The occurrence has come back to me a thousand times. Is it to be explained by Mr. Davis’s character as a master, to whom, as to all really typical masters, his slaves were but a little lower in his affections than his children? Or was it unconscious approval of the resistance by the south with all her might against the emancipation proclamation, the end of which may be the wholesale destruction of the black race in America, such approval being suggested by a cosmic influence as yet inexplicable?

When he was going through Mrs. Hill’s yard to enter her house, little girls on each side of the walk threw bouquets before him, every one begging, “Mr. Davis, please step on my flowers.” The feeble man tried to gratify all of them. The flowers that he did step on were eagerly caught up by the owners, to be treasured as the dearest of relics and keepsakes.

I was told that some old grayhead who met him during the day, gently raised Mr. Davis’s hands to his lips, saying, “Let me kiss the hands that were manacled for me,” and as he kissed his tears fell in a flood.

What we have just described occurred in Georgia—a State in which of all during the brothers’ war the most formidable opposition to his administration was developed. This opposition was lead or upheld by Toombs, both the Stephenses, and Brown—the most influential of all the Georgians at that time. That for all this the State gave him this wonderful ovation shows how deep and strong is the southern sentiment that glorifies the lost cause. It was Henry Grady, a Georgian revering and treasuring the

men I have just mentioned, who when Mr. Davis was in Atlanta, in 1886, called him the uncrowned king of our hearts, the words evoking plaudits from the entire south. And remember that Georgia voted for Greeley in 1872, although Toombs and the Stephenses opposed him. I think I was representative of the dominant public feeling at the time. While my companions and I avowed the fullest confidence in Greeley's integrity and statesmanship, we each said we were in haste to honor with our votes the northern man who got Mr. Davis bailed and became one of his sureties. And Georgia is among the States which has made June 3 a legal holiday, because it is the anniversary of Mr. Davis's birth.

Some northern paper sympathetically described the reception given Mr. Davis in Atlanta, in 1886, as the swan song of the southern confederacy. And to me it has always been the funeral of the old south. But there were other obsequies and swan songs. When he died December 6, 1889, the south sorrowed as it never sorrowed before. We are pleased to quote from the memoir, the noblest monument a true wife has ever given a dead husband—far nobler, more splendid and immortal than that which Artemisia gave Mausolus. Mrs. Davis tells:

“Floral offerings came from all quarters of our country. The orphan asylum, the colleges, the societies, drew upon their little stores to deck his quiet resting-place. Many thousands passed weeping by the bier where he lay in state, in his suit of confederate gray, guarded by the men who had fought for the cause he loved, and who revered his honest, self-denying, devoted life. His old comrades in arms came by thousands to mingle their tears with ours. The governors of nine states came to bear him to his rest. The clergy of all denominations came to pray that his rest be peaceful, and to testify their respect for and faith in him. Fifty thousand people lined the streets as the catafalque passed. Few, if any, dry eyes looked their last upon him who had given them his life's service. The noble army of the West and that of Northern Virginia escorted him for the last time, and the Washington Artillery, now gray-haired men, were the guard of honor to his bier. The eloquent Bishops of Louisiana and Mississippi, and the clergy of all denominations, delivered short eulogies upon him to weeping thousands, and the

strains of 'Rock of Ages,' once more bore up a great spirit in its flight to Him who gave, sustained, and took it again to himself."

These aptly chosen words come short of describing the general grief. Nobody can yet tell all of it. One but feebly expresses it by saying that when Jefferson Davis died, broken-hearted men, women, and children gathered in funeral assemblies everywhere in that vast area from Mason and Dixon's line on the north to the Mexican border on the south, wept over his bier, and hung the air and heavens with black.

In 1893 his remains were carried to Richmond, the dead capital of the dead Confederate States, and there reinterred. The ceremonies were impressive, and thoroughly in keeping with those I have narrated in the foregoing.

And in 1896 the corner-stone of a monument to him was laid in Monroe Park. On this occasion General Stephen D. Lee delivered an oration which, as a monument itself, will long outlast the stone one.

Thus has the overthrown and most evilly entreated president of the Confederate States become, by some marvel of fortune, far more than the proudest conqueror. The honors which every one who "can above himself erect himself" estimates as the very richest, Mr. Davis has had given him more prodigally than any other man. These honors that make everything else shabby in appearance and cheap, are the spontaneous offerings of sincere love from those who know us. Smiles, tender words, prayers for blessing, tears of joy, admiration, pity, and sympathy, flowers—how dear are any of these from a friend, brother, sister, father, mother, sweetheart, wife, child. For almost a generation all these tokens were given the ex-president by everybody in the south, and each year to his death they were given in greater profusion. And really the whole south mourned at his burial. Our wives, mothers, and other dear ones give us up, and we give, them up, to fight and perhaps die for the country. We are so made that we love the great brotherhood better than we do ourselves. And so an offering of regard from that brotherhood—to be made to feel that throughout the whole of it one is recognized as most worthy of love—the true man would prize this above every other. Before this time this great honor has been given only by happy ones to their victors—to such as Washington, Lincoln, Grant. But the south has begun a new era. In the misery and ruin of her

subjugation she magnifies her deposed chief. Much of the applause heaped upon the victor is selfish and feigned, but the whole of that given the conquered hero comes direct and straight from the hearts of his countrymen. It seems, therefore, to me that this decoration of the conquered hero is the crown of crowns of this world. It is Davis's historical uniqueness that he has won this lone crown.

The achievement is so counter to common-sense that it is not yet credited nor understood. I cannot help believing that when all the fog raised by the brothers' war has cleared away, and our historians tell what brought and what followed that war with unclouded vision of cosmic agency, that Jefferson Davis will be permanently placed high in the American temple of fame. There he will be the world's contemplation, showing something like Hester Prynne. As what was at first to her the branding placard of guilt turned to a badge of the greatest righteousness, so has that which was unutterable obloquy and disgrace to him become unparalleled fortune and glory.

CHAPTER XIV

THE CURSE OF SLAVERY TO THE WHITE, AND ITS BLESSING TO THE NEGRO

THE master got the curse and the negro the blessing of slavery.

We set out by mentioning how certain ants have been injured by becoming masters. Before this they were doubtless the equals of any non-slaveholding tribe in self-maintenance. Now they “are waited upon and fed by their slaves, and when the slaves are taken away the masters perish miserably.”^[139] It did not become so bad as this with human slaveholders; but the consequent disadvantage was very great, as we shall now exemplify with some detail. We shall throughout keep to the average and typical man and woman. And for brevity’s sake, we shall not look beyond the domestic and agricultural spheres, because when the reader has learned what slavery did in these, he can of himself easily add the little required to make complete statement of its entire effect.

In non-slave communities baby is tended only by mother and near relatives. Though petted and indulged, it is steadily constrained into more obedience to those who tend it. In due time the child is taking care of itself in many things, and is also doing light chores. Until the parental roof has been left he or she has every day something to do. What we may call the open-air home-work is done by the boys, and the inside by the girls. But in the old south baby commenced its life as a slaveholder with a nurse that it learned to command by inarticulate cries and signs before it could talk. And to the end, as grandfather or grandmother, self-service in many common things, as is usual with all other people, was never learned, but great expertness in getting these things done by slaves was learned instead.

I was only fifteen years old in 1851, when I entered the sophomore class in Princeton College, never having been out of the south before. Of course much of my time at first was consumed in observing and thinking over many sights very novel and strange to me. I came in August. Soon

afterwards I saw them saving their Indian corn. In the south we “pulled” the fodder, and some weeks later we “pulled” the corn, leaving the stripped stalks standing. But the New Jersey farmers, without removing the blades or the ears, cut the stalks down, put them up in stacks, and after a while hauled them to the barn. This was such a wonder that I described it minutely in a letter to my mother. The next great surprise that I had was to note the lady of the family and her daughters doing everything in and about the house, which I used to see at home only the negroes do. They were marvellously more expert and neat in despatch than the negroes. Their easy and, as it seemed, effortless way of getting through their daily employment grew upon me steadily. What I intently observed in those times and reflected over much subsequently, I have had a recent experience to refresh and enforce. In the summer of 1902 two ladies from Pennsylvania took a house in Atlanta next to mine. They had never before been in the south. I found out these lonely strangers at once, and was soon seeing much of them. They kept no servant. The two did all the household tasks. The younger washed the clothes. This is something which but few city southern ladies, except those whose ancestors were not slaveholders, have ever consented to do. The laundry of even the poorest families in our towns is nearly always the care of a negro washerwoman. Although their work was every day punctually done by my two new-found friends, and their house always the tidiest, like the New Jersey ladies of my boyhood at Princeton, they were never flustered nor worried, but were always pleasant and agreeable.

Plainly they lived in far more ease and comfort than the native housekeepers. There are two classes of the latter. In one is the woman who is greatly plagued by the waste, dishonesty, and eye-service of her negro cook and housemaid, and always in craven fear that she will wake up some morning to know that they have taken French leave. In the other class is the woman who often must, with the help only of her children, do everything at home. What a laborious, fatiguing botch they make of it! Their day-dream all the year round is to find that needle in a haystack, a servant who will take no more than the established holidays and always come in time to get breakfast.

I sorrow for these present housekeepers of the south. They all know by heart and often retell to their children the tales of their mothers and grandmothers,—how, early in the morning, the affectionate and faithful

nurses stole the children out of the room, without waking papa and mamma; how the cook and the waiters, not superintended, had the best of breakfasts ready at the right time; how at this meal there was happy reunion of the family beginning a new day, the children bathed and in their clean clothes, each one pretty as a picture and sweet as a pink; and how all the affairs of the household under the magic touch of angel servants were fitly despatched without trouble or worry to mamma, until the day ended by the nurses' bathing the little tots again, putting them to bed, and mammy's getting them to sleep by telling "The Tar Baby" or some other adventure of Brer Rabbit over and over as often as sleepily called for, or by singing sweet lullabies. With this vision of a real fairyland in which their ancestors lived not so very long ago, how can any one of these mothers of the new south contentedly make herself the only nurse, cook, and house servant of her family? For many a year yet, to do every day the drudgery of all three will be the extreme of discomfort and sore trial to her. We must give her loving words and sympathy without ceasing, and trust her to the slow but sure healing of inevitable necessity.

This lamentable condition of our southern woman is due, as plainly appears, to the miseducation given their ancestors by slavery. Slavery went forty years ago; but it left the negro, and the dependence of these women upon her as their only servant. It is indispensable that they cut loose completely from this dependence. Their resolve should be firm and unwavering that they will learn to minister to themselves and their dear ones, and teach the blessed art to their children; as their northern sisters have always done. I would have them here receptively contemplate, as a part of the new lesson which they must learn, this true and enchanting picture of a New England home:

"There are no servants in the house, but the lady in the snowy cap, with the spectacles, who sits sewing every afternoon among her daughters, as if nothing had ever been done, or were to be done,—she and her girls, in some long-forgotten forepart of the day *did up the work*, and for the rest of the time, probably, at all hours when you would see them, it is *done up*. The old kitchen floor never seems stained or spotted; the tables, the chairs, and the various cooking utensils never seem deranged or disordered; though three and sometimes four meals a day are got there,

though the family washing and ironing is there performed, and though pounds of butter and cheese are in some silent and mysterious manner there brought into existence.”^[140]

Of course it is not to be demanded that the southern woman exactly reproduce the New England system of fifty years ago just described by Mrs. Stowe. But she must learn to be entirely independent of servants in the era of co-operation, electric dish-washers, and other helping machines, about to begin.

Let us see how it has been with the fathers and boys. The planting of the old south required proportionally less cash outlay annually than any common business that I now call to mind. The owner of 750 acres of land—an ordinary plantation—worth \$6,000, thirty slaves worth \$18,000, and mules and live-stock worth \$1,000, had usually but five considerable items of expense: the overseer with his family was “found”—to use the then current vogue—and paid not more than \$150 yearly wages; a few sacks of salt to save the pork—a little to be given the live animals occasionally; a few bars of iron for the plantation blacksmith shop—the latter being furnished with bellows, anvil, tongs, screwplate, vise, and a few other tools, all hardly amounting to \$100 investment; sometimes coarse cotton and woollen cloth for the clothes of the negroes, made by the slave-women tailors (even in my day this cloth was, on many plantations, spun and wove at home from the cotton and wool grown by the owner); and the fifth item was a moderate bill of the family physician for attendance upon the sick slaves. The whole would seldom amount to \$350; and remember the income yielding capital was \$25,000. This planter paid no wages for his labor; he bred his slaves, and all animals serving for work, food, or pleasure;—in short, the establishment was self-supporting. The good manager sold every year more than enough of meat, grain, and other produce to pay the expense itemed a moment ago, and so the \$1,200 from the sale of his crop of thirty bales of cotton was often net income.

The natural increase of slaves which I have explained above operated in many cases to encourage wastefulness and idleness. But even in the majority of these cases the estates more than held their own.

Let us illustrate the change wrought by emancipation by having you to contemplate a small middle Georgia farmer of to-day. If he employ but four hands to his two plows, he will, in wages, fertilizers that have come into general use since the war, purchase of meat, corn, and other supplies that the slaves used to produce, necessarily lay out annually more than did the planter making thirty bales as we mentioned above. If this small farmer makes twenty bales—which is far above the average—worth, if the price be, say, eight cents, \$800—more than half of it will be needed to cover his outlay. It is to be emphasized that as a general rule this farmer and his boys have not yet been trained to work as steadily and diligently as their circumstances demand of them. As the women slight in the house what they regard as fit employment only of negroes, so the men do the same in the farm. The whites of both sexes cling to the negro instead of making good workers of themselves.

In the old south money grew of itself. Now constant alertness is needed to see that every dollar laid out comes back, if not with addition, at least without loss. To keep from falling behind, the farmer must have a very much higher degree of mercantile capacity than he could ever acquire under the old system. And he and his boys ought to supplant much of the negro labor he now employs by their own systematic and steady work. All these necessary lessons are very hard to learn, because to do that we must first unlearn widely different ones.

This examination shows that the men of the new south are almost as inadequate to the demands of the day as we found the women to be.

I do not mean to say that our women and men have not improved at all in their respective spheres in the last forty years. I believe that when due allowance is made for the unavoidable effect upon them of the system into which they were all born it must be conceded that the little improvement which they have made is greater than what could have been reasonably expected. But I see clearly that the habits of thought and the modes of house and farm economy, bred first from our contact with the negro slave and then with the negro freedman, are yet an oppressively heavy load upon our section.

I have now to do with a still greater evil as part of the curse of slavery to the southern whites; which is, that it prevented the normal rise in the section of a white labor class. If one but look steadily at developments, either now in progress or surely impending, in Germany, France, England, the English colonies, and the United States he sees that the workers most of all are influencing the other classes to pursue the best policy in all departments of government. The truth is that in every stage of society there is the leading energy of some particular class. Let me make you reflect over a few well-known examples. In their unremitted struggle with the patricians, the plebeians of Rome gradually climbed out of their low estate into complete political, civil, and social equality with the former who had long been the constituency of the so-called republic. Some centuries later a tacit combination of those belonging to each division of the middle class dried all the fountains of civil disorder and made domestic peace sure and permanent by establishing the Roman empire. Much later employers of the free labor which had displaced slavery made European towns democratic, and set them in such strong array against the feudal barons that the latter were at last restrained from plundering the new industry. The American revolution and the French revolution were each mainly middle-class movements. By them the middle class cleared out of its way, as far as it could, distinctions of birth, title, rank, and all other special personal privileges. But, unawares, it put in the place of the old hereditary lords and monopolists, known as such by everybody, a nobility in disguise. The members of this nobility make no claim to our labor or substance by reason of their having had such and such fathers or having received such and such grants or patents to themselves as natural persons. They pose as government agents in such functions as the transportation and monetary, of which efficient, cheap, and impartial performance is vital to the general welfare. Clandestinely they have had the law of the land made or interpreted and the practice of government shaped each as they want it; and sitting in their masks wherever these sovereign powers must be invoked by producer or worker, it is these usurpers and not the legitimate public authorities who must be applied to and given, not the just cost of the service, but the supreme extortion possible. These masked rulers toll our wages, profits, and property as insidiously and deeply as does indirect compared with direct taxation. In fact they are government licensees, levying upon us for their own benefit all the indirect taxation that we can bear. Some—I may say, a

large number—of middle-class property owners and producers are heart and soul in strong and strengthening resistance now forming against the tyrants they have unwittingly set up. But the initiative and most effective elements of this benign uprising do not come from the middle class. It was the workers who excited and kept at its height the righteous indignation of the country that shamed the coal-trust into decency. It is the workers who are the most influential of all that strive to arm us with those plutocracy-destroying weapons, direct nomination and direct legislation; and of all who demand that the railroads pay just taxes; of all who would lay the axe at the root of public corruption by having government resume its powers and do every one of its duties without favor or prejudice to a single human being. It is clear that the laborers are gathering all the anti-monopoly interests and classes of society to their banner, and that from the steady and increasing impulsion of these laborers, in unions and political campaigns, industrial democracy will at last come in, to open the millennium by keeping every man, woman, and child, except the wilfully idle and criminal, permanently supplied with necessities and comforts.

Who are the laborers that are both to spur and lead us forward in this great course? Why, the white laborers, whose interests and whose qualifications to share in governments are the same as those of the rest of us; who are really part and parcel of the body politic and whose sons and daughters can be married by our sons and daughters without social degradation to themselves or degeneration of the proud Caucasian stock in their children. The negroes cannot do the great work we are contemplating. They are strangers in blood. They are as yet far too low in development. It is idle to think of making these aliens, whose highest interests are irreconcilably antagonistic to ours and our children's, allies of the white laborers—a point which will be treated at large in later chapters.

To bring out the situation more clearly, suppose that instead of the eight millions of negroes now in the south we had eight millions of native white workers and no negroes at all. Would it not be far better for us of the section? Would it not be far better for the anti-monopoly cause in the north? Ought there not to be a real labor party in the south instead of what we now see? The so-called labor party of the south has a large percentage of leaders whose chief activity is to win positions in the unions, in agitation, in the city and State government wherein they can serve themselves by delivering

the labor vote to corporate interests, or doing the latter legislative or official favor—a sure symptom that the movement is as yet merely incipient. In no northern State have the railroads and allied corporations such complete command of nominative, appointive, and legislative machinery as in Georgia; and it seems to me that Georgia is but fairly representative of all the south except South Carolina, which has advanced further in direct nomination than any other one of the United States. In many places the people of the north are successfully rising against the corporation oligarchs. In New York and Michigan the latter have been made to pay some of the taxes which they had always been dodging. In a recent Boston referendum the street railroad, which for years had ridden roughshod over the public at will, was snowed under, although it had the machine, all the five daily papers but one, and the outside of that, fighting for it with might and main. Los Angeles, followed by three or four other towns, has just made a beginning with the *Recall*. Oregon has direct legislation. Illinois has pushed ahead with both direct nomination and direct legislation. Cities here and there, in very grateful contrast with the apathy prevalent in this section, have awakened to the importance of rightly guarding the common property in public-service franchises. I could cite many other examples which show that the anti-plutocratic tide gathers force all over the north. Why is it that there is this blessed insurgence against corporation misrule there, and hardly a trace of it here? Simply because the north has and the south has not the motor of insurgence—a real labor class, growing steadily in zeal and organization, and rapidly increasing in numbers.

That a southern State has no real labor class with potent influence upon the public, puts it as far behind the most enlightened communities in political and governmental condition, as it was with its slaves behind them in productive condition. Such a State lacks a most essential organ of the highest types of democracy.^[141]

To sum up: Slavery disqualified the white men and women of the south for the domestic and business management proper to this era; and ever since emancipation the presence of a large number of negroes available for labor in house and on the farm, and preventing the coming in of any other labor, has powerfully helped both races in their efforts naturally made to retain the familiar ways of the old system. Thus the south has been sadly retarded in her due economical rehabilitation. In the second place, it has kept the

political influence of labor at the minimum, and consequently sent her backwards in true democracy, while England, the English colonies, and the northern States, are slowly but surely going forward.

These are the main things. Let me in briefest mention suggest some of their results, which, at first blush, seem to be independent.

Slavery engendered among the whites a disrespect for labor, which, although now at last dying out, is still of hurtful influence.

As negroes were always and everywhere in number sufficient to do every task of labor, there was but little demand for labor-saving machines and methods—a fact which prevented the southern whites from developing the inventive faculty equally with their northern brothers. We all are beginning to see that, except in much of agriculture and other activities in which the process is that of nature and not of art, the future of industry belongs more and more to the constantly improving machine.

Think of such things as these in the brood of evils brought forth by slavery;—agriculture primitive or superannuated in many particulars; our entire structure of investment, production, and occupation bottomed upon slaves, property in which could be, and was, totally destroyed by a stroke of the pen; immigration both from Europe and the north repelled; slowness in exploiting our water power and mines; inferior common schools, and lack of town-meeting government due to the sparseness of the population and their roving habits which were incident to the plantation system. I have given some consideration to these in the “Old and New South,” and I refer you to that.[\[142\]](#)

Of course had there never been any negro slavery in America we should have escaped the brothers’ war, its spilling of blood, its waste of wealth, and the long sickness of the section unto death which has ensued. And to-day in solid prosperity, institutions, government, and progressiveness in everything good, the section would be abreast of the other. Nay, her better climate, her agricultural products—especially her cotton, which she would have learned to make with white labor—these and other resources would, I fully believe, have by this time pushed her far into the lead. As it actually is, she is far, far behind. She has been sorely scourged, not for any moral guilt.

“Some innocents ’scape not the thunderbolt.”

It was because she did that which the wisest and best had done—the Greeks who gave the world culture and democracy, the Jews who gave it religion, the Romans who gave it law and civil institutions. She really did far better than they did. She did not enslave the free. She merely took some of the only inveterate slaves upon earth out of lawless slavery, in which they would have otherwise remained indefinitely without recognition of the dearest human rights, and placed them in a far other slavery which was for them an unparalleled rise in liberty and well-being; which was, as becomes more and more probable with time, the only opportunity by which any considerable portion of the negro race can ever evolve upward into the capability of enlightened self-government. In doing this she unconsciously antagonized the purposes of the iron-hearted powers guarding the American union, and when the critical moment of that union came, they dashed her to pieces.

It will be many a year before the pathos of southern history can be fully told. I must satisfy myself here by saying only that the curse of African slavery to her has been of magnitude and weight incredible, and that one cannot yet be sure when it will end.

The title of the chapter demands that I now tell you of the blessing of African slavery in the United States to the negro. Of course there are many who have been born into the unequalled condemnation of every form of slavery, which was resolutely preached for years all over the north by conscientious men and women of great ability and influence. Such will exclaim against me, and perhaps some of them will not even read the rest of the chapter. But it is my note, which becomes surer and more confident every year, that the great body of men and women shrink from every over-positively urged dogma. I have already mentioned those who are trying to curb the evils of drink. All the while an increasing majority of them recognize that to assert that any use of liquor, wine, or beer is a moral wrong, as do a noisy few in season and out of season, is too extreme to be true or even politic. The ultra democrat will zealously justify the assassination of Julius Cæsar, while the wisest friends of the people become more firmly convinced every century that the empire which Cæsar founded was, by reason of the circumstances, the best possible government for the

Romans of that and the succeeding times;—the surest guaranty that the main benefits of ancient civilization should be preserved for the human race. And as there has now and then been something of substantial good in even absolute government, there has also been good to the slave in his slavery. Surely it was an improvement of the captor and a bettering of the condition of the prisoner of war, not to barbecue the latter, as was the custom for ages, but to have him work for a master. Perhaps the fabulist Æsop had been a slave. Terence, a great Roman dramatist, surely had been. Horace's father had been one. It may well be true that it was slavery that gave each one of these three immortals his opportunity. The more familiar you become with ancient history the larger you estimate the number of those to have been who as slaves got many of the benefits of Greek and Roman civilization, which benefits they afterwards transmitted to free descendants. I need not repeat what I have already told—how the negroes in the mass were advantaged by transfer from slavery in Africa to slavery in America. But do let me inquire, would Professor DuBois have ever outstripped all the white children in a New England school, graduated creditably from two American universities, studied at the university of Berlin, acquired the degree of Master of Arts and then that of Doctor of Philosophy, been made in sociology fellow of Harvard and assistant of the university of Pennsylvania, become president of the American Negro Academy, got the professorship of economics and history in Atlanta University, and pushed forward as an author into prominent and most respectable place; all before he was thirty-six years old—would Professor DuBois have surpassed this brilliant career, if an “evil, Dutch trader” had not seized his “grandfather's grandmother—two centuries ago”?^[143] If the transfer just mentioned had not been made what would now be Fred Douglass, Booker Washington, Richard R. Wright, Professor DuBois, Bishop Turner, and other great negroes, their good works and glory? Would Hayti have arranged for some of its young men to be trained in farming at Tuskegee? more especially do I ask, would negroes educated at Tuskegee be now teaching the missionaries how to christianize the Africans of Togoland? Who would now be arousing people north and south in behalf of the race? and where could nine millions of blacks be found—or even half a million—as far above the African level of to-day as ours?

My conclusion is that the whites and the negroes of the south ought to learn wisdom and interchange their holidays and great annual rejoicings. The former ought to keep the anniversary of the emancipation proclamation as the southern 4th of July, and the blacks ought to observe that day by wearing mourning and eating bitter herbs. Further, the negroes of America ought to celebrate the day when the Dutch ship landed the first Africans at Jamestown as the dawn of their hopes as a people.



CHAPTER XV

THE BROTHERS ON EACH SIDE WERE TRUE PATRIOTS AND MORALLY RIGHT—BOTH THOSE WHO FOUGHT FOR THE UNION, AND THOSE WHO FOUGHT FOR THE CONFEDERACY

THE proposition of the heading has really been demonstrated in the foregoing chapters. I feel that the demonstration should have impressive enforcement. It will surely be for the great good of our country if the brothers of each section be truly convinced that those of the other were morally right in the slavery struggle from beginning to end.

Let us begin by noting the ambiguity of the word “right.” Something may be right in expediency, policy, or reason, and yet wrong ethically. Likewise something may be a mistake and wrong in policy while it is right in morals. General Sherman was a conspicuous example of the almost universal proneness to confound right in the sense first mentioned above with it in the other. The two are widely different—not merely in degree, but in kind. That which is right or wrong in expediency is decided by the understanding—by the head; that which is right or wrong ethically is decided for every human being by his own conscience—by his heart. To try with all my might to do a particular thing may be my highest moral duty; to try with all your might to keep me from doing it may be yours. The brothers who set up the southern confederacy and defended it, the brothers who warred upon it and overturned it—they were on each side sublimely conscientious; for every one—to use the high word of Lincoln—was doing the right as God gave him to see it. No people ever waged a war with deeper and more solemn conviction of duty than did our northern brothers. Rome, rising unvanquished from every great victory of Hannibal, much as she has been most justly lauded by foremost historians, fell behind them in supreme effort—in undaunted perseverance in spite of disaster after disaster until the

difficulty insuperable was overcome. We of the south should be proud of this unparalleled achievement of our brothers. Most of all should we be proud of the complete self-abnegation and unwavering obedience to conscience with which they waded a sea of blood, for the welfare of future generations rather than their own. I am glad to observe that many who most affectionately remember the lost cause have come at last to concede without qualification that the restoration of the union by force of arms was morally right. But I note that as yet only a few at the north—men like Dr. Lyman Abbott, Mr. Charles F. Adams, and Professor Wendell—have learned that the south, in all that she did in “The Great War,”^[144] was likewise morally right. To show that the confederates were exemplary champions of a legitimate government, I need not repeat what I have said above when I told how southern nationalization had given them a country of their own as dear to them and as much mistress of their consciences as the union was to the northern people. If there are those who cannot bring themselves to allow the all-potent coercion of the nationalization mentioned as justification, and who still think of us as traitors and rebels, I beg them to give due consideration to the feelings with which the southerner now looks back upon his life in the confederate army. I call a most convincing witness to testify. I do not know a man who ever followed what his conscience pronounced right more faithfully, who was truer to the better traditions of the old south, and who was a more devoted soldier in the brothers’ war, nor do I know another who now draws from every class in his community more respect for real manhood and honesty. All who know him will believe his word against an oracle or an angel. Here is what he said thirty-seven years after the close of the war:

“That period of my life is the one with which I am the most nearly satisfied. A persistent, steady effort to do my duty—an effort persevered in in the midst of privation, hardship, and danger. If ever I was unselfish, it was then. If ever I was capable of self-denial, it was then. If ever I was able to trample on self-indulgence, it was then. If ever I was strong to make sacrifices, even unto death, it was in those days; and if I were called upon to say on the peril of my soul, when it lived its highest life, when it was least faithless to true manhood, when it was most loyal to the best part of man’s nature, I would answer, ‘It was when I followed a battle-torn flag through its shifting fortune of victory and defeat.’

My comrades, how easy it is to name the word that characterizes and strikes the keynote of that time and should explain our pride to all the world—self sacrifice—that spirit and that conduct which raise poor mortals nearest to divinity. Oh, God in heaven, what sacrifices did we not make! How our very heart strings were torn as we turned from our home, our parents, our children!... How poor we were! How ragged! How hungry! When I recall the light-heartedness, the courage, the cheerfulness, the fidelity to duty which lived and flourished under such circumstances, from the bottom of my heart I thank God that for four long years I wore, if not brilliantly, at least faithfully and steadfastly, in camp and bivouac, in advance and retreat, on the march and on the battlefield, the uniform of a confederate soldier.”[\[145\]](#)

The passage just quoted most truly expresses the feelings with which the southern people stood by their cause and now look back upon the support which they gave it. In this matter their word will be taken by everybody. Their actions before, during, and ever since the war speak louder than their word. There can be no doubt that in founding the Confederate States and waging the resulting war everything they did was counselled by the most tender and enlightened conscience. Bear in mind how they clung to Davis and how they still remember him, winning the precious eulogy

“—he that can endure
To follow with allegiance a fallen lord
Does conquer him that did his master conquer,
And earns a place i’ the story.”

Bear in mind how truly they keep Memorial Day. The love which the south gives Davis and her dead soldiers protests to all the earth and heaven the righteousness of her lost cause. Calmly, serenely, confidently she awaits future judgment upon her love. It needs that all the north appreciate this fealty as the height of heaven-climbing virtue.

The real soldiers of each section—those who—to use a confederate saying—were “in the bullet department,” and fighting every day, learned great regard for their foes; and when the war ended they became at once advocates of speedy reconciliation. And the non-combatants on each side felt far less resentment towards the actual fighters of the other than they did towards its political leaders. It is a common error to overrate the accomplishment of potent and ambitious men in tumultuous times. As the world long ascribed meteorological phenomena to the mutations of the moon, conspicuous above all things else as the apparent cause, so most people now believe that revolutions are caused by the men who appear to be leading. We have explained above that the only effective leaders—even of revolutions—are those who are the most completely led by the people. To lead, the leader must keep on the tide and let it lead him. If he makes serious effort to balk it, he is at once stranded as a piece of drift thrown out of the current. All of us—both those north and those south of Mason and Dixon’s line—ought to learn this truth thoroughly. The former should correct their false judgments as to Calhoun, Toombs, Yancey, and Davis; the latter as to Sumner, Garrison, and Phillips. It was but to be expected that these false judgments would be cherished all through what we may call the era of civil fury. That begins with the excitement over the admission of California and extends to the time after the war when the project of giving a negro constituency the balance of political power in each southern State was abandoned. But now as the brothers can look back upon those evil days with at least the beginning of dispassionate calmness, the task of convincing the whole people of each section that the more prominent figures of the other in the era mentioned were all true men and patriots, should be pushed forward with his whole might by every one who loves his country. It is not

demanding that we claim too much for them. To begin illustrating: Toombs's Tremont Temple lecture on slavery is such an able and powerful defence of the south that its reputation must forever increase. Yet as we consider it now we see that what he believed with all his heart to be the perpetual pillar and weal of his community was in fact its woe and ruin. We see, as to Calhoun, that if he had but given the resources of southern slavery against the implacable oppugnancy of free labor, roused for decisive combat, the sure and marvellous vision with which he searched the innermost nature of money, he would have had to acknowledge that the proud structure of southern society was wholly builded upon sands. The rains descended and the floods beat, and we saw the great fall. Of course we must admit that had our leaders been endowed with unerring prescience they ought to have warned us, and striven heart and soul for compensated emancipation. I need merely allude to State sovereignty, treated fully above. We of the south now see that though in advocating it we showed that the fathers were with us, and thus got the better of the argument, yet that the north was right in historical fact, and right also as to the true interest and welfare of America. Thus I have indicated some important acknowledgments which we of the south must make to our brothers of the north. Now I must state some that they must make to us.

The root-and-branch abolitionists and many following their lead interpreted the statement in the declaration of independence that all men are created equal and with inalienable liberty as both intentional and actual condemnation of the slavery then existing in our country. They shut their eyes to the significant fact that the same document published to the world, as one of the causes justifying the solemn act therein proclaimed, that the king had "excited domestic insurrections amongst us"; which means he had instigated the slaves to rise against their masters. Many of the signers owned slaves then and to the end of their lives afterwards. Palpably the declaration did not mean to say that the negroes in America were unjustly held in slavery, but did mean to say that inciting them—as John Brown with the approval of Phillips, Garrison, and such, afterwards sought to do—to gain their liberty by insurrection was inhuman and atrocious. These root-and-branch abolitionists confidently alleged that slavery in America was proscribed by the christian religion. Yet Jesus, the founder, who definitely reprehended every particular sin, never once denounced slavery. Paul, or

some one else, whom the canon accepts as speaking with the authority of Jesus, says: “All who are in the position of slaves should regard their masters as deserving of the greatest respect, so that the name of God, and our teaching may not be maligned. Those who have christian masters should not think less of them because they are brothers, but on the contrary they should serve them all the better, because those who are to benefit by their good work are dear to them as their fellow-christians. Those are the things to insist upon in your teaching. Any one who teaches otherwise, and refuses his assent to sound instruction—*the instruction of our Lord Jesus Christ*—and to the teaching of religion, is puffed up with conceit, not really knowing anything, but having a morbid craving for discussions and arguments.”^[146]

The passage last quoted—to which several others from the new testament, almost as strong, can be added—demonstrates that christianity did not disapprove of slavery. Further, as I have already suggested, the slavery not rebuked by Jesus and his apostles was mainly that of kin in blood and race, of those who had been in a measure free themselves or descendants of the free. The slaves of the south were far remote in blood, and their native condition so bad that American slavery was for them elevation and great improvement.

The new testament, the declaration of independence, and the federal constitution—surely three very respectable authorities, in America at least—stand together in solid phalanx. They clearly demonstrate that the charge that southern slavery was heinously wrong in itself, and that the masters were wicked man-stealers and kidnappers, made for a long while in every corner of the north, was mere opprobrium and abuse. Both sections ought to learn that there was nothing in negro slavery to shock the moral sense, but that on the contrary it was in its general effect of the utmost beneficence to the slave. Both ought to learn also that the white-hot zeal with which the institution was fought was due mainly to these things:

1. Free labor had long been in an uncompromising hand-to-hand struggle with slave labor. Years before this commenced the employing class had subconsciously divined it was far more profitable to hire the laborer only when his work was needed, and then let him go until he was needed again. The worker with the advance of democracy had become more and more

hostile to a system coercing his labor and denying him all political and civil rights. The co-operation of employer and laborer had expelled slavery of white men from Europe. The feeling towards slavery had become one of decided opposition.

2. In America the opposition to slavery was powerfully re-enforced, first, by the new cause the latter gave in competing with free labor for the unsettled public domain, and then in its operation to nationalize the south into a separate federation. With this combined the growing conception among the northern people of the negro as a man who had reached the stage of development characterizing the typical white. This huge mistake, hugged to their bosoms and championed with unflagging zeal by the ablest and most influential root-and-branch abolitionists, had a prodigious propagandic effect. It identified the cause of the negro slave, whom evolution had not yet made ready for liberty, with that of the oppressed European who had been long ready for it; and consequently that cause was continuously advocated with the passion which the French revolution had started against human inequality. The root-and-branch abolitionists at last excited a pseudo-moral paroxysm among thousands at the north and kept it increasing for a long while.

Facts which cannot now be gainsaid plainly justify me in denying that conscientious conviction was the real primary motive. The northern and southern churches split, all the wisest and best of the former standing against, all those of the latter for slavery. You must see that their moral convictions were secondary, not primary motives; that some superior power had given to one side to regard slavery as wrong and to the other to regard it as right; that it really had given the two sides differing consciences. If you but invoke the universal history of mankind this fact now under consideration will cease to appear marvellous. You will find it to be the rule that the struggle for existence develops in every community an instinct which resistlessly prompts to the maintenance of its great economic interest. This instinct is the special preserver of the family, of the neighborhood, of the country. It is not strange that that which gives sustenance and comfort to one's family, and what he sees all the best of his neighbors using as he does, will seem unquestionably right to him. It is not strange that, in such a serious conflict of interest as the intersectional one of dividing a vast empire between such fell competitors as free labor and slave labor, each

side will differ diametrically in conscience as to right and wrong. Also it is not strange that they should lose temper, shower abuse upon their opponents, and fill the land with mutual accusations of heinous moral offences.

It is just as far wrong to regard the controversy between anti- and pro-slavery men—which was at bottom but a quarrel between north and south at first over the division of the Territories between the free labor system and the slave labor system, and later over the other question whether a slave republic should divide the continent with the United States—as a contest over a moral question, as it would be to make either the American or the French revolution such a contest. All three—the intersectional struggle as to slavery and the two revolutions—were mainly impelled by a desire of each side in every one to better or hold on to its material resources—that is, the leading impulsion was economic. Of course the combatants on each side claimed that they themselves were right and their adversaries wrong in morals. The rencounter between free labor and slave labor was very much like that now on between capitalists and labor organizations. Note how each side denounces the conduct of the other, alleging it to be against moral justice. The most superficial observer discerns that the real cause of difference between them is not one of conscience, but one of interest. We ought to understand that the crimination of the root-and-branch abolitionist and the recrimination of the fire-eater were each but stage thunder. The southern master must be wholly exonerated from the charge that in working his slave he committed moral offence against the dearest American rights; the claim for the African, who was in a far lower circle of development, of equal civil and political privileges with the white must be disallowed; and it be fully conceded that the southern people, leaders and all, were but doing their conscience-commanded duty throughout. Also we of the south must learn that the root-and-branch abolitionist, even in his wildest moments—Sumner refusing in the United States senate to show respect to Butler's gray hairs, Wendell Phillips degrading Washington below Toussaint, Garrison denouncing the slavery-protecting constitution as a covenant with death and an agreement with hell, John Brown's raid into Virginia—was just as conscientious as Robert Lee was when he was defending the soil of his native State. They were each irresistibly constrained by the powers working

to save the union to think his particular action right and the highest patriotism.

When the quarrel is over, when the broil and the feud have been fought out and the survivors have shaken hands, when the lawsuit has become a thing of the past and the litigants have renewed their old relations, no wise and good man keeps repeating the accusations of bad faith and of unrighteous conduct which he passionately hurled against his adversary during the variance. Rather he confesses to himself, "I wronged him when I said those hot words;" and his repentance does not bring complete peace until he has found his brother and taken all of them back.

If it only could be, the nation ought to have a great reunion, a feast of reconciliation, where, with proper solemnities, the people of each section, with their forefathers and leaders, should be fully and finally exculpated as to everything done for or against slavery by the people of the other section. It is plain that both ought to forget and forgive. They ought to do still more. They ought to compete each in utmost effort to vindicate the favorites and loved ones of the other the more intelligently, and to admire and praise them the more enthusiastically. This would be to bring the millennium nearer, and give our country "a nobleness in record upon" all others. It only needs for this consummation to cast aside the remnant of greatly diminished prejudice, and make a brief study of a small volume of material evidence and of the ordinary principles which guide the conduct of the good citizen. Such study will show that southerner and northerner throughout their fell encounter have each the very highest claims to the respect and love of the entire nation.

What a golden deed it was of President McKinley when, December 14, 1898, fully using a rare opportunity, he spoke in his high place to the members of the Georgia legislature this message of reunion:

"Sectional lines no longer mar the map of the United States. Sectional feeling no longer holds back the love we bear each other. Fraternity is the national anthem, sung by a chorus of forty-five States and our Territories at home and beyond the seas. The union is once more the common altar of our love and loyalty, our devotion and sacrifice. The old flag again waves

over us in peace with new glories, which your sons and ours have this year added to its sacred folds. What cause we have for rejoicing, saddened only because so many of our brave men fell on the field or sickened and died from hardship and exposure, and others returning bring wounds and disease from which they will long suffer. The memory of the dead will be a precious legacy, and the disabled will be the nation's care.

Every soldier's grave made during our unfortunate civil war is a tribute to American valor. And while when those graves were made we differed widely about the nature of this government, these differences have been settled by the arbitrament of arms. The time has now come, in the evolution of sentiment and feeling, under the providence of God, when in the spirit of fraternity we should share with you the care of the graves of the confederate soldiers. The cordial feeling now happily existing between the north and south prompts this gracious act. If it needs further justification, it is found in the gallant loyalty to the union and the flag so conspicuously shown in the year just passed by the sons and grandsons of these heroic dead."

By the favor given Fitzhugh Lee, Joe Wheeler, and other old confederates, and his earnest and successful efforts for universal amnesty to all who had helped our cause, Mr. McKinley had already won the hearts of the southern people. This speech increased our love a hundred fold. We repeated the "soft words" over and over, companioning them with

"O they banish our anger forever
When they laurel the graves of our dead."

On each one of our three subsequent Memorial Days during his life he was thought of as tenderly as the precious dead. And since the death of Jefferson Davis there has been no sorrow of the south equal to that over his assassination. This is the age of funerals that crown with supreme popular honor the doers of high deeds for country and race. The imposing obsequies given the president, the demonstrations in his own section, and those in foreign lands, have rarely been outdone. But he had a greater glory. It was the genuine lamentation over him that day by reconciled brothers and sisters

in every southern household. You that know history better, tell me when and where a whiter and sweeter flower was ever laid upon a coffin.

Let all of us on each side of the old dividing line strive without ceasing to give the good work which the great peacemaker begun so well its fit consummation.

And replacing hate and anger with love, fiction with fact, and false doctrine with true, let the people of the north and the people of the south join heads, consciences, and hearts to ascertain what is our duty both to negro and white, and then join hands and do that duty.

CHAPTER XVI

THE RACE QUESTION—GENERAL AND INTRODUCTORY

1. **DENSE** fogs from various sources have settled over this subject. The root-and-branch abolitionists have made many believe that emancipation of the slaves was the great object of the north in the brothers' war. The authors and defenders of the three amendments—especially of the fifteenth—have made many others believe that the inferiority of the southern negro is the effect of American slavery; that the cause having been removed by emancipation he became at once ready and well prepared for the exercise of political privileges; and that the practical denial to him of this exercise is a heinous crime of the southern whites. Politicians want southern negro ballots in national conventions and the northern negro vote in elections. The bounty, both public and private, founding, sustaining, and multiplying colleges, schools, and other negro educational institutions, finds a growing host of beneficiaries—such as site-owners, who scheme to sell for two prices, those who want to be presidents, principals, professors, teachers, even janitors and floor-scrubbers, schoolbook publishers, and still others—who would keep it copiously flowing; and so they all magnify the ability of the typical negro and the benefit to him of the institutions mentioned. Respectable and influential magazines and newspapers, with an increasing number of negro readers, really believe that very many more can be added by a little effort, and so they champion what these readers favor. Persuasive speakers and writers like Mr. Edgar Gardner Murphy, unconsciously influenced either by employers who would always have a wage-depressing lever at command, or by those who would have Cuffee do what they ought themselves to do, overrate the importance of negro labor as a southern resource. And the last fog makers whom I shall mention are the inveterate optimists—amiable beyond expression—who will not admit that there is now any serious menace to either race in the south.

The several fogs enumerated overlay one another in an aggregate too opaque for the uncleared eye to pierce. As examples of their obscuring effect, consider anything said in the census as to the negro, and the articles “Negro Education,” “Negro in America,” and especially “Hayti” in the Encyclopedia Americana lately published. The authors of the fifteenth amendment, in making voters and rulers of late negro slaves, repeated what had been done in Hayti. It seems therefore that the Encyclopedia must tell nothing of the island but what is good. So we read in the relevant article that it abolished slavery in 1804, being “the first country to rid humanity of such a sad practice;” that there education “is compulsory and gratuitous,” a sixth of the revenues being devoted to it, and the most pleasant things concerning religion, liberal naturalization practice, natural and artificial products, railroads, telegraph, and telephone. One without other information would surely think the community greatly advanced and blessed. Its true condition is thus told in Brockhaus by somebody who does not swear by the fifteenth amendment: “It may be said in general that the country is sparsely populated, partly because of incessant civil wars, partly because of a high infant death rate.”^[147]

These fogs must be lifted. Great harm to each race will follow if we persist in keeping the facts concealed.

2. Do not confound the feeling that you are different from Jew, European, protestant, catholic, absolutist, socialist, anarchist, or any other white, with the feeling that you are different from negroes; for to do this is to keep you from all clear thinking upon our present subject. The former are all of our own race, and we can and do intermarry with them to the improvement of our population. If the per cent of negroes was no greater in the south than in the north, fusion could not be a very grave matter; for should it become complete, our lily-white would not be diminished by the fraction of a shade. But to absorb the eight millions of them now in our section would make us chocolate, if not mulatto. Their color is the smallest racial objection. Although their schooling for two centuries and more in American slavery has elevated them—as Mr. Tillinghast proves—far above what they were in native slavery, still their cranial capacity, brain convolutions, and moral, intellectual, and social development—inherited without fault of theirs—from West African ancestors, are still greatly inferior to ours. Remote generations of our forefathers were much lower than the present American

negroes, as Darwin admits in the oft quoted passage, describing his first sight of the Fuegians. We should never forget that the Caucasian was once on a level with those Fuegians. The negroes when they came to America were little better. And yet they have gone up so much higher, it is plain that evolution, if only permitted to work in a proper environment, will do for them what it has done for us.

But the whites cannot consent to intermarriage. That would greatly benefit the negroes. While some who have never had good opportunity of actual observation confidently contend that there are no backward or lower races, we southerners have noted all our lives that a very great majority of the negroes who climb above the level and prosper in occupation, have a large admixture of white blood. It would be an enormous rise for the mass if fusion were assured. But for us—why, we should disinherit our children of their share in the grand destiny of the Caucasian race if we made average negroes their fathers or mothers.

Southern dread of amalgamation is not to be scouted as a mere bugbear. Think of the half-breeds that lined all the border between the States and the Indians; of how the whites have mixed with native races in Mexico, Central and South America; of white and negro intermingling in Cuba, Hayti, Jamaica, in the United States, and especially in the south. Think of whites and negroes now legally married and marrying in the neighboring States of the Union. In 1902, eight white women were living with negro husbands in Xenia, Ohio;^[148] and there were children of all these mixed marriages except one.^[149] Consider also that prominent negroes advocate these marriages. Douglass had a white wife. He preached that the American negro must set before himself assimilation as his true goal. Professor DuBois is really a disciple of Douglass, as appears from some of his utterances. We give in a footnote what another prominent negro has recently said in public.^[150] The moment that the negro became an influential factor in southern politics, a real agitation against the anti-intermarriage laws would begin. There would come a small number of negroes, controlling votes, of so much property and respectability that their children would be regarded as eligible matches by some of the poorer and more destitute whites. Marriages between such, solemnized on a visit to a State permitting, would occur. And our laws last mentioned would be more and more evaded and their repeal become gradually more probable. When they had won political

equality with the patricians, the Roman plebeians repealed the prohibition of intermarriage which the former had stubbornly maintained. These two orders were of the same race. Therefore intermarriage could not be the boon to the plebeians that it would now be to the southern negro, lifting him up as it would do. If he has opportunity, he will struggle for it more resolutely than the plebeians did. A small number of negroes have already been assimilated in America, and a few more are still to be assimilated, as I shall explain later on. This sure deliverance from the destruction which now threatens is more and more sought after by the intelligent few. And if the vote of the negroes was allowed to count, it would not be long until, under the example and appeal of their leaders, all of them would be making for that haven of refuge. Mongrelism beats upon the border all around the south; it threatens to burst forth from an exhaustless source within. We know we must keep it out as Holland does the ocean. Subconsciously discerning that fusion would probably follow the entrance of the negro into government, the whites have made of the race primary and other measures *de facto* disfranchising him, dikes against the filthy waters of mongrelism which they would not have to wash over themselves. This is not because we hate the negro. We love and cherish him. It is not to be demanded of us that we sacrifice ourselves, our children, and our children's children for his sake. We will gladly do all that friends—nay, that near relatives—can with justice ask of one another, to better his condition and rescue him. We cannot give him political power at the cost of our degeneration.

I would enforce the foregoing contents of this section with these profoundly true and very forcible words of a northern man, now residing in Columbia, South Carolina:

“A word about race hatred, race revulsion, or race antipathy. Many people in the north believe the devil is the author of it, and some people in the south are more devoted to it than to religion. Race antipathy is really a race instinct, a moral anti-toxin developed by nature in the individual whose environment involves constant and close contact with an inferior race in large numbers. It works for the salvation of the purity of the superior race.”[\[151\]](#)

Professor DuBois says that “legal marriage is infinitely better than systematic concubinage and prostitution.”^[152] And some writers seem to think it would be well to coerce miscegenators to legitimate their relations by intermarrying. An innocent girl—a maid—undone; all good men and women are agreed that her seducer should be made to marry her.^[153] But that is only where the marriage would be tolerated by society. Thus it would not make man and wife of parties to an incestuous liaison. No moralist contends that one who has received a favor from a public woman is under obligation to become her husband. The miscegenation common is that between white men and promiscuous black women. How idle is the attempt to put these cases on a par with that of the ruin of a virtuous woman. And Professor DuBois could not have rightly weighed the words in which he represents them to be as criminal as those horrible offences which especially provoke lynching; that is, that the negro woman who consented most willingly to the embraces of her master was as foully wronged by him as her mistress would be by a slave who outraged her against her will.^[154] No. Intermarriage of these mixed lovers is not demanded by any principle of justice. But the public weal does demand that such a tremendous evil as amalgamation be kept off by the surest and most decisive measures. It is playing with plague and curse unspeakable for us of the south to permit the existence of any condition which tends even in the slightest degree to legalize intermarriage.^[155]

3. Writers still under the spell of the root-and-branch abolitionists who were wont to exalt Toussaint, the Haytian general, above our Washington, strain hard to conceal the real cause of the lamentable conditions now prevailing in Hayti and San Domingo. One tells us that because of the many mountains, there being no railroad system, separate communities are defended by almost impregnable natural barriers, and as neighboring peoples are hereditary enemies, there is always war somewhere. The remedy recommended is to build railroads in the island as the English have done in Jamaica. Another writer tells us that we must not jump to the conclusion that all the inhabitants of San Domingo are degraded negroes; that while the population of the interior are sunk in ignorance, superstition, and barbarism, yet in the capital and the coast towns there are some people of apparently lily-white strain, well educated, speaking two or three languages, who supply the mulatto republic with generals and political

leaders. The masses of these Dominicans are very patriotic, and would indeed do finely if they were not divided into hostile parties by self-seeking agitators. And you may consult many others who keep back the real explanation. There is one cardinal fact which stands forth in the history of Hayti as prominently as slavery does in the train of American events which brought on the brothers' war. It is this: soon after the outbreak of the French revolution the mulattoes were accorded political privileges, and then a little later—it was in 1794—France equalized the negroes of her colonies just freed with the whites in political and civil rights. This made the negroes of Hayti, who were in intelligence and development somewhat below those of the south when the latter were emancipated, full-fledged self-governing republicans. The whites were but few. What of them were not massacred at once by the blacks fled for their lives. The history of both the Haytian and the Dominican republic (the latter achieving its independence in 1844) is the same. Their people make a hell on earth of the most beautiful and fertile of islands. As slavery was plainly the cause of the southern confederacy, the grant of political power to the mulattoes and negroes not at all qualified to use it is just as plainly the cause and sole author of chronic civil war and anarchy in Hayti and San Domingo.

This enfranchisement of semi-barbarians was from the 'prentice hand of a new republic, without any experience in free institutions. The English did far better when they emancipated the Jamaica negro by the act of 1833. They gave him full protection of his liberty, person, and contract and property rights. Five sixths of the 800,000 of its present population are colored people or blacks. These—to quote the *Encyclopedia Americana*—"have no share in the government whatever." It further says: "The Jamaica negroes are fairly good laborers when well fed; the menial work of the island is performed by them, and they are regarded as cheerful, honest, and respectful servants."

This happy condition of quiet and content is not due to the fact that the railroads prevent settlement of the negroes in separate neighboring communities to quarrel and fight with one another; but it is because the English never allowed them to get the taste of blood as the French permitted to their brothers in Hayti; they have not been incited by unseasonable political power to license and riot.

The negroes of Jamaica are evidently bettering in condition slowly. They need only enough of Booker Washingtons to rise much faster. I beg attention to this comparison of Jamaica and Hayti, made by a well-informed negro, a native of the former, who lived there until some nine years ago, and who has lately lived several years in Hayti:[156]

“They [the negroes of Jamaica] aim at rising, but many make the mistake of not rising, *in* but *out* of labor: the most intelligent flock to the professions, civil service, &c. Few turn their steps to what is for the real upbuilding of the country, agriculture, that for which it is best adapted.

“The people of Hayti and San Domingo are of a political turn of mind, and sacrifice everything for politics, or are made to do so. That island produces as fine coffee and cocoa as can be found anywhere, but the most intelligent keep out and deprive these crops of scientific cultivation.”

The negroes of Hayti and San Domingo spurred by their politics into perpetual fighting and bloodshed; the negroes of Jamaica peaceful and ripe for industrial training, which it seems the English have resolved to give them—if Booker Washington had to choose one of the two islands for his future activity, do you not know that he would decide he could do great things in Jamaica and nothing in the other?

The thirteenth amendment emancipated the slaves instantly and not gradually, the fourteenth made them complete citizens of the United States and of the particular State wherein they reside, and the fifteenth practically conferred unlimited suffrage upon them. The Hayti, and not the Jamaica, precedent was followed. The brothers that had conquered were blind from civil fury: and they had been brought by the root-and-branch abolitionists into full persuasion that the southern negroes were ready for and entitled to these high privileges. By the amendments they confidently tried to railroad the African slave in one instant of time up the long steep to the topmost Caucasian who had established liberty and self-government over a continent, and made it perpetual. We pray that they be forgiven, for they knew not what they were doing. Had the white population of the south been at the time as disproportionate to the black as it was in Hayti in 1794, it

would also have been massacred. But the section was full of late confederate soldiers. When the fates had decided against the dear cause for which they had fought for four years they accepted peace in good faith. Now their conquerors turned loose a horde of black plunderers to despoil the little that war had left. When I read Professor Brown's inability to say whether the work of the Ku-Klux was justifiable or not,^[157] I thought of Christ's asking if it was right to do good on the sabbath day.

The lesson to be learned here is that while it is now too late to make the thirteenth amendment what it ought to have been, and there is perhaps no need to alter the fourteenth, yet there must be abrogation of the fifteenth as to the great mass of southern negroes. In fact this has really come already through the white primary. Booker Washington is a great, a decisive authority on this question. He counsels the negroes to eschew politics. This is wise. It is the solid interest of the negro masses that they accept the inevitable; just as the south gave up slavery when we could hold on to it no longer.

4. The southern negroes have split into what I shall roughly distinguish as an upper and a lower class. The former includes property owners and such as are in higher occupations, trades, and professions. I do not believe that the entire class contains three per cent, but I shall take it to be five per cent of the whole negroes in the section. Exact accuracy here is not important. It needs only to be remembered that the lower class outnumbers the other many times over. They are moving in different directions. The dominant inclination of the upper class is towards incorporation as citizens, exercising all the rights of the white. The dominant inclination of the lower class is towards segregation in their own circles. A true representative of the former would always travel in a white railroad car, while a true representative of the other is perfectly content with the shabbiest Jim Crow, if the whites be kept out of it. Thousands in the south never think of any negroes but those of the lower, thousands in the north never think of any but those in the upper class. The lower class subsists mainly upon agricultural, domestic, and day labor. There is a rural and urban section of each one of the two. The rural section of the upper class has little promise of permanence and growth, but its urban section seems to have securer foothold. For a while this urban section will probably increase and rise in condition—both slowly. This upper class is now steadily sending some of its members from country

and town, to settle in the north. As I read the signs its destiny is ultimate dispersion over the entire country and gradual disappearance. The lower class settles downwards steadily. The outlook for it is gloomy in the extreme.

5. Somewhere about 1890—which year we may regard as approximately beginning the manufacturing era of the South—many whites in the section had broken with the old ways and methods and resolved to substitute their own for negro labor as far as possible. These awakened men and women multiply. They are pushing the lower class out of all rural labor, and both classes out of agriculture; and they are also pushing some of the upper class out of the trades and more important occupations in both town and country. Evidently the powers have decreed that the labor class of the south shall be white and homogeneous with that of the north. These powers who delivered the white laborers of the west from the Chinese will also deliver the white laborers of the south from the negroes.

6. There is soon to be a New Industrial South, in which the most advanced machinery and laborers of the very highest skill are to be chief factors. A little later there is to be a still more important New Agricultural South. In this, the empirical restorative methods of the Chinese, which Liebig, in his day, showed to be ahead of the world, must be far surpassed. Economy of the enormous mass of fertile elements now washing into the sea; adequate exploitation of the nitrogen of the air and of all accessible mineral elements needed; scientific dairy industry, stock rearing, fruit culture, and all related branches; farmers of the most efficient training, and laborers whose deft hands are the proper instruments of the strongest brains—all these must combine to give the south that perfect intensive culture which she will add to her blessings of climate and soil in order to supply the fast growing demand of all the world outside for her especial products. Further, as everything now seems to indicate, the southern yield of the more important minerals and metals will lead that of the entire country. Further again, the bulk of transcontinental railroad traffic must be across the south on snow-free routes, and the upbuilding which in time will follow from this is as yet incalculable. And when the inter-ocean canal connects us with the Pacific trade—what new impetus will this give to our development! What needs and opportunities there will then be for skilled labor, for inventive talent, for managerial ability, for every element of a most highly organized

community of unwontedly many diversified prospecting interests. The demand will be for a vast population of the very best strain and breed, knowing the best methods of physical, moral, and self-subsisting education of their children, out of whom will come the best of all workers and producers. To attempt to do the required tasks of the new south of the near future and hold our own against the competition of the world—to try to do these with negro laborers, negro farmers, negro producers, negro employers, would be like substituting the ox-wagon for the present railroad freight train. Nay, it would be more like one with a wooden leg, and a millstone around his neck, offering to run against a trained racer. The negro laborer, farmer, manufacturer, and contractor show more clearly every day that they are hopelessly outclassed in the struggle with white competitors. As a body where they now are they are becoming useless and an incubus. They will soon be still more in the way, and a more serious hindrance to southern development. They keep back the immigration which is especially called for. That is the immigration of northern and European farmers, producers, and manufacturers of all kinds to teach us their advanced methods, and the most skilled labor in every department to stimulate with example our native white labor to its highest accomplishment. The northern people would come south very largely if there were no negroes here. Their desire to come increases steadily, and so does our desire to have them come. The whites of both sections naturally co-operate more and more earnestly to effect their joint wishes. The disinclination of the United States supreme court to overturn the recent anti-negro amendments of the constitutions of southern States, and the palpably growing favor showed these amendments at the north are very significant signs that the south is to be made more to the liking of northern settlers.

Since the last sentence was written that court has ruled it to be a crime, punishable severely, to hold one to the performance of a contract to pay his debt by laboring for you.^[158] The average negro has no resource but credit on the faith of such a contract. So soon as it becomes generally known that he cannot be lawfully held to its performance, the credit will be denied. As has been suggested to me by an observant and far-seeing man, the decision overturns the main pillar of the negro's subsistence. It will powerfully favor northern immigration, as well as the substitution of white for black labor—that is, if it is vigorously enforced.

7. I believe that the two races together, in the same community as they are now in the south, are oil and water. Meditate the course and portent of these facts. Immediately upon emancipation the negroes set up their own churches and schools; they manifested approval of the separate passenger car for themselves, politely hinting in season that the whites ought to be kept out of it; and they influenced the planter to remove their cabins out of sight and hearing of the Big House. They showed a great disinclination, the men to do agricultural work by the year for standing wages, the women to hire as house servants. It was some while before the whites really recognized this drift of the negro towards segregation, when many of them—especially the wives and mothers—gave the rein to much unreasonable resentment. Now, if you but know how to look, you will find everywhere the proofs of deepening antagonism. The black driver will not see even a white lady—not to mention a man—on the crossing, but he will always see a negro of either sex. The face of the white inconveniently stepping aside flushes with momentary anger. If your colored servant tells you there is a lady at the door you may know it is a negro woman; he never calls a “white ’oman” a lady. A negro woman is prone to make the most prominent white lady give the street. In Atlanta, a negro man or a white boy cannot safely go at night the former through the factory white settlement, the latter through Summer Hill, a negro residence quarter. I have been informed that where the mill operatives of Anderson, South Carolina, have their cottages, there is conspicuously posted, “Nigger, don’t let the sun go down on you here.” I hear that the same is true of certain places in the Texas Panhandle; also that a negro settlement in the Indian territory displays a similar warning to the white man.^[159] Parties of black and white children meeting on unfrequented streets of Atlanta nearly always exchange opprobrious language, often throw stones at one another, and sometimes fight—a proof so significant that, whenever I see it, it always makes me serious. The most decided change from old times that I note is that white society everywhere proscribes mixed sexual intercourse and the procreation of mulattoes with rapidly increasing severity. The advocate of mixed marriages is more and more regarded as a fiend. The white woman seized by a negro man—how gladly would she change place with the victim of the torturing savage or of the tiger that would mangle and eat her alive! This menace is everywhere, and naturally it is magnified by excited imagination. It increases in fact. The trial of negroes for capital offences was given the superior court of Georgia

in 1850. From then until the end of the brothers' war but two cases of rape of white women by negroes are in the supreme court reports;^[160] and I never heard of but two other cases occurring in that time. But there have been many since. It steadily becomes more frequent. Women more and more dread to be left alone. And now there is hardly a man in the Black Belt who, when he is to be a night away from wife, daughters, mother, and sisters, without help at call, does not have uncomfortable thoughts of the sooty desecrator. The increasing effect of these multiplying outrages and the increasing horror which they cause is proved by a fact which ought to receive more intelligent recognition from everybody. This fact is that lynching of a negro for rape, and lately for other crimes of violence against whites, whether in the south or in the north, seems to be every time marked with a greater outburst of popular fury. The public grows more decidedly anti-negro. They give as little heed to the appeals of the papers in these matters as they do to the editorials always advocating the projects of the machine and corporations. The mob sweeps aside the military. The military will not load its rifles. If they were loaded it would probably refuse to fire, or would fire into the air. A few exclaim against lawlessness, while it is plain that the great mass of the whites do not really condemn in their hearts.

Let us try to understand the real cause of these things. The plainest parallel that occurs to me is the riots and violence excited by attempts to execute the fugitive slave law. The greatest of our southern statesmen misunderstood. What they thought to be lawlessness was in fact the struggle of nature by which the social organism of the United States expelled all cause of dissolution. These hostile demonstrations of the day against negroes are, as they seem to me, far other than acts of unenlightened and ignorant race prejudice, to which some writers ascribe them. They indicate, I think, another struggle of nature to expel a foreign and death-breeding substance out of the American body politic; they are each the protest of the self-preserving instincts against keeping the negro with us to counteract our progress, to debase our politics, to corrupt our blood, to injure us more than even successful secession could have done. How aptly has Matthew Arnold said, "O man, how true are thine instincts, how overhasty thine interpretation of them!"

8. Plainly the disparity of the negro in the deadly struggle with the white over every resource of subsistence fast becomes greater; plainly does his

stay in the south more and more injure both sections; plainly under the effects of hard life, growing idleness and growing crime, increasing ravages of disease, and the naturally engendered feeling of helplessness, the average negro in the lower class gravitates downwards; plainly this negro ought to have, in a sphere of his own, opportunity and stimulus for self-recovery and progress. Plainly whites and negroes ought to be separated. The latter seriously clog the evolution of the desired southern labor class, and the southern whites completely exclude the negroes from public life. The two are really each different communities in juxtaposition, but not united. You may think of them as plants, one of which has a diseased root, and the other has its top kept in the dark and out of the sun. Both these evils result unavoidably from keeping the two races together. So let us give the negro his own State in our union. That will allow the root of the one plant to get well, and it will give the top of the other permanently to the sun.

We are rich enough and have land enough to give the negro this State, which is his due from us. His especial need is to exercise political and civil privileges, in his own community, all the way up from town meeting to congress.

If something like this is not done it is extremely probable that the great mass of the lower class of the negroes will die out. Let not this crime be committed by the American nation.

9. We should be extremely liberal to the negro in education—in primary, in industrial, and also in the higher. Especially ought we to combine the second with the first, and give it the lead for both races.

10. All the southern states should at once by proper constitutional and legal provisions substitute judicial for mob lynching.

CHAPTER XVII

THE RACE QUESTION—THE SITUATION IN DETAIL

THE distinction between the two classes of southern negroes, glanced at in the last chapter, is to be always kept in mind—at the beginning, in the middle, and at the end, of our discussion. Its importance commands that we say something of it here. Consider how enormously the two differ in numbers. Five per cent of these negroes, that is, some four hundred thousand, in the upper; ninety-five per cent, that is, seven million and four hundred thousand, in the lower class. The latter, being nineteen times as large as the other, first demands attention.

In the country many of the men are croppers. A group of negroes—generally parents and children—do the labor of preparation, cultivation, and gathering, while the owner contributes the land, necessary animals, and feed for the latter. The croppers get half the crop, and the land owner half. The latter retains out of their half whatever he has advanced the croppers. The advances must be limited with firmness, otherwise they will cause loss. These croppers are the great bulk of the agricultural laborers. So few of the men work for standing wages that they need not be noticed. In the towns the men subsist upon day labor, the pay of which ranges from 50 cents to \$1.25. It hardly averages 80 cents. Some of the women, both in country and town, take places as house servants and nurses at weekly wages that vary from \$1 to \$2 with board. The growing disinclination of the women to these places is much stronger in the country than in town. In country and town the women do laundry for the whites at an average price per family of a dollar a week; and they get jobs of sewing, cleaning kitchen utensils, scrubbing, etc. In the country these women do some field labor, sometimes plowing, often hoeing. If trained in childhood they make expert cotton-pickers. But the women agricultural workers steadily decrease in number.

The negro has inherited from a thousand generations of forefathers, bred in the humid and enervating tropical West African climate, a laziness which is the extreme contrary of Caucasian energy and enterprise.^[161] Thus we are told of him in Jamaica, “In many cases a field negro will not work for his employer more than four days a week. He may till his own plot of ground on one of the other days or not as the spirit moves him.”^[162] The first Saturday in June, 1904, I saw the thriving little town of Abbeville, South Carolina, thronged with idle negroes from the surrounding plantations. A merchant, who was kept busy in his store, offered to pay several of them 75 cents to cut up a load of firewood—something more than the market price. They do not work on Saturday unless compelled by something unusual; and so each one replied at once, without any inquiry if the logs were large or small, seasoned or not, and thus finding whether the job was hard or easy, that the weather was too hot. And yet these negroes all exhibited in their clothes and hungry looks unmistakable signs of want. Those that superintend the gangs working for contractors in Atlanta and the vicinity, all—except now and then one who has managed to form a small party of picked laborers—tell me that it is very seldom that a negro can be induced to work Saturday; if that does happen he will make up his lost holiday by not returning to work before Tuesday. Your cook, nurse, maid, or black servant of any kind will every now and then suddenly inconvenience you by taking an utterly unnecessary rest. When Booker Washington was starting his system of industrial training, as he tells us, “Not a few of the fathers and mothers urged that because the race had worked for 250 years or more, it ought to have a chance to rest.”^[163]

The negro has likewise inherited lack of forecast and providence. If at the end of the year he finds himself with a small purse from his part of the crop, standing wages, or profits from a tenancy, he will often squander much of it for a top buggy, a piano which none of his family can play, or expensive furniture. Those in the gangs just mentioned always want to fool away their money before it is made. If one has been advanced \$4, and his wages amount to \$5, he will hardly ever abridge his holiday by turning up to get the dollar balance when the others who have not been advanced are paid Saturday night. He will waste his cash on watermelons and fish that an average white will not even smell. When forced down to it he can live contentedly upon almost nothing. A very large proportion of both sexes are

happy upon a real meal every two or three days, and a sly change of mate every two or three weeks. Toombs, who was always looking at Cuffee, pronounced him “rich in the fewness of his wants.” Bring him out more clearly to yourselves by comparison with an Irishman struggling up from starvation wages of hard daily work into comfort and ease. Reflect over the only success a cotton mill has had with black labor, which was due to whipping the operatives for breach of duty.[164]

In Atlanta—which of course is but like other southern cities in the particular now to be mentioned—many of the men live upon their women. It is a common saying that you cannot keep a colored cook if you do not allow her to carry the keys. There is great complaint that the colored washerwomen help their dependents out of the clothes. The criminal class of negro men, women, and children is large and growing much faster than that of the whites. Two very striking developments are the negro burglar and the negro footpad. There are many breakings and entries every year in Atlanta, many holdups of pedestrians, and nearly all of them are by negroes. Now and then a negro snatches a lady’s purse from her on the street. The prisoners sent to the Atlanta stockade during the twelve months beginning December 15, 1902, were

	Colored.	Whites.
Men	2325	1030
Women	1168	100
Boys	471	18
	3964	1148

According to the twelfth census, the negro population of Atlanta was 35,727, and the white 54,090. So, while there are in every thousand of the whites 21 of these criminals, there are in every thousand of the blacks 110. But the case is worse still. About an equal number of convicts escaped the stockade by paying fines. Allowance for this will much increase the per cent of negro criminals. I wish I could get the approximate number whose fines are paid by their employers, white friends, mothers, wives, and other relatives. I have observed facts which make me confident that it is large. The number of boys that in one year were sent to the stockade—471—is a most important fact, showing as it does that a large per cent of negroes become criminals in childhood. Nearly all of these boys have been

abandoned by their fathers. There are just as many abandoned girls in the city. Of course under the prevailing conditions the proportion of criminals in each generation must increase portentously.

The depth of the negroes' debasement is shown in the impurity of the women. This is another inheritance from their ancestors. The "ancient African chastity" alleged by Professor DuBois,^[165] if it ever existed, was entirely prehistoric. A white who has not been bred in close contact with the race is quite unable to understand the degree and universality of this impurity. I will illustrate by a case which occurred in a prosperous town of Middle Georgia not very long before I settled in Atlanta. A prominent negro preacher had been caught in adultery. The woman, who was the mother of several children, and her husband, were both members of the same church as the preacher, and of unctuous piety. The detection was so complete and certain, and it had immediately become so notorious that church notice was unavoidable. The problem was how to whitewash the affair. The office of a lawyer friend of mine in the town last mentioned was waited on by a member of the church—a say-nothing sort of negro, who always applied for leave to attend the meetings at which the preacher was being tried. This office boy had returned several times with the news, when inquired of, that nothing had been done. At last, one day he answered that they had cleared the preacher. My friend commanded that this be explained. The darkie said, in his laconic way, "Well, he 'fessed de act, but he 'scused de act." "How in the world did he excuse it?" was asked. "He said his heart wasn't in it." "Were you fools enough to believe that?" was ejaculated. The negro, with an air as superior as was compatible with the great politeness of his race, replied, "He said it was de debble dat had his body dar; but all de time his soul was at de throne, praying for God's people. In course we couldn't blame him for what de debble done."

This defence, suggesting the make-believe loan of his body by the friar in the Decameron to the angel Gabriel, which, of course, had never been heard of by the accused, convinced the church, willing to be convinced. It appeased the injured husband, willing to be appeased. It fully vindicated the gay clergyman and the erring sister, who were in effect told to go and sin no more with such little discretion.

Had this case, or another like it, occurred at that time or since in any other negro church of that region, there would have been acquittal and justification of the accused, although perhaps the good plea and the right psychological moment to make it might not have been so aptly found.^[166]

The habits and customs of the race mix men and women always and everywhere; and in those opportunities each one of the young and the old, married and unmarried of both sexes—of even children just arrived at puberty—chases a short-lived amour with ever eager zest.^[167] The blacker the Lothario the more show of white blood he seeks in his fancies. Now and then furious desire for real white overmasters him. Surprising some unattended angel of a girl or matron, he chooses to see Rome and then die. Her avengers pour kerosene on him and burn him to a crisp. His lusty fellows think to themselves what Hermes, in the song of Demodocus, says to Apollo of the mishap to Ares and golden Aphrodite—that is, that for the same brief pleasure they would each gladly endure thrice the penalty.

Professor DuBois says that the chastity of the negro women has improved so greatly “that even in the back country districts not above nine per cent of the population may be classed as distinctly lewd.”^[168] Inquire of honest witnesses who have good opportunities of observing—the farmers, small and large, and the storekeepers, in the country, those who do contract work and the police in the cities—of all who have close access to negroes at all times, and especially at night; and the concurring report will be that right correction of Professor DuBois’ statement just given cannot stop with mere inversion of his percentages; that the fact is, no negroes in this lower class which we are now dealing with are chaste except those whose physical condition has made a virtue of necessity.^[169]

It is sadly true that men of all races are too prone to unchastity. It is chaste women that give human amelioration its main propulsion; for they make every husband to know that the children around his fireside are his own. If I were asked in what one particular had my life-long comparison convinced me that the two races are farthest apart, I would unhesitatingly answer, in the character of the women of each—the average white woman, from her marriage on, forgetting all other men but her husband, the black wife always with a paramour, if to be had.

The tie which holds the family stanch is wanting. The men often cast aside their domestic burdens, and begin their lives over in a distant region with a new woman. The wife and mother left behind does not mope. She has generally prearranged satisfactorily with another man.

Disease is making great ravages in this lower class of negroes. I never knew of a case of consumption among the slaves, and I can recall but one serious case of pneumonia. Now these two diseases slay the negroes by hundreds. Before the war the negro was regarded as immune from yellow fever, and almost immune from dangerous malarial affections. He has lost his charm against these also. There has been a dreadful increase of insanity among them. The only ante-bellum case that I can recall was due to an accidental injury of the head.

It is but natural that the death rate among the negroes mounts fearfully. Their great multiplication has far outrun their reasonable means of subsistence. We note what a heavy burden a large family is to a man in hard times. I must believe that the thirteenth census will show a still greater negro death-rate.

We shall sum up as to this lower class after we have described the displacement of black by white labor.

Now we must consider the upper class. We need look only at its main divisions, to wit, the negro farmers, and the well-to-do urban negroes.

The rose-colored statements of Professor DuBois as to the former cannot impose upon residents of the south.^[170] I shall begin with the negro farm owners of Georgia. In what he says of them in the second Bulletin mentioned in the last footnote he hardly ever looks away from the report of the comptroller-general of the State. I shall deal with relevant facts about which the comptroller-general is not required to concern himself—and of which the census takes but little note. Where agricultural land commands only a few dollars per acre a large part of it will get into possession of purchasers under title-bond who expect to work it and pay for it in annual instalments out of its produce. Of course the vendor sees to it that he himself escapes taxation on this land, and so the purchasers, although they may have paid him but a trifle or nothing at all, are assessed as if they were the real owners, while the vendors are retaining the title as security. Soon

after the war many a white planter, in order to get out of a failing business and procure capital for something else, sold his land in whole or part. He could find no purchaser but some exceptional negro; and the latter could buy only on credit. Much of the lands so sold had to be retaken because the purchasers failed to meet their payments. It was my observation when I left Greene county twenty-three years ago that in that and the adjoining counties the number of negro owners of agricultural land was decreasing, and it is my information that such is now the case. This indicates an important fact not shown in the reports of the comptroller-general, to wit, that a large number of the negroes appearing therein as owners are really not owners, and are losing their holdings.

The next fact to be mentioned is that, as I learn from residents, many farms of which a negro had acquired the fee are heavily encumbered, and often fall to the local merchants.

Further, as Professor DuBois states, “the land owned by negroes is usually the less fertile, worn-out tracts.”[\[171\]](#)

According to the comptroller’s report for 1903 the acres of white ownership are 29,762,259, returned at a value of \$121,629,094; which is \$4,139 per acre. The per cent of the total value owned by the blacks is 4.07. This result—that the negroes own a fraction over four per cent of the improved lands of Georgia—must be corrected by proper deduction for purchase money debts, and also for encumbrances. It must be further corrected by another deduction. The negroes land is considerably below the average of the rest in quality and market value. Yet while the white returns at \$4.08 an acre, the other returns at \$4.13. This higher valuation is not because of conscientious avoidance of tax-dodging. It comes from that optimistic exaggeration characterizing the race, which is vividly illustrated in Booker Washington’s gravely stating that the love of knowledge by the average negroes of the south has become the “marvel of mankind,”[\[172\]](#) and in the extravagant assertion of Professor DuBois as to their chastity commented on a few pages back.

There are a few negro owners of farming lands that are prospering, but I am credibly informed that as a class they are falling behind.

The tenants—the renters, as they are commonly called—are the more prosperous negro farmers. The whites hold on to their lands more firmly than they did some years ago, and the tenantry class both of whites and blacks is becoming larger. The whites in the Black Belt all believe that the negroes generally belong to societies, in which they have bound themselves not to hire to the former as house servants or for standing wages except when they cannot otherwise subsist. So most of the cotton is made by tenants and croppers. They grade as many bad and mediocre, and a few good. The latter work with a will, and make fair crops. They send their children off to expensive schools. When they die the property they have accumulated is distributed and squandered, and a new tenant—generally, of late years, a white—succeeds.

It is to be observed everywhere that some reliable white man is generally backing or superintending a negro farmer that can get credit. The negro farmers, in almost any large county in the Black Belt that you may select, that are an exception can usually be counted on the fingers of one hand.

Their implements and methods are primitive;^[173] and they employ hardly any labor except that of their own families.^[174] As soon as the negro farmer's children have grown up they leave him; the negro laborers in his neighborhood become more idle every year, and they become also more scarce. It is not to be thought of that he employ white labor. This class will give no help to the new agriculture, which I have glanced at in the last chapter.

Twenty-odd years ago when I left the planting section, the white landowners all preferred negro tenants. But white tenants are now preferred. They do not send their children to school as much as the negroes do, but keep them at work while the hoeing, which is the first main thing to the cotton farmer, and the gathering, which is the second and last and greatest by far, are unfinished. The negroes' hoeing and other cultivation are bad; and after the crop is laid by until Christmas, during which time comes the all-important laborious cotton-picking, they spend so much of their nights at church they are incapacitated from doing good work. They lose much time by going to camp-meetings in the late summer and early autumn, and riding on railroad excursion trains at every opportunity. The white tenants and their families, by careful "chopping out" and hoeing, get the proper "stand"

and they pick clean; the negroes fall behind in both respects. The bettering credit of the white steadily hits the negro harder. The only tenants who are good for the rent are the class a few of whom have cash of their own and the rest can get credit with the local merchant for necessary supplies. Such tenants the landowners seek after, and find every year more and more among the whites, and less and less among the blacks.

Every year a larger part of the staple crops of the south is made by whites. The negroes have lately decreased in Kentucky. Mr. Tillinghast brings forward, from Hoffman, weighty proofs that in the State just mentioned, which has just become the principal seat of tobacco growing, and also in the largest yielding counties of Virginia, that black labor constantly grows less of the crop.^[175] He uses Hoffman, too, to show that white labor is slowly expelling black from rice production.^[176] The old south believed that rice culture was sure death to the white, Mr. Tillinghast quotes, as to the greatest agricultural product of the south, this from Professor Wilcox: "It would probably be a conservative statement to say that at least four-fifths of the cotton was ... in 1860 grown by negroes; at the present time [i.e. in 1899] probably not one-half is thus grown."^[177]

Compare this further: "He [Hoffman] finds that 'with less than one-half as large a colored population as Mississippi,... Texas produced in 1894 almost three times the cotton crop of the former State.' Even more significant is the fact that with almost twice the colored population of 1860, Mississippi, in 1894, produced less cotton than thirty-four years ago."^[178]

Very significant are the facts lately published by the Agricultural Department which show that in an area of some sixty-three per cent of the production, the white outpicks the negro. "One hundred and fifty-two counties, with a negro population amounting to seventy-five per cent of the whole, averaged one hundred and eleven pounds per day, whereas one hundred and ninety-two counties, with a white population constituting seventy-five per cent or more of the whole, averaged one hundred and forty-eight pounds per day,"^[179] that is, the white picked one-third more than the black. There are other statements in this bulletin of importance here. I can give this one only:

“In the Indian Territory and Oklahoma, where the whites represent about eighty per cent of the population (including Indians) the average number of pounds picked is greater than in any of the States except Arkansas and Texas. The highest number of pounds picked in any State is one hundred and seventy-two in Texas, the counties represented having a white population of eighty per cent.”^[180]

In Arkansas the population of the counties mentioned was fifty-nine per cent white, the rest negro.

It is almost certain that the foregoing estimates do great injustice to the whites. They assume that there is no inferiority of the negro to the white except the per diem quantity of cotton picked. Ponder the statement as to a county of Georgia which I now give.

“According to the ginner’s report, Madison county made sixteen thousand bales of cotton in 1902. Its negro population is about three thousand, its white, twelve thousand. The negroes are one-fifth and the whites four-fifths, and out of every five bales the negroes ought to have made at least one and the whites four. But the former do not average as well as the others. The white who runs one plow, whose wife and children do the hoeing and picking, probably makes ten bales. The negro who runs one plow, whose wife and children hoe and pick, hardly makes more than five or six bales. The greater part of the cotton credited to negro labor is made by negroes who are superintended by white men.”^[181]

Weighing all that I have just told, I am as sure as I can be of anything in the near future, that the negro will soon be of greatly diminished importance as laborer, cropper, renter, or farming landowner in the staples of southern agriculture.

There are other kinds of property than improved lands set out in the report of the comptroller-general, such as \$3,531,471 of horses, cattle, and stock of all kinds, \$810,553 of plantation and mechanical tools. Such needs no separate consideration. These holdings do not in view of what we have told, give the negro farmer any strong foothold.

Nearly all that remains of the rural upper class—the negroes in trades, professions, mercantile business, etc.—is so evidently dependent upon the masses of the lower class, now gravitating away from the country that the most of it can be incidentally disposed of at certain places later on in the chapter and the rest be treated as negligible.

The “city or town property” of the negroes of Georgia, according to the report of the comptroller-general for 1903, amounts in value to \$44,668,620. From all that I can learn, while it is largely, it is considerably less, encumbered than the real and personal property of the negro farmers.

A large admixture of Caucasian blood marks nearly every member of the upper class both in country and town. I note that occasionally a coalblack acquires property, on which his miser grip is tighter than that of an accumulating Irishman; but such are very few. There is hardly a well-to-do negro in work, occupation, profession, or property, who is not several shades at least removed from coalblack. Mr. Tillinghast observes “that the porters, cooks, and waiters on a Pullman train are usually mulattoes, while the laborers in the gang on the roadbed are nearly all black.”^[182] In this day when the pictures of prominent men and women are in many illustrated magazines and papers, it is to be observed that hardly one of a negro shows unmixed blood. Thus a recent monthly contains pictures of Judson W. Lyons, R. H. Terrell, Kelly Miller, Archibald H. Grinke, T. Thomas Fortune, Daniel Murray, and Booker Washington.^[183] Of these the third only, to my eye, seems all negro; and I cannot be confident that he is wholly without appreciable white blood. His head has the shape of a white man’s.

It is my observation that a negro entirely pure in blood hardly ever gets out of the lower class; and that if he does he is much more unprogressive than an average member of the upper class. Note what Bishop Holsey says of how amalgamation with the white improves the descendants of the blacks, in a passage quoted later herein.

This upper class contains only persons of exceptional blood, talent, or some other rare fortune. The higher education, and the education which is now best of all for the negro—industrial education—is for this little circle only. Hampton and Tuskegee do not open to all comers. Mr. Tillinghast convincingly proves that those who have got really good training at the two

institutions just named are far above the average negro in physical stamina, education, and other important particulars.^[184] The graduates go forth, not to benefit their brothers in the lower class, but to win for themselves surer and higher standing in the upper class.

Some of the resources which this urban section of the upper class have enjoyed for a while they are losing, as I shall tell when I hereinafter summarize the details of white encroachment. But other resources open to them. Such are professions like dentists, eye, ear, and throat surgeons, doctors, barbers, and others who must content themselves with only colored patronage; such the growing retail trade, multiplying boarding-houses, restaurants, and saloons, finding their custom exclusively in the increasing negro town population. The number of negroes who become teachers, lecturers, preachers, authors, etc., steadily augments. Other resources of this upper class can be pointed out, but it needs not here. Although nearly always when the father who has struggled up dies, his property, as we saw to be the case with the negro farmer, goes, and no child succeeds to his occupation, there is perhaps generally compensation for his loss by the accession of some other who has got up out of the lower class by an extraordinarily lucky jump. It is clear that the class is without the wholesome influence of uninterrupted inheritance, from generation to generation, of faculty and character progressively improving. Take this inheritance away from the men and women of any enlightened nation and it would be to lower them very near to the level of barbarism. It is also nearly certain that there will be no further infusion of white blood into this class, by reason of the hostility to inter-mixture which becomes stronger—yea, intenser—every year. The probable consequence will be the dilution of much of the white blood now in the upper class through the lower class to such an extent that it will practically disappear. But some of it, I think, will persist, perhaps increase in degree—preserved by the aversion of many to intermarriage with persons less white than themselves, and occasional intermarriage with white persons in northern States.

Exceptional ones of this class enjoy privileges of the higher education, afforded by schools and colleges opulently endowed by private persons, which education is bringing forth fruit in teachers, clergymen, and representatives of the learned class. There are already some good books, as well as sermons, speeches, poems, essays, and short articles, by negroes

which have won favorable opinion in our literature; and there is evidently to be steady increase.

There is among some of this urban upper class the beginning at least of better things under the lead of better mothers. We must not be unreasonable in our demands that these women who carry in their veins a very appreciable proportion of polyandrous blood shall become immaculately chaste at once. Leave them to the influence of the improving society in which they move; to the noble and faithful efforts of such as Mrs. Booker Washington; their persistent imitation of white mothers; the teachings of the really christian pastors whom the negro universities are beginning to send abroad in numbers far too few; but especially of all to devoted conjugal, maternal, and domestic duty. This last has made the pigeon mother unconquerably true to her life mate. It will do the same for the negro woman.—Let us consider the class further for a moment.

The longer you look at it with unbefogged eyes the more plainly you see it is really a natural aristocracy hugging its special privileges more jealously every year, and that cleavage in interest, affection, and destiny between it and the other class goes on so steadily that it must after some little while yawn in the sight of the entire nation. Here in Atlanta, as seems to be the case in all the southern cities, there are respectable negro districts and also negro slums. The latter are the more numerous and far more populous. The inhabitants of these several districts are almost as wide apart as are the whites in the fashionable circle and the million of poor folk without.

I must postpone my final contrast of these two classes until I have completed what remains to be said of the displacement of black by white labor. For a few years after the war it was so slow moving that I was not confidently aware of it. Now it has proceeded so far, and so much accelerated its pace, that I can indicate it with something like accuracy. In the thirteenth chapter I noted its beginning. This was when the mother and her girls took upon themselves the daily indoor work, and the father and sons took upon themselves the outdoor work, morning, noon, and night, around the house and the horse-lot,—the word which in the south corresponds to the barnyard of the northern farmer. Especially significant is it that a large per cent of the white matrons in the country have at last discarded the negro laundry-woman and habitually themselves use the

washtub for their families. The impulse to supplant negro labor showed its greatest energy where the black population had been sparse. I have heard my friend, F. C. Foster, a resident of Morgan county, often mention that what were before the war the rich and poor sides of that county have become interchanged; where most of the large slave-owners lived was the rich, but now is the poor side; and the other, where there were but few slaves, is now the rich side.

I see many proofs in every quarter that the whites of the Black Belt have commenced to learn good lessons from their neighbors outside, and show every year a greater self-reliance. Many more causes than I have space to set down conspire to increase this self-reliance. The small farmer must, by himself or his wife and children or white help, do such things as these: work his brood mare; care for his blooded stock, fine poultry, and bees; handle his reaper, mower, and more expensive tools and implements; give all necessary attention to his orchards and larger and smaller fruits,—industries which, with that of the dairy, are now pushing forward with mounting energy; for he has learned that the average negro cannot be trusted in these and many other things which can be suggested.

I must not overstate the advance of white production and labor upon black in the country. In the regions of densest negro populations the whites show a backwardness in taking to work that is discouraging. A very observant man familiar with Jackson and Madison counties of Georgia, both of which are out of the Black Belt, and who now lives where negroes outnumber the whites, not long ago made this comparison, while answering my inquiries: "In Jackson and Madison the whites work. A farmer who runs but one plow does all the plowing. He hires but one negro. In my present county the one-horse farmer always hires two negroes, one to plow and the other to hoe, and the only work he does is to boss them." But the negroes are going away from many parts, in fact from nearly all, of the Black Belt. Wherever they have become scarce, the whites go to work; and, as is now occurring in that part of Greene county called "The Fork," and in places in adjoining counties, the lands rise greatly in market value. In many parts of Oglethorpe, Wilkes, Taliaferro, and Greene counties, where negroes were doing practically all the agricultural labor when I came to Atlanta, I learn that many white boys are becoming good all-around workers. It surprised me greatly to be told that in this region in different places the white women

and children, as soon as the dew is off in the morning, go to cotton picking, and they become so efficient that often no extra labor need be hired to finish that greatest task of all to the farmer. Before the war, all of us white boys picked just enough of cotton to learn that our backs could never be made to stand picking all day. The whites now beating the negro in what we once thought he only could do, and white women in the old slave regions doing the family laundry,—these begin a marvellous economic revolution.

The cotton mills and other manufactories rapidly springing up in many southern localities are developing a class of white operatives. Mining of various kinds is on the increase. Stone, slate, and marble cutting, cabinet making, and other trades attract greater numbers to follow them. White railroad employees, printers, engravers, stenographers, typewriters, and those in numerous other gainful occupations, grow in numbers. White women and girls stream to work for employers every morning. In all places, if you but look long enough, you catch sight of swelling crowds of the race who once lived almost entirely from slave labor now doing their own labor.

I will close what I have to say of this part of the subject by observations of Atlanta. When I settled here, the barbers, shoe repairers, blacksmiths, band-musicians, sick-nurses, seamstresses, ostlers, and carriage-drivers were, so far as I noted, black almost without exception. Now the first five are nearly all white, and whites steadily multiply in the rest, although they are far from being in a majority. The only expulsion of white by negro labor that I have noted is the substitution by the bicycle messenger service and the telegraph of negro for white messengers, made not long ago. These messenger services thrive by exploiting child labor. By the change mentioned they got much larger and stronger boys—often grown-up ones—for the same price which they used to pay white children a year or two older than mere tots. Against the recent loss just told I have these two recent gains of the whites to tell. There had always been only negro waiters in the restaurants. In some of them the eaters at the lunch counters are now served by a white man standing behind it; and what he needs, if it is not kept in store so near that he can reach it, is brought to him, at his command, by a negro, whom you may call his waiter. This negro also wipes off the counter. After we became used to white barbers we generally preferred them to the black ones. And I note that a growing majority of those who frequent the counters like the white waiters, although I now and then hear a growler say that he would

rather have a waiter that he can reprimand and speak to as he pleases. Some of the restaurants begin to advertise that their help is all white. With the superior alertness and quickness of his race, a white behind the counter accomplishes more than twice as much as the former black. To use a common saying, the white waiters keep at active work all their twelve hours as if they were fighting fire, while the negroes commanded by them take things easy. Every one of the whites is constantly on the lookout for a better place; and generally he manages somehow, after a short while, to get it. One who now serves me studies bookkeeping two hours every night, and will doubtless soon be giving satisfaction in his chosen occupation to some business house. The negroes look out only for tips, are interested in nothing but amusements, and never get any higher. Bear in mind, they are considerably above the average negro in qualifications and station.

The other instance is that some co-operating Greek boys have recently captured a very considerable proportion of the shoe-shining. They provide more convenient and comfortable seats and give a better shine than the negro does, in a much shorter time, and for the same price. It looks now as if they are bound to make full conquest of the business. With my experience it is more of a surprise to me to see clothes laundered, tables waited on, and shoes shined by the whites, than even to see cotton picked by them.

But to go on with Atlanta. Occupations requiring the management of machinery or peculiar skill are nearly always filled by whites. The street railroad conductors and motormen are all white. The only negroes connected with the road that I, as a passenger, generally see is the curve-greaser, and now and then a helper on the construction car. The steam railroads will employ a negro fireman because of his ability to stand heat, but they do not trust him to oil and wipe. In the smaller buildings negro elevator-runners some time ago were frequent, but now it is clear that the whites will soon have the occupation exclusively. There is, I believe, more building, in this year of 1904, in Atlanta than ever before. The preparation of all the material is done by white labor in the planing-mills and machine-shops, while the more unskilled work of putting it in place is done by the negro carpenter.

The lathers and plasterers are all negroes, there are more negro brick and stone masons than white, and the carpenters are nearly all negroes, there

being but few young white ones. The painters are about equally divided. The negro's standard of living is so much lower than that of the white, that where there is competition he proves victor by accepting a price upon which the white man cannot live. But the latter does not throw up the sponge. At the point where race competition begins he induces the negroes, whenever he can, to join his union, and soon to have one of their own. Just now (August, 1904) there are not enough of brickmasons to supply the demand, and there is both a white and black union of that trade. But so far there has been no success in the efforts made for a black carpenters' union. The negroes have of late years kept such firm hold of the trade, that it seems no young whites come into it, there being but few white carpenters in Atlanta under forty years of age. The negroes understand that their grip is due to their ability to work for lower pay than the whites, and when the union is proposed they say to themselves, that means only more places for white carpenters and less for us. But the trend to form unions seems to strengthen. There is a mixed union of tailors, separate unions of blacksmiths' helpers, moulders' helpers, painters, and also of brickmasons, as just mentioned. There is a black union of plasterers and no white one. It is to be remembered that the initiative to unionize the negro workman comes from the other race, the purpose being to balk the exertions of employers to depress wages by encouraging the cheaper worker. Consider the dilemma of the negro workman invited into the union by whites. He foresees that if he accepts, his race will after a while be swamped in the trade by white competition. At the same time he foresees that if he does not accept, he cannot increase his income, which in its smallness becomes more and more inadequate to sustain himself and family under the constant demands of the day for larger and larger expenditure. The immediate needs of those dependent upon him will generally decide his course. I cannot say how long the negro carpenters of Atlanta will refuse the proposal to federate themselves in a union with the whites; but this I can say, that all attempts of the negroes to keep the whites out of any well-paid vocation must fail, even with the most resolute and stubbornly maintained effort. As I view it on the spot the white forward movement palpably strengthens and the defence weakens. Bear in mind that the whites receive constant re-enforcement from all other white American and European communities, and the blacks are confined to their own resources of supply, all the while declining.

What I have just told as happening in Atlanta intelligent and observant negroes detect to be but a part of the general recession before white competition. The National Negro Business League had its last meeting at Indianapolis. In one of the resolutions adopted, mainly because of the influence of Dr. Booker T. Washington, its president, occurs this allegation, "During our discussions it has been clearly developed that the race has been steadily losing many avenues of valuable employment." The resolution ascribes this to lack of proper training, and recommends that the lack be supplied. A negro makes this acute and true comment, which I would have attended to here, and considered again when further on I discuss what the industrial schools can do:

"That the colored man has of late years been losing many avenues of employment is quite true, but the conclusion that this is due to a lack of training is not to be hastily accepted. Nobody believes that our people are now less capable of work than they were when recognized in these avenues of labor. As a matter of fact they are far better equipped now than they were then, or Tuskegee and Hampton and the other industrial schools that are crowded from year to year are making a signal failure. In those days men were picked up here and there and started in as apprentices as green as they could be. Now thousands of them are prepared before they go out to work. The two chief reasons our folks are not employed so universally now is, first, the fact, that *the white south has gone to work with its own hands*, and second, the negro refuses longer to work for nothing. *The continued assertion by some of our leaders that a man who can labor will not be discriminated against, is untrue. The preference is given to the white man in almost every case, and the negro is allowed to do the work he refuses.* It is well enough to ask our people to secure industrial education, but it is wrong to place all our ills upon a lack of such training or to recommend industrial education as a panacea. Though it was quite inevitable that the league should adopt such a resolution as an endorsement of its president's policy."^[185]

I have italicized in the quotation the statements specially pertinent here. They are very weighty proofs supporting my proposition of fact, to wit, that

there is now waging between the whites and negroes an internecine war for every opportunity of labor above the very lowest and unskilled.

I ask also that it be noted that the writer is utterly unconscious of any negroes than those of the upper class. Not a thing that he says can be applied to the ninety-five per cent.

The death rate of the negro is coming close to, while that of the white keeps far below, the birth rate. Rapid native increase and vigorous immigration for the whites, nothing but slow and decreasing propagation for the negroes; and larger and larger hosts of the former giving their champions active sympathy and help—the event of this inter-race struggle over the trades and occupations may be delayed, but it cannot be doubtful.

The reader must not forget that the negroes now in mind belong all to what I have called the upper class. Their number is so small and its promise of increase so slight that I should hardly have done more than allude to them, if the subject did not emphasize so impressively as it does the inevitable expulsion of negro by white labor. Let me explain this fully. Professor Wilcox, summarizing the pertinent information of the twelfth census as to ten leading occupations competed for by the two races in the south, states that in the year 1900 the per cent of negroes was larger in seven and smaller in nine of them than ten years before.^[186] That alone shows white gain. But I want you to add to Professor Wilcox's statement something of which the census gives no hint, that is, the bound forward of the negroes on one side, and the inaction of the whites on the other, during many years beginning with emancipation in 1865. When that has been done, the encroachment of white labor upon black effected in the comparatively short time since its beginning appears almost prodigious. It is somewhat like the race-horse, who, falling far behind in the first stages of a long heat, at last wakes up and gains so fast that nobody will bet against him. It means that the whites are now as ruthlessly taking all opportunities of labor away from the blacks, as their fathers took his lands away from the American Indian.

We can now say our last word in contrasting the two classes. Many fail to see clearly the difference between them. Thus Ernest Hamlin Abbott^[187] and Edgar Gardner Murphy,^[188] in their pleasant discussions, only here and there, and as if casually, say something which momentarily implies

existence of the lower class, and then relapse into claiming for all of the southern negroes, if not the actual condition of the upper class, at least hopeful possibility of soon achieving it. These two kind-hearted men represent a large number who firmly believe that education and the church are now rapidly elevating the negro masses, when the fact is far otherwise. Many from the north see nothing but the upper class. In what he writes of the negroes whom he knew in public life, the late Senator Hoar was utterly unconscious of the average negro whom all of us in the south know.^[189] Dr. Lyman Abbott, a most benign example of broad and almost perfect tolerance to both sections, taking all southern hearts by his loving sympathy with and full justice to the better sentiment of our section in every matter of importance except the appointment of negroes to office, he never seems to have in mind any negroes but the prominent ones who are giving their fellows industrial or the higher education, and those who have been blessed with either. Do but consider how pathetically he lately lamented the case of the “white negro” lady shut out from the circle of cultivation and kept confined in one of ignorance and lowness. This last circle—its magnitude, its bad and desperate state—he really knows nothing about. He can no more study its deplorable and heartrending conditions than the mother can endure to have the expectoration of her child threatened with tuberculosis examined under the microscope. Chicago has been for some while “farthest to the front” in the struggle against corporation rule. Her battles for direct nomination, direct legislation, and municipal ownership have been chronicled more accurately and intelligently in the *Public* than I can find elsewhere. Therefore I read it with diligence; and I relish more and more Mr. Post’s sound and able anti-machine and anti-plutocratic advocacy. But in everything that the paper says or quotes on the race question I am pained to note that its shortcoming is greater than its very high merit in preaching democratic democracy. Mr. Ernest Hamlin Abbott does now and then call the negroes a child race, but Mr. Post repudiates all backwardness and inferiority of race. He seems to maintain the equality of the average negro to the average white in all essentials of good citizenship with the zeal of Wendell Phillips, when the providence of the American union frenzied and deputed him to infuriate its defenders against the disunion slave-owners. Mr. Post, as appears to me, believes with all his heart in the doctrine of Mrs. Stowe and Whittier, to mention no others, as to the negro. Every pertinent utterance in his paper indicates that he has no thought whatever of the lower

class. A most striking illustration of this is how he treats the story of the negro Richard R. Wright.^[190] When the latter was ten years old he won great fame by the answer he made General Howard, who had inquired of the negro children at the Storrs School in Atlanta, just after the close of the war, "Tell me what message I shall take back from you to the people of the north?" His face ablaze with enthusiasm, the boy Richard said, "Tell 'em we're risin'." Whittier went as far astray over this as we saw that he did in his "Laus Deo." In his poem celebrating he sang—

"O black boy of Atlanta!
But half was spoken:
The slave's chain and the Master's
Alike are broken.
The one curse of the races
Held both in tether:
They are rising—all are rising,
The black and white together."

I never read the last two lines without in mind admonishing the author, "Praise in departing."

When Mr. Post published the story, he ought to have mentioned that while the boy who sent forth the winged words did rise and has become president of the Georgia Industrial College, yet that such negroes are far more rare than millionaires, and the main host of their people in the south were sinking at the time, and have been sinking ever since. It is not true that "all are rising." The whites have recently begun to rise; five per cent only of the negroes, most of whom are largely white, are rising, while the rest of them are doomed, if the nation does not interpose. And the colored dentist of Chicago, slighted by some of the white dentists—Mr. Post sees in him, just as he sees in Richard R. Wright, a representative of the negro millions.

These conscientious and amiable gentlemen are wasting much effort uselessly. There is no very urgent problem as to the upper class of negroes. It has two strings to its bow. If the lower class should perish, a large part of it—perhaps the greater part—will be assimilated. Every day I detect a larger movement toward the north among our better-to-do negroes. I hear of girls that get places as chambermaids and cooks, of boys that find places as

ostlers or other domestic service; and I have heard of a few families who have gone in a body, also of some men who have left wife and children here. They believe the north will allow their votes to be counted, will not proscribe them in society as the south does, and they will probably get for themselves or their descendants intermarriage with whites. The determination of these southern negroes towards the north will probably gain in volume and energy. It is plain that those who go do much increase their chances of final absorption into the body of whites. This assimilation is one of the two strings. And if the American negroes shall one day be conceded their own State, as I hope and pray for, their leaders must come from the upper class. That is the other of the two strings.

This upper class of southern negroes has demonstrated full ability to take care of itself. It has its schools and colleges, newspapers, magazines, and augmenting literature, its widening circle of students and readers, and its good shepherds and able leaders. It rapidly wins favor in the south. A few of our residents see no other negroes but those in this upper class, a most striking instance of which is Joel Chandler Harris's sweeping assertion "*that the overwhelming majority of the negroes in all parts of the south, especially in the agricultural regions, are leading sober and industrious lives.*"^[191] When one who fully understands the situation studies the assertion just quoted he sees from the context that the writer was led to make it because he had at the time in his eyes only a few of the better negroes in the Atlanta upper class. This is powerful testimony to their prosperity and self-maintaining faculty. Similarly the Chicago *Public* rates the four hundred inhabitants of Boley in the Creek nation as common or average negroes. According to a news dispatch mentioned in that paper the town is only a year old, has "two churches, a school-house, several large stores, and a \$5,000 cotton gin, owned and controlled exclusively by negroes." It is without a system of law and without municipal government, and "yet no serious crime or offence of any kind has been committed in the place." These four hundred negroes do not permit any white man to settle in the town. Commenting in conclusion upon the news, the *Public* says, "If that dispatch is not a canard, Anglo-Saxon civilization has something to learn of one race which it has outraged and abused and despised."^[192]

Any such place as Boley, if a reality, is peopled only by negroes of the upper class, and, further, only by those who have been sifted out from the

rest of that class by a peculiarly drastic selection. Had they not each had remarkable good fortune, extraordinary capacity, and exceptional experience and training, Boley would never have been heard of. I ask that the fair-minded make two comparisons. 1. Suppose four hundred negroes—not naturally selected, but taken in a body, just as each one comes, from the masses of the lower class described herein—given opportunity to found a town of their own amid what we may call Boley conditions, what would be the result? You may be sure that what occurred in Hayti when the reins of government were suddenly given to the negroes at large would in some sort be repeated. 2. Compare Boley in all its bloom and happy condition as described in the *Public* with certain communities of select whites, which have flourished now and then for years, without formal government; say the Amana community. If this be rightly done, social organism of select whites will at once appear to be incomparably superior to that of select negroes.

I have tried my hardest to make my readers see as clearly as one bred in the south ought to see what a world-wide difference there is between the small upper class and the numerous lower class of negroes. If I have succeeded they will agree with me that it is the better policy to leave the upper class, for the present, just where it is. If this advice be followed, that class will flourish, and some day either be assimilated, or be giving benign salvation to the lower class in the negro State. Especially should this upper class eschew politics. Booker Washington in preaching this is the only real American prophet of the day. With all of his zeal for his race, he is far better appreciated in the south than in the north, and perhaps just as popular. What a lamentable arrest of its benign development it would be to this upper class to turn it away from industrial betterment of its condition to lead the mass of the negroes at the polls in a struggle for rule and office! That would be something like renewing the conditions that developed the Ku-Klux Klan.

It is the great body of the southern negroes—those in the lower class, who have no string at all, nor even a bow—that demands the profoundest attention. I wish I could make every white man, woman, and child of America see them just as they are. As I compare them with what they were in 1865 I note they have advanced somewhat in mental arithmetic, because of practice in computing small sums of money involved in their wages and purchases; that they have learned somewhat of self-providence, and very much endurance of want (which last is really a reversion to a trait of their

West African ancestors); and that the per cent of illiteracy among them has been greatly lessened. On the other hand, each generation becomes more disinclined to work, and its vagrants multiply; each generation more prone to live by crime, more unchaste, and more quick to desert their conjugal partners and children. Especially are they far more unhealthy and prone to insanity, and their death rate rapidly rising. They have no resource but unskilled labor of the lowest and cheapest grade; white competition in agriculture and domestic service, machinery in other fields, such as the scrape which has superseded the dump-cart, the improved steam-shovel and method of handling construction trains, and the steam laundry, steadily curtailing that resource; a slothful, improvident, and wasteful disposition curtailing it still further. The resurrecting hand of the trades union cannot reach down to them. Steadily they are more useless to every upbuilder of the coming south except the wage-depresser. More and more they get in the way of real progress in every direction. And as their supplies of necessities diminish they get in one another's way. Nearly all of the whites who were bound to them in the domestic love of the old south times are dead. Most naturally and unavoidably as the new generation discerns the growing incompatibility of their stay in the section with its true welfare, unfriendliness comes and grows. Listless, lethargic, careless, without initiative, without opportunity and coercion to make use of it, these multitudes of inveterate have-nothings are in a bottomless gulf of want, immorality, crime, and disease. A true philanthropist has familiarized the world with the "submerged tenth." Mr. Ernest Hamlin Abbott, Mr. Murphy, Mr. Joel Chandler Harris, Dr. Abbott, Mr. Post, stand beside me on the strand, and fix your eyes, minds, and hearts upon the slowly drowning ninety-five per cent of the southern negroes. Lay aside the excess of your devotion to the upper class. It does not need it. The Chicago dentist, as the *Public* itself reports, was really more than indemnified for the insult given him because of his color by the sympathetic resentment of white members of his profession. Why will you keep agitating the nation in behalf of a few thousands, who are well able to maintain themselves, and neglect millions who require, as Mr. Tillinghast says, some heroic remedy for their salvation?

I shall now tell you the utter inadequacy of Hampton, Tuskegee, and the like, after which I shall consider what, in my judgment, is the only remedy.

The annual output, as we may call it, of all the negro educational institutions in the south is a mere drop in the bucket when compared with the enormous need. The latest reliable figures accessible to me are those of Booker Washington for 1897. They are as follows: 13,581 receiving industrial training, 2,108 collegiate education, 2,410 classical instruction, and 1,311 “taking the professional course,”^[193]—the last three aggregating 5,829. Suppose the entire 17,999 were following industrial courses, and that every one graduated with credit; and suppose there be added the work of the land companies providing homes and every other enterprise helping the negro in any way—suppose this output to be trebled annually from this time on (which is far above possibility for many years yet, to say nothing of probability), what would be its accomplishment? Why, no more than a slight shower in a few townships during the drought a few years ago would have done in preventing injury to the Kansas corn crop. When you attend, you understand that the great advantages of these excellent institutions are only for a few lucky negroes,—picked ones of the upper class,—and not for the millions whose crying need is for opportunity to earn honest daily bread and a really benevolent coercion to use the opportunity. The problem, what to do for this mass, cannot be solved by philippics against such things as *de facto* or constitutional disfranchisement of the blacks, lynching them, showing them disrespect in military parades, giving them Jim Crow cars, and not dividing the educational fund more liberally with them; nor would it contribute one jot or tittle towards its solution if every lady in America cordially received in her drawing-room the few negroes who have most deservedly won the respect of the nation. To solve this problem, something must be found which will train and elevate the average negro, while the exceptional one is at the industrial school or college, or studying for a profession; something which will check the prevalent reversion away from monogamic family life, and stimulate that life to develop steadily; something also which will impart to this entire mass permanent and strengthening impulse to better its condition. The only thing that can do this is to separate the negro as far as may be from the whites, give him his own State in our union, and constrain him there with vigilant kindness to subsist and govern himself in such ways as suit him. I have long thought that our negroes had far stronger claim upon the nation for land than the uncivilizable redskins on whom we have lavished so much expense in vain.

Righteousness demands that we give the former full opportunity to develop normally in self-government. Put him in a State of his own on our continent; provide irrepealably in the organic law that all land and public service franchises be common property; give no political rights therein to those of any other race than the African; compel nobody to settle in this State, but let every black reside in whatever part of the nation that pleases him; let this community while in a Territorial condition, and also for a reasonable time after it has been admitted as a State, be faithfully superintended by the nation in order that republican government be there preserved,—do these things, and there need be no fear that the examples of Hayti and San Domingo, which were not so superintended, will be repeated. Nearly all of the American Indians, because of rigid adherence to their old customs and ways, were crushed by Caucasian rule. But the negro, wherever he comes in contact with a superior, shows a pliancy, a self-adaptability to new circumstances, to which no parallel has ever been suggested, so far as I know. If civilized self-government will but kindly keep him a while at its labor school where he is to learn by doing, I am profoundly convinced that he will develop into the very best of citizens. And I am also just as profoundly convinced that if something like what I recommend is not done at a comparatively early day, after some while, as there are now in America a few prosperous Indians and in New Zealand a few prosperous Maoris, we will have here and there a few prosperous negroes; but the rest of them will either be confirmed degenerates, or have gone no one will know whither. And Booker Washington, the moral exemplar of the day, rivalling Horace's

"Iustum et tenacem propositi virum,"

as he resists the pernicious counsels of the overwhelming majority of negroes and keeps to the wise and right course which they passionately condemn; who is far more able and who has accomplished infinitely more of good than Toussaint or Douglass—he will be a great hero statesman of a great cause lost. The historian of the future that has something like Shakspeare's genius for contrast will make his glory and that of Calhoun magnify each other by comparison.

The foregoing as to a negro State, which is the result of years of observation and reflection, had all been written for some time when I fell in with the

address of Bishop Holsey, mentioned above. It is the proposition of the address that a part of the United States should be assigned to the negroes. I add an abstract from the synopsis of his views given in the address:

1. Negroes and whites “are so distinct and dissimilar in racial traits, instincts, and character, it is impossible for them to live together on equal terms of social and political relation, or on terms of equal citizenship.”
2. The general government only has power to settle the problem, and it ought to settle it.
3. Separation of the negroes and whites “is the most practicable, logical, and equitable solution of the problem.”
4. “Segregation and separation should be gradual ... and non-compulsory, so as not to injure ... labor, capital, and commerce ... where the negro is an important factor of production and consumption.”
5. The southern negroes should petition the president and congress “for suitable territory ... as ... equal citizens ... and not go out of their country to be exposed to doubtful experiment and foreign complications. Afro-Americans should remain in their own country, in the zone of greatness, and in the latitude of progress.”
6. The government should, in effecting segregation, maintain “civil order, peace, progress, and prosperity.”
7. The place for the negroes may be in the western public domain, such as a part of the Indian Territory, New Mexico, or elsewhere in the west.
8. No white person unless married to a negro, or a resident federal official, to be allowed citizenship in the negro State or Territory, but all citizens of the United States to be protected therein as in the other States.[\[194\]](#)
9. Only those of reputable character and some degree of education, and perhaps those possessed of a year’s support, to become citizens. Criminals and undesirable persons to be kept out.

It was gratification extreme to me to find a prominent negro so much in accord with my long-cherished project. I hope there is a determination of the mass of southern negroes thitherward, as seems to be indicated by the

activity both of Bishop Holsey and also by that of Bishop Turner. With nearly all of the negro writers and speakers now in the public eye upper-class sympathies are dominant. But Holsey, demanding a State in the union, and Turner, putting his whole soul into immigration to Liberia, are actuated by lower-class sympathies. The others just mentioned really advocate assimilation,—and at bottom, only the assimilation of the upper class,—but these two are of far different and higher ambition. They are patriotic, and as true to their race as that famous heathen who rejected christianity when told that it consigned his forefathers to perdition. He declared he would go to hell with his people and not to heaven without them. The others are representative of only some five per cent, these two represent the ninety-five per cent—the real negroes. I never took to Bishop Turner's proposal, for all of the ability with which he advocates it, because I want the negroes where our nation can foster and protect their State, it matters not what may be the resulting pains and expense. I highly approve the earnestness of Bishop Holsey in objecting to expatriation by the Afro-Americans.

Let our negroes have their own State. That will be the fit culmination which was foreshadowed in their deserting the galleries assigned them in our churches and flocking to their own churches, immediately upon emancipation, and their effecting soon afterwards the removal of their cabins from the old site. Their masses have ever since been inclining towards a community of their own by an internal impulsion in harmony with the external white expulsion. The impulsion and the expulsion are each, as it seems to me, manifestations of the same all-powerful cosmic force.

Further, I would say a negro State makes a precedent for the world federation. Each race that ought not to intermarry with others can flourish under its separate autonomy. Then loving brotherhood between white, yellow, red, and black people will bless all the earth. Whether the proneness of opposites to fancy each other, progressively going from the smaller to the greater differences, will ultimately compound a universal color, no man can now tell.

Of course some reader has exclaimed, "Your proposal is absurdly chimerical." Is it indeed chimerical to demand of the great republic that it do its very highest duty? Suppose an ignorant, neglected child taken home

by a rich man, taught to work, the world of industry, with all of its prizes, kept in his sight, until he begins to cherish the hope that some day he can have a happy fireside of his own; suppose further that just as he reaches the age of discretion the adopting father sets him where he may see the fair world plainer and long for it more than ever, but so completely strips him of all means and opportunity that there is nothing for the outcast but ignoble life and uncared-for death. How you would pity the outcast! how you would curse the false father! I cannot believe that the nation will prove such an unnatural parent to these its helpless and lovable children. It may be that some thousands of them, nay, some millions, may be left to perish in their dire constraint. But when the people fully understand, their consciences will awaken, and they will give the American negro a bright house-warming.

Suppose we do not give him his State, or suppose it will be long years before we give it to him, what do you say we are to do for him?

We must help Booker Washington and his co-laborers to the utmost. Grant that they can snatch only a few brands from the burning. Is it not most praiseworthy to save even one? Further, I can never abandon the hope that the nation will yet allot the negroes their State, even if to do it land must be condemned on a large scale. When that fair day does dawn on America, out of the scholars of these worthy teachers will come many a good shepherd for the blacks in their new land. This may now be but a glimmering of hope. All the good must join in effort to enlarge and brighten it.

We should not begrudge the higher education to the few in the upper class who can get it. The negroes need teachers, preachers, writers, and others of the learned occupations.

We should impartially equalize the negro population to the white in common school privileges. Both ought to have rational industrial training. The right primary education is just beginning to show itself. It will more and more recognize what a prominent factor the hand has been in evolution. Think of the superiority of animals with, to those without, hands. What a high brain the elephant has made for himself by exercising his single hand; the polar bear kills the seal by throwing a block of ice; the 'coon goes through his master's pockets for sweetmeats; the greater intelligence of the house-cat as compared with the average dog is due to long use of the

forepaws as rudimentary hands. Think of how we note humanity dawning in the monkey ever busy with his hands. Think of the importance of his hands to beginning man. With them he could gather fruits, rub fire-sticks together, make war-clubs, spears, fish-hooks, bow and arrows, bar up his cave door against beasts of prey, elevate his roosting place in a tree too high for night prowlers, and do all other vital things up the whole ascent to civilization. The steady enlargement of man's brain has been mainly because of his progressive use of his hands; for whenever a new thing was to be done his brain had first to acquire faculty of telling hands how to do it. To train the hands is the true way to develop brain power. The negroes in American slavery had risen far above the level of West African hand ability, and at emancipation they were prepared to go higher by leaps and bounds. Had they from that time steadily on been drafted off into their State, gradually, as Bishop Holsey suggests, and a tithe of the millions which have since been lavished in giving them premature literacy and smattering of learning been applied in teaching their children handicraft faculty and the best methods of labor, the promise for them now would be satisfactory to their dearest friends. Somebody wisely advises, Never do the second thing first. Those who took charge of the negro when he was freed tried to make him do the hundredth or thousandth thing first. Instead of patiently schooling him in handicraft and self-support until he was really ready to take part in his own self-government, they made the ignorant and inexperienced slave of yesterday a complete citizen, and plunged him up to his neck into politics and letters. What a baleful *hysteron proteron* was this. The looming greatness of Booker Washington is that he teaches by his actions that the seeming advance was in fact prodigious retrogression, and he strives with all his might to draw the negro backwards to his right beginning. Let us further his good work by incorporating the utmost practicable of his industrial training in our common school system for both whites and blacks. America has learned important military lessons from the redskin; and, as I am almost sure, she acted on his suggestion when she confederated the separate colonies. Let her now show similar good sense in permitting a negro to teach her the true system of education for the new times.[\[195\]](#)

Now as to lynching. It is entirely wrong to conceive of a popular outbreak against one who has outraged a sacred woman as lawless. It is the furthest possible from that, being prompted by the most righteous indignation. The

wretch has outlawed himself. Society can no more tolerate such an insult to its peace than it can permit a tiger to go at large. It is under no obligation to him whatever. It is the people dealing with him that should concern us. We ought to keep them from brutalizing themselves and their children. We must put down lynching with gentle firmness. The first thing to do is to shorten the "law's delay" as much as possible. After the State has made the enabling constitutional amendment, if such be necessary, let an act provide that whenever an alleged crime likely to excite popular violence has been committed the governor select a judge to try and finally dispose of the case, three days only, say, being allowed for motion for new trial or taking direct bill of exceptions; both the supreme court and the court below to proceed as fast as may be through all stages until acquittal or execution. Let the governor earnestly ask for some such measure, and let him also, after he gets it, impressively appeal to the people to assist in enforcing the law. With this preparation, more than ninety per cent of the whites will approve the most decided action of the military protecting prisoners, if that be necessary. Just at this time (September 27, 1904) there is a very decided manifestation of anti-lynching public opinion in the south. We should strike while the iron is hot, and bring it about that the law itself make quick riddance of the ravisher. It should be a spur to us that the party opposed in politics to the great majority of southerners finds much support and help from every lynching in this section. Why should we play into its hands?

The last thing that I have to say is that the south ought to invite immigrants only of white blood. We want no settlers from whose intermarriage mongrels would spring. All Europeans should receive welcome—the Germans perhaps the warmest. But in my judgment those that will most advantage us are the truckmen, growers of the smaller and larger fruits, grass, grain, and stock farmers, manufacturers, miners, builders, contractors, business men, and skilled laborers, of the north. It looks now as if the cotton mills of England as well as of the north would be profited by coming to us; and it also seems probable that there will be for many years so great a demand for our cotton that the worn-out soil of the older parts of the lower south must be restored to more than virgin richness by the method which Dr. Moore has patented and made a gift of to the nation, or some other intensive culture; and that there must be consequently great multiplication of southern mill-operatives and agricultural workers in the

near future. Recall what we have said in the last chapter as to the future promise of the section. Every day the south by disclosing some new opportunity cogently makes new invitation to immigrants. It is the interest as well as the duty of the nation to remove the great clog upon development of the south. That clog is the presence of some millions of unassimilable negroes in the section. It is also the best interest and the highest duty of the nation to segregate these negroes into a territory of their own. As Bishop Holsey says, and what I believe with my whole soul, “The union of the States will never be fully and perfectly recemented with tenacious integrity until black Ham and white Japheth dwell together in separate tents.”[\[196\]](#)

I must add an epilogue to these chapters on the race question as I did to that on Toombs.

Brothers and sisters of the north, you should learn why there is a solid south. There is but one cause. It is the menace to the whites from the political power given the negroes by the fifteenth amendment. There is nothing in your section—in its past or its present—from which I can illustrate to you the gravity of this menace to us. In not one of your States are there ignorant negroes in so great a number that, by combining with the debased whites, they can make for it such a constitution and laws and set up such authorities as they please. We, your brothers and sisters of the south, have lived under the rule of this foulest of coalitions. We know from actual experience how it plunders and preys upon honest workers, producers, and property owners; how it licenses and fosters crime. In my own State, from the first day that a governor, elected by fiat voters and ex-whites, as we called the latter, was inaugurated, until we virtually restored the supremacy of our race by carrying the three days’ election in December, 1870, fifty dollars would get a pardon for the greatest offence, and robberies, burglaries, horse-stealing, and the like each went free for a much smaller sum. Is it forgotten that the negro speaker was voted one thousand dollars by a South Carolina legislature, ostensibly as extra compensation for unusual services, but really of purpose to reimburse him for a bet lost upon a horse race? Why, the foremost of our people in virtue, wisdom, and patriotism were agreed that these sordid tyrannies should be subverted at

once and at any cost to ourselves. The emergency justified any practice, device, or stratagem at the polls by which we could defend our homes, families, and subsistence against assassins of the public peace, wholesale robbers of the people, and instigators and protectors of every crime. It justified the shotgun and six-shooter in politics just as legitimate war justifies the musket in the hands of the soldier. It called forth most righteously the Ku-Klux. That spontaneous resistance finds a close parallel in the battles of Lexington and Bunker Hill, fought before American independence was declared. But the Ku-Klux fought for something still dearer than the dear cause for which our forefathers bled in the two battles just mentioned. Had the latter failed in the war they had thus begun, their children and people would nevertheless have had such good government as England is now giving the defeated Boers; but had the southern whites failed in their defence, their land would have for long years been befouled like Hayti, and those who had not been slaughtered unspeakably degraded. I think that all our countrymen who so rightfully eulogize the heroes of Lexington and Bunker Hill should also learn to give the greater praise to the southern heroes whose indomitable spirit routed the madmen that, with all the power of the federal government in their hands, tried their best to give the section over to negro rulers. Brothers and sisters, "picture it, think of it," until you can fully understand that hour of our trial. All my northern acquaintances who have resided in the south for several years—they are many—come to look at the subject just as the natives do. A candid and honest settler from Vermont has told me how he was made to change his mind. Conversing with a southerner, he had reprehended the different ways in which the negro's ballot had been rendered nugatory. The other replied, "Suppose that there was an incursion of Indians given suffrage into your State in such a mass as to make them seventy-five per cent of all the voters, wouldn't you whites in some way manage either to outvote or outcount them!" The Vermonter answered in the affirmative. We had to deliver ourselves. We used the only means at our command.

It was not to be thought of that these negro governments be endured, even if tempered by the Ku-Klux, for government is in its nature lasting and permanent while the other was only temporary. They would have gradually gathered strength. Then there would have been rapid enrichment of a few exceptional negroes and rapid expulsion of the whites impoverished by

emancipation, from all their little that was left. And then, the leading negroes desiring nothing else so much, there would have come many white men and women, each one willing to climb out of the depths of want by intermarriage with a prosperous negro. Who can predict what would have been the future of mongrelism thus beginning? We of the south are most conscientiously solid against what we know from actual trial to be the worst and most corrupting of all government; and we are still more solid against everything that tends to promote amalgamation. Can you blame us for standing in serried phalanx by white domination and against the misrule exemplified in the early years of reconstruction, and for our own uncontaminated white blood and against fusion with the negro? We must be solid in the face of these dangers, and as long as they are threatened by the presence of millions of negroes in our midst. There is no other solidity in the south. In all matters of the locality republicans and democrats count alike. When one offers to vote in the primary, if his name is on the registry list, and he appears on inspection to be white, his vote is accepted; and he generally casts that vote, not for the interest of a political party, but for that of the public. The triumphant election in November, 1904, of independents or democrats, in four northern States which at the same time went for Mr. Roosevelt, indicates solidity for the true local welfare of the people as against the behests of party. So what the white primary has produced in the south, has commenced in the north. And the result in Missouri, voting for Roosevelt, republican, and Folk, democrat, shows that what we may call federal independentism has commenced in the south. This will spread as the people learn it does not hurt them to split their tickets while voting upon national questions, if they but maintain their solidity while voting upon State or municipal.

Now may I be allowed some decided words, most kindly and inoffensively spoken, as to appointing negroes to federal offices in the south. It is no sound argument for it that now and then some negro may have been appointed in a northern community which manifested no opposition. Consider the case of Mr. William H. Lewis, a negro lately made assistant district attorney in Boston by Mr. Roosevelt. He is a Harvard graduate, was captain of the Harvard eleven while in college, had represented Cambridge in the Massachusetts legislature, and the community was not at all averse to his appointment.^[197] Therefore when it was made there was no disregard of

the wishes and feelings of Boston and the regions adjoining. But when a negro is given office in the south, it is felt by all the community to be an insult. Would President Roosevelt cram the appointment of a white down the throats of a northern community in which all the best citizens protested against it? Would he not confess to himself that the wishes and feelings of these good people ought to be respected, even if he considered them foolish and unreasonable? It seems to me that he would, and that he would find for the place somebody else in his party acceptable to the locality. Why should he not do the like when his southern brothers and sisters who have such convincing reasons against the encouragement of negroes in their politics, protest unanimously against his filling an office in their midst with a negro? Will he snub them because a negro has more sacred right than a white? Is that what he means by keeping open the door of hope and opportunity? Or will he snub them because enough of punishment has not yet been given them, and because the south is still a province or dependency on which he is justified in quartering his partisans and pets without regard to the feelings and wishes of all the better inhabitants?

Brothers and sisters of the north, I cannot believe that any one of you who impartially considers the subject, would ever approve appointing even the most competent and deserving negro to a southern office in the teeth of universal objection by the whites of the community.

My last word is to implore every honest one in the country to lay aside all prejudice and master the southern situation before judging. Whoever does this, whoever will accurately place himself in the shoes of a good southern citizen, will, I most firmly believe, approve the attitude of the south, with his whole heart and soul.

APPENDIX

THE OLD AND NEW SOUTH, a Centennial article
for the International Review, afterwards
corrected and published separately. New
York: A. S. Barnes & Co. 1876.

The approach of the Centennial Celebration is not hailed in the south with the demonstrative joy of the north. It would be out of taste to expect that the former should appear to triumph greatly over the life of the nation preserved at the cost of her recent overthrow. Her late antagonist can rejoice in a vast and happy population, great material prosperity, and the fresh fame of a world-renowned success. It is meet, while remembering she has so lately saved the union by her stupendous armipotence, that the north should exult as a people never did before. The south has been made to feel the pangs of a sudden impoverishment and the incalculable discomfort of complete economical unsettlement; and she has not learned the new lessons which she must learn to become self-sustaining and progressive. But her earnest spirits, doing painfully the slow task of repairing lost fortunes; seeking after the system proper to succeed planting; striving to make their homes pleasant again and to give their children a fair hope in the land,—these intent workers, who are most of them scarred confederate veterans, even if they will not say it loudly, have come around to hold in steadfast faith that it is far better the Blue Cross fell, and the American union stands forever unchallengeable hereafter. And they have brought with them the great mass of their people. They cannot joy so happily as the north, but they have a warm welcome for the Great Commemoration. For they see that the evils which followed as the scourge of defeat are soon to pass away, while the fall of slavery and the failure of secession are to prove greater and greater blessings as years roll on.

And so the time has come for a southerner calmly to discuss the past, present, and future of the south. He has no use for the methods of popular and unscientific politics, wherein everything is blamed or applauded as being the result of party measures. The intentions and motives of the actors, on both sides of the late strife, will give but proximate explanations. How the two sections became, to use the fine phrase of Von Holst, economically contrasted; how the southern people and their representative politicians were bred, under their circumstances, into opposition to the union; and how

the northern people and their representative politicians were bred, under widely different circumstances, into love of the union; how the long clashing in politics culminated in civil war; how the south was utterly crushed and her whole industrial system destroyed; how she slowly re-erects herself into a new condition better than the old,—the ultimate solution of these questions can only be found by discussing them in the light of those laws of development which give every community a policy suited to what it discerns to be its best interest. These laws are of far more importance than the politician, who is but their creature. Leaving to others to fight over the old struggles of the political arena and bandy hard words with one another, we will try to discuss our subject in the manner we have indicated to be appropriate.

To understand the present and future, we must first understand the past. To understand the New south, we must first understand the Old south, the distinguishing feature of which was negro slavery. Mr. Stephens, then Vice-President of the southern confederacy, in an address to a large assembly in Savannah, in March, 1861, said of the new government: “Its foundations are laid, its corner-stone rests, upon the great truth, that the negro is not equal to the white man; that slavery—subordination to the superior race—is his natural and normal condition.” There is no doubt slavery was the corner-stone of southern society; and when it was removed, four years later, a thorough disintegration of the whole fabric was the logical result.

When our country was first settled, the southern regions were far more attractive in soil and climate; and their other natural resources—minerals, good harbors, navigable streams, water-power idling everywhere, to mention no more—were equal to those of the other section. The subsequent advancement of the north has been so rapid as to excite the wonder of the world; while it is said by us of the south, jesting upon our worn-out and exhausted land, that we have done worse for the country than the Indians before us, who stayed here many centuries and yet left the soil as good as they found it.

The plantation system was the great barrier to southern progress. From its first historical appearance, among the Carthaginians, from whom the Romans seem to have derived it, this rude and wholesale method of farming has rested on slaveholding. Its workings have been similar everywhere. In

Italy, under the Roman republic, absorbing the petty holdings, it drove out the small farmer; it destroyed the former respect for trades and handicrafts, and brought them into disfavor; it prevented the development of the industrial arts; it created a non-reciprocal commerce. Centuries later, it did the same things in our southern States.

A sketch of the leading features and results of the plantation system, as it existed in America, is our proper beginning.

The driver, as the negro foreman was called, was not very common in the south, and was generally under the superintendence of the overseer. Could the planters have made a good overseer of the driver, of course they would have consulted their interest, and reproduced the ancient slave-steward of Rome. Slaveholders keep their slaves under careful surveillance, but they do not usually overlook them in person. It is not often that a master engages in an employment which brings him into daily and intimate contact with the lowest orders, and which he instinctively feels to be degrading. The planter could have neither his first choice, which would have been a slave overseer, nor his second choice, a superintendent from his own rank in society; and so, as the next best thing, he took as overseer a white hireling from the non-slaveholding class. The tillage of the fields was thus intrusted to the overseers, who were, for the most part, men of little education and business skill, and who had no interest in their employment except to draw its wages. Thus the foremost, if not the only, southern industry was managed by incompetent and careless agents.

The Roman master, in the later days of the republic, having always vast markets open to him, shunned the expense of providing for women and children, and bought new slaves instead of breeding them; but the closing of the African slave-trade, and the softer hearts and manners of modern times, led our planters, at last, to rely on propagation as their only source of supply. The negroes were, therefore, well cared for, and, in a genial clime, increased rapidly. This increase, however, did not keep pace with the increasing demand for southern products, and so the market value of the slave rose rapidly. To the Roman slaveholder, land was almost everything, and his rustic slaves nothing; to the southerner, the slaves were almost everything, and the land nothing. There was no careful cultivation of the soil, no judicious rotation of crops, and no adequate system of fertilization.

Southern husbandry was, for the most part, a reckless pillage of the bounty of nature. The planter became possessed with a roving spirit, and was continually seeking "fresh land," as virgin soil was termed. In the older sections, where there was most stability, the best farming consisted in judiciously eking out the natural fertility of the fields, and when that was exhausted, in leaving them to recuperate by years of rest. Thus a given working force required, year by year, a greater and greater allowance of land, and the plantations became steadily larger, the small farmer retiring, and the white population becoming continually less. Many of these older sections turned, from being agricultural communities, into nurseries, rearing slaves for the younger States where virgin soil was abundant. The fertile lands of the new settlements, by yielding bountiful crops, gave fresh impulse to the plantation system, and here the small holdings were absorbed more rapidly than they had been in the older States. The southern slaves, regarded as property, were the most desirable investment open to the generality of people that has ever been known. They were patient, tractable, and submissive, and never revolted in combined insurrections, as did the slaves of antiquity. Their labor was richly remunerative; their market value was constantly rising; they were everywhere more easily convertible into money than the best securities; and their natural increase was so rapid that a part of it could be squandered by a shiftless owner every year to make both ends meet, and he still be left enough of accumulation to enrich him steadily. And so the plantation, or rather the slave, system swallowed up everything else.

There were no distinct industrial classes. There were negro blacksmiths, negro carpenters, negro shoemakers, etc., all over the land, but they were mere appendages to the plantations, and far inferior in capacity and skill to the artisan slaves of antiquity.

The commerce of the south was non-reciprocal. She traded raw produce for manufactures which she should have made herself, or which she should have got in exchange for manufactures of her own. The over-mastering energy of slave property, dissolving, as it were, all things into itself, kept her from that development of trades, manufactories, and industrial arts which is the solid and unprecedented progress, and far more durable wealth, of the north.

There were a few exceptions in the way of restorative agriculture, and of diversified investments of capital in railways, manufactories, inland navigation, and mercantile enterprises. All along the northern border there were efforts to let go slavery, and non-slave industry was slowly emerging in a few places; but these things were as dust in the balances. The slave system was rooted in the best portions of the land, and nearly all of the productive wealth of the south was in, or dependent upon, planting. Implacable enemies of slavery were rapidly increasing in numbers and power, but she continued blindly sacrificing everything to rear negroes. When actual emancipation came—that nipping May frost—the south showed, on a gigantic scale, in her poverty and one solitary and portentously dried-up source of wealth, a parallel to Ireland, smitten with famine by the sudden failure of her only supply of food. When the charity of the world and the returning bounty of nature had again fed the Green Isle, everything fell back into the old track, and she could go on smoothly as before. But not so with the south: her wealth has fled; her occupation, the plantation system, is gone; and she must, for a generation, grope painfully in the dark, trying novel ways of subsisting, enduring want and many failures, before finding again the light of plenty and comfort.

The duties of the planter have changed. The management of a farm is not like that of a plantation, and one skilled in the management of slaves is not necessarily efficient in the directing of freedmen. Many other countries have been impoverished by wars; but is not this instantaneous and almost complete taking away of a great people's mode of living unique in history? The most resolute secessionist would have lost heart and put up his sword, could he have seen, before the war commenced, how easily the solitary prop of southern wealth and comfort could be overturned, to be set up no more. But in none of the ablest of the anti-secession arguments of 1860 were the consequences of defeat predicted.

Some portions of our country have been built up into a high degree of prosperity by a steady influx of foreign settlers. How much has been added to the power and wealth of the northern States by the immigration from the old lands of those who, when first they come, can do no more than subsist themselves by their own industry, almost defies computation. How the force of the preponderant population of the north pressed upon the south during

the war, and at last crushed her down! Slavery repelled the free immigrant from the south, and he went elsewhere with his power to enrich and defend.

The uniform and rapid advancement of civilization is mainly due to the struggle of the poor to better their condition. These efforts result in complex division of labor, accumulation of wealth, and better than these, in the production of a great population engaged in diversified industries. In such a population, improving year by year in business habits, consists the strength of a nation. The slave had no hope of rising, and the system of which he was a part repelled free workingmen, and thus the south lost the benign emulation and energy of a lower class. The ancient slaves were not alone rural laborers and domestic servants, as were those of the south. The former, being of kindred blood with their masters and near their level in natural capacity, were initiated in the various industries, some of which flourished greatly under their management. Though the slaves of old were very degraded, they were not as low and grovelling as those of our day. Enfranchisement was common; and, in a few generations afterwards, the descendants of the freedman were indistinguishable amid the body of free citizens. The ancient states were not, therefore, prevented by slavery from having advanced and diversified industries, nor were they denied the impulse of a possible rising from the lower to the higher classes. But the American slave was of the remotest race, far below his master in development, and the horror of receiving him into the body of free citizens grew continually stronger. The law discouraged manumission, and frowned upon the increase of freedmen. Thus, the African slavery of the south was the most hopeless form of servitude the civilized world has ever seen; and, by preventing the formation of a great class of freemen, engaged in respectable industry, it killed the very roots of social progress. These influences of slavery, so repugnant to American ideas, will be more vividly seen and understood in the answer to the question, What would have been the present condition of the south had it not been for slavery? Undoubtedly her land would have smiled with a fertility richer than the endowment of nature; her industrial arts would, ere this time, have branched out into multifarious activity; her own ships would have been carrying her produce and manufactures abroad; and, as the crown of all, she would have had a teeming population of workers, whose education in the methods of self-support would have been the assurance of unlimited future advancement. In

brief, in all the elements of the greatness of a community, the south might now have equalled, if not excelled, the north.

But there are some other effects of slavery to be noted before the outline of the Old south can be clearly and fully drawn.

Among the planters, costly and liberal instruction was given to a few of those who were to adorn places of leisured ease, or to fill the necessary professions and public positions; but, in the midst of the sparse and shifting rural population, there could not be that devotion to the education of all, which is one of the most conspicuous glories of the northern States.

In consequence of the sparseness of the planters and their roving habits, there was not that subdivision of different portions of the counties into small self-governing wards, which Jefferson so fondly desired. He said of the New England townships, that they had “proved themselves the wisest invention ever devised by the wit of man for the perfect exercise of self-government, and for its preservation.” He also said that he considered the continuance of republican government as absolutely hanging on two hooks, to wit, “the public education, and the subdivision into wards.” This government of every vicinage in its home affairs by itself, as originated in New England, and is now spread far and wide throughout the northern States, is the most beneficent achievement of American democracy. By this coercion of the citizen to participate in the constant administration of public matters directly concerning his interests, self-government becomes, as it should be, the business of everybody, and everybody is compulsorily educated in the best of all learning for the race.

The finale of slavery remains to be told. As opposition to it increased from without, the south became more and more closely united. She honestly believed that wanton intermeddlers were attacking her dearest rights. The steady and continually strengthening warfare against slavery, and her continuous and earnest defence of it, began—it is impossible to determine precisely when—to knit her into a nationality of her own. He who understands what Mr. Bagehot calls “nation-making” will discover, in the past history of the south, if he looks attentively, many signs of this tendency, which steadily progressed unperceived on her part, and still more so on the part of the north, until the south began to coalesce into a nation as

compact as her scattered and random elements would permit. The long advocacy and support of slavery in the political arena had fevered her whole people, and finally, under these promptings to a national life, politics absorbed nearly all of her intellectual powers.

There is a striking parallel between this sustained effort of the south and the struggle of Ireland, when the latter, for the fifty years ending with the advent of the present century, was arrayed against the British, in their encroachments upon her independent government. During this half-century, Ireland maintained that she was an independent integral part of the British Empire, just as Virginia contended that she was a sovereign in the federation of States. Ireland, like a southern State, challenged every seeming interference, by the general government, in her local affairs; and the claims put forth, in each instance, were inexorably contested by an adverse government, claiming supremacy and supported by superiority of power. Both were on the eve of revolutionary secession without knowing it. The results in Ireland and the south were similar: there was but one intellectual activity, namely, politics. The memory of all Irishmen of that time not forgotten—and many of their names are familiar words—is nothing but resistance to English aggression. Even Curran, Ireland's great forensic advocate, made his world-wide fame in defending Irishmen against the prosecutions of the British ministry. It was much the same at the south in the period antecedent to the civil war. She had neither literature nor science; but she had statesmen and advocates, who will be remembered as long as her soldiers and generals.

The national germ had long been growing below the surface, in darkness, and at last it burst into view, and shot up into a body of amazing proportions. There was not the birth of a new nation at Montgomery in 1861; only the majority of this vigorous young member of the family of nations was there proclaimed. But, for all of the eloquence of its orators and the virtue and bravery of its people, it was, as compared with its adversary, in raw and untutored nonage, and the great disaster that befell four years afterwards was then preordained. It was her unshunnable fate that she should be denationalized on the battle-field.

The late war was a conflict between implacable enemies. Each belligerent, standing up for national life, was resistlessly coerced to fight to the last.

Neither can be blamed. The past may be taxed with lack of wisdom. It may be that as Scotland and, more lately, Ireland have been peacefully denationalized, a preventive, anticipating the dreadful event of war, might years before have been devised by statesmanly forecast. The actual combatants—the southerner fighting for the confederacy, and the northern soldier bearing up the flag of the union—were equals in manhood and virtue. The survivors, federal and confederate, at last see this, and therefore they go in company to decorate alike the graves of the dead of both armies.

The cause of all these evils—the backwardness and stationariness of the south; a wasteful husbandry, without other industries; the instability of her wealth; her want of a great class of freemen engaged in the different arts; her barbarically simple social structure; her neglect of common schools; the absorption of all her intellectual energies in feverish and revolutionary politics; and, finally, secession and the reddened ground of a thousand battle-fields—was slavery. It is gone. The malignant cancer, involving, as it seemed, every vital and menacing hideous and loathsome death, was plucked out by the roots; and after a ten years' struggle of nature, we see the body politic slowly but surely reviving to a health and soundness never known before.

Here we find the dividing line between the Old and the New south. The former ended, and the latter began, with the giving of freedom to the negroes—an event which will prove in the future to have been an emancipation even more beneficial to master than to slave. Immunity from all the evils of slavery which we have catalogued will distinguish the New south from the Old.[\[198\]](#)

The sudden impoverishment of the southern people, and the unlooked-for change in their ways of living and thinking, had they occurred in the most peaceful times, and been followed with the best of government, would have produced a profound shock and a long paralysis. But the bitterness of subjugation, and the mistake of needlessly offensive and goading government, with harsh reconstructive measures, have prolonged the lethargy. And yet the American union shows benignly in the present condition and promised future of the section. The ten years since emancipation are instructive. Slowly has the New south been disentangling herself from the débris of the Old, and she has emerged far enough to

enable us to perceive that a better era has commenced. Much has been lost, but more has been saved. All the germs of true wealth and power and the solid well-being of a community have survived; and solace for the past and earnest of a great future may be found in the fact that she has reached at last, and for the first time, a position in which she can develop these elements, free from the suffocating hindrances of former days. We may now properly inquire, What of the past does the south retain, and in what will consist her future progress?

She retains her genial climate, her kindly soil, and her many natural resources. If the peace of the American union is assured, as everything now graciously promises, these natural advantages will, in a few generations, far more than compensate for all her losses, and ultimately place her in the very van of progress.

The best inheritance of the New from the Old south is the southern people. We have seen how slavery checked industrial development, and how many of its other effects were hurtful. After allowing fully for all these, there will be found a great residuum of progressive energy, of intellectual strength, and of moral worth in the people of the southern States. They need not fear a comparison, in these respects, with the most enlightened communities. Great men, like Washington, Jefferson, Calhoun, Jackson, and Lee; political and military heroes, judges, lawyers, and orators, such as the south has given birth to, in unbroken succession,—are the unmistakable signs of a great people.

The rank and file of the confederate armies have given proof that the men of the south must be classed, in all the elements of complete character, with the best that the world has ever seen. Crime was so infrequent that a single morning of the term of a rural court, before the war, nearly always sufficed to dispose of every indictment; there was little want or pauperism; virtue was everywhere the rule in private life, and there was seldom even the suspicion of corruption in government or the administration of justice. The history of this people since the war shows that they are possessed of the best Anglo-Saxon mettle. They are slowly beginning to thrive wherever they have been left to govern themselves, in spite of the complete industrial revolution, the loss of property, and change of occupation, of which we have written. And in many places, where reconstruction has been harshest,

and negro misrule yet prevails, the whites have developed an unlooked-for self-maintaining capacity, and have demonstrated that even there must be the eventual predominance of intelligence and virtue, should “natural selection” alone work to secure it.

The southern people have learned much wisdom in the last ten years. Their heavy vote in 1872 for Horace Greeley—a man to whom a foreigner would have supposed them unappeasably hostile—if there was nothing else, would alone suffice to show that they are rapidly laying aside all hindrances to progress. And now that slavery is gone and she has so quickly conquered the animosities of the war, the south may be likened to a capable and energetic young man, who, having failed, as the result of inevitable misfortune, in a wrongly-chosen business, has been relieved of all embarrassments and has entered upon his proper calling. More may reasonably be expected of such a man than of one more prosperous who has not had the like discipline.

As her nationalizing tendency has been destroyed by the removal of slavery, and as her future must necessarily be shaped by union influences, she will heartily embrace the political creed of the union. The doctrine of the sovereignty of the States, which was advocated with very great ability by many of the southern statesmen—notably by Calhoun, in his speeches in congress, and in his “Discourse on the Constitution of the United States,” and with still more taking effect by Mr. Stephens in his “Constitutional View of the War between the States,”—has now no disciples at the south. General Logan gave expression to the prevailing creed of the present, when he said, at a recent reunion of former confederate companions:

“In considering, then, the future of the south, there is one fact suggested at the outset which has been demonstrated to us by the logic of events. It is, that under the operation of causes, which, although unseen at the time, appear now to have been inevitable in their results, a vast *social organism* has been developed, and is now so far advanced in its growth as a *national body politic*, and no longer a mere aggregation of States, that *unity* is a necessity of its further development. In reviewing the past, we can now clearly see that this national organism has been *gradually developed*; and, while many seek

by various theories to account for the failure of the confederacy, the result may be regarded as the necessary consequence of those laws of development under which this social organism—the United States—was being evolved.”

And the south is pleased to observe that there are no genuine signs of too much centralization. On the contrary, the town system is destined to spread fast and far; and the increase of local option laws; the splitting of larger into smaller counties; the strengthening tendency to submit constitutions and many legislative acts to voters; the greater disposition often to amend the State constitutions in the interests of progress; the vigorous growth in each State of its own body of laws; the rapid multiplication of towns and cities, with governments peculiar to each, are some of the many convincing proofs that local self-government is increasing and flourishing. Of the last particular Judge Dillon says:

“We have popularized and made use of municipal institutions to such an extent as to constitute one of the most striking features of our government. It owes to them, indeed, in a great degree, its decentralized character. When the English Municipal Corporations Reform Act of 1835, was passed, there were, in England and Wales, excluding London, only two hundred and forty-six places exercising municipal functions; and their aggregate population did not exceed two millions of people. In this country, our municipal corporations are numbered by thousands, and the inhabitants subjected to their rule, by millions.”

Reflecting southerners see, in the present condition of the southern States, the very strongest possible guaranty that the true balance between national cohesion and local freedom is to be preserved. They see that the happy equilibrium is of a character so permanent and stable as to have survived the convulsion of civil war. The southern States are not held as conquered provinces. On the contrary, aside from the abolition of slavery and the fundamental legislation securing to the old slaves the full fruition of their freedom, there has been no perceptible change in the relations of these States to the United States.

Surely, to the student of history, wherein *vae victis!* is written on every page, this fact has wonderful significance. It recommends the American form of government to the rest of the world as the incoming of the new stage of civilization, wherein oppression and war shall become unknown. However long contending armies may devour populations and paralyze industry elsewhere, we are assured that war-sick America will fight with herself no more. This assurance repays the south a thousand fold for all that she has lost and endured.

The great economical interest of the south is her agriculture; and in this industry, as well as among those who conduct it, a constant transition has been taking place during the ten years since emancipation. There is a melancholy change in the homes of landholders from the ease and comfort of *ante bellum* days. The neat inclosures have fallen; the pleasant grounds and the flower-gardens, once so trim and flourishing, are a waste; all the old smiles and adornments are gone. Change at home is accompanied by still greater change without. The negroes—and they constitute the great bulk of the laboring population—tend to become a tenantry, cultivating the land, in some instances, for a part of the produce, but oftener for a fixed sum of money. Many of these realize from their labors little more than enough to pay a moderate rent. Others work for wages, either in money or in some portion of the crop made by their labor. As the negroes are scarce, and their labor so important, they have often, directly or indirectly, a voice in the area of land cultivated, the mode of cultivation, and the kind of crop raised. The result, in many places, is retrogression. The face of the country is much altered. Only a small part of the land, as compared with that tilled before the war, is under cultivation, the remainder becomes wild. Could the fallen confederates return they would not in many places recognize their old homes. Nearly every man of average business ability could control his slaves, before the war, with little trouble; but it now requires far more than ordinary capacity to find and keep good tenants, to employ laborers amid the present scarcity, and to retain and make them remunerative when employed. The freedman is a different character from his former slave self, and is to be governed by different methods; and the true art of managing him is cabalism to many who were prosperous planters before the war. Multitudes of these show great despondency, for there have been thousands of failures among them.

But when we examine into this depression, we find that it is but the result of the transition from the former *régime*, and not a deep-seated and fatal decay of the vitals. These are some of the symptoms of assured recovery, noted within the last three or four years: a steady contraction of credit, and widening prevalency of the cash system; growing conviction that the whites must depend upon their own labor more, and less on that of the negroes; augmenting number of land-owners who decline to secure the merchants advancing supplies to their tenants and laborers; a greater acreage devoted to food crops; general advocacy of diversified planting; spreading dissatisfaction with the laws giving large exemptions to debtors. Southern economical affairs, in their sinking, “touched bottom” (to use the forcible expression now in vogue) about the end of 1874.^[199] There has been a probable increase since of the mass of distress, as the heat of a summer day increases, by accumulation, for a while after noon, though the sun is imparting less and less. Steady amelioration will soon be general. A new system is slowly developing, and can be plainly discerned among the rubbish of the old. The change from former days most noticeable now is the multiplication, increased energy, and continually, growing trade of the smaller towns. This is due to the decay of planting, which was a wholesale system, and the coming-in of farming, which is a small trading system using much less concentrated capital. The large moneyed man, for evident economical reasons, buys in commercial centres—in cities—but the small purchaser must needs buy in the nearest market. Allowing for the great increase of farmers, and the control by the negroes of their earnings, there are many thousands more of small buyers in the south than there were before the war, and towns build up to sell to them.

There is another fact, not so noticeable as the rapidly growing local trade, but still more important. A class of new planters, consisting mainly of men too young to have become fixed in the methods and habits of former days, is springing up. They are new yet; but there is, in many parts of the south, at least one who is teaching many watching idlers by deeds and silence. They have remodelled their domestic economy, accommodating it to their smaller incomes and to the uncertainty of household help. They have discarded the outside kitchen, have substituted the cooking stove for the old voracious fireplace, and have brought the well with a pump in it, instead of the old windlass and bucket, under the roof of the dwelling, so that the household

duties may be more easily despatched by their wives and children. And they have also remodelled their planting. They diversify their crops and products, raising more grain, and introducing clover and new forage plants. Some abandon entirely the cultivation of the old slave crops, and supply the nearest towns with feed and provisions. These planters of the New south till less land, and strive to improve it; they study the superiority and economy of machinery; they provide themselves with better cotton-gins, often using steam to work them; they have presses which require fewer hands than the old packing-screw; better plows are used; and harrows, reapers, and mowers, which, in many parts of the south, were seldom known before the war, are now common. This little band keeps pace with agricultural progress, as recorded in the journals; they seek for and find many new sources of profit; they prepare the people for laws fostering the interest of the planter in many particulars; they mold the opinion of their neighborhood; and their ability, skill, and wealth slowly increase. They struggle with a new order of things, having to think for themselves at every turn, and often misstep and fall in the dark, but they pick themselves up, and find the way again. The light of the new experience which they are kindling grows brighter each year, and is beginning to draw some of their neighbors to travel in it.

It is not our object to give a false impression of the influence of the class of farmers last referred to. They are but few, and their efforts are but the beginnings of the happy coming change. Their courage, power, and numbers are manifestly on the increase; and, as there is no other progressive activity in agriculture, and they meet no opposition save the passive resistance of despondency and inaction, it is almost certain that they will lay deep and sure the foundations of the needed renovation of the south. It is their belief that, to make agriculture generally prosperous, and to school the people to habits of thrift and saving, are the first steps, and that manufactories and trades and heterogeneous industries will naturally follow.

They desire northern settlers, to add useful features to agricultural economy, and diversify planting. A few have come, and they are prospering. It seems rational to expect a steady influx of these for many years, bringing capital and methods better suited to the needs of the changed times, raising the value of landed property out of its impeding prostration, and strengthening the industrial force. The climate; the abundance of cheap, cleared land; the

long settlement having demonstrated the country to be healthy; the fact that plowing and other important outdoor work can be done on the farms all the winter round; the many railways, the multiplying towns and growing cities; the variety of products, and easy access to market—now that slavery and the animosity of war are gone, and the misrule of the carpetbagger has ended nearly everywhere—these, and many other advantages daily disclosing themselves, excel most of the new States and the Territories in offering inducements to immigrants; and, in due course of time, a vast number of settlers, both American and foreign, will be added to the population. There are many indications that the immigration of stock-raisers, wool-growers, market-gardeners, orchardists, beekeepers, in fine, small farmers of every kind, adapted to the soil and climate, will soon begin in earnest. When it does, the rebuilding of the south will be rapid.

The coming-in of northern capitalists, to invest in railways, mines, manufactories, and other large moneyed enterprises—most especially to develop the great resources of water-power—may be expected to begin at once, and considerably, upon the close of the centennial year. It seems now that this is the most powerful agency that may be expected to begin immediate work, in introducing the much-needed higher type of industrial organization.

The feelings of the two races toward each other were, for a few years after the war, bitterly hostile. The whites had, all their lives, seen the negroes in slavery, and from their infancy they had heard their preachers defend slavery, not in the abstract, as their phrase was, but in the concrete. The “concrete” meant African slavery, which was justified on the ground that the African was divinely intended in his nature for slavery, which was to him christianization and civilization, so long as he remained a slave; while, the moment he was set free, he would revert to his primitive barbarism. When these God-given slaves were suddenly cut loose from mastership, and the wealth of the capitalist, the portion of the orphan, and the mite of the widow were swept away at once by emancipation, either directly or as a necessary consequence, there was a great shock given to the whites. But when, three years afterwards, a new constituency was created, in which the slaves, just emancipated, outnumbered the whites, in many counties, the storm of passion that burst forth can hardly be described. The whites feared that the old relation was about to be inverted, and that they would be made

slaves to the negroes. There was many a deed of violence, and many a poor negro paid his life for a few offensive words.

But a wonderful change has taken place. When the southern States were “reconstructed,” as it is termed, in 1868, a negro school-keeper or preacher, if known to be a republican in politics—as he generally was—was hardly safe anywhere beyond the limits of a city. The negro schools were often broken up by mobs, and sometimes black congregations were attacked at night in their churches and dispersed by armed whites in disguise. Now, the colored children troop securely to school, and the colored churches and their congregations are sternly protected by law everywhere. Seven years ago a colored person could hardly get justice, in even the plainest case, from a jury of the other race. Now, in all of the courts, he has the influence of white men to aid him, and rarely is an unjust verdict rendered against him. He makes better friends of the whites. There is no need for him to legislate or hold office over them; he cannot yet do these things right for himself. He rises, however, and his importance is felt more and more. His labor is a necessity. Learning to use it aright, he will surely win all that he deserves. The healthful sentiment prevails everywhere, at the north as at the south, and with the late slave also, that to force his growth is as unfortunate to him as is misjudged parental assistance, which often keeps adult children from ever becoming self-reliant. The colored race in the south must be educated by the struggle for existence into self-maintenance. This training, like the material recuperation of the south, will require time, with patience and hopefulness.

The negro tends resistlessly to a fixed position in his own class. He does not wish to ride in the same railway-car with fine ladies and gentlemen, nor could you persuade him to send his children to a mixed school to be teased by white scholars. He will not be legislated out of his natural circle, where he feels comfortable, into one where he will be ill at ease. He seeks for himself a separate home, school, church, and occupation, in all of which he can, at a distance, imitate the white, to whom he is ever looking up. The statute books may be covered with laws having a different purpose, but they will be as powerless to check the current of separation as prescribed rates of interest are impotent to keep down usury when money is dear. In a domestic world, a company and circle of his own, the negro will make a start for himself.

But the negro is grossly misunderstood. It is too generally forgotten that he is many centuries below the white in evolution. Slavery has elevated him far above the savagery of Africa, and introduced him to perhaps his only chance of civilization.

His future in the south is a mystery. Many of his best friends do not believe that he can hold all the great advantages that he has gained in the last ten years. The whites have been muzzled by hostile government. They were stunned, while the negro was stimulated, by emancipation. Their natural effort to hold on to the *ante bellum* system has also helped the old slave. But, when small and diversified farming is fully developed, and accumulating capital brings in the higher industries, there may be a general need for more efficient and skilled labor than the average negro can supply. While he is forever safe politically against the white, he may not be economically safe.

In noticing the leading features of the New south, we have merely hinted at her rich natural endowments. We have deemed of more importance the character of her people, the new views and principles beginning to assert themselves, the great economical changes following and to follow the abolition of slavery, and the potent effects soon to be wrought by copious immigration. For upon these the future mainly depends.

The south is in a thorough and long transition. Her fields are to be made fertile and to smile beautifully with an infinite variety of products; her provisional labor is to be gradually supplanted by a permanent system; industries, trades, and manufactories are to be founded and everywhere multiplied; she is to have local organizations which will foster more of self-government; her common schools are to be reconstituted and rendered truly serviceable to all; and she has also her part to do in literature, science, and art, as well as in domestic and national politics. We must not be oversanguine in hope of her immediate progress; but we can certainly take courage, when we find that every one who perceptibly influences society by precept or by example—whether he be prominent like Gordon or Lamar, or only a humble planter leading the fore-row in his fields—is seeking for and finding the right path. These leaders must, in the nature of things, have a larger following every year. In due time, their children and their children's

children will make the south of a piece with the more prosperous portions of our country.

[I intended to incorporate in the foregoing these two passages, but by some inadvertence they were not printed in their several places:

I said of Von Holst:

“Though he does not equal Mommsen’s vivid delineation of the effects of Roman slavery, his work is in grateful contrast with most of the anti- and pro-slavery literature of America, by reason of his freedom from ethical declamation, and his presentation of the real evils of slavery, in the light of social, and especially economical, laws.”

I also said of the negro:

“His flexibility; his receptivity to civilization, so different from the inveterate repugnance of the Indian; his satisfaction and almost complete freedom from discontent, insuring him against any violent change; the probably long necessity for his labor; are all great things in his favor.”]

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[To decide what is the right handle to a passage not pointed to by a chapter title, and place it in an index where an average reader will expect it, is often very hard. An alphabetical list of proper names and rememberable words that are in or near passages which one may wish to look for is much more easy to make than a minute subject-index, and it supplies much surer clues. What an *Index Nominum* does for the Latin or Greek scholar suggests the serviceableness of this Index.]

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A PLAIN, connected, carefully prepared narrative of the actual and proved dealings of the United States government with the subdued Indian—the Reservation Indian. The author's account of governmental oppression and ill-faith, and of successive removals of the Indians from their homes to regions unattractive to white settlers, and of the confiscation of Indian property, are supported by extracts from official records. After chapters describing the experience of the Umatillas (with whom the government

held to its treaty), the Flathead Indians of the Bitter Root, the Nez Perces, the Poncas, and the Mission Indians, comes an important chapter on “Dividing the Spoils,” with a graphic and moving description of the scenes at the opening of the Cherokee Strip, drawn from the author’s personal experiences. A chapter is devoted to an exposure of the Rosebud Reservation bill,—the latest example of governmental confiscation,—while the final chapter gives an original and convincing explanation of the remarkable persistence of vicious influences in our Indian system, in the face of the equally persistent desire of the American people to grant the Indian fair play. Helen Jackson’s “A Century of Dishonor” has received a valuable companion work in the present book.

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Footnotes:

[1] “Where Black Rules White,” article by Hugo Erichsen, in *The Pilgrim* for July, 1905.

[2] De Officiis, 1, § 89.

[3] Memoir of Jefferson Davis, vol. i. 579-583.

[4] Gettysburg, 164, 165.

- [5] Quoted by himself in his Charleston speech, mentioned later on.
- [6] Speech at the banquet of the New England Society of Charleston, S. C.
- [7] A Literary History of America, 345.
- [8] *Id.* 346.
- [9] *Id.* 489.
- [10] A Literary History of America, 494, 495.
- [11] Major Joseph B. Cumming, speaking to the toast, “New Ideas, New Departures, New South,” at fourteenth annual dinner of New England Society of Charleston, S. C., December 22, 1893.
- [12] See Cobb, Slavery, xcvi, xcvi, for relevant citations. Chaps. V. and VI. of the Historical Sketch, the former entitled “Slavery in Greece,” and the latter, “Slavery among the Romans” (pp. lix-xcvi), are very readable, learned, and adequate treatments of their respective subjects.
- [13] Cobb, Slavery, cxii.
- [14] *Id.*
- [15] Aristotle maintained the justice of wars undertaken to procure slaves. See Cobb, Slavery, xii, foot-note 3, for references.
- [16] “Pliny compares them to the drones among the bees, to be forced to labor, even as the drones are compelled.” *Id.* xcvi.
- [17] In his chapter entitled “Slavery among the Jews” Mr. Cobb cites most of the important passages. *Id.* xxxviii sq.
- [18] Twenty Years in Congress, vol. i. I.
- [19] 1, 2, 2.
- [20] *Id.* 1, 3, 1-2.
- [21] Dig. 1, 1, 4, where, in an excerpt from Ulpian, it is said that all human beings are *jure naturali* (that is, by the law of nature) born free.

We of to-day must not regard the last three passages cited from the *Corpus Juris Civilis* as particularly reprehending the property of the master in his slave. Cicero asserts that there is no private property whatever according to the law of nature; that according to that law all things are common property. He details some of the ways by which private appropriation is made, such as long holding, entry into vacant lands, capture in war, acquisition by contract, etc. According to this, a prisoner of war stood on the same footing as a horse captured from the enemy. By the law of nature there could be private property in neither. But this law of nature was really repealed by the *jus gentium*, under which both horse and prisoner alike became private property. If another took either the horse or slave away from the owner, he would—to use Cicero's language—violate the law of human society. *De Officiis* Lib. 1. cap. 7, §§ 20, 21.

[22] Inst. 1, 8, 1. When Mr. Cobb says that there is “but one voice in the Digest and Code,” book cited, xcvi, meaning that they give no countenance to slavery, the statement is misleading.

[23] In the first chapter of his *History of England* Macaulay ascribes this result to moral causes, and to religion as chief agent. He is only one of many acute historians who overlook the play of economical forces.

[24] Cobb, *Slavery*, ccxviii (foot-note).

[25] See p. 437 *infra*, where I have compared the struggle of Ireland for autonomy during the last half of the eighteenth century with that of the south narrated in this book.

[26] Charleston Address mentioned above, 15.

[27] *Hist. of Fed. Gov.*, 2d ed., 59.

[28] *Id.* 2.

[29] See the *Republic of Republics*, 4th ed. The references in the copious index, under the names Dane, Henry, Story, Webster (Daniel, not Noah), will suffice to put the student in the way to finding ample support of the statements in the text.

[30] See Republic of Republics, 204-212 (chap. viii. of Part III.) entitled “Daniel Webster’s Masterpiece of Criticism,” for copious proofs of the statements made in the text. Hamilton, Madison, John Jay, and Franklin are cited, and some eight or nine quotations from Washington are made. The chapter is also instructive in showing State-rights utterances of Webster made before and after the speech.

[31] See Stephens, War between the States, vol. i. 388, 389-392, 397-8; and Republic of Republics, 4th ed., 207-211.

[32] War between the States, two volumes.

[33] The Republic of Republics; or, American Federal Liberty. By P. C. Centz, Barrister, 4th ed., Boston, 1881. See what I said of it in 1882, Am. Law Studies, §§ 943, 944. Subsequent examination and comparison have given me a still higher opinion of this book; which in its well-digested presentation of evidence exhaustively collected, and complete demonstration of its main proposition, to wit, that in the opinion of the draftsmen, also of all the advocates of the constitution, and of the people ratifying, the States were sovereign before adoption and would so remain afterwards, is unique, and far foremost, in the literature of the subject. Compare this strong statement of Henry Cabot Lodge, uttered in 1883:

“When the constitution was adopted by the votes of States at Philadelphia, and accepted by the votes of States in popular conventions, it is safe to say that there was not a man in the country, from Washington and Hamilton on the one side, to George Clinton and George Mason on the other, who regarded the new system as anything but an experiment by the States and from which each and every State had the right peaceably to withdraw, a right which was very likely to be exercised.” Daniel Webster, 176.

[34] Republic of Republics, 4th ed., 23. The entire chapter entitled “Secession and Coercion,” *id.* 22-27, will repay consideration, setting forth as it does what according to the author the brothers on each side ought to have done under the law of nations.

[35] Lewis H. Morgan, Ancient Society, 103.

[36] Morgan, Ancient Society, 132.

[37] “It used to be a remark often made by Chief Justice Lumpkin, who was a man himself of wonderful genius, profound learning, and the first of his State, that Webster was always foremost amongst those with whom he acted on any question, and that even in books of selected pieces, whenever selections were made from Webster, these were the best in the book.” A. H. Stephens, *War between the States*, vol. i. 336.

[38] Ransy Sniffles is a character in *Georgia Scenes*, who has long been a proverb in the south for one who habitually provokes personal encounters among his neighbors.

[39] See *infra*, p. 436.

[40] See what he said February 20, 1860, in the United States senate, to Clark, repeating the charge, as reported in the “Globe.”

[41] W. Pinkney Starke, *Account of Calhoun’s Early Life*, *Calhoun Correspondence*, 69.

[42] The inscription on her tombstone states—so I have been informed—that she died in May, 1802. In a short while afterwards he put the mother of his future wife in her place and bestowed on her the highest filial love.

[43] W. Pinkney Starke, *Account of Calhoun’s Early Life*, *Calhoun Correspondence*, 78.

[44] Starke’s *Account of Calhoun’s Early Life*, *Calhoun Correspondence*, 87.

[45] *Life of John C. Calhoun*. By Gutasvus M. Pinkney, of the Charleston, S. C., Bar, Charleston, S. C., 1903.

[46] *Calhoun Correspondence*, 88.

[47] Von Holst, *John C. Calhoun*, 41.

[48] *War between the States*, vol. i. 341.

[49] *A Disquisition on Government, and A Discourse on the Constitution and Government of the United States*, *Works*, vol. i.

[50] *Works*, vol. i. (*A Disquisition on Government*) 72.

[51] They were made in the United States Senate, one, September 19, 1837, on the bill authorizing issue of treasury notes; the other, October 3, 1837, on his amendment of the bill just mentioned.

[52] His “Barbara Villiers” and his “History of Money in America” are very important. But his most valuable addition to the few books which have taught true monetary doctrine is his “Science of Money.” While in this he does not state the fundamental principle of good money as clearly as Calhoun does, yet he assumes it most accurately and builds upon it everywhere.

[53] “Rational Money,” published by C. F. Taylor, 1520 Chestnut Street, Philadelphia. The author does not show the deep insight and genial originality of Calhoun and Del Mar; but he has presented the entire subject with a judgment so sane in accepting the true and rejecting the false in the belonging theory, that the book is the very best of existing compilations.

[54] To be nominated in the South Carolina primary, a candidate for governor or any other State place must receive a majority in the whole State, one for congress a majority in the district, one for a county place a majority in the county. Where no candidate receives a majority a new primary is held only to decide between the two who got the largest vote. The primary first mentioned is a State primary, held on the last Tuesday of August. At this date, the crop—to use planting parlance—having been laid by for some six weeks, the voters have had ample opportunity from reading the papers, talks with one another, and hearing speeches to inform themselves fully. Just across the Savannah in Georgia, the State democratic executive committee, so called, being the faithful organ of the railroads, has since 1898 put the primary in the early days of June, in busiest crop-time. This precludes any real canvass. It also keeps thousands from voting; and so the always full turnout of railroad regulars and workers—which is but a relatively small portion of the body of electors—wins a plurality. The committee allows a plurality to nominate, as of course a plurality can be had more easily than a majority. To be sure of the State senate, nominations to it are made by a convention instead of a primary. And conventions in the congressional districts nominate candidates for the lower house.

Contrasting the results—in South Carolina nomination is really the voice of the people; in Georgia the people seem to get, while the railroads really get, the governor, and, as everybody now expects, the railroads and liquor men always have at least twenty-three of the forty-four senators.

I believe that the Swiss-like grip of the people of South Carolina upon their liberties, shaming Georgia so greatly as it does, is mainly due to the influence of Calhoun. That influence is still benignly powerful, even where unrecognized.

I think that if the dispensary law were so altered as to give each county the purchase of its liquor by, say, its supervisor, nominated by this primary, the opportunity of graft, now discrediting the administration of the law with many, would be effectually closed. There would then be everywhere a trustworthy official, of their own election, to keep the people advised as to proper prices and cost. It would be to lose all chance of re-election for the official to cheat the public by colluding with the liquor sellers.

[55] Life of John C. Calhoun, 225-229.

[56] *Id.*

[57] Heyward thus translates: “Reason and good sense express themselves with little art. And when you are seriously intent on saying something, is it necessary to hunt for words?”

[58] Von Holst, John C. Calhoun, 133.

[59] *Id.* 141.

[60] Von Holst, John C. Calhoun, 148.

[61] As illustrating his anti-tariff progress, see what he says in his letter of July, 1828, to James Monroe, Correspondence, 266; what in that to his relative, Noble, of January, 1829, *id.* 269, 270; in that to Samuel L. Gouverneur, of February, 1832, *id.* 310, 311; and what as to benefit from having concentrated opinions in south, in that to his brother-in-law, *id.* 313, 314.

[62] Discourse on the Constitution and Government of the United States, Works, vol. i. 392.

[63] Discourse on the Constitution and Government of the United States, Works, vol. i. 393.

[64] Ancient Society, 147, 148.

[65] A Disquisition on Government, Works, vol. i. 92-96. Compare for Calhoun's treatment Benton's report of his conversations, and the pertinent excerpts he gives from Calhoun's speech in the United States Senate of February 15 and 16, 1833, Thirty Years' View, vol. i. 335 *sq.*

[66] Daniel Webster, 50.

[67] *Id.* 45, 46.

[68] *Id.* 46.

[69] *Id.* 48.

[70] In his *Encyclopedia Americana* article Mr. Carl Schurz strains as hard as Mr. Lodge does in his biography to conceal the real position of Webster. I commend the homespun reasoning of this paragraph to all such.

[71] Daniel Webster, 59.

[72] McMaster, Daniel Webster, 88.

[73] Daniel Webster, 52.

[74] Dartmouth College Causes.—Mr. Lodge's narrative, Daniel Webster, 74-98—is a very helpful introduction to the book just mentioned.

[75] Lodge, Daniel Webster, 22.

[76] *Id.* 22.

[77] The twelve words meant are, "The congress shall have power to regulate commerce among the several States."

[78] Huschke ought to have stated this fact at page 19 of his edition of Gaius, in order to give the latter his full posthumous glory.

[79] We support our statement in this sentence by quoting below in this footnote two passages which stand a page or two apart in the Plymouth

oration, italicizing one word in the former, and one word and a clause in the other, which, if Webster had taken accurate note of the intellectual ferment then active throughout all New England, he would have made much stronger:

“We may flatter ourselves that the means of education at present enjoyed in New England are not only adequate to the diffusion of the elements of knowledge among all classes, but sufficient also for *respectable* attainments in literature and the sciences.”

“With nothing in our past history to discourage us, and with *something* in our present condition and prospects to animate us, let us hope, that, as it is our fortune to live in an age when we may behold a wonderful advancement of the country in all its other great interests, *we may see also equal progress and success attend the cause of letters.*”

[80] Daniel Webster, 318-321.

[81] *Ante*, 28-30.

[82] Literary History of America, 354.

[83] *Id.*

[84] Consider his virtual confession when Mrs. Davis good humoredly taxes him with saying in his speeches hard things of slavery which he knew from actual observation to be fictions. Memoir of Jefferson Davis, vol. i. 581.

[85] Lecture in Tremont Temple, Stephens, War between the States, vol. i. 637, 638 (Appendix G).

[86] The Negro in Africa and America, by Alexander Tillinghast, M. A., N. Y., 1902.

This really scientific work, very complete though very brief, is as indispensable to whomsoever would enlighten the country upon the race question, as is the latest and best text-book to the lawyer considering a case under the law treated therein.

Mr. Page's "The Negro: The Southerner's Problem," N. Y., 1904, has not the scientific merit of the last. But it most ably advocates the side generally taken by the south.

Both books are free from blinding passion and prejudice.

[87] Book cited, 88. The italics are mine.

[88] *Id.* 88.

[89] The Negro in Africa and America, 88, 89. Italics mine, again.

[90] Uncle Tom's Cabin and Key, Riverside ed., vol. i. p. xviii.

[91] These quotations from The Author's Introduction, Riverside ed., lviii, lix. The last sentence italicized by me.

[92] Tremont Temple Lecture, Stephens, War between the States, vol. i. 641. The italics are mine.

[93] Professor DuBois, born in 1868, in New England, whose writings show that his mind has been soaked to saturation in abolition misstatement and bitterness, and that consequently he is utterly unfamiliar with either the average negro slave of the south and the conditions and effects of slavery in the section, attributes the present unchastity of the negroes to the frequent separation of man and wife by the master. Here is what he says:

"The plague-spot in sexual relations is easy marriage and easy separation. This is no sudden development, nor the fruit of emancipation. It is the plain heritage from slavery. In those days Sam, with his master's consent, took up with Mary. No ceremony was necessary, and in the busy life of the great plantations of the Black Belt it was usually dispensed with. If now the master needed Sam's work in another part of the same plantation, or if he took a notion to sell the slave, Sam's married life with Mary was usually unceremoniously broken, and then it was clearly to the master's interest to have both of them take new mates. This widespread custom of two centuries has not been eradicated in thirty years." The Souls of Black Folk, 142.

This statement is utterly untrue, as Professor DuBois can easily find out from thousands of most credible witnesses. I never knew of a single such

separation. Of course, I will not say that there were none at all. But I do say, in contradiction of his assertion, as flat as contradiction can be, that the separations which he describes were not common. Every impartial investigator who has formed his opinion from the actual evidence knows that the unchastity of the negro slave of America was an inheritance from Africa. I do not dispute the assertion often made that there were and are still chaste negro tribes of that continent. But our negroes did not come from them. They came from the West Africans, accurately described above in citations from Mr. Tillinghast.

[94] Uncle Tom's Cabin and Key, Riverside ed., vol. i. p. lxxxix sq.

[95] Uncle Tom's Cabin and Key, Riverside ed., vol. ii. 273.

[96] Georgians, 128.

[97] The Life of Robert Toombs, 29-49 (New York, Cassell Pub. Co.).

[98] Bethany, A Story of the Old South, 10 sq.

[99] Johnston and Browne's Life of A. H. Stephens, 218.

[100] Toombs thus anticipates the trenchant but kindly criticism by Woodrow Wilson of congressional ways of governing. Congressional Gov. 58-192, and in other places.

[101] What he says July 29, 1857, on death of Preston S. Brooks is a good example of the forced and labored style of his set speeches. Stephens often said that his set speeches were failures. And unless they were made, as that on the invasion of States, that on the duty of congress to protect slavery in the Territories, and his justification of secession, January 7, 1861, under the excitement of a great cause, working the same effect upon him as the ardor of extemporaneous effort, his set speeches are below the mark. And I wish he had more carefully revised the three just mentioned, following the example of Cicero, Erskine and Webster, who habitually corrected and improved their words after they had been spoken. He does not seem to have given his good speeches—the extemporaneous ones—any systematic correction. Of all speakers and orators I ever knew or heard of, he has used the file the least. It is my belief that he did not know how to use it. Had he but polished just some of his best unpremeditated efforts; as for instances

his first speech for the retired naval officers; his most important utterances under various heads of internal improvements; his humorous anti-pension harangues; and his titanic struggle in vain with his own party to keep Harlan seated—what a find they would be for the school speech books of the future! His lecture on slavery, delivered in Tremont Temple, Boston, January 24, 1859,—a good copy of which is given by Stephens (*The War between the States*, vol. i. 625-647)—is the best specimen extant, within my knowledge, of his deliberate style. If I may make such a distinction, it was carefully revised, but never corrected. The reader will find it, I believe, the very ablest of all the many defences of slavery in the south.

Mrs. Davis states that during the times of excitement concerning the compromise of 1850, “He [Toombs] would sit with one hand full of the reporter’s notes of his speeches, for correction,” with a French play in the other, over which he was roaring with laughter. (*Memoir of Jefferson Davis*, vol. i. 411.) As his speech of December 13, 1849, and the Hamilcar speech of June next following, need very little correction, I incline to believe that he did at least try to revise them. Naturally leading such a novel movement as he then was—it will be fully explained a little later on—he would desire to send forth his views in only carefully considered words, and probably he corrected the proofs of the two speeches just mentioned with something like diligence. In his pleadings, law-briefs, sketches of proposed statutes, letters, etc., of which I saw much in his last years, he was so palpably indifferent towards improving his first draft that one might know it came from lifelong habit.

[102] Third Session, 240-244.

[103] *Globe*, 35th Cong., 1st Sess., Appendix, 360 (I am thus particular in giving this reference, from a sense of justice to the memory of George W. Crawford, which is now and then ignorantly aspersed because of the Galphin claim).

[104] See his argument, May 25, 1858, for putting duties on the home valuation of imports; note also how familiar he is with trade, the motive of smuggling, the relation of exchange; also what he says of the tariff of 1857, *Globe*, 35th Cong., 1st Sess., 466, 467, 470. For his mastery of trade and commerce, see what he says June 9, 1858, especially pp. 2832-2834.

[105] Stephens, War between the States, vol. ii. 338.

[106] War between the States, vol. ii. 186.

[107] Address in the Supreme Court of Georgia, March 9, 1886.

[108] War between the States, vol. ii. 217.

[109] Waddell, Life of Linton Stephens, 237.

[110] The rare perfection of Catullus's spontaneous poetic expression is something like adequately represented in two quotations made by Baehrens, one from Niebuhr, and the other from Macaulay, especially in the former. Catulli Veronensis, Liber II. 42.

[111] War Between the States, vol. ii. 329-333.

[112] Pleasant A. Stovall, The Life of Robert Toombs, 218.

[113] The War between the States, vol. ii. 781 (Appendix).

[114] The supplies for the Confederate Army, How they were obtained in Europe and How paid for.—Personal Reminiscences and Unpublished history. By Caleb Huse, Major and Purchasing Agent, C. S. A. Boston, Press of T. R. Marvin & Son, 1904.

I commend this narrative to Professor Brown. Should he study it he will have cause to retract what he has written (The Lower South in American History, 164) in disparagement of this resource. Had Toombs, or Stephens, or Cobb been president and represented by such an extraordinarily able agent, the Confederate States would have got ironclads, broken the blockade, kept out invaders, and had a money that would have held its own much better than the greenbacks unsustained by cotton or anything like it. From what I know of these men I am sure the right agent would have been found.

[115] Book cited, 164, 165.

[116] Stovall, Life of Robert Toombs, 226.

[117] Wyeth, Life of General Nathan Bedford Forrest, 268, 269.

[118] *Id.* 271.

[119] See his 14th chapter.

[120] “I see a vision of awful shapes—mighty presences of gods arrayed against Troy.” *Æneid*, II. 622-23, Transl. by JOHN CONINGTON, *Writings*, II., Longmans, Green & Co. (1872).

[121] In six consecutive numbers of the *Pilgrim*, beginning with that of October, 1903. This is a monthly, edited by Willis J. Abbot, and published by the Pilgrim Magazine Co., *Ltd.*, Battle Creek, Mich.

[122] Memoir of Jefferson Davis, vol. i. 59.

[123] Memoir, vol. i. 86.

[124] *Id.* 52, 53.

[125] Memoir, *Id.* vol. i. 59, 60.

[126] Mrs. Davis tells all the details most delightfully; Memoir, vol. i. 207-212.

[127] Memoir, vol. i. 214, 215. Compare what Stephens says of the speech made by President Davis at the African church in Richmond in February, 1865, just after the return of our Commissioners who had sought in vain for terms of peace which the south could consider. We give the part of the passage pertinent here.

“The newspaper sketches of that speech were meagre, as well as inaccurate ... and ... came far short of so presenting its substance even, as to give those who did not hear it anything like an adequate conception of its full force and power. It was not only bold, undaunted, and confident in tone, but had that loftiness of sentiment and rare form of expression, as well as magnetic influence in its delivery, by which the passions of the people are moved to their profoundest depths, and roused to the highest pitch of excitement. Many who had heard this Master of Oratory in his most brilliant displays in the senate and on the hustings, said they never before saw him so really majestic. The occasion, and the effects of the speech, as well as all the circumstances under which it was made, caused the minds of not a few to

revert to like appeals by Rienzi and Demosthenes.” War between the States, vol. ii. 623, 824.

[128] Memoir, vol. i. 146, 147.

[129] Landon Knight, “The Real Jefferson Davis,” already cited.

[130] Landon Knight, “The Real Jefferson Davis.”

[131] Mrs. Davis’s Memoir, vol. i. 392.

[132] In his fourth chapter.

[133] Memoir, vol. ii. 18.

[134] *Id.* 32, 33.

[135] Memoir, vol. ii. 180-183.

[136] Mr. Landon Knight is happy in showing the fidelity, diligence, courage, and unsurpassed conscientiousness, of Mr. Davis in his presidency, and especially how he bore himself amid the multiplying disasters of the last two years.

[137] “We embraced the cause [i. e., of the Confederate States] in the spirit of lovers. True lovers all were we—and what true lover ever loved less because the grave had closed over the dear and radiant form?—And so we—we, at least, who as men and women inhaled the true spirit of that momentous time—come together on these occasions not only with the fresh new flowers in our hands, but with the old memories in our thoughts and the old, but ever fresh, lover spirit in our hearts, and seek to make these occasions not unworthy of the cause we loved unselfishly and of these its sleeping defenders.” Major Joseph B. Cumming, in introducing General Butler, orator of the day, when the Confederate soldiers’ graves were decorated at the Augusta (Ga.) cemetery in 1895.

[138] The celebration at Covington, Georgia, April 26, 1866, was complete. My friend Hon. J. M. Pace has just shown me a copy of the local newspaper issued the next day, containing an account of the ceremony and the rarely appropriate address which he made as part thereof. The fact is that the

observance of Memorial Day commenced everywhere in the south at the time just mentioned.

[139] Encyc. Americana, article "Ant."

[140] Uncle Tom's Cabin and Key, vol. i. 206 (Riverside ed.).

[141] Says John Mitchell: "The Southern States, which have made rapid progress, especially in cotton manufacturing, have, as a general rule, not responded to the demand for a shorter working-day—the south lacking effective labor organizations to compel such legislation." (Organized Labor, 122.) He might have said the same as to the desired prohibition of child labor.

[142] *Infra*, pp. 431-438.

[143] The Souls of Black Folk, 254.

[144] In an address mentioned in the next footnote Major Joseph B. Cumming rightly insists that this is the proper name for what is called "the American Civil War" with some show of justification, and "the war of rebellion" without any justification whatever.

[145] Address of Major Joseph B. Cumming, entitled "The Great War," before Camp 435 of United Confederate Veterans, Augusta, Ga., Memorial Day, 1902.

[146] I Timothy vi. 1-4. I have quoted the Twentieth Century Testament because of its extremely faithful version. Of course the italics are mine.

[147] "Where Black Rules White," by Hugo Erichsen, in the *Pilgrim* for July, 1905, deserves the title "Hayti As It Is." The Americana article ought to be conspicuously labelled "Hayti Whitewashed."

[148] Bureau of Labor Bulletin, No. 48, September, 1903, pp. 1006, 1013, 1019.

[149] *Id.* 1020.

[150] Bishop Lucius H. Holsey, D.D., of the colored M. E. Church, is much more in touch and sympathy with the negro masses than Professor DuBois.

Here is something recently said by him:

“As long as the two races live in the same territory in immediate contact, their relations will be such as to intermingle in that degree that half-bloods, quarter-bloods and a mongrel progeny will result. This is not only going on now, but is destined to annihilate the true typical ante-bellum negro type, and put in his place a stronger, a longer lived, and a more Anglo-Saxon-like homogeneous race. In other words, the negro to come will not be the negro of the emancipation proclamation, but he will be the Anglo-Saxonized Afro-American. It seems true, as has been said, ‘No race can look the Anglo-Saxon in the face and live.’ Certainly no other race can hold its own in his immediate presence. Being in immediate contact and underrating the mental and moral virtues of others and exercising a sovereignty over them, his opportunities are enlarged to make other races his own in consanguinity. This he never fails to do.” Address before the National Sociological Society at the Lincoln Temple Congregational Church, *The Possibilities of the Negro in Symposium*, 107 (Atlanta, Ga.).

In the same address, just a little above the quotation just made, this occurs: “Legal intermarriage in the south, although not wrong in its consummation, is a matter as yet undebatable, and belongs only to the future.” *Id.* 107.

These words of Bishop Holsey are weighty proof that the negroes strongly desire and expect amalgamation.

[151] Edward B. Taylor, *The Outlook*, July 16, 1904, p. 670.

[152] *The Souls of Black Folk*, 106.

[153] See Exodus xxii. 16.

[154] *The Souls of Black Folk*, 106.

[155] May 6, 1905. Having finished my work I read two days ago, “The Color Line. A Brief in behalf of the Unborn.” By William Benjamin Smith, N. Y., 1905. It ably and vividly explains the transcendent importance of keeping the blood of Caucasians in America uncontaminated with that of the African, and demonstrates that to do this the color line must be rigidly maintained between negroid as well as coal-black, on one side, and white on the other. The utter impossibility of making the man of a particular race

like the man of another extremely remote one by even the most careful education is shown with startling effect. The inability of the black to hold his own against white competition, and his gradual and sure expulsion is proved by overwhelming evidence. The book is useful as an introduction to all the literature of the subject. The only fault that I note is its excessive warmth and combativeness—especially in the first half. With the dispassionate serenity of Mr. Tillinghast, it would have been perfect.

[156] The quotations which immediately follow are from a letter of J. B. A. Walker, dated Tuskegee, Ala., July 27, 1904, written to S. H. Comings, who has kindly permitted me to make use of it.

[157] Lower South in Am. Hist. 223. When Professor Brown read “The Clansman” doubtless his hesitation ended.

[158] *Clyatt v. United States*, March 13, 1905.

[159] Possibly this is the village of Boley, mentioned in the next chapter.

[160] They are Stephen, a slave, v. State, 2 Ga. 225; Jesse, a slave, v. State, 20 Ga. 161.

[161] See Tillinghast, *The Negro in Africa and America*, 10-14.

[162] New Encyc. Britan., Article, “Jamaica.”

[163] *Working with the Hands*, 40.

[164] Tillinghast, book cited above, 180, 181. Consider the quotation there made from Thurston, the negro manager, in which he asserts that it is only by this means that negro operatives can be made to do good work.

[165] *Souls of Black Folk*, 9.

[166] During the years after the war until the end of 1881, when I came to Atlanta, I kept my eye upon the negro preachers in the country. Whenever I could closely observe one and had opportunity of sifting members of his congregation, I generally found him to be *vir gregis*. My acquaintances tell me that there has been no perceptible change. Compare what Mr. Edward B. Taylor, a northern man, now residing in Columbia, S. C., says of “the immoral negro preacher” in *The Outlook* of July 16, 1904.

[167] William Hannibal Thomas, a negro of Massachusetts, says the same as to the early corruption of children and “marital immoralities” both of the poor, the ignorant, and the degraded among the freed people, and also of those who assume to be educated and refined. Quoted by Mr. Page, *The Negro; The Southerner’s Problem*, 82-84.

[168] *Encyc. Am.* Article, “Negro in America.”

[169] Noticing Mr. Page’s book just mentioned, Professor DuBois treats William Hannibal Thomas as utterly unworthy of credit. All of us in the south familiar with negroes know that Thomas’s statement quoted by Mr. Page is unqualifiedly true.

[170] That part of Department of Commerce and Labor Bureau Census, Bulletin 8, called “The Negro Farmer,” is by him. Consider the extravagant claims made therein for the magnitude of negro farming in the United States in the comment on Table xxxv. p. 92. Professor DuBois is also author of the “Negro Landholder of Georgia,” Bulletin of Department of Labor, No. 35, July, 1901.

[171] Bulletin 8, before cited, 75.

[172] Article, “Negro Education,” *Encyclopedia Americana*.

[173] Professor DuBois, Bulletin 8, cited above, 73.

[174] *Id.* 77.

[175] Book cited, 183-185.

[176] *Id.* 184.

[177] Book cited, 184.

[178] *Id.* 184.

[179] Bureau of Statistics—Bulletin No. 28, p. 71.

[180] *Id.* 72.

[181] Extract from a letter of Hon. James M. Smith to the author. He is, I believe, the largest planter in Georgia. His lands lie in the adjoining edges

of Oglethorpe county, which is in the Black Belt, and of Madison county, which is outside. From his experience, and because of the great accuracy of his observation, which I have noted for nearly forty years, I regard him as better qualified than any one else who can be suggested, to give a correct opinion on the subjects he deals with in the quotation. Especially do I emphasize his exceptional advantages for comparing whites and negroes as farmers, tenants, croppers, and laborers for standing wages, in making cotton.

[182] Book cited above, 121, 122.

[183] The Voice of the Negro, September, 1904 (Atlanta, Ga.)—Consider picture of “Board of Directors of the True Reformers’ Bank, Richmond, Va.,” in number of same magazine for November, 1904. These directors are nine in all, and there is but one who is decidedly black. Six of them look to be more than three-quarters white. The number for March, 1905, contains a sketch of William Edward Burghardt Du Bois, Ph.D., stating that the Professor’s ancestry is largely white and his color a rich brown. The picture of his mother shows her hair to be straight and her complexion bright.

[184] Book cited above, 213-215.

[185] The Voice of the Negro, October, 1904, p. 435.

[186] Department of Commerce and Labor Bureau of the Census, Bulletin 8, Negroes in the United States, p. 13.

[187] I have in mind his late articles in the *Outlook*.

[188] See his “Problems of the Present South.”

[189] Autobiography of Seventy Years, vol. ii. 60-62.

[190] By Anne Scribner, and copied in the *Public* of September 17, 1904, from the Chicago *Evening Post*.

[191] The passage with the context quoted by Dr. Booker Washington, “Working with the Hands,” 238.

[192] Issue of October 15, 1904.

[193] Encyclopedia Americana, Article “Negro Education.”

[194] But the most drastic provisions to keep the greedy whites from preying upon the negroes as they did upon the Indians must be adopted, such as permitting the negro State to tax without limit whites owning property or doing business therein. This will prevent the result anticipated by Booker Washington.

[195] The best thing upon the joint education of hand and brain known to me is “Pagan vs. Christian Civilization,” by S. H. Comings (Charles H. Kerr & Co., Chicago). The title does not indicate, as it ought to do, the special purpose of the book to show that to give the scholar expertness with his hands at the first and thus develop his self-supporting ability is far better than to cram his memory. What the author says in maintenance of his proposition, that our industrial schools should be operated upon a plan that will make the scholar pay as he goes, out of his own work, for his subsistence and expense of education during the entire course, deserves respectful and thoughtful consideration. In its brevity, and at the same time variety and fulness, coming as it does at the beginning of a new era, it reminds me of Sullivan’s tract which some years ago started the American agitation for direct legislation, with store of examples and exposition almost sufficient for its entire needs.

The above had been written when Booker Washington’s “Working with the Hands” came along. The well-chosen title informs accurately as to the subject of the book. Its scope covers working with the hands from its beginning in childhood to the close of life. As illustration of his principles Dr. Washington circumstantially tells of the beneficent industrial and moral training given at Tuskegee, in all its many departments, to children, youth, and adults, in everything which it is important that a negro of either sex should know how to do. Besides its wisdom, its attention-commanding and interest-exciting style deserves high commendation. Any reader longing for the day of real education to dawn who opens the book will go to the end, without skipping, in a delightful gallop. It is my conviction that it will be of far more advantage to the white industrial and technological schools than to those for which it is specially intended by the author.

[196] Book cited, 119.

[197] See Collier's Weekly for November 26, 1904.

[198] The English translation of the first volume of Von Holst's "Constitutional and Political History of the United States" has just been published. The titles of the ninth and tenth chapters, to wit, "The Economic Contrast between the Free and Slave States," and "Development of the Economic Contrast between the Free and Slave States," are very apt and striking, and the contents of the chapters are profoundly original and instructive. Having ample space, the author has, among other merits, well handled the following incidents and consequences of slavery:

1. Implacable hostility of slave and non-slave labor.
2. Self-protecting necessity to slavery of continuous expansion, and, to insure this expansion, necessity that the south keep political mastery of the country.
3. Economic importance to south of invention of cotton-gin in 1793.
4. Exclusive possession by north of wholesale trade.
5. Greater immigration to north.
6. Missouri Compromise, and rise therefrom of geographical parties.
7. Internal improvements and tariff passing inter-geographical question.
8. Economic decay of south due to slavery, and not to tariff.
9. Opposition of slavery to the spirit of the age.

The following is a brief statement of the chief demerits of the two chapters:

1. Misstatement that there were different circles of slaveholders; overstatement of inhumanity of masters; and unjust disparagement of character of smaller slaveholders.
2. Failure to note the great absorbing energy of slave property.
3. Failure to note the lack of a population of free workers.

But the work, considering the short time the clouds of battle have had to clear away, recollecting, too, that the author is a foreigner, is, excepting a little heated partisanship here and there, a most valuable contribution to the history of our country.

[199] I see now—in 1905—that the statement in the text was a great mistake; and that nadir was not reached until some fifteen or twenty years later.

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